

REQUEST FOR PROPOSALS
FOR
RENEWABLE DISPATCHABLE GENERATION
AND
ENERGY STORAGE
ALL ISLANDS

August 7, 2026

Appendix J – Model RDG PPA



**Hawaiian
Electric**



**Hawaiian
Electric**

*Power Purchase Agreement
For
Renewable Dispatchable Generation
[Wind or PV + BESS]
All Islands*

Project Type: [Wind or PV + BESS]

Contract Capacity: _____MW of Generation

BESS Contract Capacity: _____/_____MW/MWh of Storage

Are the PV System/WTGs and the BESS DC-Coupled? No ☐ Yes ☐

Facility Location: _____

Execution Date: _____

August 5, 2026 Version

PREFATORY NOTES

- This document indicates, for information purposes only, the terms and conditions that may be negotiated in a contract for the sale of renewable dispatchable generation to be executed by Hawaiian Electric Company, Inc., Hawai'i Electric Light Company, Inc. or Maui Electric Company, Limited. The terms and conditions that may be offered by Hawaiian Electric Company, Inc., Maui Electric Company, Limited or Hawai'i Electric Light Company, Inc. in a renewable dispatchable generation power purchase agreement may be modified to reflect factors such as different renewable technologies, project specifics, changes in applicable rules, guidance from the Public Utilities Commission in proceedings concerning the approval or negotiation of such power purchase agreements, results of an interconnection requirements study and other negotiated terms and conditions.
- The documents evidencing the complete contract for this Facility consist of (1) this Power Purchase Agreement For Renewable Dispatchable Generation, and all Attachments, Exhibits and related documents attached to this document, (2) the IRS Letter Agreement, (3) the GHG Letter Agreement and (4) any confidentiality or non-disclosure agreements entered into by the Parties during the process of contract negotiations and/or discussions of the specifications of the Facility.
- This document assumes that the proposed generation facility will be paired with a battery energy storage system ("BESS"), and therefore, contains terms and conditions with respect to the BESS. If a generation only proposal is selected for the RFP's final award group, the BESS specific provisions will be removed from the documents evidencing the complete contract for such project proposal.

[NOTE: TEXT WITHIN THIS DOCUMENT THAT APPEARS IN BOLD AND/OR BRACKETS INDICATES A PROVISION THAT MAY REQUIRE REVISION TO CONFORM TO A SPECIFIC PROJECT.]

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POWER PURCHASE AGREEMENT FOR RENEWABLE DISPATCHABLE GENERATION

THIS POWER PURCHASE AGREEMENT FOR RENEWABLE DISPATCHABLE GENERATION ("Agreement") is made this ____ day of _____, 20__ (the "Execution Date"), by and between [Hawaiian Electric Company, Inc.,] [Maui Electric Company, Limited,] [Hawai'i Electric Light Company, Inc.,] a Hawai'i corporation (hereinafter called the "Company") and _____ (hereinafter called the "Seller").

WHEREAS, Company is an operating electric public utility on the island where the Facility is located, subject to the Hawai'i Public Utilities Law (Hawai'i Revised Statutes, Chapter 269) and the rules and regulations of the Hawai'i Public Utilities Commission (hereinafter called the "PUC" or "Commission"); and

WHEREAS, the Company System is operated as an independent power grid and must both maximize system reliability for its customers by ensuring that sufficient generation is available and meet the requirements for voltage stability, frequency stability, and reliability standards; and

WHEREAS, Company desires to minimize fluctuations in its purchased energy costs by acquiring renewable dispatchable generation at a fixed Unit Price; and

WHEREAS, Seller is a developer of renewable energy systems and intends to hire a properly licensed general contractor to construct, and, thereafter, Seller intends to own and operate a renewable energy facility that is classified as an eligible resource under Hawai'i's Renewable Portfolio Standards Statute (codified as Hawai'i Revised Statutes ("HRS") 269-91 through 269-95) **[together with a safe, reliable and operationally flexible battery energy storage system ("BESS")]** so as to provide the Company System with those benefits and services associated with renewable energy generation **[and energy storage services]**, as defined herein; and

WHEREAS, Seller understands the need to use all commercially reasonable efforts to maximize the overall reliability of the Company System; and

WHEREAS, Facility will be located at the location identified on the cover page of this Agreement, and is more fully described in Attachment A (Description of Generation,

Conversion and Storage Facility) and Attachment B (Facility Owned by Seller); and

WHEREAS, Seller desires to sell to Company, and Company agrees to purchase upon the terms and conditions set forth herein, (i) the Actual Output produced by the Facility and delivered to the Point of Interconnection; (ii) the availability of the BESS; and (iii) the availability of the Facility's Net Energy Potential for Company Dispatch in accordance with this Agreement.

NOW, THEREFORE, in consideration of the premises and the respective promises herein, Company and Seller hereby agree as follows:

DEFINITIONS

When the capitalized terms set forth in the Schedule of Defined Terms are used in this Agreement, such terms shall have the meanings set forth in such Schedule.

ARTICLE 1
PARALLEL OPERATION

Company agrees to allow Seller to interconnect and operate the Facility to provide renewable dispatchable generation and energy in parallel with the Company System; provided, however, that such interconnection and operation shall not: (i) adversely affect Company's property or the operations of its customers and customers' property; (ii) present safety hazards to the Company System, Company's property or employees or Company's customers or the customers' property or employees; or (iii) otherwise fail to comply with this Agreement. Such parallel operation shall be contingent upon the satisfactory completion, as determined solely by Company, of the Acceptance Test and, to the extent applicable, the Control System Acceptance Test, in accordance with Good Engineering and Operating Practices.

ARTICLE 2
PURCHASE AND SALE OF ENERGY AND DISPATCHABILITY; RATE FOR
PURCHASE AND SALE; BILLING AND PAYMENT

- 2.1 Purchase and Sale of Electric Energy, Dispatchability of Facility and Availability of the BESS. Subject to the other provisions of this Agreement, Company shall, by a Lump Sum Payment, pay for: (i) the Actual Output produced by the Facility and delivered to the Point of Interconnection in response to Company Dispatch of the Facility; (ii) the availability of the Facility's Net Energy Potential for Company Dispatch in accordance with this Agreement; and (iii) the availability of the BESS. Included in such purchase and sale are all of the Environmental Credits associated with the electric energy. Company will not reimburse Seller for any taxes or fees imposed on Seller including, but not limited to, State of Hawai'i general excise tax.
- 2.2 [RESERVED]
- 2.3 Lump Sum Payment. Commencing on the Commercial Operations Date, Company shall pay to Seller a monthly Lump Sum Payment as provided in Section 2 (Lump Sum Payment) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement. As more fully set forth in Section 3 (Calculation of Lump Sum Payment) of said Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS), the monthly Lump Sum Payment shall be calculated and adjusted to reflect changes in the estimate of the Facility's Net Energy Potential as such estimate is revised from time to time as more fully set forth in Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement. For purposes of calculating the monthly Lump Sum Payment, the monthly Lump Sum Payment shall be adjusted downward to account for the time the Facility or any portion of the Facility is not available for Company Dispatch because of a Force Majeure condition (i) at the Facility or (ii) that otherwise delays or prevents the Seller from making the Facility or any portion of the Facility available for Company Dispatch, as more fully set forth in Section 3(d) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement.

2.4 Assurance of Capability of Facility to Deliver Net Energy Potential and Availability of BESS.

- (a) Design, Operation and Maintenance to Achieve Required Performance Metrics. In order to provide Company with reasonable assurance that the Facility's Net Energy Potential and Contract Capacity will be available for Company Dispatch: (i) the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric shall be used to evaluate the availability of the [PV System or WTG(s)] for dispatch by Company; (ii) the [GPR or GPI] Performance Metric shall be used to evaluate the efficiency of the [PV System or WTG(s)]; (iii) the BESS Capacity Performance Metric shall be used to confirm the capability of the BESS to discharge continuously for four (4) hours at BESS Contract Capacity (MW) or to discharge continuously for a total energy (MWh) equal to the BESS Contract Capacity (MWh) if the test is conducted at less than BESS Contract Capacity (MW); (iv) the BESS EAF Performance Metric shall be used to determine whether the BESS is meeting its expected availability; (v) the BESS EFOF Performance Metric shall be used to evaluate whether the BESS is experiencing excessive unplanned outages; and (vi) the RTE Performance Metric shall be used to evaluate the storage efficiency of the BESS. Whenever the [PV System or WTG(s)] potential output is in excess of the Company Dispatch, the excess energy from the [PV System or WTG(s)] shall be used to maximize the BESS State of Charge so long as this does not conflict with the operating parameters of the BESS set forth in Section 9(d) (Battery Energy Storage System) of Attachment B (Facility Owned by Seller) to this Agreement. Seller shall design, operate and maintain the Facility in a manner consistent with the standard of care reasonably expected of an experienced owner/operator with the desire and financial resources necessary to design, operate and maintain the Facility to achieve the Performance Metrics. The foregoing is without limitation to Seller's other obligations under this Agreement, including the obligation to operate the Facility in accordance with Good Engineering and Operating Practices. The Performance Metrics set forth in Section 2.5 ([PV System Equivalent or Modified Pooled OMC Equipment]) Availability Factor;

Liquidated Damages; Termination Rights) through Section 2.11 (BESS Round Trip Efficiency; Liquidated Damages; Termination Rights) of this Agreement shall be interpreted consistent with the North American Electric Reliability Corporation Generating Availability Data System ("NERC GADS") Data Reporting Instructions. In the event of a conflict between NERC GADS and the terms of this Agreement, the terms of this Agreement will control.

(b) [RESERVED]

2.5 [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor; Liquidated Damages; Termination Rights.

(a) [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric and Liquidated Damages. Following the close of each [PV System EAF or MPXEEAF] Assessment Period, a [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor shall be calculated as provided in accordance with Attachment Q (Calculation of Certain Metrics) to this Agreement. In the event the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor is less than [98% or 97% in the case of MPXEEAF as Wind does not get the benefit of RSH at night] (the "[PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric") for any [PV System EAF or MPXEEAF] Assessment Period, Seller shall be subject to liquidated damages as set forth in this Section 2.5(a) ([PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric and Liquidated Damages). For avoidance of doubt, because calculation of the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor requires twelve (12) calendar months of data, the first month for which such liquidated damages could be assessed would be the concluding calendar month of the initial Contract Year. If the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor for a [PV System EAF or MPXEEAF] Assessment Period is less than the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric, Seller shall pay, in accordance with Section 2.12 (Payment of

Liquidated Damages for Failure to Achieve Performance Metrics; Limitation on Liquidated Damages), and Company shall accept, as liquidated damages for Seller's failure to achieve the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric for such LD Period, an amount calculated in accordance with the following formula:

<u>[PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor</u>	<u>Amount of Liquidated Damages Per Calendar Month</u>
[97.9% and below in the case of PV]	For each one-tenth of one percent (0.001) by which the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor for such [PV System EAF or MPXEEAF] Assessment Period falls below the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric, an amount equal to 0.001917 of the Applicable Period Lump Sum Payment for the last calendar month of such LD Period.
[96.9% and below in the case of MPXEEAF]	

For purposes of determining liquidated damages under the preceding formula, the amount by which the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor for the [PV System EAF or MPXEEAF] Assessment Period in question falls below the applicable threshold shall be rounded to the nearest one-tenth of one percent (0.001). Each Party agrees and acknowledges that (i) the damages that Company would incur if the Seller fails to achieve the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric for a [PV System EAF or MPXEEAF] Assessment Period would be difficult or impossible to calculate with certainty and (ii) the aforesaid liquidated damages are an appropriate approximation of such damages.

EXAMPLE: The following is an example calculation of liquidated damages for the [PV System Equivalent Availability Factor Performance Metric or Modified Pooled OMC Equipment Availability Factor Performance Metric] and is included for illustrative purposes only. Assume the monthly Lump Sum Payment is \$1,000,000 and the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor is [for PV 96.6% or Pooled OMC 97.9%] as calculated in the example in Section 1 (Calculation of the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor) of Attachment Q (Calculation of Certain Metrics).

The liquidated damages would be calculated as follows:

Applicable Period Lump Sum Payment = \$1,000,000

$\$1,000,000 \times .001917 = \$1,917$

$98.0\% - 96.6\% = 1.4\%$

$1.4\% / 0.1\% = 14$

$\$1,917 \times 14 = \$26,838$

- (b) [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Termination Rights. The Parties acknowledge that, although the intent of the liquidated damages payable under Section 2.5(a) ([PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric and Liquidated Damages) is to compensate Company for the damages that Company would incur if the Seller fails to achieve the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric for a [PV System EAF or MPXEEAF] Assessment Period, such liquidated damages are not intended to compensate Company for the damages that Company would incur if a pattern of underperformance establishes a reasonable expectation that the Facility is likely to continue to substantially underperform the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric. Accordingly, and without limitation to Company's rights under said Section 2.5(a) ([PV System Equivalent or Modified

Pooled OMC Equipment] Availability Factor Performance Metric and Liquidated Damages) for those [PV System EAF or MPXEEAF] Assessment Periods during which the Seller failed to achieve the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric, the failure of the Facility to achieve a [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor of not less than **84%** for each of thirty-six (36) consecutive monthly [PV System EAF or MPXEEAF] Assessment Periods shall constitute an Event of Default under Section 15.1(b) of this Agreement for which Company shall have the rights (including but not limited to the termination rights) set forth in Article 15 (Events of Default) and Article 16 (Damages in the Event of Termination by Company). For avoidance of doubt, because the rolling forward of the [PV System EAF or MPXEEAF] Assessment Period creates a new [PV System EAF or MPXEEAF] Assessment Period following the close of every calendar month, as provided in Section 1 (Calculation of the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor) of Attachment Q (Calculation of Certain Metrics) of this Agreement, failing to achieve the 84% benchmark for each of thirty-six (36) consecutive monthly [PV System EAF or MPXEEAF] Assessment Periods constitutes a failure extending over three consecutive years.

2.6 Measured Performance Ratio or Performance Index; Liquidated Damages; Termination Rights.

- (a) [GPR or GPI] Performance Metric and Liquidated Damages. For each [MPR or PI] Assessment Period, a [Measured Performance Ratio or Performance Index] shall be calculated as provided in Section 2 (Calculation of [Measured Performance Ratio or Performance Index]) of Attachment Q (Calculation of Certain Metrics) of this Agreement. In the event the [MPR or PI] is less than [**95%** of the GPR Performance Metric as adjusted by the degradation factor set forth below, or **97%** of the GPI Performance Metric] Seller shall be subject to liquidated damages as set forth in this Section 2.6(a) ([GPR or GPI] Performance Metric and Liquidated Damages). For avoidance of doubt, because calculation of the [Measured Performance Ratio or Performance Index] requires twelve (12) calendar

months of data, the first month for which such liquidated damages would be assessed would be the concluding calendar month of the initial Contract Year. If the [Measured Performance Ratio or Performance Index] for a [MPR or PI] Assessment Period is less than [95% of the GPR Performance Metric as adjusted by the degradation factor set forth below, or 97% of the GPI Performance Metric] Seller shall pay, in accordance with Section 2.12 (Payment of Liquidated Damages for Failure to Achieve Performance Metrics; Limitation on Liquidated Damages), and Company shall accept, as liquidated damages for Seller's failure to achieve the [GPR or GPI] Performance Metric for such [MPR or PI] Assessment Period, an amount calculated in accordance with the following formula **[NOTE DIFFERENT VERSIONS FOR PV-GPR AND WIND-PI]**:

[PV Version]

<u>Tier</u>	<u>Measured Performance Ratio</u>	<u>Amount of Liquidated Damages Per MPR Assessment Period</u>
Tier 1	GPR Performance Metric x DF x 0.95 > Measured Performance Ratio ≥ GPR Performance Metric x DF x 0.90	For each one-tenth of one percent (0.001) by which the Measured Performance Ratio for such MPR Assessment Period falls below the upper limit of the bandwidth specified in this subparagraph, an amount equal to one-tenth of one percent (0.001) of the MPR Assessment Period Lump Sum Payment. The upper end of the aforementioned bandwidth is equal to the product of the GPR Performance Metric, the applicable degradation factor (DF), and 95%. The lower limit of the aforementioned bandwidth consists of and includes the product of the GPR Performance Metric, the

applicable degradation factor (DF), and 90%; plus

Tier
2

GPR
Performance
Metric x DF x
0.90 >
Measured
Performance
Ratio ≥ GPR
Performance
Metric x DF x
0.80

For each one-tenth of one percent (0.001) by which the Measured Performance Ratio for such MPR Assessment Period falls below the upper limit of the bandwidth specified in this subparagraph, an amount equal to two-tenths of one percent (0.002) of the MPR Assessment Period Lump Sum Payment. The upper end of the aforementioned bandwidth is equal to the product of the GPR Performance Metric, the applicable degradation factor (DF), and 90%. The lower limit of the aforementioned bandwidth consists of and includes the product of the GPR Performance Metric, the applicable degradation factor (DF), and 80%; plus

Tier
3

Measured
Performance
Ratio < GPR
Performance
Metric x DF x
0.80

For each one-tenth of one percent (0.001) by which the Measured Performance Ratio for such MPR Assessment Period falls below the product of the GPR Performance Metric, the applicable degradation factor (DF), and 80%, an amount equal to four-tenths of one percent (0.004) of the MPR Assessment Period Lump Sum Payment.

[Wind Version]

<u>Tier</u>	<u>Performance Index</u>	<u>Amount of Liquidated Damages Per PI Assessment Period</u>
Tier 1	97.0% > PI ≥ 90.0%	For each one-tenth of one percent (0.001) by which the Performance Index for such PI Assessment Period falls below 97% and is above 89.9%, an amount equal to one-tenth of one percent (0.001) of the PI Assessment Period Lump Sum Payment; plus
Tier 2	90.0% > PI ≥ 80.0%	For each one-tenth of one percent (0.001) by which the Performance Index for such PI Assessment Period falls below 90.0% and is above 79.9%, an amount equal to two-tenths of one percent (0.002) of the PI Assessment Period Lump Sum Payment; plus
Tier 3	80.0% > PI	For each one-tenth of one percent (0.001) by which the Performance Index for such PI Assessment Period falls below 80.0%, an amount equal to four-tenths of one percent (0.004) of the PI Assessment Period Lump Sum Payment.

[PV]For purposes of the foregoing calculations under this Section 2.6(a) (GPR Performance Metric and Liquidated Damages), the degradation factor (DF) is calculated for each Contract Year (e.g., second Contract Year, third Contract Year, fourth Contract Year, etc.) as follows: $DF = 1 - 0.005 * (Applicable Contract Year - 1)$.

For purposes of the foregoing formula, the "Applicable Contract Year" is the Contract Year within which the calendar month in question falls. If all of the months of an MPR Assessment Period fall within the same Contract Year, the Contract Year is the "Applicable Contract Year."

For example, if all of the months of MPR Assessment Period fall within the third Contract Year, the value assigned to the "Applicable Contract Year" would be "3" and the formula for calculating the DF for such MPR Assessment Period would be: $DF = 1 - 0.005 * (3 - 1)$. However, because the MPR Assessment Period is a rolling 12-month period, the MPR Assessment Period will often straddle two consecutive Contract Years. In such cases, all of the months falling within the same Contract Year will be assigned the value for such Contract Year and the value assigned to the "Applicable Contract Year" for purposes of the foregoing formula shall be the average of the assigned monthly values for such 12-month MPR Assessment Period. For example, for an MPR Assessment Period which has four months in the third Contract Year and eight months in the fourth Contract Year, the value assigned to the "Applicable Contract Year" for such MPR Assessment Period would be 3.67, as calculated as follows:

$$\frac{(3 \times 4) + (4 \times 8)}{12}$$

and the formula for calculating the DF for such MPR Assessment Period would be $DF = 1 - 0.005 * (3.67 - 1)$. For purposes of determining liquidated damages under this Section 2.6(a) (GPR Performance Metric and Liquidated Damages), the amount by which the Measured Performance Ratio for the MPR Assessment Period in question falls below the applicable threshold shall be rounded to the nearest one-tenth of one percent (0.001). Each Party agrees and acknowledges that (i) the damages that Company would incur if the Seller fails to achieve the GPR Performance Metric for a MPR Assessment Period would be difficult or impossible to calculate with certainty and (ii) the aforesaid liquidated damages are an appropriate approximation of such damages.

PV EXAMPLE: The following is an example calculation of liquidated damages for the GPR Performance Metric and is included for illustrative purposes only. Assume the following facts:

The MPR Assessment Period has five months in the second Contract Year and seven months in the third Contract Year.

The GPR for the Facility as determined by the OEPR is 0.9.

The MPR has been calculated to be 0.694.

Applicable Contract Year = $[(5 \times 2) + (7 \times 3)]/12 = 2.58$

$DF = 1 - 0.005 \times (2.58 - 1) = 0.9921$

Upper limit of the Tier 1 bandwidth = $0.9 \times 0.9921 \times 0.95 = 0.848$

Lower limit of the Tier 1 bandwidth/Upper limit of the Tier 2 bandwidth = $0.9 \times 0.9921 \times 0.9 = 0.804$

Lower limit of the Tier 2 bandwidth = $0.8 \times 0.9921 \times 0.9 = 0.714$

Liquidated damages = $[(0.848 - 0.804) \times 1] + [(0.804 - 0.714) \times 2] + [(0.714 - 0.694) \times 4] \times \text{MPR}$
Assessment Period Lump Sum Payment = $0.304 \times \text{MPR}$
Assessment Period Lump Sum Payment

- (b) [MPR or PI] Termination Rights. The Parties acknowledge that, although the intent of the liquidated damages payable under Section 2.6(a) ([GPR or GPI] Performance Metric and Liquidated Damages) is to compensate Company for the damages that Company would incur if the Seller fails to achieve the [GPR or GPI] Performance Metric for a [MPR or PI] Assessment Period, such liquidated damages are not intended to compensate Company for the damages that Company would incur if a pattern of underperformance establishes a reasonable expectation that the Facility is likely to continue to substantially underperform the [GPR or GPI] Performance Metric. Accordingly, and without limitation to Company's rights under said Section 2.6(a) ([GPR or GPI] Performance Metric and Liquidated Damages) for those [MPR or PI] Assessment Periods during which the Seller failed to achieve the [GPR or GPI] Performance Metric, the failure of the Facility

to achieve, for each of three consecutive Contract Years, a [Measured Performance Ratio or Performance Index] of not less than the Tier 2 Bandwidth for such Contract Year shall constitute an Event of Default under Section 15.1(c) of this Agreement for which Company shall have the rights (including but not limited to the termination rights) set forth in Article 15 (Events of Default) and Article 16 (Damages in the Event of Termination by Company).

2.7 [RESERVED]

2.8 BESS Capacity; Liquidated Damages; Termination Rights.

- (a) BESS Capacity and Liquidated Damages. Prior to achieving Commercial Operations, and for each BESS Measurement Period following the Commercial Operations Date, the BESS shall be required to complete a BESS Capacity Test or otherwise demonstrate satisfaction of the BESS Capacity Performance Metric, as more fully set forth in Attachment W (BESS Tests) to this Agreement. For each BESS Measurement Period for which the BESS fails to demonstrate that it satisfies the BESS Capacity Performance Metric, Seller shall pay, in accordance with Section 2.12 (Payment of Liquidated Damages for Failure to Achieve Performance Metrics; Limitation on Liquidated Damages), and Company shall accept, as liquidated damages for such shortfall, the amount set forth in the following table (on a progressive basis) upon proper demand at the end the BESS Measurement Period in question:

BESS Capacity Ratio	Liquidated Damage Amount
Tier 1 95.0% - 99.9%	For each one-tenth of one percent (0.001) that the BESS Capacity Ratio is below 100% and is equal to or greater than 95.0%, an amount equal to one-tenth of one percent (0.001) of the BESS Allocated Portion of the Lump Sum Payment for the BESS Measurement Period in question; plus

Tier 2 85.0% - 94.9%	For each one-tenth of one percent (0.001) that the BESS Capacity Ratio is below 95% and is above 84.9%, an amount equal to one and a half-tenths of one percent (0.0015) of the BESS Allocated Portion of the Lump Sum Payment for the BESS Measurement Period in question; plus
Tier 3 75.0% - 84.9%	For each one-tenth of one percent (0.001) that the BESS Capacity Ratio is below 85% and is above 74.9%, an amount equal to two-tenths of one percent (0.002) of the BESS Allocated Portion of the Lump Sum Payment for the BESS Measurement Period in question; plus
Tier 4 60.0% - 74.9%	For each one-tenth of one percent (0.001) that the BESS Capacity Ratio is below 75% and is above 59.9%, an amount equal to two and a half-tenths of one percent (0.0025) of the BESS Allocated Portion of the Lump Sum Payment for the BESS Measurement Period in question; plus
Tier 5 50.0% - 59.9%	For each one-tenth of one percent (0.001) that the BESS Capacity Ratio is below 60% and is above 49.9%, an amount equal to three-tenths of one percent (0.003) of the BESS Allocated Portion of the Lump Sum Payment for the BESS Measurement Period in question; plus
Tier 6 49.9% and below ("Lowest BESS Capacity Bandwidth")	For each one-tenth of one percent (0.001) that the BESS Capacity Ratio is below 50%, an amount equal to three and a

	half-tenths of one percent (0.0035) of the BESS Allocated Portion of the Lump Sum Payment for the BESS Measurement Period in question.
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For purposes of determining liquidated damages under this Section 2.8(a) (BESS Capacity and Liquidated Damages), the starting and end points for the duration of the period that the BESS discharges shall be rounded to the nearest MWh. Each Party agrees and acknowledges that (i) the damages that Company would incur if the Seller fails to achieve the BESS Capacity Performance Metric for a BESS Measurement Period would be difficult or impossible to calculate with certainty and (ii) the aforesaid liquidated damages are an appropriate approximation of such damages.

EXAMPLE: The following is an example calculation of liquidated damages for the BESS Capacity Performance Metric and is included for illustrative purposes only. Assume the following:

The monthly Lump Sum Payment is \$1,000,000

The BESS Contract Capacity (MW) for the BESS is 25 MW.

A BESS Capacity Test was conducted and the BESS was measured to have discharged 65 MWh

BESS Contract Capacity (MWh) = 25 MW x 4 hours = 100 MWh

BESS Capacity Ratio = MWh Discharged/BESS Contract Capacity = 65 MWh/100 MWh = 0.65

BESS Allocated Portion of the Lump Sum Payment = 50% x 3 calendar months x \$1,000,000 = \$1,500,000

Liquidated damages = [((1 - 0.950) x 1) + ((0.950 - 0.850) x 1.5) + ((0.850 - 0.750) x 2) + ((0.750 - 0.65) x 2.5)] x \$1,500,000

= [0.05 + 0.15 + 0.2 + 0.25] x \$1,500,000 = \$975,000

(b) BESS Capacity Termination Rights. The Parties acknowledge that, although the intent of the liquidated damages payable under Section 2.8(a) (BESS Capacity and Liquidated Damages) is to compensate Company for the damages that Company would incur if the BESS fails to demonstrate satisfaction of the BESS Capacity Performance Metric during a BESS Measurement Period, such liquidated damages are not intended to compensate Company for the damages that Company would incur if a pattern of underperformance establishes a reasonable expectation that the BESS is likely to continue to substantially underperform the Company's expectations. Accordingly, and without limitation to Company's rights under said Section 2.8(a) (BESS Capacity and Liquidated Damages) for those BESS Measurement Periods during which the BESS fails to demonstrate satisfaction of the BESS Capacity Performance Metric, substantial underperformance shall give rise to a termination right as set forth in this Section 2.8(b) (BESS Capacity Termination Rights). If the BESS is in the Lowest BESS Capacity Bandwidth for any two BESS Measurement Periods during a 12-month period, an 18-month cure period (the "BESS Capacity Cure Period") will commence on the Day following the close of the second such BESS Measurement Period. For each BESS Measurement Period during such BESS Capacity Cure Period, BESS Capacity Tests shall continue to be conducted as set forth in Attachment W (BESS Tests) and liquidated damages paid and accepted as set forth in Section 2.8(a) (BESS Capacity and Liquidated Damages); provided, however, that if the Seller fails to demonstrate satisfaction of the BESS Capacity Performance Metric prior to the expiration of the BESS Capacity Cure Period, such failure shall constitute an Event of Default under Section 15.1(e) of this Agreement for which Company shall have the rights (including but not limited to the termination rights) set forth in Article 15 (Events of Default) and Article 16 (Damages in the Event of Termination by Company).

2.9 BESS Annual Equivalent Availability Factor; Liquidated Damages; Termination Rights.

(a) BESS Annual Equivalent Availability Factor and Liquidated Damages. For each BESS Measurement Period

following the Commercial Operations Date, a BESS Annual Equivalent Availability Factor shall be calculated as set forth in Attachment X (BESS Annual Equivalent Availability Factor). If the BESS Annual Equivalent Availability Factor for such BESS Measurement Period is less than **97%** (the "BESS EAF Performance Metric"), Seller shall pay, in accordance with Section 2.12 (Payment of Liquidated Damages for Failure to Achieve Performance Metrics; Limitation on Liquidated Damages), and Company shall accept, as liquidated damages for such shortfall, the amount set forth in the following table (on a progressive basis) upon proper demand at the end of the current BESS Measurement Period:

BESS Annual Equivalent Availability Factor	Liquidated Damage Amount
Tier 1 85.0% - 96.9%	For each one-tenth of one percent (0.001) by which the BESS Annual Equivalent Availability Factor falls below 97% but equal to or above 85%, an amount equal to one-tenth of one percent (0.001) of the BESS Allocated Portion of the Lump Sum Payment for the BESS Measurement Period in question; plus
Tier 2 80.0% - 84.9%	For each one-tenth of one percent (0.001) by which the BESS Annual Equivalent Availability Factor falls below 85% but equal to or above 80%, an amount equal to two-tenths of one percent (0.002) of the BESS Allocated Portion of the Lump Sum Payment for the BESS Measurement Period in question; plus
Tier 3 75.0% - 79.9%	For each one-tenth of one percent (0.001) by which the BESS Annual Equivalent Availability Factor falls below 80% but equal to or above 75%, an amount equal to three-tenths of one percent (0.003) of the BESS Allocated Portion of the Lump Sum Payment

	for the BESS Measurement Period in question; plus
Tier 4 Below 75.0%	For each one-tenth of one percent (0.001) by which the BESS Annual Equivalent Availability Factor falls below 75%, an amount equal to four-tenths of one percent (0.004) of the BESS Allocated Portion of the Lump Sum Payment for the BESS Measurement Period in question.

For purposes of determining liquidated damages under this Section 2.9(a) (BESS Annual Equivalent Availability Factor and Liquidated Damages), the BESS Annual Equivalent Availability Factor for the BESS Measurement Period in question shall be rounded to the nearest one-tenth of one percent (0.001). Each Party agrees and acknowledges that (i) the damages that Company would incur if the Seller fails to achieve the BESS EAF Performance Metric for a BESS Measurement Period would be difficult or impossible to calculate with certainty and (ii) the aforesaid liquidated damages are an appropriate approximation of such damages.

EXAMPLE: The following is an example calculation of liquidated damages for the BESS Annual Equivalent Availability Factor Performance Metric and is included for illustrative purposes only. Assume the following:

The monthly Lump Sum Payment is \$1,000,000

The BESS Annual Equivalent Availability Factor Performance Metric was calculated to be 72.9%.

BESS Allocated Portion of the Lump Sum Payment = 50% x 3 calendar months x \$1,000,000 = \$1,500,000

Liquidated Damages = $[(0.970 - 0.850) \times 1] + [(0.850 - 0.800) \times 2] + [(0.800 - 0.750) \times 3] + [(0.750 - 0.729) \times 4] \times \$1,500,000$

= $[0.120 + 0.100 + 0.150 + 0.084] \times \$1,500,000 = \$681,000$

- (b) BESS Annual Equivalent Availability Factor Termination Rights. The Parties acknowledge that, although the intent of the liquidated damages payable under Section 2.9(a) (BESS Annual Equivalent Availability Factor and Liquidated Damages) is to compensate Company for the damages that Company would incur if the Seller fails to achieve the BESS EAF Performance Metric for a BESS Measurement Period, such liquidated damages are not intended to compensate Company for the damages that Company would incur if a pattern of underperformance establishes a reasonable expectation that the BESS is likely to continue to substantially underperform the BESS EAF Performance Metric. Accordingly, and without limitation to Company's rights under said Section 2.9(a) (BESS Annual Equivalent Availability Factor and Liquidated Damages) for those BESS Measurement Periods during which the Seller failed to achieve the BESS EAF Performance Metric, the failure of the Seller to achieve, for each of four (4) consecutive BESS Measurement Periods, a BESS Annual Equivalent Availability Factor of not less than **75%** shall constitute an Event of Default under Section 15.1(f) of this Agreement for which Company shall have the rights (including but not limited to the termination rights) set forth in Article 15 (Events of Default) and Article 16 (Damages in the Event of Termination by Company); provided, however, that if a BESS Measurement Period for which the aforementioned 75% threshold is not achieved falls within a BESS Capacity Cure Period, such BESS Measurement Period shall be excluded from the calculation of the aforementioned "four (4) consecutive BESS Measurement Periods" if the failure to achieve the aforementioned 75% threshold was the result of unavailability caused by the process of carrying out the repairs to or replacements of the BESS necessary to remedy the failure of the BESS to achieve the BESS Capacity Performance Metric.

2.10 BESS Annual Equivalent Forced Outage Factor; Liquidated Damages; Termination Rights.

- (a) BESS Annual Equivalent Forced Outage Factor and Liquidated Damages. For each BESS Measurement Period following the Commercial Operations Date, a BESS Annual Equivalent Forced Outage Factor shall be

calculated as set forth in Attachment Y (BESS Annual Equivalent Forced Outage Factor). If the BESS Annual Equivalent Forced Outage Factor for such BESS Measurement Period exceeds 4% (the "BESS EFOF Performance Metric"), Seller shall pay, in accordance with Section 2.12 (Payment of Liquidated Damages for Failure to Achieve Performance Metrics; Limitation on Liquidated Damages), and Company shall accept, as liquidated damages for exceeding the BESS EFOF Performance Metric, the amount set forth in the following table (on a progressive basis) upon proper demand by the Company at the end of the BESS Measurement Period in question:

BESS Annual Equivalent Forced Outage Factor	Liquidated Damage Amount
Tier 1 0.0% - 4.0%	-0-
Tier 2 4.1% - 6.9%	For each one-tenth of one percent (0.001) that the BESS Annual Equivalent Forced Outage Factor is above 4.0% but less than 7.0%, an amount equal to two-tenths of one percent (0.002) of the BESS Allocated Portion of the Lump Sum Payment for the BESS Measurement Period in question; plus
Tier 3 7.0% and above	For each one-tenth of one percent (0.001) that the BESS Annual Equivalent Forced Outage Factor is above 6.9%, an amount equal to four-tenths of one percent (0.004) of the BESS Allocated Portion of the Lump Sum Payment for the BESS Measurement Period in question.

For purposes of determining liquidated damages under this Section 2.10 (BESS Annual Equivalent Forced Outage Factor; Liquidated Damages; Termination Rights), the BESS Annual Equivalent Forced Outage

Factor for the BESS Measurement Period in question shall be rounded to the nearest one-tenth of one percent (0.001). Each Party agrees and acknowledges that (i) the damages that Company would incur if the Seller fails to achieve the BESS EFOF Performance Metric for a BESS Measurement Period would be difficult or impossible to calculate with certainty and (ii) the aforesaid liquidated damages are an appropriate approximation of such damages.

For example, if the BESS Annual Equivalent Forced Outage Factor was 4.1% as calculated in the example in Attachment Y (BESS Annual Equivalent Forced Outage Factor) to this Agreement and the BESS Allocated Portion of the Lump Sum Payment for the BESS Measurement Period in question is \$1,000,000, the liquidated damages would be \$2,000, calculated as follows:

$$\begin{aligned} 4.1\% - 4.0\% &= 0.1\% \\ 0.1\%/0.001 &= 1 \\ \$1,000,000 \times .002 &= \$2,000 \\ \$2,000 \times 1 &= \$2,000 \end{aligned}$$

- (b) BESS Annual Equivalent Forced Outage Factor Termination Rights. The Parties acknowledge that, although the intent of the liquidated damages payable under Section 2.10(a) (BESS Annual Equivalent Forced Outage Factor and Liquidated Damages) is to compensate Company for the damages that Company would incur if the Seller fails to maintain the BESS Annual Equivalent Forced Outage Factor in conformance with the BESS EFOF Performance Metric for a BESS Measurement Period, such liquidated damages are not intended to compensate Company for the damages that Company would incur if a pattern of underperformance establishes a reasonable expectation that the BESS is likely to continue to exceed the BESS EFOF Performance Metric. Accordingly, and without limitation to Company's rights under said Section 2.10(a) (BESS Annual Equivalent Forced Outage Factor and Liquidated Damages) for those BESS Measurement Periods during which the BESS fails to demonstrate satisfaction of the BESS EFOF Performance Metric, substantial underperformance shall give rise to a termination right as set forth in this Section 2.10(b) (BESS Annual Equivalent Forced Outage Factor Termination

Rights). If the BESS Annual Equivalent Forced Outage Factor is not in Tier 1 of the immediately preceding table for any two BESS Measurement Periods in a 12-month period, a 12-month cure period (the "BESS EFOF Cure Period") will commence on the Day following the close of the second such BESS Measurement Period. For each BESS Measurement Period during such BESS EFOF Cure Period, if the BESS Annual Equivalent Forced Outage Factor does not meet the BESS EFOF Performance Metric, e.g., the BESS Annual Equivalent Forced Outage Factor for any such BESS Measurement Period exceeds 4.0%, liquidated damages shall be paid and accepted as set forth in Section 2.10(a) (BESS Annual Equivalent Forced Outage Factor and Liquidated Damages); provided, however, that during a BESS EFOF Cure Period, should Seller achieve a BESS Annual Equivalent Forced Outage Factor of 4.0% or lower in each of two consecutive BESS Measurement Periods, then the BESS EFOF Cure Period shall terminate on the Day following the close of the second such BESS Measurement Period. If the Seller fails to demonstrate satisfaction of the BESS EFOF Performance Metric at the expiration of the BESS EFOF Cure Period, namely, the BESS Annual Equivalent Forced Outage Factor exceeds 4.0% as of the end of the BESS EFOF Cure Period, such failure shall constitute an Event of Default under Section 15.1(j) of this Agreement for which Company shall have the rights (including but not limited to the termination rights) set forth in Article 15 (Events of Default) and Article 16 (Damages in the Event of Termination by Company).

2.11 BESS Round Trip Efficiency; Liquidated Damages; Termination Rights.

- (a) RTE and Liquidated Damages. Prior to achieving Commercial Operations, and for each BESS Measurement Period following the Commercial Operations Date, the BESS shall be required to complete a RTE Test or otherwise demonstrate satisfaction of the RTE Performance Metric, as more fully set forth in Attachment W (BESS Tests) to this Agreement. For each BESS Measurement Period for which the BESS fails to demonstrate that it satisfies the RTE Performance Metric, Seller shall pay, in accordance with Section 2.12 (Payment of Liquidated Damages for Failure to

Achieve Performance Metrics; Limitation on Liquidated Damages), and Company shall accept liquidated damages for such shortfall, in the amount to be calculated as provided in this Section 2.11(a) (RTE and Liquidated Damages), upon proper demand at the end the BESS Measurement Period in question.

The RTE Performance Metric represents the lowest acceptable efficiency of the BESS for a full charge and discharge cycle as set forth in Attachment W (BESS Tests).

The liquidated damages threshold ("LDT") is equal to the RTE Performance Metric minus 2 percentage points.

Seller shall be liable for liquidated damages if:

$$(PM - RTE\ Ratio) > 2\%$$

Where:

PM = RTE Performance Metric stated as percentage

RTE Ratio = RTE Ratio from operational data or most recently completed RTE Test during the applicable BESS Measurement Period, measured in accordance with Attachment W (BESS Tests), stated as percentage.

For each percentage point by which the RTE Ratio is below the LDT, Seller shall pay, and Company shall accept, liquidated damages in an amount equal to two-tenths of one percent (0.002) of the BESS Allocated Portion of the Lump Sum Payment for the BESS Measurement Period in question, in accordance with Section 2.12 (Payment of Liquidated Damages for Failure to Achieve Performance Metrics; Limitation on Liquidated Damages).

Each Party agrees and acknowledges that (i) the damages that Company would incur if the Seller fails to achieve the RTE Performance Metric for a BESS Measurement Period would be difficult or impossible to calculate with certainty and (ii) the aforesaid liquidated damages are an appropriate approximation of such damages.

(b) RTE Termination Rights. The Parties acknowledge that, although the intent of the liquidated damages payable under Section 2.11(a) (RTE and Liquidated Damages) is to compensate Company for the damages that Company would incur if the BESS fails to demonstrate satisfaction of the RTE Performance Metric during a BESS Measurement Period, such liquidated damages are not intended to compensate Company for the damages that Company would incur if a pattern of underperformance establishes a reasonable expectation that the BESS is likely to continue to substantially underperform the Company's expectations. Accordingly, and without limitation to Company's rights under said Section 2.11(a) (RTE and Liquidated Damages) for those BESS Measurement Periods during which the BESS fails to demonstrate satisfaction of the RTE Performance Metric, substantial underperformance shall give rise to a termination right as set forth in this Section 2.11(b) (RTE Termination Rights). If the RTE Ratio for the BESS Measurement Period in question is more than 15 percentage points below the RTE Performance Metric for any two BESS Measurement Periods during a 12-month period, an **18-month** cure period (the "RTE Cure Period") will commence on the Day following the close of the second such BESS Measurement Period. For each BESS Measurement Period during such RTE Cure Period, RTE Tests shall continue to be conducted as set forth in Attachment W (BESS Tests) and liquidated damages paid and accepted as set forth in Section 2.11(a) (RTE and Liquidated Damages); provided, however, that if the Seller fails to demonstrate satisfaction of the RTE Performance Metric prior to the expiration of the RTE Cure Period, such failure shall constitute an Event of Default under Section 15.1(g) of this Agreement for which Company shall have the rights (including but not limited to the termination rights) set forth in Article 15 (Events of Default) and Article 16 (Damages in the Event of Termination by Company).

2.12 Payment of Liquidated Damages for Failure to Achieve Performance Metrics; Limitation on Liquidated Damages.

(a) Payment of Performance Metrics LDs by Seller. With respect to the liquidated damages payable under Section 2.5(a) ([PV System Equivalent or Modified

Pooled OMC Equipment] Availability Factor Performance Metric and Liquidated Damages), Section 2.6(a) ([GPR or GPI] Performance Metric and Liquidated Damages), Section 2.8(a) (BESS Capacity and Liquidated Damages), Section 2.9(a) (BESS Annual Equivalent Availability Factor and Liquidated Damages), Section 2.10 (BESS Annual Equivalent Forced Outage Factor; Liquidated Damages; Termination Rights) and Section 2.11 (BESS Round Trip Efficiency; Liquidated Damages; Termination Rights) (collectively, the "Performance Metrics LDs"), Company shall set-off such liquidated damages from the amounts to be paid to Seller under Section 2.3 (Lump Sum Payment) of this Agreement; provided, however, that Company shall retain the right, at any time on or after the LD Assessment Date for the liquidated damages in question, to draw such liquidated damages from the Operating Period Security, as follows:

(ii) [RESERVED]

(iii) [RESERVED]

(iv) If a Monthly Report shows a failure to achieve one or more of the Performance Metrics required for the [PV System EAF or MPXEEAF] Assessment Period that concludes with the most recent calendar month covered by such Monthly Report, the [MPR or PI] Assessment Period that concludes with the most recent calendar month covered by such Monthly Report or the BESS Measurement Period that concludes with the most recent calendar month covered by such Monthly Report, as applicable, and Company does not submit a Notice of Monthly Report Disagreement with respect to such Monthly Report, the Company shall have the right to set-off or draw the amount of liquidated damages owed for such failure as calculated in Section 2.5(a) ([PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric and Liquidated Damages), Section 2.6(a) ([GPR or GPI] Performance Metric and Liquidated Damages), Section 2.8(a) (BESS Capacity and Liquidated Damages), Section 2.9(a) (BESS Annual Equivalent Availability Factor and Liquidated Damages), Section 2.10 (BESS Annual Equivalent Forced Outage Factor; Liquidated Damages; Termination Rights) and Section 2.11

(BESS Round Trip Efficiency; Liquidated Damages; Termination Rights), as applicable;

- (v) in all cases in which Company submits a Notice of Disagreement for a given Monthly Report, Company shall have the right to set-off or draw all or any portion of the amount of liquidated damages for the Performance Metric LD Period(s) in question, as calculated on the basis of the shortfall(s) in the achievement of the Performance Metric(s) in question, as shown in such Notice of Disagreement; and
- (vi) in the event of any disagreement as to the liquidated damages owed under this Section 2.12(a) (Payment of Performance Metric LDs by Seller):
 - (1) if the amount set-off or drawn by the Company exceeds the amount of liquidated damages that are eventually found to be payable for the Performance Metric LD Period(s) in question as determined under Section 2 (Monthly Report Disagreements) or Section 4 (Independent AF Evaluator Process) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) to this Agreement, Company shall promptly (and in no event more than forty-five (45) Business Days from the date of such determination) repay such excess to Seller together with, unless the Parties otherwise agree in writing, interest from the date of Company's set-off or draw until the date that such excess is repaid to Seller at the average Prime Rate for such period; and
 - (2) if Company does not exercise its rights to set-off or draw liquidated damages for such Performance Metric LD Period(s), or does not set-off or draw the full amount of the liquidated damages that are eventually found to be payable for the Performance Metric LD Period(s) in question as determined under Section 2 (Monthly Report Disagreements) or Section 4 (Independent AF Evaluator Process)

of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) to this Agreement, Seller shall promptly, upon such determination as aforesaid, pay to Company the amount of liquidated damages that are found to be owing together with, unless otherwise agreed by the Parties in writing, interest on the amount of such liquidated damages that went unpaid from the applicable LD Assessment Date for such liquidated damages until the date such liquidated damages are paid to Company in full at the average Prime Rate for such period, and Company shall have the right, at its option, to set-off such interest from the amounts to be paid to Seller under Section 2.3 (Lump Sum Payment) of this Agreement or to draw from the Operating Period Security.

Any delay by Company in exercising its rights to set-off liquidated damages and/or interest from the amounts to be paid to Seller under Section 2.3 (Lump Sum Payment) of this Agreement or to draw such liquidated damages and/or interest from the Operating Period Security shall not constitute a waiver by Company of its right to do so.

- (b) Limitation on Liquidated Damages. Notwithstanding any other provision of this Agreement to the contrary, the aggregate liquidated damages paid by Seller during each Contract Year for the Performance Metrics LDs, such payments by Seller to include but not be limited to any set-offs or draws made by Company during such Contract Year pursuant to Section 2.12(a) (Payment of Performance Metrics LDs by Seller), shall not exceed the total of the twelve (12) monthly Lump Sum Payments payable during such Contract Year pursuant to Section 2.3 (Lump Sum Payment) and Section 2.17 (Payment Procedures). For avoidance of doubt: A monthly Lump Sum Payment that is payable for, e.g., the twelfth (12th) calendar month of Contract Year N, is to be invoiced by Seller to Company pursuant to Section 2.16 (Seller's Preparation of the Monthly Invoice) during the first month following Contract Year N and paid by Company to Seller during the third month following

Contract Year N pursuant to Section 2.17 (Payment Procedures), and, thus, for purposes of determining the limitation on Performance Metrics LDs under this Section 2.12(b) (Limitation on Liquidated Damages), shall be included in the total of the twelve (12) monthly Lump Sum Payments payable during the Contract Year that immediately follows Contract Year N. As a result of the foregoing, the total of the monthly Lump Sum Payments used to establish the limitation on Performance Metrics LDs for the initial Contract Year under this Section 2.12(b) (Limitation on Liquidated Damages) will be less than twelve (12). The Parties acknowledge that, because the monthly Lump Sum Payment is subject to adjustment (including downward adjustment) as provided in Section 2.3 (Lump Sum Payment), it is possible that a downward adjustment in some or all of the monthly Lump Sum Payments payable during a Contract Year might cause the Performance Metrics LDs paid by Seller during the course of such Contract Year to exceed the limitation on the Performance Metrics LDs for such Contract Year established at the close of such Contract Year pursuant to the first sentence of this Section 2.12(b) (Limitation on Liquidated Damages). In such case, Company shall promptly upon the determination that the Performance Metrics LDs paid during the course of such Contract Year exceeded the limitation on Performance Metrics LDs for such Contract Year (and in no event more than forty-five (45) Business Days from the end of such Contract Year) repay such excess amount to Seller without interest.

2.13 Payments Prior to Commercial Operations Date. Prior to the Commercial Operations Date, and only to the extent a partial commissioning of the Facility has been approved in writing by Company consistent with Section 3.4 (Partial Commissioning), Company may accept electric energy delivered by Seller in accordance with and at the rates set forth in Section 1 (Price for Purchase of Electric Energy) and Section 4 (Test Energy) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).

2.14 Sales of Electric Energy by Company to Seller. Sales of electric energy by Company to Seller shall be governed by an applicable rate schedule filed with the PUC and not by

this Agreement, except with respect to the reactive amount adjustment (if any) referred to in Attachment B (Facility Owned by Seller).

2.15 [RESERVED]

2.16 Seller's Preparation of the Monthly Invoice. By the tenth (10th) Business Day of each calendar month, Seller shall submit to Company an invoice that separately states the following for the preceding calendar month: (i) the Actual Output during the preceding calendar month; (ii) the monthly Lump Sum Payment for the preceding calendar month; and (iii) the monthly metering charge as set forth in Article 7 (Seller Payments) of this Agreement.

2.17 Payment Procedures. By the fifth (5th) Business Day of the second calendar month following the month for which the invoice was submitted (i.e., for January charges, invoice submitted in February, to be paid by the 5th Business Day of April), Company shall, subject to Company's right to set-off liquidated damages as provided in Section 2.12 (Payment of Liquidated Damages for Failure to Achieve Performance Metrics; Limitation on Liquidated Damages) of this Agreement, make payment on such invoice, or provide to Seller an itemized statement of its objections to all or any portion of such invoice and pay any undisputed amount. Notwithstanding the foregoing, the Day by which the Company shall make payment to Seller hereunder shall be increased by one (1) Day for each Day that Seller is delinquent in providing to the Company either: (i) the Monthly Report for the calendar month in question pursuant to Section 1 (Monthly Report) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) to this Agreement; or (ii) the information required under Section 2.16 (Seller's Preparation of the Monthly Invoice) of this Agreement.

2.18 Late Payments. Notwithstanding all or any portion of such invoice in dispute, and subject to the provisions of Section 2.12(a)(iii) of this Agreement (to the extent applicable), interest shall accrue on any invoiced amount that remains unpaid following the twentieth (20th) Business Day of each calendar month (or the last Business Day of that month if there are less than twenty Business Days in that month), or following the due date for such payment if

extended pursuant to Section 2.17 (Payment Procedures), at the average daily Prime Rate for the period commencing on the Day following the Day such payment is due until the invoiced amounts (or amounts due to Seller if determined to be less than the invoiced amounts) are paid in full. Partial payments shall be applied first to outstanding interest and then to outstanding invoice amounts.

2.19 Adjustments to Invoices After Payment. In the event adjustments are required to correct inaccuracies in an invoice after payment, the Party requesting adjustment shall recompute and include in the Party's request the principal amounts due during the period of the inaccuracy together with the amount of interest from the date that such invoice was payable until the date that such recomputed amount is paid at the average daily Prime Rate for the period. The difference between the amount paid and that recomputed for the invoice, along with the allowable amount of interest, shall either be (i) paid to Seller or set-off by Company, as appropriate, in the next invoice payment to Seller, or (ii) objected to by the Party responsible for such payment within thirty (30) Days following its receipt of such request. If the Party responsible for such payment objects to the request, then the Parties shall work together in good faith to resolve the objection. If the Parties are unable to resolve the objection, the matter shall, except to the extent otherwise provided in Section 28.4 (Exclusions), be resolved pursuant to Article 28 (Dispute Resolution). All claims for adjustments shall be waived for any amounts that were paid or should have been payable more than thirty-six (36) months preceding the date of receipt of any such request.

2.20 Company's Billing Records. Seller, after giving reasonable advance written notice to Company, shall have the right to review all billing, metering and related records necessary to verify the accuracy of payments relating to the Facility during Company's normal working hours on Business Days. Company shall maintain such records for a period of not less than thirty-six (36) months.

ARTICLE 3
FACILITY OWNED AND/OR OPERATED BY SELLER

- 3.1 The Facility. Seller agrees to furnish, install, operate, and maintain the Facility in accordance with the provisions of this Agreement, including, without limitation, the operating procedures and technical and operational requirements as more fully described in Attachment B (Facility Owned by Seller). After the Commercial Operations Date, Seller agrees that no changes or additions to the Facility shall be made without prior written approval by Company and amendment to the Agreement unless such changes or additions to the Facility could not reasonably be expected to have a material effect on the assumptions used in performing the IRS.
- 3.2 Allowed Capacity. The Capacity Available for Dispatch from the Facility may exceed the Contract Capacity. Company may dispatch up to the Capacity Available for Dispatch in accordance with Article 8 (Company Dispatch). Company may limit the net instantaneous MW output pursuant to, but not limited to, Article 8 (Company Dispatch), Article 9 (Personnel and System Safety), Article 25 (Good Engineering and Operating Practices), and Attachment B (Facility Owned by Seller).
- 3.3 Point of Interconnection. The Point of Interconnection is shown on Attachment E (Single-Line Drawing and Interface Block Diagram), as provided in Section 1(a)(i) (Single-Line Drawing, Interface Block Diagram, Relay List, Relay Settings and Trip Scheme) of Attachment B (Facility Owned by Seller). The Point of Interconnection will be at the voltage level of the Company System. If it is necessary to step up the voltage at which Seller's electric energy is delivered to Company System, the Point of Interconnection will be on the high voltage side of the step-up transformer.
- 3.4 Partial Commissioning.
- (a) If Seller desires to partially commission the Facility prior to the Commercial Operations Date, Seller shall provide notice to Company of its readiness for partial commissioning of the Facility and shall inform Company of the portion of the Facility (in MWs) being proposed for partial commissioning. Any proposed partial commissioning shall be subject to Company's written

acceptance and approval, which may be withheld in Company's sole discretion. In the event the Parties agree to partial commissioning of the Facility, the Guaranteed Commercial Operations Date shall not be extended.

- (b) Within ten (10) Business Days after each Pre-CSAT Partial In-Service Date, Seller shall provide written notice to Company (the "Pre-CSAT Partial In-Service Notice") confirming (i) the portion of the Facility in MW that qualifies as a Pre-CSAT Partial Installation and the Pre-CSAT Partial In-Service Date, (ii) the conditions precedent in Section 1(h) (Control System Acceptance Test Procedures) of Attachment B (Facility Owned by Seller) for commencement of the Control System Acceptance Test with respect to such Pre-CSAT Partial Installation have been met and (iii) to the extent delivery of Test Energy has occurred, or is occurring, that the portion of the Facility has been successfully synchronized to the grid.
- (c) Partial commissioning of a portion of the Facility may require additional costs and expenses to be incurred by Company to facilitate such partial commissioning, including but not limited to multiple Control System Acceptance Tests (all such additional costs and expenses, the "Partial Commissioning Costs"). Seller agrees to pay for all Partial Commissioning Costs in advance upon request by Company. Company shall not be obligated to perform any work on the partial commissioning unless and until it receives payment of the Partial Commissioning Costs. Alternatively, to the extent Company reasonably believes there are available funds in the Total Estimated Interconnection Cost paid by Seller to cover the Partial Commissioning Costs, Company shall be authorized to use such funds for such purposes. The Partial Commissioning Costs shall be included in the Total Actual Interconnection Cost for the purposes of the true-up specified in Section 3(d) (True-Up) of Attachment G (Company-Owned Interconnection Facilities).

ARTICLE 4
COMPANY-OWNED INTERCONNECTION FACILITIES

The terms and conditions related to the Company-Owned Interconnection Facilities are set forth in Attachment G (Company-Owned Interconnection Facilities) of this Agreement. In accordance with Section 8 (Transfer of Ownership/Title) of Attachment G (Company-Owned Interconnection Facilities), on the Transfer Date, Seller shall convey title to the Company-Owned Interconnection Facilities that were designed and constructed by or on behalf of Seller by executing a Bill of Sale and Assignment document substantially in the form set forth in Attachment H (Form of Bill of Sale and Assignment). In addition, in accordance with Section 8 (Transfer of Ownership/Title) of Attachment G (Company-Owned Interconnection Facilities) on the Transfer Date, Seller shall deliver to Company any and all executed documents required to assign all Land Rights necessary to operate and maintain the Company-Owned Interconnection Facilities on and after the Transfer Date to Company, which documents shall be substantially in the form set forth in Attachment I (Form of Grant of Easement).

ARTICLE 5
MAINTENANCE RECORDS AND SCHEDULING

5.1 Operating Records.

- (a) Seller's Logs. Seller shall maintain, at least daily, a log, which may be in digital form, in which it shall record all pertinent data that will indicate whether the Facility is being operated in accordance with Good Engineering and Operating Practices. These data logs shall include, but not be limited to, all maintenance and inspection work performed at the Facility, circuit breaker trip operations, relay operations including target indications, megavar and megawatt recording charts (and/or equivalent computer records), all unusual conditions experienced or observed and any reduced capability and the reasons therefor and duration thereof. For each individual unit, the data reported shall include planned derated hours, unplanned derated hours, average derated kW during the derated hours, scheduled maintenance hours, average derated kW during scheduled maintenance hours, the number of starts/failed starts, hours on-control and hours on-line. Company shall have the right, upon reasonable notice to request for electronic copies of such data logs; provided, that if such logs reveal any inconsistency with Company's records, Company may request and review Seller's supporting records, correspondence, memoranda and other documents or electronically recorded data associated with such logs related to the operation and maintenance of the Facility in order to resolve such inconsistency.
- (b) Company Access to Seller's Logs. Seller shall provide Company access to Seller's records which identify the priority, as internally assigned by Seller, of specific preventive or corrective maintenance activities. These records shall include items for which Seller has deferred the inspection or corrective action to a future scheduled plant outage. In addition, Seller shall provide electronic copies of applicable correspondence between Seller and its insurer(s) for the Facility equipment pertaining to Seller's maintenance practices and Seller's procedures and scheduling (including deferral) of maintenance at the Facility.

- (c) Time Period for Maintaining Records. Any and all records, correspondence, memoranda and other documents or electronically recorded data related to the operation and maintenance of the Facility shall be maintained by Seller for a period of not less than six (6) years.

5.2 Maintenance Records.

- (a) Seller's Summary of Maintenance and Inspection Performed. Prior to February 1 of each calendar year, Seller shall submit via electronic copies to the Company in a format similar to the example provided in Attachment V (Summary of Maintenance and Inspection Performed in Prior Calendar Year) of all maintenance and inspection work performed in the prior calendar year, and of all conditions experienced or observed during such calendar year that may have a material adverse effect on or may materially impair the short-term or long-term operation of the Facility at the operational levels contemplated by this Agreement. The summary shall present the requested data in a meaningful and informative manner consistent with the cooperative exchange of information between the Parties. If available and practicable, such summary shall be provided in electronic format with sufficient software so that Company can group activities for specific process areas of the Facility and be able to view the maintenance history of a specific equipment item. Such summary shall also include Seller's proposals for correcting or preventing recurrences of identified equipment problems and for performing such other maintenance and inspection work as is required by Good Engineering and Operating Practices.
- (b) Company's Written Recommendations. Within sixty (60) Days of receiving such summary, and after any reasonable inspection desired by Company of the Facility and consultation with Seller, in the event there are issues identified that may have a material adverse effect on or may materially impair the short-term or long-term operation of the Facility at the operational levels contemplated by this Agreement, for purposes of addressing such issues, Company may provide written recommendations for specific operation or maintenance actions or for changes in the operation

or maintenance program of the Facility. Company's making or failing to make such recommendations shall not be construed as endorsing the operation and maintenance thereof or as any warranty of the safety, durability or reliability of the Facility nor as a waiver of any Company right. If Seller agrees with Company, Seller shall, within a reasonable time after Company makes such recommendations, not to exceed ninety (90) Days (or such longer period as reasonably agreed to by the Parties), implement Company's recommendations. If Seller disagrees with Company, it shall within ten (10) Days inform Company of alternatives it will take to accomplish the same intent or provide Company with a reasonable explanation as to why no action is required by Good Engineering and Operating Practices. If Company disagrees with Seller's position, and if, for each of the three preceding Contract Years, the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor was less than **94%** and/or the [MPR or PI] was less than the Tier 1 Bandwidth for such Contract Years, then the parties shall commission a study by a Qualified Independent Consultant selected from among the entities listed in Section 4(j) (Acceptable Person and Entities) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement and the Qualified Independent Consultant will make a recommendation to remedy the situation. Seller shall abide by the Qualified Independent Consultant's recommendation contained in such study. Both Parties shall equally share in the cost for the Qualified Independent Consultant. However, Seller shall pay all costs associated with implementing the recommendation contained in the Independent Consultant's report. Notwithstanding the foregoing, Seller shall not be required to comply with any recommendations that, in Seller's reasonable judgment, will violate or void any warranties of equipment that is a part of, or used in connection with, the Facility or violate any long-term service agreement, or conflict with any written requirements, specifications or operating parameters of the manufacturer, with respect to such equipment, in which case Seller shall promptly notify Company thereof, and Seller and Company shall endeavor to reach a mutually satisfactory resolution of the matter in question.

- 5.3 Seller's Quarterly Maintenance Schedule. By each March 1st, June 1st, September 1st and December 1st (as applicable, subsequent to the Commercial Operations Date), Seller shall provide to Company in writing a projection of maintenance outages and reductions in capacity for the next calendar quarter, including the estimated MW that is anticipated to be off-line for each projected maintenance event. Seller shall provide Company with prompt written notice of any deviation from its quarterly maintenance schedule, no less than one (1) week prior to commencing any such rescheduled maintenance event. During any scheduled or rescheduled maintenance event, Seller shall provide updates to Company's operating personnel in the event there are any delays or changes to the proposed schedule, and shall promptly respond to any requests from Company for updates regarding the status of such maintenance event.
- 5.4 Seller's Annual Maintenance Schedule. In addition, Seller shall submit to Company by June 30 of each year a written schedule for the next two-year period, beginning with January of the following year, of any maintenance outages that will reduce the capacity of the Facility by an amount equal to or greater than 5 MW or 25% of the Net Nameplate Capacity. The schedule shall state the proposed dates and durations of scheduled maintenance, including the scope of work for the maintenance requiring shutdown or reduction in output of the Facility and the estimated MW that is anticipated to be off-line for each projected maintenance event. Company shall review the maintenance schedule for the two-year period and inform Seller in writing no later than December 1 of the same year of Company's concurrence or requested revisions; provided, however, that Seller shall not be required to agree to any proposed revisions that, in Seller's judgment, will (a) void or violate any warranties of equipment that is part of, or used in connection with, the Facility, (b) violate any long-term service agreement with respect to such equipment, or (c) conflict with any written requirements, specifications or operating parameters of the manufacturer, with respect to such equipment, in which case Seller shall promptly notify Company thereof, and Seller and Company shall endeavor to reach a mutually satisfactory resolution of the matter in question. With respect to such agreed upon revisions, Seller shall revise its schedule for timing and duration of scheduled shutdowns and scheduled reductions of output of the Facility to accommodate Company's revisions, unless

such revisions would not be consistent with Good Engineering and Operating Practices, and make all commercially reasonable efforts, consistent with Good Engineering and Operating Practices, to accommodate any subsequent changes in such schedule reasonably requested by Company.

- 5.5 Seller's Notification Obligations. When Seller learns that any of its equipment will be removed from or returned to service, and any such removal or return may affect the ability of the Facility to deliver electric energy to Company, Seller shall notify Company as soon as practicable. This requirement to notify shall include, but not be limited to, notice to Company of Seller's intention to shut down any individual unit, including for high wind speed. Any unit shut-down shall be coordinated with Company in advance to the extent practicable to allow a reasonable amount of time for Company to make generation adjustments required by the loss of availability from a unit shut-down.
- 5.6 Operating and Maintenance Manuals. Not later than each Post-CSAT Partial In-Service Date, if applicable, and the Commercial Operations Date, Seller shall provide Company with (i) any and all manufacturer's equipment manuals and recommendations for maintenance, and a copy of the operating and maintenance manual for each Post-CSAT Partial Installation, if applicable, and for the Facility within three (3) Business Days after Seller's receipt of same; and (ii) a copy of all updates, supplements or amendments thereto, if any, within three (3) Business Days after such updates, supplements or amendments are adopted (subsequent to the first Post-CSAT Partial In-Service Date and the Commercial Operations Date, as applicable). In addition, throughout the Term, Seller shall deliver to Company, promptly upon Seller's receipt of the same, any reports, studies or assessments of the Facility prepared by an independent engineer for the benefit of the Seller.

ARTICLE 6
FORECASTING

- 6.1 Data for Company Forecasts and Monitoring. Seller shall provide to Company the meteorological and production data and the Site description information required by Company in order for Company to (i) provide situational awareness to Company System Operator, (ii) monitor equipment availability and performance, (iii) produce a real-time forecast for operations as well as a Day-ahead forecast and hourly forecasts for all variable generation facilities on the Company System and (iv) monitor Seller's compliance with the Technical and Operational Requirements set forth in Section 3 (Technical and Operational Requirements) of Attachment B (Facility Owned by Seller).
- 6.2 Monitoring and Communication Equipment. Seller shall install and maintain appropriate equipment (the "Monitoring and Communication Equipment") for the purposes of (i) measuring the meteorological and production data required under Section 6.1 (Data for Company Forecasts and Monitoring) with an accuracy acceptable to Company for each such data parameter in Section 8 (Data and Forecasting) of Attachment B (Facility Owned by Seller) and, (ii) recording and transferring such data to Company in real time in accordance with Section 1(b)(iii)(E) (Company Telemetry and Control) of Attachment B (Facility Owned by Seller). Requirements made in this section with reference to Attachment B (Facility Owned by Seller) shall still apply even if the monitoring equipment is part of the Company-Owned Interconnection Facilities, as set forth in Attachment G (Company-Owned Interconnection Facilities). Seller shall maintain at the Site sufficient replacement parts for the Monitoring and Communication Equipment to avoid or otherwise minimize any shutdown of the Facility pursuant to Section 6.4 (Shutdown for Lack of Reliable Real Time Data) of this Agreement while any of the Monitoring and Communication Equipment is being repaired, replaced or recalibrated.
- 6.3 Calibrations, Maintenance and Repairs.
- (a) Documentation Requirement. Seller shall provide to Company (i) the manufacturer's recommended schedule for the calibration and maintenance of each component of the Monitoring and Communication Equipment and (ii)

subject to the limitation set forth in Section 1(a)(ii) (As-Builts) of Attachment B (Facility Owned by Seller) of this Agreement, documentation of the performance of all such calibration and maintenance per manufacturer specifications. Although Company is to receive from Seller the aforesaid recommended schedules for calibration and maintenance, as well as documentation of the performance of all such calibration and maintenance, Company shall have no responsibility to monitor Seller's compliance with such calibration and maintenance schedules. Accordingly, any failure by Company to bring Seller's attention to any apparent failure by Seller to perform such recommended calibration and maintenance shall neither relieve Seller of its obligations under this Agreement to perform such calibration and maintenance nor constitute a waiver of Company's rights under this Agreement with respect to such failure in performance by Seller.

(b) Corrective Measures. In the event of a pattern of material inconsistencies in the data stream provided by the Monitoring and Communication Equipment, Seller shall perform, at Seller's expense, such corrective measures as Company may reasonably require, such as the recalibration of all field measurement device components of the Monitoring and Communication Equipment.

(c) Repairs. In the event of any failure in the Monitoring and Communication Equipment, Seller shall repair or replace such equipment within fifteen (15) Days of such failure, or within such longer period as may be reasonably agreed to by the Parties.

6.4 Shutdown for Lack of Reliable Real Time Data. Because the availability to the Company System Operator of reliable meteorological and production information in real time via SCADA is necessary in order for Company to effectively optimize the benefit of its right of Company Dispatch, Company shall have the right to direct Seller to shut down the Facility due to the unavailability of such reliable real time meteorological and/or production data. In addition, in the event of the performance of corrective measures (including recalibration) and/or repairs to any Monitoring and Communication Equipment pursuant to Section

6.3(b) (Corrective Measures) or Section 6.3(c) (Repairs), Company shall have the right to direct Seller to shut down the Facility and the Facility shall remain shut down until such corrective action is completed. In the event the cause for any shutdown in this Section 6.4 (Shutdown For Lack of Reliable Real Time Data) falls within the definition of Seller-Attributable Non-Generation, such period of time shall be allocated as such for purposes of calculating the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor under Section 1 (Calculation of the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor) of Attachment Q (Calculation of Certain Metrics) of this Agreement until such time as the successful completion of such corrective measures and/or repairs has been communicated by Seller to Company. If, after such communication, Company attempts to dispatch the Facility and determines that such corrective measures and/or repairs were not successfully completed, all time from the notice of successful completion to actual successful completion shall be revised as continuance of the deration or outage. Notwithstanding the foregoing, if Seller requests in writing for confirmation that the Facility's data is available to Company, then Company shall use reasonable efforts to respond to such request within three (3) Business Days in writing (with E-mail being acceptable) confirming that either (1) the Facility's data is available to Company (at which point no additional time after such request shall count as Seller-Attributable Non-Generation), or (2) the Facility's data is not available so that Seller can take further appropriate corrective actions.

6.5 Seller Day-Ahead Forecasts of Actual Output.

- (a) Forecasts. Each Day during the Term commencing on the Commercial Operations Date, Seller shall submit to Company Seller's Day-ahead hourly forecasts of the Facility's Actual Output produced by a commercially available forecasting service or by the Seller's documented methodology (i.e., climatology, persistence forecasting) for providing a forecast for the Facility's Actual Output for the next 24-hour period. Hourly Day-ahead forecasts shall be submitted to Company by 1200 Hawai'i Standard Time on each Day

immediately preceding a Day on which electric energy from the Facility is to be delivered. Seller shall provide Company with an hourly forecast of Actual Output for each hour of the next Day. Seller shall update such forecast and provide unit availability updates any time information becomes available indicating a change in the forecast of Actual Output from the Facility. The forecasts called for by this Agreement shall be substantially in the form reasonably requested by Company.

- (b) Accuracy of Forecasts. Company acknowledges that the Seller's Day--ahead forecasts are based on forecast estimates and not guarantees. Such limitation notwithstanding, Seller shall exercise commercially reasonable efforts to ensure the accuracy of the Day-ahead- forecasts required hereunder for validation purposes and to support Company's forecasts. This includes a detailed description of the methodology used by Seller for forecasting. For example, Seller shall prepare such forecasts and updates by utilizing a renewable resource power forecast or other service that is (i) commercially available or proprietary to Seller, (ii) comparable in accuracy to models or services commonly used in the renewable energy industry and that reflect equipment availability, and (iii) is satisfactory to Company in the exercise of its reasonable discretion.
- (c) Company's Forecasting System. Company currently subscribes to a forecasting service. Seller, may, if it chooses, subscribe to the same forecasting service that Company does, at Seller's cost. If Seller so chooses to subscribe to such forecasting service and elects to use such service in lieu of creating its own forecast, Seller shall not be required to provide Day-ahead forecasts pursuant to this Section 6.5 (Seller Day-Ahead Forecasts of Actual Output). If Company changes its forecasting service and Seller elects not to subscribe to the same forecasting service, then the provisions of Section 6.5(a) (Forecasts) and Section 6.5(b) (Accuracy of Forecasts) shall apply.

6.6 Reports, Studies and Assessment. Prior to the Execution Date, Seller has provided Company with Seller's explanation of the methodology and underlying information used to

derive the NEP RFP Projection, including the preliminary design of the Facility and the typical meteorological year file used to estimate the Renewable Resource Baseline. Throughout the Term, Seller shall, for purposes of facilitating Company's forecasting, deliver to Company, promptly upon Seller's receipt of same, any reports, studies or assessments prepared for the benefit of the Seller of (i) the electric energy producing potential of the Site or (ii) the Facility.

ARTICLE 7
SELLER PAYMENTS

Seller shall pay to Company (i) all amounts pursuant to Attachment G (Company-Owned Interconnection Facilities), (ii) all amounts pursuant to Section 10.1 (Meters), Section 10.2 (Station Service Metering Package) and Section 10.3 (Meter Testing), (iii) a monthly metering charge of \$25.00 per month, which is in addition to any charges due Company pursuant to the applicable rate schedule pursuant to Section 2.14 (Sales of Electric Energy by Company to Seller) of this Agreement and (iv) such other costs to be incurred by Company and reimbursed by Seller as set forth in this Agreement.

ARTICLE 8
COMPANY DISPATCH

- 8.1 General. Consistent with Company Dispatch, Company shall have the right to dispatch all available real and reactive power delivered from the Facility to the Company System and to start up and shut down the Facility's generating units, as it deems appropriate in its reasonable discretion, subject only to and consistent with the restrictions set forth in Section 9(d) (Battery Energy Storage System) of Attachment B (Facility Owned by Seller), Good Engineering and Operating Practices, the requirements set forth in Section 3 (Technical and Operational Requirements) of Attachment B (Facility Owned by Seller) of this Agreement and Seller's maintenance schedule determined in accordance with Article 5 (Maintenance Records and Scheduling).
- 8.2 Company Dispatch. Dispatch will either be by Seller's manual control under the direction of the Company System Operator or by remote computerized control by the EMS provided in Section 1(g) (Active Power Control Interface) of Attachment B (Facility Owned by Seller), in each case at Company's reasonable discretion.
- 8.3 Company Rights of Dispatch. Company may require derating or outage in response to the Facility's failure to comply with Company Dispatch or to any conditions of Seller-Attributable Non-Generation. A derating or outage required by Company pursuant to the preceding sentence shall be considered Seller-Attributable Non-Generation and, until the conditions that led to the derating or outage are resolved by Seller and Seller notifies Company of the same, any such derating shall "count against" Seller for purposes of calculating the [Measured Performance Ratio or Performance Index], and any such derating or outage shall "count against" Seller for the purpose of calculating the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor. If, after such notification, Company attempts to dispatch the Facility and determines that such conditions that led to the derating or outage are not resolved, all time from the notice of resolution to actual resolution shall be revised as continuance of the derating or outage until the conditions that led to such outage or derating are resolved by Seller to Company's reasonable satisfaction. If Seller requests confirmation from Company

that Seller's actions to resolve such conditions that led to the derating or outage were successfully completed, then Company shall use reasonable efforts to respond to such request within three (3) Business Days in writing (with E-mail being acceptable) to allow Seller the opportunity to take further appropriate corrective actions if needed. Nothing in this Section 8.3 (Company Rights of Dispatch) shall relieve Seller of its obligation under the terms of this Agreement to make available the full capability of the Facility for Company Dispatch.

- 8.4 Monthly Report. Commencing with the month during which the Commercial Operations Date is achieved, and for each calendar month thereafter during the Term, Seller shall prepare and provide to Company a Monthly Report by the tenth (10th) Business Day of the following month in accordance with Section 1 (Monthly Report) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) of this Agreement. Beginning with the Monthly Report for the last calendar month of the initial Contract Year, Seller shall include calculations of, as applicable, (a) the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor for the [PV System EAF or MPXEEAF] Assessment Period, (b) the [Measured Performance Ratio or Performance Index] for the [MPR or PI] Assessment Period, (c) any of the BESS Capacity Ratio, the BESS Annual Equivalent Availability Factor, the BESS Annual Equivalent Forced Outage Factor or the RTE Performance Metric for the BESS Measurement Period (if any), as well as (d) any liquidated damages to be assessed, as set forth in the form of Monthly Report set forth in Section 1 (Monthly Report) of said Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator). The rights and obligations of the Parties with respect to each Monthly Report and any disagreements arising out of any Monthly Report are set forth in Section 1 (Monthly Report), Section 2 (Monthly Report Disagreements) and Section 4 (Independent Evaluator Process) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) to this Agreement.

ARTICLE 9
PERSONNEL AND SYSTEM SAFETY

Notwithstanding any other provisions of this Agreement, if at any time Company determines that the Facility may endanger Company's personnel, and/or the continued operation of the Facility may endanger the integrity of the Company System or have an adverse effect on Company's other customers' electric service, Company shall have the right to disconnect the Facility from the Company System, as determined in the sole discretion of the Company System Operator. The Facility shall immediately comply with the dispatch instruction, which may be initiated through remote control, and shall remain disconnected (and in Seller-Attributable Non-Generation status if so determined), until such time as Company is satisfied that the condition(s) referred to above have been corrected. If Company disconnects the Facility from the Company System for personnel or system safety reasons, it shall as soon as practicable notify Seller by telephone, and thereafter make reasonable efforts to confirm, in writing (with E-mail being acceptable), within three (3) Days of the disconnection, the reasons for the disconnection. If the reason for the disconnection constitutes Seller-Attributable Non-Generation, Company will notify Seller (1) whether the conditions resulting in such disconnection have been resolved (in which case no additional time after such confirmation shall count as Seller-Attributable Non-Generation); or (2) that conditions resulting in such disconnection have not been resolved so that Seller can take such appropriate corrective actions. Seller shall notify Company in writing when such corrective action has been completed; provided, however, that Seller shall remain in Seller-Attributable Non-Generation until Company is satisfied that the condition resulting in the disconnection has been corrected. Company shall use reasonable efforts to inspect such corrective measures (if necessary) and confirm the resolution of such condition within three (3) Business Days after Seller's notification.

ARTICLE 10
METERING

10.1 Meters. Company shall purchase, own, install and maintain the Revenue Metering Package suitable for measuring the import and export of electric energy from the Facility to Company in kilowatts and kilowatt-hours on a time-of-day basis and of reactive power flow in kilovars and true root mean square kilovar-hours. The metering point shall be as close as possible to the Point of Interconnection as allowed by Company. Seller shall make available a mutually agreeable location for the Revenue Metering Package. Seller shall install, own and maintain the infrastructure and other related equipment associated with the Revenue Metering Package, including but not limited to all enclosures (meter cabinets, meter pedestals, meter sockets, pull boxes, and junction boxes, along with their grounding/bonding connections), CT/PT mounting structures, conduits and ductlines, enclosure support structures, ground buses, pads, test switches, terminal blocks, isolation relays, telephone surge suppressors, and analog phone lines (one per meter), subject to Company's review and approval, as further described in Section 1(e) (Other Equipment) of Attachment B (Facility Owned by Seller). The Seller shall install this infrastructure such that it meets the requirements set forth in Chapter Six (IPP Metering) of the latest edition of the Company's Electric Service Installation Manual (ESIM). Company shall test such revenue meter prior to installation and shall test such revenue meter in accordance with Section 10.3 (Meter Testing) as often as Company deems reasonably necessary, but no more than once every seven (7) years. Seller shall reimburse Company for all reasonably incurred costs for the procurement, installation, maintenance (including maintenance replacements) and testing work associated with the Revenue Metering Package.

10.2 Station Service Meters. Seller shall furnish, install and maintain the Station Service Metering Package dedicated exclusively to the Facility and by which all measurable aspects of Station Service must be measured. The Station Service meter shall be installed for Station Service power and Seller shall make available a mutually agreeable location for the Station Service Metering Package, to measure the Station Service energy use during BESS grid charging and when the Facility is not able to self-serve

Station Service energy. Seller shall separately meter the Station Service, and shall cause the installation, maintenance, operation and replacement (as needed) of the Station Service Metering Package. Seller shall install, own and maintain the infrastructure and other related equipment associated with the Station Service Metering Package, including but not limited to all enclosures (meter cabinets, meter pedestals, meter sockets, pull boxes, and junction boxes, along with their grounding/bonding connections), CT/PT mounting structures, conduits and ductlines, enclosure support structures, ground buses, pads, test switches, terminal blocks, isolation relays, telephone surge suppressors, and analog phone lines (one per meter), subject to Company's review and approval, as further described in Section 1(e) (Other Equipment) of Attachment B (Facility Owned by Seller). The Seller shall install this infrastructure such that it meets the requirements set forth in Chapter Four (Metering 15kV and below) of the latest edition of the Company's Electric Service Installation Manual (ESIM). Company shall test such Station Service meter in accordance with the applicable tariff. Seller shall reimburse Company for all reasonably incurred costs for the procurement, installation, maintenance (including maintenance replacements) and testing work associated with the Station Service Metering Package.

- 10.3 Meter Testing. Company shall provide at least forty-eight (48) hours' notice to Seller prior to any test it may perform on the revenue meters or metering equipment. Seller shall have the right to have a representative present during each such test. Seller may request, and Company shall perform, if requested, tests in addition to Company initiated tests, and Seller shall pay the cost of such tests. Company may, in its sole discretion, perform tests in addition to tests conducted within a seven-year timeframe and Company shall pay the cost of such tests. If any of the revenue meters or metering equipment is found to be inaccurate at any time, as determined by testing in accordance with this Section 10.3 (Meter Testing), Company shall promptly cause such equipment to be made accurate, and the period of inaccuracy, as well as an estimate for correct meter readings, shall be determined in accordance with Section 10.4 (Corrections).

10.4 Corrections. If any test of revenue meters or metering equipment conducted by Company indicates that the revenue meter readings are in error by one percent (1%) or more, the revenue meters or meter readings shall be corrected as follows: (i) determine the error by testing the revenue meter at approximately ten percent (10%) of the rated current (test amperes) specified for such revenue meter; (ii) determine the error by testing the revenue meter at approximately one hundred percent (100%) of the rated current (test amperes) specified for the revenue meter; (iii) the average meter error shall then be computed as the sum of (aa) one-fifth (1/5) of the error determined in the foregoing clause "(i)" and (bb) four-fifths (4/5) of the error determined in the foregoing clause "(ii)". The average meter error shall be used to adjust the invoices in accordance with Section 2.19 (Adjustment to Invoices After Payment) for the amount of electric energy supplied to Company for the previous six (6) months from Facility, unless records of Company conclusively establish that such error existed for a greater or lesser period, in which case the correction shall cover such actual period of error.

ARTICLE 11
GOVERNMENTAL APPROVALS, LAND RIGHTS AND COMPLIANCE WITH LAWS

11.1 Governmental Approvals for Facility. Seller shall obtain, at its expense, any and all Governmental Approvals required for the construction, ownership, operation and maintenance of the Facility and the interconnection of the Facility to the Company System. Under no circumstances shall Seller commence any construction, operation or maintenance of the Facility or interconnection of the Facility to the Company System, without first obtaining the required, applicable Governmental Approvals. No later than the applicable Pre-CSAT Partial In-Service Date, Seller shall obtain all Governmental Approvals necessary to deliver Test Energy to Company from the corresponding Pre-CSAT Partial Installation. No later than the applicable Post-CSAT Partial In-Service Date, Seller shall obtain all Governmental Approvals necessary for the ownership, operation and maintenance of the corresponding Post-CSAT Partial Installation and shall satisfy any condition or requirement set forth in any such Governmental Approvals for the ownership, operation and maintenance of such Post-CSAT Partial Installation (excluding on-going reporting or monitoring requirements that may continue beyond the applicable Post-CSAT Partial In-Service Date in accordance with such Governmental Approval). No later than the Commercial Operations Date, Seller shall obtain all other Governmental Approvals necessary for the ownership, operation and maintenance of the Facility and shall satisfy any condition or requirement set forth in any such Governmental Approvals for the ownership, operation and maintenance of the Facility (excluding on-going reporting or monitoring requirements that may continue beyond the Commercial Operations Date in accordance with such Governmental Approval).

11.2 Land Rights for Facility. Seller shall obtain, at its expense, any and all Land Rights required for the construction, ownership, operation and maintenance of the Facility on the Site and the interconnection of the Facility to the Company System. Seller shall provide to Company:

- (a) No later than the Execution Date, copies of the documents, recorded, if required by Company (including but not limited to any agreements with landowners)

evidencing Seller's Land Rights establishing the right of Seller to construct, own, operate and maintain the Facility on the Site, whether by fee simple ownership of the Site, leasehold interest of the Site for a term at least as long as the Term of this Agreement or, in the alternative for actual fee simple or leasehold interest in the Site, a binding, executed letter of intent establishing the right of Seller to enter into a lease for the Site subject only to reasonable conditions related to PUC approval of this Agreement and such conditions that shall not affect the ability of the Seller to execute such lease.

- (b) Within six (6) months of the Execution Date, Seller shall provide to Company a current survey (dated no earlier than the Execution Date) for the Site and any other property identified by Seller as requiring Land Rights. Within four (4) months of the Execution Date, Seller shall provide to Company (i) a preliminary title report (dated no earlier than the Execution Date) for the Site and any other property identified by Seller as requiring Land Rights, (ii) copies of all Land Rights already obtained, and (iii) a current list identifying all Land Rights required for the construction, ownership, operation and maintenance of the Facility and the interconnection of the Facility to the Company System, including Seller's status as to whether such Land Rights have been obtained, have been negotiated or not yet pursued and if so, an estimated date when such Land Rights would be pursued;
- (c) Within three (3) months of Seller's identification of such additional necessary Land Rights, copies of such completed Land Rights, if any;

provided, however, that under no circumstance shall Seller commence any construction, operation or maintenance of the Facility or interconnection of the Facility to the Company System, or require or permit Company to commence any such construction, without Seller first obtaining the required, applicable Land Rights, and in the case where Seller has satisfied the requirements of Section 11.2(a) by way of an option agreement or binding letter of intent, Seller shall have: (i) affirmatively exercised such option agreement or fulfilled the requirements of such binding letter of intent, and (ii) delivered to Company the completed Land

Rights resulting therefrom, no less than sixty (60) Days prior to commencing any construction activity.

Seller shall bear complete responsibility for all delays in construction, operation and maintenance of the Facility or the interconnection of the Facility to the Company System resulting from Seller's failure to identify and/or timely obtain necessary Land Rights. In each case, such Land Rights documents may be redacted but only to the extent required to prevent disclosure of confidential or proprietary information of Seller or the counterparty to such agreement. Under no circumstances shall such redactions conceal information that is necessary for the Company to determine whether such documents establish the Land Rights of Seller to construct, own, operate and maintain the Facility on the Site and the interconnection of the Facility to the Company System in accordance with the terms of this Agreement.

- 11.3 Company-Owned Interconnection Facilities. If the Company-Owned Interconnection Facilities are to be constructed by Company, Seller shall, prior to commencement of construction thereof, provide the necessary Governmental Approvals and Land Rights for the construction, ownership, operation and maintenance of Company-Owned Interconnection Facilities. If the Company-Owned Interconnection Facilities are to be constructed by Seller, then Seller shall provide the necessary Governmental Approvals and Land Rights required for the commencement of construction and, prior to the start of each subsequent phase of construction, Seller shall provide the necessary and appropriate Governmental Approvals and Land Rights necessary for such related construction activity. Regardless of whether Company or Seller constructs the Company-Owned Interconnection Facilities, Seller shall provide Company with an accounting of all necessary Governmental Approvals (in a list or spreadsheet) at the commencement of construction including relevant information regarding status and estimated completion. Seller shall update Company on the status of all necessary Governmental Approvals, including the addition of any new Governmental Approvals that may be discovered and required, in Seller's Monthly Progress Report submitted to Company. Notwithstanding the above, to the extent not already provided to Company, all required Governmental Approvals for the Company-Owned Interconnection Facilities shall be provided to Company on the Transfer Date in accordance with

Section 9 (Governmental Approvals for Any Company-Owned Interconnection Facilities) of Attachment G (Company-Owned Interconnection Facilities). Land Rights for Company-Owned Interconnection Facilities, whether provided at the commencement of construction if to be constructed by Company, or thereafter, if to be constructed by Seller, shall be obtained and its status updated by Seller to Company in accordance with Section 10 (Land Rights) of Attachment G (Company-Owned Interconnection Facilities). Notwithstanding the above, under no circumstance shall Seller commence any construction, operation or maintenance of the Company-Owned Interconnection Facilities or require or permit Company to commence any such construction, without first obtaining the required, applicable Governmental Approvals and Land Rights. Seller shall bear complete responsibility for all delays in construction, operation and maintenance of the Company-Owned Interconnection Facilities resulting from Seller's failure to identify and/or timely obtain necessary Governmental Approvals and Land Rights for such Company-Owned Interconnection Facilities.

- 11.4 Compliance With Laws. Seller shall at all times comply with all applicable Laws and shall be responsible for all costs and expenses associated therewith.

ARTICLE 12
TERM OF AGREEMENT AND COMPANY'S
OPTION TO PURCHASE AT END OF TERM

12.1 Term. Subject to Section 12.2 (Effectiveness of Obligations) of this Agreement, the initial term of this Agreement shall commence upon the Execution Date of this Agreement and, unless terminated sooner as provided in this Agreement, shall remain in effect for [twenty **(20)** Contract Years] following the Commercial Operations Date (the "Initial Term"). This Agreement shall automatically terminate upon expiration of the Initial Term.

12.2 Effectiveness of Obligations. Only Article 3 (Facility Owned and/or Operated by Seller), Section 11.4 (Compliance With Laws), Article 12 (Term of Agreement and Company's Option to Purchase at End of Term), Article 14 (Credit Assurance and Security) as it relates to Development Period Security, Article 17 (Indemnification), Article 19 (Transfers, Assignments, and Facility Debt), Article 21 (Force Majeure), Article 22 (Warranties and Representations), Article 24 (Financial Compliance), Article 28 (Dispute Resolution), Article 29 (Miscellaneous), Section 3 (Seller Payment to Company for Company-Owned Interconnection Facilities and Review of Facility) of Attachment G (Company-Owned Interconnection Facilities) and the Schedule of Defined Terms of this Agreement shall become effective on the Execution Date. Except where obligations of the Parties are explicitly stated as being effective before the Effective Date, all other portions of this Agreement shall become effective on the Effective Date.

12.3 PUC Approval.

- (a) This Agreement is subject to approval by the PUC in the form of a satisfactory PUC Approval Order and the Parties' respective obligations hereunder are conditioned upon receipt of such approval, except as specifically provided otherwise herein. Upon the Execution Date of this Agreement, the Parties shall use good faith efforts to obtain, as soon as practicable, a PUC Approval Order that satisfies the requirements of Section 29.20(a) (PUC Approval Order). Company shall submit to the PUC an application for a satisfactory PUC Approval Order but does not extend

any assurances that a PUC Approval Order will ultimately be obtained. Seller will provide reasonable cooperation to expedite obtaining a PUC Approval Order including timely providing information requested by Company to support its application, including information for Company and its consultant to conduct a greenhouse gas emissions analysis for the PUC application, as well as information requested by the PUC and parties to the PUC proceeding in which approval is being sought. Seller understands that lack of cooperation may result in Company's inability to file an application with the PUC and/or a failure to receive a PUC Approval Order. For the avoidance of doubt, Company has no obligation to seek reconsideration, appeal, or other administrative or judicial review of any Unfavorable PUC Order. The Parties agree that neither Party has control over whether or not a PUC Approval Order will be issued and each Party hereby assumes any and all risks arising from, or relating in any way to, the inability to obtain a satisfactory PUC Approval Order and hereby releases the other Party from any and all claims relating thereto.

- (b) Seller shall seek participation without intervention in the PUC docket for approval of this Agreement pursuant to applicable rules and orders of the PUC. The scope of Seller's participation shall be determined by the PUC. However, Seller expressly agrees to seek participation for the limited purpose and only to the extent necessary to assist the PUC in making an informed decision regarding the approval of this Agreement. If the Seller chooses not to seek participation in the docket, then Seller expressly agrees and knowingly waives any right to claim, before the PUC, in any court, arbitration or other proceeding, that the information submitted and the arguments offered by Company in support of the application requesting the PUC Approval Order are insufficient to meet Company's burden of justifying that the terms of this Agreement are just and reasonable and in the public interest, or otherwise deficient in any manner for purposes of supporting the PUC's approval of this Agreement. Seller shall not seek in the docket and Company shall not disclose any confidential information to Seller that would provide

Seller with an unfair business advantage or would otherwise harm the position of others with respect to their ability to compete on equal and fair terms.

12.4 [RESERVED]

12.5 Prior to Effective Date. Company may, by written notice delivered prior to the Effective Date, declare the Agreement null and void if any one or more of the following conditions applies:

- (a) Seller implements a material change to the Facility without following the requirements of Section 5(g) of Attachment A (Description of Generation, Conversion and Storage Facility).
- (b) Seller is in material breach of any of its representations, warranties and covenants under the Agreement, including, but not limited to, (i) the provisions of Section 22.2(c) and Section 22.2(d) requiring Seller to have all Land Rights and Governmental Approvals as provided therein; and (ii) the provisions of Section 3(b)(ii) (Company-Owned Interconnection Facilities Prepayment) of Attachment G (Company-Owned Interconnection Facilities) requiring the payment by Seller to Company of the amounts specified within the time periods provided therein.
- (c) Seller, subsequent to making the payment to Company required under Section 3(b)(ii) (Company-Owned Interconnection Facilities Prepayment) of Attachment G (Company-Owned Interconnection Facilities), requests in writing that Company stop or otherwise delay the performance of the work for which Company received such payment.
- (d) [RESERVED]

12.6 Time Periods for PUC Submittal Date and PUC Approval.

- (a) Time Period for PUC Submittal Date. If the PUC Submittal Date has not occurred within 120 Days of the Execution Date, or such longer period as Company and Seller may agree to by a subsequent written agreement, Company may, by written notice delivered within thirty (30) Days of the expiration of such period, declare the Agreement null and void if the reason the

application has not been filed is (i) any one or more of the conditions set forth in Section 12.5 (Prior to Effective Date) or (ii) Seller's failure to provide in a timely manner information reasonably requested by Company to support such application.

- (b) Time Period for PUC Approval. If the Commission issues an Unfavorable PUC Order or if a PUC Approval Order is not issued within twelve (12) months of the PUC Submittal Date, or within such longer period as Company and Seller may agree to by a written agreement ("PUC Approval Time Period"), then Company or Seller may, by written notice delivered within one hundred and eighty (180) Days of (i) in the case that an Unfavorable PUC Order has been issued, the date the Unfavorable PUC Order becomes non-appealable or (ii) in the case that a PUC Approval Order is not issued within twelve (12) months of the PUC Submittal Date, or the expiration of the PUC Approval Time Period, as applicable, declare this Agreement null and void. If a PUC Approval Order or an Unfavorable PUC Order is issued within the PUC Approval Time Period but that order is appealed, and a Non-appealable PUC Approval Order is not obtained within twenty-four (24) months of the PUC Submittal Date, or within such longer period as Company and Seller may agree to by a subsequent written agreement (the "PUC Order Appeal Period"), then Company or Seller may, by written notice delivered within ninety (90) Days after the expiration of the PUC Order Appeal Period, declare this Agreement null and void.

12.7 Agreement Null and Void. If the Agreement is declared null and void pursuant to its terms (i.e., if the applicable conditions entitling a Party to declare the Agreement null and void are satisfied or present and such Party notifies the other Party of its election to declare this Agreement null and void), the Parties hereto shall thereafter be free of all obligations hereunder except as set forth in this Section 12.7 (Agreement Null and Void), and shall pursue no further remedies against one another; provided, however, that if in response to Seller's request and Seller's offer of adequate assurance of reimbursement, Company agrees in writing to incur costs associated with Company-Owned Interconnection Facilities prior to the Non-appealable PUC Approval Order Date, Seller shall pay Company the actual

costs and cost obligations incurred by Company as of the date the Agreement is declared null and void for Company-Owned Interconnection Facilities and any reasonable costs incurred thereafter, and Company shall refund to Seller any amounts advanced by Seller in excess of such costs. A declaration that this Agreement is null and void pursuant to its terms shall not affect the following provisions, which shall remain in full force and effect: Section 12.2 (Effectiveness of Obligations), this Section 12.7 (Agreement Null and Void), Section 14.3 (Return of Development Period Security), Section 24.2 (Confidentiality), Article 28 (Dispute Resolution), Section 29.3 (Notices), Section 29.8 (Governing Law, Jurisdiction and Venue), Section 29.14 (Settlement of Disputes), Section 29.19 (Computation of Time), Section 29.23 (No Third-Party Beneficiaries), Section 29.24 (Hawai'i General Excise Tax), and Section 3 (Seller Payment to Company for Company-Owned Interconnection Facilities and Review Of Facility) and Section 7 (Land Restoration) of Attachment G (Company-Owned Interconnection Facilities).

- 12.8 Termination Rights. Notwithstanding any of the foregoing, the right of Company or Seller to terminate the Agreement at any time upon the occurrence of any Event of Default described in Article 15 (Events of Default) shall remain in full force and effect.
- 12.9 Option to Purchase Facility and Right of First Negotiation. Company shall have the right of first negotiation prior to the end of the Term and option to purchase the Facility at the end of the Term, as provided in Attachment P (Sale of Facility by Seller) to this Agreement.

ARTICLE 13
GUARANTEED PROJECT MILESTONES
INCLUDING COMMERCIAL OPERATIONS

[COMPANY TO DECIDE, FOLLOWING COMPLETION OF IRS, IF ANY GUARANTEED PROJECT MILESTONES ARE NECESSARY IN ADDITION TO THOSE LISTED IN ATTACHMENT K AND, IF SO, WHAT ARE THE CONSEQUENCES OF MISSING SUCH OTHER GUARANTEED PROJECT MILESTONES.]

13.1 Time is of the Essence. Time is of the essence of this Agreement, and Seller's ability to achieve the Construction Milestones is critically important.

13.2 Failure to Meet Reporting Milestones. If Seller does not meet a Reporting Milestone, in each case as set forth in Attachment L (Reporting Milestones), Seller shall submit to Company, within ten (10) Business Days of any such missed Reporting Milestone, a remedial action plan which shall provide a detailed description of Seller's course of action and plan to achieve (i) the missed Reporting Milestone date within ninety (90) Days of the missed Reporting Milestone and (ii) all subsequent Construction Milestones, provided that delivery of any remedial action plan shall not relieve Seller of its obligation to meet any subsequent Construction Milestones.

13.3 Guaranteed Project and Reporting Milestone Dates. Seller shall achieve each Guaranteed Project Milestone Date or Reporting Milestone Date, subject (to the extent applicable) to the following extensions; provided, that any extension will run concurrently with (and not in addition to) any other extension permitted under this Agreement:

- (a) if the PUC Approval Order Date occurs more than one hundred eighty (180) Days after the Execution Date, Seller and Company shall be entitled to an extension of the Guaranteed Project Milestone Dates, Reporting Milestone Dates, Seller's Conditions Precedent Dates and Company Milestone Dates equal to the number of Days that elapse between the end of the aforesaid 180-Day period and the PUC Approval Order Date; provided, that in no event will the Guaranteed Commercial Operations Date be extended beyond [REDACTED]; or
[DRAFTING NOTE: OUTSIDE DATE TO BE INSERTED BASED ON TYPE OF PROPOSAL.]

- (b) if the failure to achieve a Construction Milestone by the applicable Guaranteed Project Milestone Date or Reporting Milestone Date is the result of Force Majeure (which, for purposes of this Section 13.3(b) excludes any delay in obtaining the PUC Approval Order because that contingency is addressed in Section 13.3(a) above), and if and so long as the conditions set forth in Section 21.4 (Satisfaction of Certain Conditions) are satisfied, such Guaranteed Project Milestone Date or Reporting Milestone Date shall be extended by a period equal to the lesser of three hundred sixty-five (365) Days or the duration of the delay caused by the Force Majeure; or
- (c) if the failure to achieve a Guaranteed Project Milestone by the applicable Guaranteed Project Milestone Date is the result of any failure by Company in the timely performance of its obligations under this Agreement, including achievement of its Company Milestones by the Company Milestone Dates as set forth on Attachment K-1 (Seller's Conditions Precedent and Company Milestones), as such dates may be extended in accordance with Section 13.3 (Guaranteed Project and Reporting Milestone Dates) and Section 13.8 (Company Milestones), Seller shall, provided Seller has satisfied the Seller's Conditions Precedent set forth in Attachment K-1 (Seller's Conditions Precedent and Company Milestones) by the respective Seller's Conditions Precedent Date set forth in said Attachment K-1 (Seller's Conditions Precedent and Company Milestones), be entitled to an extension of such Guaranteed Project Milestone Date equal to the duration of the period of delay directly caused by such failure in Company's timely performance. Such extension on the terms described above shall be Seller's sole remedy for any such failure by Company. For purposes of this Section 13.3(c), Company's performance will be deemed to be "timely" if it is accomplished within the time period specified in this Agreement with respect to such performance or, if no time period is specified, within a reasonable period of time. If the performance in question is Company's review of plans, the determination of what is a "reasonable period of time" will take into account Company's past practices in reviewing and commenting on plans for similar facilities.

13.4 Damages and Termination.

(a) Daily Delay Damages.

- (1) If a Guaranteed Project Milestone (other than Commercial Operations) has not been achieved by the applicable Guaranteed Project Milestone Date as extended as provided in Section 13.3 (Guaranteed Project and Reporting Milestone Dates), Company shall collect and Seller shall pay liquidated damages in the amount of the Daily Delay Damages for each Day following the tenth (10th) Day after the applicable Guaranteed Project Milestone Date, as extended in accordance with Section 13.3 (Guaranteed Project and Reporting Milestone Dates); provided, however, that the number of Days for which Company shall collect and Seller shall pay Daily Delay Damages for a failure to achieve a Guaranteed Project Milestone by the Guaranteed Project Milestone Date shall not exceed sixty (60) Days for each such missed Guaranteed Project Milestone Date (the "Construction Delay LD Period").
- (2) If the Commercial Operations Date has not been achieved by the Guaranteed Commercial Operations Date as extended as provided in Section 13.3 (Guaranteed Project and Reporting Milestone Dates), in addition to any Daily Delay Damages collected pursuant to Section 13.4(a)(1), Company shall collect and Seller shall pay Daily Delay Damages following the tenth (10th) Day after the Guaranteed Commercial Operations Date, as such date may be extended in accordance with Section 13.3 (Guaranteed Project and Reporting Milestone Dates), provided that the number of Days for which Company shall collect and Seller shall pay Daily Delay Damages for failing to achieve the Guaranteed Commercial Operations Date shall not exceed one hundred eighty (180) Days (the "COD Delay LD Period").

- (b) Termination and Termination Damages for Failure to Achieve a Guaranteed Project Milestone Date. If, upon the expiration of the Construction Delay LD Period or the COD Delay LD Period, as applicable, Seller has not achieved the applicable Guaranteed Project Milestone, Company shall have the right, notwithstanding any

other provision of this Agreement to the contrary, to terminate this Agreement with immediate effect by issuing a written termination notice to Seller designating the Day such termination is to be effective, provided that Company shall issue such notice no later than thirty (30) Days following the expiration of the Construction Delay LD Period or the COD Delay LD Period, as applicable. The effective date of such termination shall be not later than the date that is thirty (30) Days after such notice is deemed to be received by Seller, and not earlier than the later to occur of the Day such notice is deemed to be received by Seller or the Day following the expiration of the Construction Delay LD Period or the COD Delay LD Period, as applicable. If the Agreement is terminated by Company pursuant to this Section 13.4 (Damages and Termination), Company shall have the right to collect Termination Damages, which shall be calculated in accordance with Article 16 (Damages in the Event of Termination by Company) of this Agreement.

13.5 Payment of Daily Delay Damages. Company shall draw upon the Development Period Security on a monthly basis for payment of the total Daily Delay Damages incurred by Seller during the preceding calendar month. If the Development Period Security is at any time insufficient to pay the amount of the draw to which Company is then entitled, Seller shall pay any such deficiency to Company promptly upon demand.

13.6 Liquidated Damages Appropriate. Seller's inability to achieve Commercial Operations by the Guaranteed Commercial Operations Date may cause Company to not meet applicable RPS requirements and require Company to devote substantial additional resources for administration and oversight activities. As such, Company may incur financial consequences for failure to meet such requirements. Consequently, each Party agrees and acknowledges that (i) the damages that Company would incur due to delay in achieving Commercial Operations by the Guaranteed Commercial Operations Date (subject to the extensions provided in Section 13.3 (Guaranteed Project and Reporting Milestone Dates)) would be difficult or impossible to calculate with certainty, (ii) the Daily Delay Damages set forth in Section 13.4 (Damages and Termination) are an appropriate approximation of such damages and (iii) the

Daily Delay Damages are the sole and exclusive remedies for Seller's failure to achieve Commercial Operations by the Guaranteed Commercial Operations Date.

13.7 Monthly Progress Reports. Commencing upon the Execution Date of this Agreement, Seller shall submit to Company, on the tenth (10th) Business Day of each calendar month until the Commercial Operations Date is achieved, a progress report for the prior month in a form set forth on Attachment S (Form of Monthly Progress Report) (the "Monthly Progress Report"). These progress reports shall notify Company of the current status of each Construction Milestone. Seller shall include in such report a list of all letters, notices, applications, filings and Governmental Approvals sent to or received from any Governmental Authority and shall provide any such documents as may be reasonably requested by Company. In addition, Seller shall advise Company as soon as reasonably practicable of any problems or issues of which it is aware which may materially impact its ability to meet the Construction Milestones. Seller shall provide Company with any requested documentation to support the achievement of Construction Milestones within ten (10) Business Days of receipt of such request from Company. Upon the occurrence of a Force Majeure event, Seller shall also comply with the requirements of Section 21.4 (Satisfaction of Certain Conditions) to the extent such requirements provide for communications to Company beyond those required under this Section 13.7 (Monthly Progress Reports).

13.8 Company Milestones. Company's obligation to achieve the Company Milestones is contingent upon Seller completing the Seller's Conditions Precedent set forth in Attachment K-1 (Seller's Conditions Precedent and Company Milestones). Company shall achieve each of the Company Milestones by the date set forth for such Company Milestones in Attachment K-1 (Seller's Conditions Precedent and Company Milestones) of this Agreement (each such date, a "Company Milestone Date"), as such date may be extended in accordance with Section 13.3 (Guaranteed Project and Reporting Milestone Dates) and this Section 13.8 (Company Milestones); provided, however in the event Seller does not complete a Seller's Condition Precedent on or before the applicable date set forth in Attachment K-1 (Seller's Conditions Precedent and Company Milestones) (each such date, a "Seller's Conditions Precedent Date"), subject to the

extensions set forth in Section 13.3 (Guaranteed Project and Reporting Milestone Dates), Company shall be entitled to an extension as follows: (i) for the commencement of Acceptance Testing, the new Company Milestone Date shall be as set forth in clause "(gg)" of Section 2(f)(i) of Attachment G (Company-Owned Interconnection Facilities); and (ii) for any other Company Milestone Date, the extension shall be for the period of time reasonably necessary to meet any such Company Milestone Date adversely affected by Seller's failure but no shorter than a day-for-day extension.

ARTICLE 14
CREDIT ASSURANCE AND SECURITY

- 14.1 General. Seller is required to post and maintain Development Period Security and Operating Period Security based on the requirements of this Article 14 (Credit Assurance and Security).
- 14.2 Development Period Security. To guarantee undertaking the performance of Seller's obligations under the Agreement for the period prior to the Commercial Operations Date (including but not limited to Seller's obligation to meet the Guaranteed Commercial Operations Date), Seller shall provide 50% of the Development Period Security to Company within ten (10) Business Days of the Execution Date and the remaining 50% of the Development Period Security within ten (10) Business Days of the Effective Date.
- 14.3 Return of Development Period Security. The Development Period Security shall be returned to Seller, subject to Company's right to draw from the Development Period Security as set forth in Section 14.7 (Company's Right to Draw from Security Funds), in the following circumstances: (i) this Agreement is declared null and void pursuant to its terms; (ii) the PUC issues an order denying approval for an application for a PUC Approval Order, which does not become subject to appeal; (iii) the PUC issues an Unfavorable PUC Order, which does not become subject to appeal; (iv) a Non-Appealable PUC Approval Order is not obtained within the time periods specified in Section 12.6(b) (Time Period for PUC Approval); or (v) following Company's receipt of Operating Period Security pursuant to Section 14.4 (Operating Period Security) of this Agreement.
- 14.4 Operating Period Security. To guarantee the performance of Seller's obligations under the Agreement for the period starting from the Commercial Operations Date to the expiration or termination of this Agreement, Seller shall provide satisfactory operating period security to Company in the amount of \$75/kW based on the Contract Capacity (the "Operating Period Security"). Seller shall provide such Operating Period Security to Company within five (5) Business Days after the Commercial Operations Date, provided that, at all times, some form of Security Funds shall be in place and available to Company, whether Development Period Security or Operating Period Security.

14.5 Form of Security. Seller shall supply the Development Period Security and Operating Period Security required in the form of an irrevocable standby letter of credit with no documentation requirement substantially in the form set forth in Attachment M (Form of Letter of Credit) to this Agreement from a bank doing business in the United States and subject to United States state or federal regulation, with a credit rating of "A-" or better. If the rating (as measured by Standard & Poor's) of the bank issuing the standby letter of credit falls below A-, Company may require Seller to replace, within thirty (30) Days' notice by Company, the standby letter of credit with a standby letter of credit from another bank doing business in the United States and subject to United States state or federal regulation, with a credit rating of "A-" or better. Such letter of credit shall be issued for a minimum term of one (1) year. Furthermore, at the end of each year the security shall be renewed for an additional one (1) year term so that at the time of such renewal, the remaining term of any such security shall not be less than one (1) year. The letter of credit shall include a provision for at least thirty (30) Days advance notice to Company and Seller of any expiration or earlier termination of the letter of credit so as to allow Company sufficient time to exercise its rights under said security if Seller fails to extend or replace the security. In all cases, the reasonable costs and expenses of establishing, renewing, substituting, canceling, increasing, reducing, or otherwise administering the letter of credit shall be borne by Seller. In the event Company receives notice from the issuing bank that a letter of credit for the Development Period Security or Operating Period Security will be cancelled or is set to expire and will not be extended, Company shall endeavor, but shall not be obligated, to provide Seller with notice of such cancellation or termination. Company shall not be responsible for any lack of notice to Seller of such letter of credit's cancellation or termination and the events resulting therefrom, provided, however, that if Company draws upon the then full amount remaining under the letter of credit, the provisions of Section 14.8 (Failure to Renew or Extend Letter of Credit) and Section 14.9 (L/C Proceeds Escrow) shall apply. In the event the letter of credit for Development Period Security or Operating Period Security ever expires or is terminated without Company drawing on such full amount remaining under the letter of credit prior to its

expiration, and Seller has not been afforded the opportunity to replace the letter of credit prior to its expiration or termination because of lack of notice, Seller shall be provided a grace period of five (5) Business Days from any notice of such expiration or termination of the letter of credit to obtain and provide to Company a substitute letter of credit meeting the requirements of this Article 14 (Credit Assurance and Security).

14.6 Security Funds. The Development Period Security and Operating Period Security, including L/C Proceeds therefrom (collectively referred to as the "Security Funds") established, funded, and maintained by Seller pursuant to the provisions of this Article 14 (Credit Assurance and Security) shall provide security for the performance of Seller's obligations under this Agreement and shall be available to be drawn on by Company as provided in Section 14.7 (Company's Right to Draw from Security Funds). Seller shall maintain the Security Funds at the contractually required level throughout the Term of this Agreement. Seller shall replenish the Security Funds to such required level within fifteen (15) Business Days after any draw on the Security Funds by Company or any reduction in the value of Security Funds below the required level for any other reason. Notwithstanding the foregoing, Seller's obligation to replenish the Development Period Security shall not exceed in total three (3) times the original amount of the Development Period Security required under Section 14.2 (Development Period Security) of this Agreement.

14.7 Company's Right to Draw from Security Funds. In addition to any other remedy available to it, Company may, before or after termination of this Agreement, draw from the Security Funds such amounts as are necessary to recover amounts Company is owed pursuant to this Agreement or the IRS Letter Agreement or the GHG Letter Agreement, including, without limitation, any damages due Company, any interconnection costs owed pursuant to Attachment G (Company-Owned Interconnection Facilities), any amounts for which Company is entitled to reimbursement or indemnification under this Agreement, and any amounts necessary under Section 29.21(a)(2)(f) to fund Seller's Community Benefits Program. Company may, in its sole discretion, draw all or any part of such amounts due Company from any of the Security Funds to the extent available pursuant to this Article 14 (Credit Assurance and

Security), and from all such forms, and in any sequence Company may select. Any failure to draw upon the Security Funds or other security for any damages or other amounts due Company shall not prejudice Company's rights to recover such damages or amounts in any other manner.

14.8 Failure to Renew or Extend Letter of Credit. If the letter of credit is not renewed or extended at least thirty (30) Days prior to its expiration or earlier termination, Company shall have the right to draw immediately upon the full amount of the letter of credit and to place the proceeds of such draw (the "L/C Proceeds"), at Seller's cost, in an escrow account in accordance with Section 14.9 (L/C Proceeds Escrow), until Seller provides a substitute letter of credit meeting the requirements of this Article 14 (Credit Assurance and Security), which substitute letter of credit shall be procured no later than five (5) Business Days after expiration of the Letter of Credit.

14.9 L/C Proceeds Escrow. If Company draws on the letter of credit pursuant to Section 14.8 (Failure to Renew or Extend Letter of Credit), and for so long as a substitute letter of credit meeting the requirements of this Article 14 (Credit Assurance and Security) is not obtained and provided to Company, Company shall, in order to avoid comingling the L/C Proceeds, have the right but not the obligation to place the L/C Proceeds in an escrow account as provided in this Section 14.9 (L/C Proceeds Escrow) ("L/C Proceeds Escrow") with a reputable escrow agent acceptable to Company ("Escrow Agent"). Without limitation to the generality of the foregoing, a federally insured bank shall be deemed to be a "reputable escrow agent." The establishment of an L/C Proceeds Escrow shall not abrogate Seller's obligation to provide a substitute letter of credit under this Article 14 (Credit Assurance and Security). Company shall have the right to apply the L/C Proceeds as necessary to recover amounts Company is owed pursuant to this Agreement, the IRS Letter Agreement or the GHG Letter Agreement, including, without limitation, any damages due Company, any interconnection costs owed pursuant to Attachment G (Company-Owned Interconnection Facilities) and any amounts for which Company is entitled to indemnification under this Agreement. To that end, the documentation governing such escrow account shall be in form and content satisfactory to Company and shall give Company the sole authority to draw from the account.

Seller shall not be a party to such documentation and shall have no rights to the L/C Proceeds. Upon the issuance of a substitute letter of credit satisfying the requirements of this Article 14 (Credit Assurance and Security), Company shall instruct the Escrow Agent to remit to the bank that issued the letter of credit that was the source of the L/C Proceeds the remaining balance (if any) of the L/C Proceeds. If there is more than one escrow account with L/C Proceeds, Company may, in its sole discretion, draw on such accounts in any sequence Company may select. Any failure to draw upon the L/C Proceeds for any damages or other amounts due Company shall not prejudice Company's rights to recover such damages or amounts in any other manner. In all cases, the reasonable costs and expenses of establishing, renewing, substituting, canceling, increasing, reducing, or otherwise administering the Security Funds through the L/C Proceeds Escrow shall be borne by Seller.

14.10 Release of Security Funds. Promptly following the end of the Term, and the complete performance of all of Seller's obligations under this Agreement, including but not limited to the obligation to pay any and all amounts owed by Seller to Company under this Agreement, Company shall release the Security Funds to Seller.

ARTICLE 15
EVENTS OF DEFAULT

15.1 Events of Default by Seller. The occurrence of any of the following shall constitute an Event of Default by Seller:

- (a) if at any time during the Term, Seller delivers or attempts to deliver to the Point of Interconnection electric energy that was not (i) generated by the Facility, or (ii) stored from the Company System and discharged in accordance with this Agreement;
- (b) if at any time subsequent to the Commercial Operations Date, the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor is less than **84%** for each of thirty-six (36) consecutive monthly [PV System EAF or MPXEEAF] Assessment Periods as provided in Section 2.5(b) ([PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Termination Rights);
- (c) if at any time subsequent to the Commercial Operations Date, the [Measured Performance Ratio or Performance Index] for each of three consecutive Contract Years falls below the Tier 2 Bandwidth for such Contract Year as provided in Section 2.6(b) ([MPR or PI] Termination Rights);
- (d) [RESERVED]
- (e) if at any time subsequent to the Commercial Operations Date, the Seller fails to demonstrate satisfaction of the BESS Capacity Performance Metric prior to the expiration of the BESS Capacity Cure Period as provided in Section 2.8(b) (BESS Capacity Termination Rights);
- (f) if at any time subsequent to the Commercial Operations Date, the Seller fails to achieve a BESS Annual Equivalent Availability Factor of not less than **75%** for each of four (4) consecutive BESS Measurement Periods as provided in Section 2.9(b) (BESS Annual Equivalent Availability Factor Termination Rights);
- (g) if at any time subsequent to the Commercial Operations Date, the Seller fails to demonstrate satisfaction of the RTE Performance Metric prior to the expiration of

the RTE Cure Period as provided in Section 2.11(b) (RTE Termination Rights);

- (h) if at any time subsequent to the Commercial Operations Date, the Facility is unavailable to provide electric energy in response to Company Dispatch for a period of three hundred sixty-five (365) or more consecutive Days;
- (i) if at any time during the Term, Seller fails to satisfy the requirements of Article 14 (Credit Assurance and Security) of this Agreement;
- (j) if at any time subsequent to the Commercial Operations Date, the Seller fails to demonstrate satisfaction of the BESS EFOF Performance Metric at the expiration of the BESS EFOF Cure Period, as provided in Section 2.10(b) (BESS Annual Equivalent Forced Outage Factor Termination Rights);
- (k) if at any time during the Term, Seller fails to comply with the requirements of Section 19.1 (Sale of the Facility) and Attachment P (Sale of Facility by Seller); or
- (l) if at any time subsequent to the Commercial Operations Date, Seller fails to install, operate, maintain, or repair the Facility in accordance with Good Engineering and Operating Practices if such failure is not cured within thirty (30) Days after written notice of such failure from Company unless such failure cannot be cured within said thirty (30) Day period and Seller is making commercially reasonable efforts to cure such failure, in which case Seller shall have a cure period of three hundred sixty-five (365) Days after Company's written notice of such failure.

15.2 Events of Default by a Party. The occurrence of any of the following during the Term of the Agreement shall constitute an Event of Default by the Party responsible for the failure, action or breach in question:

- (a) The failure to make any payment required pursuant to this Agreement when due if such failure is not cured within ten (10) Business Days after written notice is received by the Party failing to make such payment;

- (b) Any representation or warranty made by such Party herein is false and misleading in any material respect when made;
- (c) Such Party becomes insolvent, or makes an assignment for the benefit of creditors (other than an assignment to a Facility Lender pursuant to the Financing Documents) or fails generally to pay its debts as they become due; or such Party shall have an order for relief in an involuntary case under the bankruptcy laws as now or hereafter constituted entered against it, or shall commence a voluntary case under the bankruptcy laws as now or hereafter constituted, or shall file any petition or answer seeking for itself any arrangement, composition, adjustment, liquidation, dissolution or similar relief to which it may be entitled under any present or future statute, law or regulation, or shall file any answer admitting the material allegations of any petition filed against it in such proceeding; or such Party seeks or consents to or acquiesces in the appointment of or taking possession by, any custodian, trustee, receiver or liquidator of it or of all or a substantial part of its properties or assets; or such Party takes action looking to its dissolution or liquidation; or within ninety (90) Days after commencement of any proceedings against such Party seeking any arrangement, composition, adjustment, liquidation, dissolution or similar relief under any present or future statute, law or regulation, such proceedings shall not have been dismissed; or within ninety (90) Days after the appointment of, or taking possession by, any custodian, trustee, receiver or liquidator of any or of all or a substantial part of the properties or assets of such Party, without the consent or acquiescence of such Party, any such appointment or possession shall not have been vacated or terminated;
- (d) Such Party engages in or is the subject of a transaction requiring the prior written consent of the other Party under Section 19.2 (Assignment by Seller) or Section 19.7 (Assignment By Company) (as applicable) without having obtained such consent;
- (e) Such Party fails to comply with either (i) a decision under Article 28 (Dispute Resolution), (ii) or an

Independent Evaluator's decision under Article 23 (Process for Addressing Certain Revisions), in either case within thirty (30) Days after such decision becomes binding on the Parties in accordance with Article 28 (Dispute Resolution) or within thirty (30) Days of the issuance of such decision under Article 23 (Process for Addressing Certain Revisions), as applicable, or, if such decision cannot be complied with within thirty (30) Days, such Party fails to have commenced commercially reasonable efforts designed to achieve compliance within such thirty (30) Days and diligently continue such commercially reasonable efforts until compliance is attained; or

- (f) A Party, by act or omission, materially breaches or defaults on any material covenant, condition or other provision of this Agreement, other than the provisions specified in Section 15.1 (Events of Default by Seller) and Section 15.2(a) through Section 15.2(e), if such breach or default is not cured within thirty (30) Days after written notice of such breach or default from the other Party; provided, however, that if it is objectively impossible to cure the breach or default in question within said thirty (30) Day period (i.e., if the breach or default in question is one that could not be cured within said thirty (30) Day period by an experienced independent power producer or electric utility, as applicable, willing and able to exert commercially reasonable efforts to achieve such cure within said thirty (30) Day period), then, for so long as the Non-performing Party is making the same effort to cure such breach or default as would be expected of an experienced independent power producer or electric utility, as applicable, willing and able to exert commercially reasonable efforts to achieve such cure, the Non-performing Party shall have a cure period equal to the shorter of (i) the duration of the period within which a cure could reasonably be expected to be achieved by an experienced independent power producer or electric utility, as applicable, willing and able to exert commercially reasonable efforts to achieve such cure or (ii) a period of three hundred sixty five (365) Days beginning on the date of written notice of such breach or default; provided, further, that if the material breach in question involves Seller's failure to meet the technical and

operational requirements set forth in Attachment B (Facility Owned by Seller), the provisions of Section 1(j) (Demonstration of Facility) of Attachment B (Facility Owned by Seller) for consultant's study and Seller implementation of such study's recommendation shall apply in lieu of the extended cure period provided under the preceding proviso.

15.3 Cure/Grace Periods. Before becoming an Event of Default, the occurrences set forth in Section 15.1 (Events of Default by Seller) and Section 15.2 (Events of Default by a Party) are subject to the following cure/grace periods:

- (a) If the occurrence is not the result of Force Majeure, the Non-performing Party shall be entitled to a cure period to the limited extent expressly set forth in the applicable provision of Section 15.1 (Events of Default by Seller) or Section 15.2 (Events of Default by a Party); or
- (b) If the occurrence is the result of Force Majeure, and if and so long as the conditions set forth in Section 21.4 (Satisfaction of Certain Conditions) are satisfied, the Non-performing Party shall be entitled to a grace period as provided in Section 21.6 (Termination for Force Majeure), which shall apply in lieu of any cure periods provided in Section 15.1 (Events of Default by Seller) and Section 15.2 (Events of Default by a Party).

15.4 Rights of the Non-defaulting Party; Forward Contract. If an Event of Default shall have occurred and be continuing, the Party who is not the Defaulting Party ("Non-defaulting Party") shall have the right (i) to terminate this Agreement by sending written notice to the Defaulting Party as provided in this Section 15.4 (Rights of the Non-defaulting Party; Forward Contract); (ii) to withhold any payments due to the Defaulting Party under this Agreement; (iii) suspend performance; and (iv) exercise any other right or remedy available at law or in equity to the extent permitted under this Agreement. A notice terminating this Agreement pursuant to this Section 15.4 (Rights of the Non-defaulting Party; Forward Contract) shall designate the Day such termination is to be effective which Day shall be no later than thirty (30) Days after such notice is deemed to be received by the Defaulting Party and not earlier than

the first to occur of the Day such notice is deemed to be received by the Defaulting Party or the Day following the expiration of any period afforded the Defaulting Party under Section 15.1 (Events of Default by Seller) and Section 15.2 (Events of Default by a Party) to cure the default in question. If the Agreement is terminated by Company because of one or more of the Events of Default by Seller, Company shall have the right, in addition to the rights set forth above in this Section 15.4 (Rights of the Non-defaulting Party; Forward Contract), to collect Termination Damages, in accordance with Article 16 (Damages in the Event of Termination by Company). Without limitation to the generality of the foregoing provisions of this Section 15.4 (Rights of the Non-Defaulting Party; Forward Contract), the Parties agree that, under 11 U.S.C. § 362(b)(6), this Agreement is a "forward contract" and the Company is a "forward contract merchant" such that upon the occurrence of an Event of Default by Seller under Section 15.1 (Events of Default by Seller) or Section 15.2 (Events of Default by a Party), this Agreement may be terminated by Company as provided in this Agreement notwithstanding any bankruptcy petition affecting Seller.

15.5 Force Majeure. To the extent a Non-performing Party is entitled to defer certain liabilities pursuant to Article 21 (Force Majeure) of the Agreement, the permitted period of deferral shall be governed by Section 21.6 (Termination for Force Majeure) in lieu of this Article 15 (Events of Default).

15.6 Guaranteed Project Milestones Including Guaranteed Commercial Operations Date. Notwithstanding any other provision of this Article 15 (Events of Default) to the contrary, any failure of Seller to achieve any of the Guaranteed Project Milestones by the applicable Guaranteed Project Milestone Date, including Commercial Operations by the Guaranteed Commercial Operations Date, shall be governed by Article 13 (Guaranteed Project Milestones Including Commercial Operations) in lieu of this Article 15 (Events of Default).

15.7 Equitable Remedies. Seller acknowledges that Company is a public utility and is relying upon Seller's performance of its obligations under this Agreement, and that Company and/or its customers may suffer irreparable injury as a result of the failure of Seller to perform any of such

obligations, whether or not such failure constitutes an Event of Default or otherwise gives rise to one or more of the remedies set forth in Section 15.4 (Rights of the Non-defaulting Party; Forward Contract). Accordingly, the remedies set forth in Section 15.4 (Rights of the Non-defaulting Party; Forward Contract) shall not limit or otherwise affect Company's right to seek specific performance injunctions or other available equitable remedies for Seller's failure to perform any of its obligations under this Agreement, irrespective of whether such failure constitutes an Event of Default.

ARTICLE 16
DAMAGES IN THE EVENT OF TERMINATION BY COMPANY

- 16.1 Termination Due to Failure to Meet a Guaranteed Project Milestone Date. If the Agreement is terminated by Company pursuant to Section 13.4 (Damages and Termination), Company shall be entitled to Termination Damages calculated by multiplying the Contract Capacity by \$50/kW.
- 16.2 Termination Due to an Event of Default. If the Agreement is terminated by Company in accordance with this Agreement due to an Event of Default where Seller is the Defaulting Party, Company shall be entitled to Termination Damages calculated by multiplying the Contract Capacity by \$75/kW.
- 16.3 Liquidated Damages Appropriate. Each Party agrees and acknowledges that (i) the damages that Company would incur due to early termination of the Agreement pursuant to either Section 13.4 (Damages and Termination) or Section 15.4 (Rights of the Non-defaulting Party; Forward Contract) would be difficult or impossible to calculate with certainty, (ii) the Termination Damages are an appropriate approximation of such damages, and (iii) payment of Termination Damages does not relieve Seller of liability for costs and balances incurred prior to the effective date of such termination. The Termination Damages are the sole and exclusive remedy for Company's losses arising out of the termination of this Agreement pursuant Section 16.1 (Termination Due to Failure to Meet a Guaranteed Project Milestone Date) or Section 16.2 (Termination Due to an Event of Default). The Termination Damages are not intended to limit Company's rights or remedies, or Seller's liabilities or duties, with respect to losses arising independent of the termination of this Agreement under such sections, including, without limitation, Company's right to recover under Section 17.1 (Indemnification of Company).
- 16.4 Consequential Damages. Neither Party shall be liable for damages incurred by the other Party for any loss of profit or revenues, loss of product, loss of use of products or services or associated equipment, interruption of business, cost of capital, downtime costs, increased operating costs, or for any special, consequential, incidental, indirect or punitive damages; provided, however, that nothing in this Section 16.4 (Consequential Damages) shall limit any of (i) the indemnification obligations of either Party under

Article 17 (Indemnification) of this Agreement, (ii) the liability of either Party for liquidated damages as set forth in this Agreement, (iii) the liability of either Party for direct damages for breach of this Agreement as and to the extent such damages have not been liquidated as set forth in this Agreement or (iv) the liability of either Party for gross negligence or intentional misconduct.

ARTICLE 17
INDEMNIFICATION

17.1 Indemnification of Company.

- (a) Indemnification Against Third Party Claims. Seller shall indemnify, defend, and hold harmless Company, its successors, permitted assigns, affiliates, controlling persons, directors, officers, employees, agents, contractors, subcontractors and the employees of any of them (collectively referred to as an "Indemnified Company Party"), from and against any Losses suffered, incurred or sustained by any Indemnified Company Party due to any Claim (whether or not well founded, meritorious or unmeritorious) by a third party not controlled by, or under common ownership and/or control with, Company relating to (i) Seller's development, permitting, construction, ownership, operation and/or maintenance of the Facility, any Pre-CSAT Partial Installation, any Post-CSAT Partial Installation and the Company-Owned Interconnection Facilities, including, without limitation, closure of such permitting for the Facility, any Pre-CSAT Partial Installation, any Post-CSAT Partial Installation and the Company-Owned Interconnection Facilities prior to or after the Transfer Date (but excluding, (A) if Seller constructs the Company-Owned Interconnection Facilities, the ownership, operation and/or maintenance of the Company-Owned Interconnection Facilities following the Transfer Date, provided, however, that such exclusion shall not apply to matters discovered after the Transfer Date attributable to acts or omissions of Seller before the Transfer Date, or (B) if Company constructs any portion of the Company-Owned Interconnection Facilities, the construction, ownership, operation and/or maintenance of such portion(s) of the Company-Owned Interconnection Facilities); or (ii) any actual or alleged personal injury or death or damage to property, in any way arising out of, incident to, or resulting directly or indirectly from the acts or omissions of any Indemnified Seller Party, except as and to the extent that such Loss is attributable to the negligence or willful misconduct of an Indemnified Company Party.

- (b) Compliance with Laws. Any Losses incurred by an Indemnified Seller Party for noncompliance by Seller or an Indemnified Seller Party with applicable Laws shall not be reimbursed by Company but shall be the sole responsibility of Seller. Seller shall indemnify, defend and hold harmless each Indemnified Company Party from and against any and all Losses in any way arising out of, incident to, or resulting directly or indirectly from the failure of Seller to comply with any Laws.
- (c) Notice. If Seller shall obtain knowledge of any Claim subject to Section 17.1(a) (Indemnification Against Third Party Claims), Section 17.1(b) (Compliance with Laws) or otherwise under this Agreement, Seller shall give prompt notice thereof to Company, and if Company shall obtain any such knowledge, Company shall give prompt notice thereof to Seller.
- (d) Indemnification Procedures.
- (1) In case any Claim subject to Section 17.1(a) (Indemnification Against Third Party Claims) or Section 17.1(b) (Compliance with Laws) or otherwise under this Agreement, shall be brought against an Indemnified Company Party, Company shall notify Seller of the commencement thereof and, provided that Seller has acknowledged in writing to Company its obligation to an Indemnified Company Party under this Section 17.1 (Indemnification of Company), Seller shall be entitled, at its own expense, acting through counsel acceptable to Company, to participate in and, to the extent that Seller desires, to assume and control the defense thereof; provided, however, that Seller shall not compromise or settle a Claim against an Indemnified Company Party without the prior written consent of Company which consent shall not be unreasonably withheld or delayed.
- (2) Seller shall not be entitled to assume and control the defense of any such Claim subject to Section 17.1(a) (Indemnification Against Third Party Claims), Section 17.1(b) (Compliance with Laws) or otherwise under this Agreement, if and to the extent that, in the sole opinion of Company, such Claim involves the potential imposition of criminal

liability on an Indemnified Company Party or a conflict of interest between an Indemnified Company Party and Seller, in which case Company shall be entitled, at its own expense, acting through counsel acceptable to Seller to participate in any Claim, the defense of which has been assumed by Seller. Company shall supply, or shall cause an Indemnified Company Party to supply, Seller with such information and documents requested by Seller as are necessary or advisable for Seller to possess in connection with its participation in any Claim to the extent permitted by this Section 17.1(d)(2). Company shall not enter, and shall restrict any Indemnified Company Party from entering, into any settlement or other compromise with respect to any Claim without the prior written consent of Seller, which consent shall not be unreasonably withheld or delayed.

(3) Upon payment of any Losses by Seller, pursuant to this Section 17.1 (Indemnification of Company) or other similar indemnity provisions contained herein, to or on behalf of Company, Seller, without any further action, shall be subrogated to any and all claims that an Indemnified Company Party may have relating thereto.

(4) Company shall fully cooperate and cause all Company Indemnified Parties to fully cooperate, in the defense of or response to, any Claim subject to Section 17.1 (Indemnification of Company).

17.2 Indemnification of Seller.

(a) Indemnification Against Third Party Claims. Company shall indemnify, defend, and hold harmless Seller, its successors, permitted assigns, affiliates, controlling persons, directors, officers, employees, agents, contractors, subcontractors and the employees of any of them (collectively referred to as an "Indemnified Seller Party"), from and against any Losses suffered, incurred or sustained by any Indemnified Seller Party due to any Claim (whether or not well founded, meritorious or unmeritorious) by a third party not controlled by or under common ownership and/or control with Seller relating to (i) (A) if Seller constructs the Company-Owned Interconnection Facilities, the ownership, operation and/or

maintenance of the Company-Owned Interconnection Facilities following the Transfer Date, excluding, however, matters discovered after the Transfer Date attributable to acts or omissions of Seller before the Transfer Date, or (B) if Company constructs any portion of the Company-Owned Interconnection Facilities, the construction, ownership, operation and/or maintenance of such portion(s) of the Company-Owned Interconnection Facilities and (ii) any actual or alleged personal injury or death or damage to property, in any way arising out of, incident to, or resulting directly or indirectly from the acts or omissions of any Indemnified Company Party, except to the extent that any such Loss is attributable to the negligence or willful misconduct of an Indemnified Seller Party.

- (b) Compliance with Laws. Any Losses incurred by an Indemnified Company Party for noncompliance by Company or an Indemnified Company Party with applicable Laws shall not be reimbursed by Seller but shall be the sole responsibility of Company. Company shall indemnify, defend and hold harmless each Indemnified Seller Party from and against any and all Losses in any way arising out of, incident to, or resulting directly or indirectly from the failure of Company to comply with any Laws.
- (c) Notice. If Company shall obtain knowledge of any Claim subject to Section 17.2(a) (Indemnification Against Third Party Claims), Section 17.2(b) (Compliance with Laws) or otherwise under this Agreement, Company shall give prompt notice thereof to Seller, and if Seller shall obtain any such knowledge, Seller shall give prompt notice thereof to Company.
- (d) Indemnification Procedures.
 - (1) In case any Claim subject to Section 17.2(a) (Indemnification Against Third Party Claims), Section 17.2(b) (Compliance with Laws), or otherwise under this Agreement, shall be brought against an Indemnified Seller Party, Seller shall notify Company of the commencement thereof and, provided that Company has acknowledged in writing to Seller its obligation to an Indemnified Seller Party under this Section 17.2 (Indemnification of Seller), Company shall be entitled, at its own expense, acting through counsel acceptable to Seller, to participate in and, to the extent that Company desires, to assume and control the defense thereof; provided,

however, that Company shall not compromise or settle a Claim against an Indemnified Seller Party without the prior written consent of Seller which consent shall not be unreasonably withheld or delayed.

- (2) Company shall not be entitled to assume and control the defense of any such Claim subject to Section 17.2(a) (Indemnification Against Third Party Claims), Section 17.2(b) (Compliance with Laws), or otherwise under this Agreement, if and to the extent that, in the opinion of Seller, such Claim involves the potential imposition of criminal liability on an Indemnified Seller Party or a conflict of interest between an Indemnified Seller Party and Company, in which case Seller shall be entitled, at its own expense, acting through counsel acceptable to Company, to participate in any Claim the defense of which has been assumed by Company. Seller shall supply, or shall cause an Indemnified Seller Party to supply, Company with such information and documents requested by Company as are necessary or advisable for Company to possess in connection with its participation in any Claim, to the extent permitted by this Section 17.2(d)(2). Seller shall not enter, and shall restrict any Indemnified Seller Party from entering, into any settlement or other compromise with respect to any Claim without the prior written consent of Company, which consent shall not be unreasonably withheld or delayed.
- (3) Upon payment of any Losses by Company pursuant to this Section 17.2 (Indemnification of Seller) or other similar indemnity provisions contained herein to or on behalf of Seller, Company, without any further action, shall be subrogated to any and all claims that an Indemnified Seller Party may have relating thereto.
- (4) Seller shall fully cooperate and cause all Seller Indemnified Parties to fully cooperate, in the defense of, or response to, any Claim subject to Section 17.2 (Indemnification of Seller).

ARTICLE 18
INSURANCE

- 18.1 Required Coverage. Seller, and anyone acting under its direction or control or on its behalf, shall, at its own expense, acquire and maintain, or cause to be maintained in full effect, commencing with the start of construction of the Facility, as applicable, and continuing throughout the Term, as applicable, the minimum insurance coverage set forth in Attachment R (Required Insurance), or such higher amounts as the Seller and/or the Facility Lender reasonably determines to be necessary during construction and operation of the Facility. The insurance coverage required hereunder shall provide that it is primary with respect to Seller and Company. Seller's indemnity and other obligations shall not be limited by the foregoing insurance requirements.
- 18.2 Waiver of Subrogation. Seller, and anyone acting under its direction or control or on its behalf, shall cause its insurers to waive all rights of subrogation which Seller or its insurers may have against Company, Company's agents, or Company's employees.
- 18.3 Additional Insureds. The insurance policies specified in Section 2 (General Liability Insurance), Section 3 (Automobile Liability Insurance) and Section 9 (Pollution Liability Insurance) of Attachment R (Required Insurance) shall name Company as an additional insured, as its interests may appear, with respect to any and all third party bodily injury and/or property damage claims, including completed operations, arising from Seller's performance of this Agreement, and Seller shall submit to Company a copy of such additional insured endorsement with evidence of insurance as required herein. Seller shall promptly, and in no event later than five (5) Days after such cancellation, modification or non-renewal, provide written notice to Company should any of the insurance policies required under this Agreement be cancelled, materially modified, or not renewed upon expiration. Company acknowledges that the Facility Lender shall be entitled to receive and distribute any and all loss proceeds as stipulated by any Financing Documents related to any policy described in this Article 18 (Insurance) and Attachment R (Required Insurance).

- 18.4 Evidence of Policies Provided to Company. Evidence of insurance for the coverage specified in this Article 18 (Insurance), including, without limitation, additional insured endorsements required pursuant to Section 18.3 (Additional Insured), shall be provided to Company within thirty (30) Days after the Effective Date or prior to the start of construction, whichever shall first occur. Within 30 Days of any change of any policy and upon renewal of any policy, Seller shall provide certificates of insurance to Company. During the Term, Seller, upon Company's reasonable request, shall make available to Company for its inspection at Seller's designated location, certified copies of the insurance policies described in this Article 18 (Insurance) and Attachment R (Required Insurance). Receipt of any evidence of insurance showing less coverage than requested is not a waiver of Seller's obligations to fulfill the requirements.
- 18.5 Deductibles. Company acknowledges that any policy required herein may contain reasonable deductibles or self-insured retentions, the amounts of which will be reviewed for acceptance by Company. Acceptance will not be unreasonably withheld. Any deductible shall be the responsibility of Seller.
- 18.6 Application of Proceeds from All Risk Property/Comprehensive Mechanical and Electrical Breakdown Insurance. Seller shall use commercially reasonable efforts to obtain provisions in the Financing Documents, on reasonable terms, providing for the insurance proceeds from All Risk Property/Comprehensive Mechanical and Electrical Breakdown Insurance to be applied to repair of the Facility.
- 18.7 Annual Review by Company. The coverage limits shall be reviewed annually by Company and if, in Company's discretion, Company determines that the coverage limits should be increased, Company shall so notify Seller. The amount of any increase of the coverage limits, when considered as a percentage of the then existing coverage limits, shall not exceed the cumulative amount of increase in the Consumer Price Index occurring after the coverage limits herein were last set. Seller shall, within thirty (30) Days of notice from Company, increase the coverage as directed in such notice and the costs of such increased coverage limits shall be borne by Seller.

18.8 No Representation of Coverage Adequacy. By requiring insurance herein, Company does not represent that coverage and limits will necessarily be adequate to protect Seller, and such coverage and limits shall not be deemed as a limitation on Seller's liability under the indemnities granted to Company in this Agreement.

18.9 Subcontractors. Seller shall ensure that (a) its EPC Contractor is separately covered by liability insurance policies equivalent in type and monetary limits as those required of Seller, as specified in Attachment R (Required Insurance) excluding, however, the Failure to Supply endorsement required under Section 2(a)(viii) of Attachment R (Required Insurance); and (b) its EPC Contractor has required each of its subcontractors performing tasks directly related to the engineering, procurement, construction, energizing, pre-Commercial Operations testing and/or commissioning of the Facility are covered by insurance policies in type and in monetary amounts appropriate for the type of work such subcontractor is performing, including commercial general liability insurance that shall not be less than the greater of \$500,000 or the value of work to be performed by such subcontractor. All such insurance shall be provided at the sole cost of Seller or EPC Contractor or its aforementioned subcontractors.

18.10 General Insurance Requirements.

- (a) Each policy and certificate of insurance shall specifically provide the following: "This policy shall be considered to be primary liability insurance, which shall apply to any loss or claim before any contribution by any insurance that Company, its employees and/or agents may have in force."
- (b) Each policy is to be written by an insurer with a rating by A.M. Best Company, Inc. of "A-VII" or better.
- (c) If any policy required herein is written on a claims-made basis, the Seller warrants that any retroactive date applicable to coverage under the policy precedes the Execution Date; and that continuous coverage will be maintained, or an extended discovery period will be exercised for a

period of three (3) years beginning from the end of the Term.

- (d) If the limits of available liability coverage required herein become substantially reduced as a result of claim payments, Seller shall promptly, and in no event later than thirty (30) Days after such substantial reduction, at its own expense, purchase additional liability insurance (if such coverage is available at commercially reasonable rates) to increase the amount of available coverage to the limits of liability coverage required herein.

ARTICLE 19
TRANSFERS, ASSIGNMENTS, AND FACILITY DEBT

- 19.1 Sale of the Facility. Seller shall comply with the requirements of Attachment P (Sale of Facility by Seller) before Seller's right, title or interest in the Facility, in whole or in part, including a Change in Control, may be disposed of (other than the disposition of equipment in the ordinary course of operating and maintaining the Facility). Any attempt by Seller to make any such disposition or Change in Control without fulfilling the requirements of Attachment P (Sale of Facility by Seller) shall be deemed null and void and shall constitute an Event of Default pursuant to Article 15 (Events of Default).
- 19.2 Assignment by Seller. This Agreement may not be assigned by Seller without the prior written consent of Company (such consent not to be unreasonably withheld, conditioned or delayed), provided that Seller shall have the right, without the consent of Company, to assign its interest in this Agreement (i) to a wholly-owned subsidiary or to an affiliated company under common control with the Parent Entity, provided that such assignment does not impair the ability of Seller to perform its obligations under this Agreement; and (ii) as collateral security for purposes of arranging or rearranging debt and/or equity financing for the Facility, or for sale-leaseback financing, to assign all or any part of its rights or benefits, but not its obligations, to any lender providing debt financing for the Facility. Seller shall promptly provide written notice to Company of any assignment of all or part of this Agreement and Seller shall provide to Company information about the assignee and the assignee's operational experience reasonably requested by Company. Company shall not be required to incur any duty or obligation as a result of, or in connection with, such assignment made without its consent beyond those duties and obligations set forth in this Agreement, unless otherwise agreed to by Company in writing.
- 19.3 Company's Acknowledgment. In connection with any assignment relating to the Facility Debt pursuant to Section 19.2 (Assignment by Seller), Company shall, if requested by Seller and if its costs (including reasonable attorneys' fees of outside counsel) in responding to such request are paid by Seller: (i) execute and/or provide such

Hawai'i-law governed documents as may be reasonably requested by the Facility Lender and reasonably acceptable to Company, including, (aa) to acknowledge (1) such assignment and/or pledge/mortgage, (2) the right of the Facility Lender to receive copies of notices of Events of Default where the Seller is the Defaulting Party and (3) the Facility Lender's reasonable opportunity to cure such Events of Default and to exercise remedies to assume Seller's obligations under this Agreement, and (bb) estoppel certificates as to Seller's and Company's compliance with the terms and conditions of this Agreement; and (ii) provide a legal opinion as to the due authorization of such Company acknowledgment and estoppels.

19.4 Financing Document Requirements. Seller shall include in the terms of the Financing Documents provisions for Company's benefit that provide that as a condition to the Facility Lender, or any purchaser, successor, assignee and/or designee of the Facility Lender, succeeding to ownership or possession of the Facility as a result of the exercise of remedies under the Financing Documents, and thereafter operating the Facility to generate electric energy ("Subsequent Owner"), such Subsequent Owner shall, prior to operating the Facility for such purpose, have provided evidence reasonably acceptable to Company that such Subsequent Owner has (a) the qualifications, or has contracted with an entity having the qualifications, to operate the Facility in a manner consistent with the terms and conditions of this Agreement; and (b) assumed all of Seller's rights and obligations under this Agreement.

19.5 [RESERVED]

19.6 Reimbursement of Company Costs. Seller shall reimburse Company for costs and expenses incurred by Company (including reasonable attorneys' fees of outside counsel) in responding to Facility Lender's requests or as a result of any event of default by Seller under the Financing Documents, including but not limited to any assumption of Seller's obligations under Section 19.4 (Financing Document Requirements).

19.7 Assignment By Company. This Agreement shall not be assigned by Company without the prior written consent of Seller (which consent shall not be unreasonably withheld, conditioned or delayed); provided, however, that Company

shall have the right, without the consent of Seller, to assign its interest in this Agreement to any affiliated company owned in whole or in part by Hawaiian Electric Industries, Inc. ("HEI") so long as such assignee (a) shall have assumed all obligations of Company under this Agreement; and (b) is a utility regulated by the PUC.

- 19.8 Consequences for Failure to Comply. Any attempt to make any pledge, mortgage, grant of a security interest or collateral assignment for which consent is required under Section 19.2 (Assignment by Seller) or Section 19.7 (Assignment By Company) (as applicable), without fulfilling the requirements of this Article 19 (Transfers, Assignments, and Facility Debt) shall be null and void and shall constitute an Event of Default pursuant to Article 15 (Events of Default).

ARTICLE 20
SALE OF ENERGY TO THIRD PARTIES

Seller shall not sell energy from the Facility to any Third Party.

ARTICLE 21
FORCE MAJEURE

21.1 Definition of Force Majeure. The term "Force Majeure", as used in this Agreement, means any occurrence that:

- (a) In whole or in part delays or prevents a Party's performance under this Agreement;
- (b) Is not the direct or indirect result of the fault or negligence of that Party;
- (c) Is not within the control of that Party notwithstanding such Party having taken all reasonable precautions and measures in order to prevent or avoid such event; and
- (d) The Party has been unable to overcome by the exercise of due diligence.

21.2 Events That Could Qualify as Force Majeure. Subject to the foregoing, events that could qualify as Force Majeure include, but are not limited to, the following:

- (a) acts of God, flooding, lightning, landslide, earthquake, fire, drought, explosion, epidemic, quarantine, storm, hurricane, tornado, volcano, other natural disaster or unusual or extreme adverse weather-related events;
- (b) war (declared or undeclared), riot or similar civil disturbance, acts of the public enemy (including acts of terrorism), sabotage, blockade, insurrection, revolution, expropriation or confiscation; or
- (c) except as set forth in Section 21.3(j), strikes, work stoppage or other labor disputes (in which case the affected Party shall have no obligation to settle the strike or labor dispute on terms it deems unreasonable).

21.3 Exclusions From Force Majeure. Force Majeure does not include:

- (a) any acts or omissions of any Third Party, including, without limitation, any vendor, materialman, customer, or supplier of Seller, unless such acts or omissions are themselves excused by reason of Force Majeure;

- (b) any full or partial reduction in the electric output of Facility that is caused by or arises from (i) a mechanical or equipment breakdown or (ii) other mishap or events or conditions attributable to normal wear and tear or defects, unless such mishap is caused by Force Majeure;
- (c) changes in market conditions that affect the cost of Seller's supplies, or that affect demand or price for any of Seller's products, or that otherwise render this Agreement uneconomic or unprofitable for Seller;
- (d) Seller's inability to obtain Governmental Approvals or Land Rights for the construction, ownership, operation and maintenance of the Facility and the Company-Owned Interconnection Facilities, or Seller's loss of any such Governmental Approvals or Land Rights once obtained, except, in the case of Seller's inability to obtain Governmental Approvals, such inability is attributable solely to the Governmental Authority responsible for issuing such approval where Seller has provided satisfactory evidence that: (i) all commercially reasonable measures have been taken by Seller to timely apply for such Governmental Approval and to timely respond to questions, revisions and clarifications required by such Governmental Authority in connection with such Governmental Approval; and (ii) all required information, requirements and conditions necessary to issue such Governmental Approval have been met;
- (e) the lack of wind, sun or any other resource of an inherently intermittent nature;
- (f) Seller's inability to obtain sufficient fuel, power or materials to operate its Facility, except if Seller's inability to obtain sufficient fuel, power or materials is caused solely by an event of Force Majeure;
- (g) Seller's failure to obtain additional funds, including funds authorized by a state or the federal government or agencies thereof, to supplement the payments made by Company pursuant to this Agreement;
- (h) a forced outage except where such forced outage is caused by an event of Force Majeure;

- (i) litigation or administrative or judicial action pertaining to the Agreement, the Site, the Facility, the Land Rights, the acquisition, maintenance or renewal of financing or any Governmental Approvals, or the design, construction, ownership, operation or maintenance of the Facility, the Company-Owned Interconnection Facilities or the Company System;
- (j) a strike, work stoppage or labor dispute limited only to any one or more of the Indemnified Seller Parties or any other third party employed by Seller to work on the Project; or
- (k) any full or partial reduction in the availability of the Facility to produce and deliver to the Point of Interconnection electric energy in response to Company Dispatch, which is caused by any Third Party including, without limitation, any vendor or supplier of Seller or Company, except to the extent due to Force Majeure.

21.4 Satisfaction of Certain Conditions. Section 21.5 (Guaranteed Project Milestones Including Commercial Operations), Section 21.6 (Termination for Force Majeure) and Section 21.7 (Effect of Force Majeure) defer or limit certain liabilities of a Party for delay and/or failure in performance to the extent such delay or failure is the result of conditions or events of Force Majeure; provided, however, that a Non-performing Party is only entitled to such limitations or deferrals of liabilities as and to the extent the following conditions are satisfied:

- (a) the Non-performing Party gives the other Party, within five (5) Days after the Non-performing Party becomes aware or should have become aware of the Force Majeure condition or event, but in any event no later than thirty (30) Days after the Force Majeure condition or event begins, written notice (the "Force Majeure Notice") stating that the Non-performing Party considers such condition or event to constitute Force Majeure and describing the particulars of such Force Majeure condition or event, including the date the Force Majeure commenced;
- (b) the Non-performing Party gives the other Party, within fourteen (14) Days after the Force Majeure Notice was or should have been provided, a written explanation of the Force Majeure condition or event and its effect on the

Non-performing Party's performance, which explanation shall include evidence reasonably sufficient to establish that the occurrence constitutes Force Majeure;

- (c) the suspension of performance is of no greater scope and of no longer duration than is required by the condition or event of Force Majeure;
- (d) the Non-performing Party exercises commercially reasonable efforts to remedy its inability to perform and provides written weekly progress reports to the other Party describing actions taken to end the Force Majeure; and
- (e) when the condition or event of Force Majeure ends and the Non-performing Party is able to resume performance of its obligations under this Agreement, that Party shall give the other Party written notice to that effect.

21.5 Guaranteed Project Milestones Including Commercial Operations. The Parties shall have the rights and obligations set forth in Article 13 (Guaranteed Project Milestones Including Commercial Operations) in the event a condition or event of Force Majeure affects the achievement of a Guaranteed Project Milestone Date, including the Guaranteed Commercial Operations Date.

21.6 Termination for Force Majeure. If Force Majeure delays or prevents a Party's performance for more than three hundred sixty-five (365) Days from the occurrence or inception of the Force Majeure, as stated in the Force Majeure Notice, and such delay or failure of performance would have otherwise constituted an Event of Default under Article 15 (Events of Default), the other Party shall have the right to terminate this Agreement by written notice. Such notice shall designate the date such termination is to be effective, which date shall be no later than thirty (30) Days after such notice is deemed to be received by the Party whose performance has been delayed or prevented. In the event of termination pursuant to this Section 21.6 (Termination for Force Majeure), neither Party shall be liable for any damages nor have any obligations to the other, except as provided in Section 29.25 (Survival of Obligations) other than as provided in Section 29.25(b).

21.7 Effect of Force Majeure. Other than as provided in Section 21.5 (Guaranteed Project Milestones Including Commercial

Operations) and Section 21.6 (Termination for Force Majeure), neither Party shall be responsible or liable for any delays or failures in its performance under this Agreement as and to the extent (i) such delays or failures are substantially caused by conditions or events of Force Majeure, and (ii) the conditions of Section 21.4 (Satisfaction of Certain Conditions) are satisfied.

21.8 No Relief of Other Obligations. Except as otherwise expressly provided for in this Agreement, the existence of a condition or event of Force Majeure shall not relieve the Parties of their obligations under this Agreement (including, but not limited to, payment obligations) to the extent that performance of such obligations is not precluded by the condition or event of Force Majeure.

21.9 No Extension of the Term. In no event will any delay or failure of performance caused by any conditions or events of Force Majeure extend this Agreement beyond its stated Term.

ARTICLE 22
WARRANTIES AND REPRESENTATIONS

22.1 By the Parties. Both Company and Seller represent, warrant, and covenant, as of the Execution Date and for the extent of the Term, respectively, that:

- (a) Each respective Party has all necessary right, power and authority to execute, deliver and perform this Agreement.
- (b) The execution, delivery and performance of this Agreement by each respective Party will not result in a violation of any Laws, or conflict with, or result in a breach of, or cause a default under, any agreement or instrument to which such Party is also a party or by which it is bound. No consent of any person or entity not a Party to this Agreement, including any Governmental Authority (other than agencies whose approval is necessary for the development, construction, operation and maintenance of the Facility and the Company-Owned Interconnection Facilities or the PUC), is required for such execution, delivery and performance by either Party.

22.2 By Seller. Seller represents, warrants, and covenants that:

- (a) As of the Execution Date and for the extent of the Term, it is an entity in good standing with the Hawai'i Department of Commerce and Consumer Affairs and shall provide Company with a certified copy of a certificate of good standing by the Execution Date.
- (b) As of the Execution Date, Seller is a subsidiary of the Parent Entity, a company with extensive experience developing, constructing, owning and operating utility-scale renewable energy generation facilities.
- (c) Seller has obtained or will obtain Land Rights within the time periods set forth in Section 11.2 (Land Rights for Facility) and Section 11.3 (Company-Owned Interconnection Facilities).
- (d) At the time legally required, Seller shall have obtained (i) all Governmental Approvals for the construction, ownership, operation and maintenance of

the Company-Owned Interconnection Facilities and
(ii) all Governmental Approvals necessary for the
construction, ownership, operation and maintenance of
the Facility.

- (e) As of each Pre-CSAT Partial In-Service Date, Post-CSAT Partial In-Service Date and as of the Commercial Operations Date, the Pre-CSAT Partial Installation, the Post-CSAT Partial Installation and the Facility, as applicable, will be a qualified renewable resource under RPS in effect as of the Effective Date.
- (f) Prior to the commencement of, and at all times during the performance of any construction work on the Facility or Company-Owned Interconnection Facilities until Commercial Operations is achieved, all contractors, at any tier, including, but not limited to, the EPC Contractor and any subcontractors performing such construction work, shall enter into and be subject to a project labor agreement with the Covered Entities.

ARTICLE 23
PROCESS FOR ADDRESSING CERTAIN REVISIONS

23.1 Revisions to Technical and Operational Requirements and Resilience Requirements.

(a) Revisions to Technical and Operational Requirements.

The Parties acknowledge that, during the Term, certain Technical and Operational Requirements and Telemetry and Control interfaces may be revised or added to facilitate necessary improvements in integrating intermittent variable energy resources and/or energy storage resources into the Company System and operations. Such revisions or additions may be attributable to, without limitation, the following: changes in penetration levels of intermittent renewable resources on the Company System, changes in the Company System, changes in communications and control platforms, changes in system protection requirements, changes to the state of commercially available technology, changes to Company-owned generation resources, changes in customer electrical usage (such as changes in average hourly load profiles), and changes in Laws (e.g., new environmental constraints, which may limit Company's ability to start/stop its generators in response to integration of intermittent generation, or constraints impacting the power quality standards for the Company System, such as constraints imposed by HERA or by the PUC under the HERA Law). Changes in Facility characteristics achieved through control system configuration, settings, or other tunable parameters shall not be considered a revision to technical and operational requirements. These types of changes should be implemented by the Seller in response to Company request unless it can be shown that the changes negatively impact the Seller's ability to meet its obligations under this Agreement.

(b) Revisions to Resilience Requirements. The Parties acknowledge that, during the Term, certain Resilience Requirements may be revised or added to facilitate necessary improvements to improve the resilience of the Company System with respect to withstanding environmental risks, such as hurricanes, wildfires, earthquakes, and/or flooding.

23.2 Company Request.

- (a) Technical and Operational Requirements Information Request. If Company concludes that a Technical and Operational Requirements Revision is necessary or important for the operation of the Company System and is capable of being complied with by Seller, Company shall have the right to issue to Seller a Technical and Operational Requirements Information Request with respect to such Technical and Operational Requirements Revision. Seller shall, within a reasonable period of time following Seller's receipt of such Technical and Operational Requirements Information Request, but in no event more than ninety (90) Days after Seller's receipt of such Request (or such other period of time as Company and Seller may agree in writing), submit to Company a Technical and Operational Requirements Proposal responsive to the Technical and Operational Requirements Revision proposed in such Technical and Operational Requirements Information Request.
- (b) RPS Information Request. If, as a result of any RPS Amendment, the electric energy delivered from the Facility should no longer qualify as "renewable electrical energy," Company shall have the right to issue to Seller a RPS Information Request. Seller shall, within a reasonable period of time following Company's Request, but in no event more than ninety (90) Days after Seller's receipt of such Request (or such other period of time as Company and Seller may agree in writing), submit to Company an RPS Proposal responsive to the RPS Information Report.
- (c) Resilience Requirements Information Request. If Company concludes that a Resilience Requirements Revision is necessary or important for the Company System and is capable of being complied with by Seller, Company shall have the right to issue to Seller a Resilience Requirements Information Request with respect to such Resilience Requirements Revision. Seller shall, within a reasonable period of time following Seller's receipt of such Resilience Requirements Information Request, but in no event more than ninety (90) Days after Seller's receipt of such Request (or such other period of time as Company and Seller may agree in writing), submit to Company a Resilience Requirements Proposal responsive to the Resilience Requirements Revision proposed in such Resilience Requirements Information Request.

- 23.3 Seller Proposal. Upon receipt of a Seller Proposal submitted in response to a Company Request, Company will evaluate such Seller Proposal and Seller shall assist Company in performing such evaluation as and to the extent reasonably requested by Company (including, but not limited to, providing such additional information as Company may reasonably request and participating in meetings with Company as Company may reasonably request). Company shall have no obligation to evaluate a Seller Proposal submitted at Seller's own initiative.
- 23.4 Revision Document. If, following Company's evaluation of a Seller Proposal, Company desires to consider implementing the changes addressed in such Proposal (including, if applicable, any Technical and Operational Requirements Revisions or any Resilience Requirements Revisions), Company shall provide Seller with written notice to that effect, such notice to be issued to Seller within 180 Days of receipt of the Seller Proposal, and Company and Seller shall proceed to negotiate in good faith a Revision Document setting forth the specific revisions to the Agreement that are necessary to implement the changes addressed in the Seller Proposal (including, if applicable, any Technical and Operational Requirements Revisions or Resilience Requirements Revisions). A decision by Company to initiate negotiations with Seller as aforesaid shall not constitute an acceptance by Company of any of the details set forth in the Seller Proposal in question, including but not limited to the proposed revisions to the Agreement and the Modification Pricing Impact. Any adjustment to the Contract Pricing pursuant to a Technical and Operational Requirements Revision Document or a RPS Revision Document shall be limited to the Revision Modification Pricing Impact (other than with respect to the financial consequences of non-performance as to a Technical and Operational Requirements Revision). The time periods set forth in a Revision Document as to the effective date for the Revision Modification shall be measured from the date the PUC Revision Order becomes non-appealable as provided in Section 23.6 (PUC Revision Order).
- 23.5 Failure to Reach Agreement. If Company and Seller are unable to agree upon and execute a Revision Document within 180 Days of Company's written notice to Seller pursuant to Section 23.4 (Revision Document), Company shall have the option of declaring the failure to reach agreement on and

execute such Revision Document to be a dispute and submit such dispute to an Independent Evaluator for the conduct of a determination pursuant to Section 23.10 (Dispute) of this Agreement. Any decision of the Independent Evaluator, rendered as a result of such dispute shall include a form of a Revision Document as described in Section 23.4 (Revision Document).

23.6 PUC Revision Order. No Revision Document shall constitute an amendment to the Agreement unless and until a PUC Revision Order issued with respect to such Document has become non-appealable. Once the condition of the preceding sentence has been satisfied, such Revision Document shall constitute an amendment to this Agreement. To be "non-appealable" under this Section 23.6 (PUC Revision Order), such PUC Revision Order shall be either (i) not subject to appeal to any Circuit Court of the State of Hawai'i or the Supreme Court of the State of Hawai'i, because the thirty (30) Day period (accounting for weekends and holidays as appropriate) permitted for such an appeal has passed without the filing of notice of such an appeal, or (ii) affirmed on appeal to any Circuit Court of the State of Hawai'i or the Supreme Court, or the Intermediate Appellate Court upon assignment by the Supreme Court, of the State of Hawai'i, or affirmed upon further appeal or appellate process, and is not subject to further appeal, because the jurisdictional time permitted for such an appeal (and/or further appellate process such as a motion for reconsideration or an application for writ of certiorari) has passed without the filing of notice of such an appeal (or the filing for further appellate process).

23.7 Company's Rights. The rights granted to Company under Section 23.4 (Revision Document) and Section 23.5 (Failure to Reach Agreement) above are exclusive to Company. Seller shall not have a right to initiate negotiations of a Revision Document or to initiate dispute resolution under Section 23.10 (Dispute), as a result of a failure to agree upon and execute any Revision Document.

23.8 Seller's Obligation. Notwithstanding any provision of this Article 23 (Process for Addressing Certain Revisions) to the contrary, Seller shall have no obligation to respond to more than one Technical and Operational Requirements Information Request and one Resilience Requirements Information Request during any 12-month period.

23.9 Limited Purpose. This Article 23 (Process for Addressing Certain Revisions) is intended to specifically address: (a) necessary revisions to the Technical and Operational Requirements and Telemetry and Control interfaces to enhance integration of intermittent resources and energy storage resources onto the Company System, or to comply with future Laws which may be driven in part by higher integration of intermittent resources and/or energy storage resources; (b) possible changes to the RPS that might cause the electric energy delivered from the Facility to no longer qualify as "renewable electrical energy"; and (c) necessary revisions to the Resilience Requirements to support the resilience of the Facility and/or Company-Owned Interconnection Facility. This Article 23 (Process for Addressing Certain Revisions) is not intended for either Party to provide a means for renegotiating any other terms of this Agreement. Revisions in accordance with the provisions of this Article 23 (Process for Addressing Certain Revisions) are not intended to materially increase Seller's risk of non-performance or default.

23.10 Dispute. If Company decides to declare a dispute as a result of the failure to reach agreement and execute a Revision Document pursuant to Section 23.5 (Failure to Reach Agreement), it shall provide written notice to that effect to Seller. Within 20 Days of delivery of such notice Seller and Company shall agree upon an Independent Evaluator to resolve the dispute regarding a Revision Document. The Independent Evaluator shall be reasonably qualified and expert in renewable energy power generation, matters relating to the Technical and Operational Requirements, Resilience Requirements, financing, and power purchase agreements. If the Parties are unable to agree upon an Independent Evaluator within such 20-Day period, Company shall apply to the PUC for the appointment of an Independent Evaluator. If an Independent Observer retained under the Competitive Bidding Framework is qualified and willing and available to serve as Independent Evaluator, the PUC shall appoint one of the persons or entities qualified to serve as an Independent Observer to be the Independent Evaluator; if not, the PUC shall appoint another qualified person or entity to serve as Independent Evaluator. In its application, Company shall ask the PUC to appoint an Independent Evaluator within 30 Days of the application.

(a) Promptly upon appointment, the Independent Evaluator shall request the Parties to address the following matters within the next 15 Days:

(1) If the Revision Document is for purposes of implementing Technical and Operational Requirements Revision(s):

(aa) The Technical and Operational Requirements Revision(s);

(bb) The technical feasibility of complying with the Technical and Operational Requirements Revision(s) and likelihood of compliance;

(cc) How Seller would comply with the Technical and Operational Requirements Revision(s); and

(dd) Reasonably expected net costs and/or lost revenues associated with the Technical and Operational Requirements Revision(s);

(2) If the Revision Document is for purposes of responding to an RPS Amendment:

(aa) The reasonable measures required to be taken by Seller to cause the electric energy delivered from the Facility to come within the revised definition of "renewable electrical energy" under the RPS Amendment in question;

(bb) How Seller would implement such measures; and

(cc) Reasonably expected net costs and/or lost revenues associated with such measures so the energy delivered by the Facility complies with such revised definition of "renewable electrical energy" under the RPS Amendment in question;

(3) If the Revision Document is for the purposes of implementing Resilience Requirements Revision(s):

(aa) The Resilience Requirements Revision(s);

- (bb) The technical feasibility of complying with the Resilience Requirements Revision(s) and likelihood of compliance;
 - (cc) How Seller would comply with the Resilience Requirements Revision(s); and
 - (dd) Reasonably expected net costs and/or lost revenues associated with the Resilience Requirements Revision(s);
 - (4) The appropriate level, if any, of the Revision Modification Pricing Impact in light of the foregoing; and
 - (5) Contractual consequences for non-performance (including any non-performance of any revised Technical and Operational Requirement(s) and any revised Resilience Requirement(s)) that are commercially reasonable under the circumstances.
- (b) Within ninety (90) Days of appointment, the Independent Evaluator shall render a decision unless the Independent Evaluator determines it needs to have additional time, not to exceed forty-five (45) Days, to render a decision.
- (c) The Parties shall assist the Independent Evaluator throughout the process of preparing its review, including making key personnel and records available to the Independent Evaluator, but neither Party shall be entitled to participate in any meetings with personnel of the other Party or review of the other Party's records. However, the Independent Evaluator will have the right to conduct meetings, hearings or oral arguments in which both Parties are represented. The Parties may meet with each other during the review process to explore means of resolving the matter on mutually acceptable terms.
- (d) The following standards shall be applied by the Independent Evaluator in rendering his or her decision with respect to a Technical and Operational Requirements Revision: (i) if it is not technically or operationally feasible for Seller to comply with a Technical and Operational Requirements Revision, the Independent Evaluator shall determine that the Agreement shall not be amended to incorporate such Technical and Operational

Requirements Revision (unless the Parties agree otherwise); (ii) if it is technically or operationally feasible for Seller to comply with a Technical and Operational Requirements Revision, the Independent Evaluator shall incorporate such Technical and Operational Requirements Revision into a Revision Document including (aa) Technical and Operational Requirements Modifications, (bb) pricing terms that incorporate the Revision Modification Pricing Impact, and (cc) contract terms and conditions that are commercially reasonable under the circumstances, especially with respect to the consequences of non-performance by Seller as to Technical and Operational Requirements Revision(s). In addition to the Revision Document, the Independent Evaluator shall render a decision which sets forth the positions of the Parties and Independent Evaluator's rationale for his or her decisions on disputed issues.

- (e) The following standards shall be applied by the Independent Evaluator in rendering his or her decision with respect to revisions arising out of a RPS Proposal:
- (i) if it is not technically or operationally feasible for Seller to cause the electric energy delivered from the Facility to come within such revised definition of "renewable electrical energy", the Independent Evaluator shall determine that the Agreement shall not be amended in response to the RPS Amendment in question (unless the Parties agree otherwise);
 - (ii) if it is technically or operationally feasible for Seller to cause the electric energy delivered from the Facility to come within such revised definition of "renewable electrical energy", the Independent Evaluator shall incorporate the necessary changes into a Revision Document including (aa) the RPS Modifications, (bb) pricing terms that incorporate the Revision Modification Pricing Impact, and (cc) contract terms and conditions that are commercially reasonable under the circumstances, especially with respect to the consequences of non-performance by Seller if the RPS Modifications fail to cause the energy delivered from the Facility to come within the revised definition of "renewable electrical energy." In addition to the Revision Document, the Independent Evaluator shall render a decision which sets forth the positions of the Parties and Independent Evaluator's rationale for his or her decisions on disputed issues.

- (f) The following standards shall be applied by the Independent Evaluator in rendering his or her decision with respect to a Resilience Requirements Revision:
- (i) if it is not technically or operationally feasible for Seller to comply with a Resilience Requirements Revision, the Independent Evaluator shall determine that the Agreement shall not be amended to incorporate such Resilience Requirements Revision (unless the Parties agree otherwise);
 - (ii) if it is technically or operationally feasible for Seller to comply with a Resilience Requirements Revision, the Independent Evaluator shall incorporate such Resilience Requirements Revision into a Revision Document including (aa) Resilience Requirements Modifications, (bb) pricing terms that incorporate the Resilience Requirements Modification Pricing Impact, and (cc) contract terms and conditions that are commercially reasonable under the circumstances, especially with respect to the consequences of non-performance by Seller as to Resilience Requirements Revision(s). In addition to the Revision Document, the Independent Evaluator shall render a decision which sets forth the positions of the Parties and Independent Evaluator's rationale for his or her decisions on disputed issues.
- (g) The fees and costs of the Independent Evaluator shall be paid by Company up to the first \$30,000 of such fees and costs; above those amounts, the Party that is not the prevailing Party shall be responsible for any such fees and costs; provided, if neither Party is the prevailing Party, then the fees and costs of the Independent Evaluator above \$30,000, shall be borne equally by the Parties. The Independent Evaluator in rendering his or her decision shall also state which Party prevailed over the other Party, or that neither Party prevailed over the other.

23.11 HERA Law. The provisions of this Article 23 (Process for Addressing Certain Revisions) are without limitation to the obligations of the Parties under the HERA Law and the reliability standards and interconnection requirements developed and adopted by the PUC pursuant to the HERA Law.

ARTICLE 24
FINANCIAL COMPLIANCE

24.1 Financial Compliance. Seller shall provide or cause to be provided to Company on a timely basis, as reasonably determined by Company, all information, including but not limited to information that may be obtained in any audit referred to below (the "Financial Compliance Information"), reasonably requested by Company for purposes of permitting Company and its parent company, HEI, to comply with the requirements (initial and on-going) of (i) the accounting principles of Financial Accounting Standards Board ("FASB") Accounting Standards Codification ("ASC") 810, Consolidation ("FASB ASC 810"), (ii) FASB ASC 842, Leases, (iii) Section 404 of the Sarbanes-Oxley Act of 2002 ("SOX 404"), and (iv) all clarifications, interpretations and revisions of and regulations implementing FASB ASC 810, SOX 404, and FASB ASC 842 issued by the FASB, Securities and Exchange Commission, the Public Company Accounting Oversight Board, Emerging Issues Task Force or other Governmental Authorities. In addition, if required by Company in order to meet its compliance obligations, Seller shall allow Company or its independent auditor to audit, to the extent reasonably required, Seller's financial records, including its system of internal controls over financial reporting; provided, however, that Company shall be responsible for all costs associated with the foregoing, including but not limited to Seller's reasonable internal costs. Company shall limit access to such Financial Compliance Information to persons involved with such compliance matters and restrict persons involved in Company's monitoring, dispatch or scheduling of Seller and/or Facility, or the administration of this Agreement, from having access to such Financial Compliance Information (unless approved in writing in advance by Seller).

24.2 Confidentiality. Company shall, and shall cause HEI to, maintain the confidentiality of the Financial Compliance Information as provided in this Article 24 (Financial Compliance). Company may share the Information on a confidential basis with HEI and the independent auditors and attorneys for HEI. (Company, HEI, and their respective independent auditors and attorneys are collectively referred to in this Article 24 (Financial Compliance) as "Recipient".) If either Company or HEI, in the exercise of their respective reasonable judgments, concludes that

consolidation or financial reporting with respect to Seller and/or this Agreement is necessary, Company and HEI each shall have the right to disclose such of the Financial Compliance Information as Company or HEI, as applicable, reasonably determines is necessary to satisfy applicable disclosure and reporting or other requirements and give Seller prompt written notice thereof (in advance to the extent practicable under the circumstances). If Company or HEI disclose Financial Compliance Information pursuant to the preceding sentence, Company and HEI shall, without limitation to the generality of the preceding sentence, have the right to disclose Financial Compliance Information to the PUC and the Division of Consumer Advocacy of the Department of Commerce and Consumer Affairs of the State of Hawai'i ("Consumer Advocate") in connection with the PUC's rate making activities for Company and other HEI affiliated entities, provided that, if the scope or content of the Financial Compliance Information to be disclosed to the PUC exceeds or is more detailed than that disclosed pursuant to the preceding sentence, such Financial Compliance Information will not be disclosed until the PUC first issues a protective order to protect the confidentiality of such Financial Compliance Information. Neither Company nor HEI shall use the Financial Compliance Information for any purpose other than as permitted under this Article 24 (Financial Compliance).

24.3 Required Disclosure. In circumstances other than those addressed in Section 24.2 (Confidentiality), if any Recipient becomes legally compelled under applicable Laws or by legal process (e.g., deposition, interrogatory, request for documents, subpoena, civil investigative demand or similar process) to disclose all or a portion of the Financial Compliance Information, such Recipient shall undertake reasonable efforts to provide Seller with prompt notice of such legal requirement prior to disclosure so that Seller may seek a protective order or other appropriate remedy and/or waive compliance with the terms of this Article 24 (Financial Compliance). If such protective order or other remedy is not obtained, or if Seller waives compliance with the provisions at this Article 24 (Financial Compliance), Recipient shall furnish only that portion of the Financial Compliance Information which it is legally required to so furnish and to use reasonable efforts to obtain assurance that confidential treatment will be accorded to any disclosed material.

24.4 Exclusions from Confidentiality. The obligation of nondisclosure and restricted use imposed on each Recipient under this Article 24 (Financial Compliance) shall not extend to any portion(s) of the Financial Compliance Information which (i) was known to such Recipient prior to receipt, or (ii) without the fault of such Recipient is available or becomes available to the general public, or (iii) is received by such Recipient from a Third Party not bound by an obligation or duty of confidentiality.

24.5 Consolidation. Company does not want to be subject to consolidation as set forth in FASB ASC 810, as issued and amended from time to time by FASB.

(a) Consolidation. Company represents that, as of the Execution Date, it is not required to consolidate Seller into its financial statements in accordance with relevant accounting guidance under U.S. generally accepted accounting principles ("GAAP"). If, due to a change in applicable law or accounting guidance under U.S. GAAP, or as a result of a material amendment to the Agreement, in each case, after the Execution Date, Company determines, in its sole but good faith discretion, that it is required to consolidate Seller into its financial statements in accordance with relevant accounting guidance in accordance with U.S. GAAP, then Seller, upon Company's written request, shall, as soon as reasonably practicable (but in no event longer than fifteen (15) Days) provide audited financial statements (including footnotes) in accordance with U.S. GAAP (and as of the reporting periods Company is required to report thereafter) in order for Company to consolidate and file its financial statements within the reporting deadlines of the Securities and Exchange Commission. Such financial statements shall be provided by Seller to Company within sixty (60) Days after Company's request but no later than fifteen (15) Days after the first reporting period upon which Company must consolidate Seller's financial results, and thereafter without the need for any prior request, as soon as reasonably practicable but in no event later than fifteen (15) Days after the end of each subsequent reporting period. If Seller does not normally prepare audited financial statements for the periods requested, Company shall reimburse Seller fifty percent (50%) of the reasonable and verifiable costs of having necessary

audits performed and preparation of the audited financial statements; provided that the foregoing reimbursement shall not include the costs, whether actual or estimated, of preparing unaudited financial statements. Notwithstanding the foregoing requirement that Seller provide audited financial statements to Company, the Parties will take all commercially reasonable steps, which may include modification of this Agreement to eliminate the consolidation treatment, while preserving the economic "benefit of the bargain" to both Parties. If the Parties are unable to eliminate the consolidation treatment by other means, the Parties shall negotiate and may effectuate a sale of the Facility to Company at (i) if the sale occurs, if applicable, prior to Seller's tax equity investors have been paid their targeted internal rate of return, the greater of the Make Whole Amount determined pursuant to Section 6 (Make Whole Amount) of Attachment P (Sale of Facility by Seller) or the fair market value determined pursuant to Section 3 (Procedure to Determine Fair Market Value of the Facility) of Attachment P (Sale of Facility by Seller), or (ii) if the sale occurs, if applicable, on or after the date that Seller's tax equity investors have been paid their targeted internal rate of return, the fair market value determined pursuant to Section 3 (Procedure to Determine Fair Market Value of the Facility) of Attachment P (Sale of Facility by Seller), but not less than the Financial Termination Costs determined pursuant to Section 6 (Make Whole Amount) of Attachment P (Sale of Facility by Seller), in either case under a Purchase and Sale Agreement to be negotiated based on the terms and conditions set forth in Section 4 (Purchase and Sale Agreement) of Attachment P (Sale of Facility by Seller).

ARTICLE 25
GOOD ENGINEERING AND OPERATING PRACTICES

- 25.1 General. Each Party agrees to install, operate and maintain its respective equipment and facility and to perform all obligations required to be performed by such Party under this Agreement in accordance with Good Engineering and Operating Practices and applicable Laws.
- 25.2 Specifications, Determinations and Approvals. Wherever in this Agreement Company has the right to give specifications, determinations or approvals, such specifications, determinations or approvals shall be given in accordance with Company's standard practices, policies and procedures and shall not be unreasonably withheld.
- 25.3 No Endorsement, Warranty or Waiver. Any such specifications, determinations, or approvals shall not be deemed to be an endorsement, warranty, or waiver of any right of Company.
- 25.4 Consultants List. Prior to the Commercial Operations Date, the Parties shall agree on a list of names of engineering firms to be attached as Attachment D (Consultants List) in accordance with Section 4 (Disconnection of Seller Facility) of Attachment B (Facility Owned by Seller).

ARTICLE 26
EQUAL EMPLOYMENT OPPORTUNITY

26.1 Equal Employment Opportunity. (Applicable to all contracts of \$10,000 or more in the whole or aggregate. 41 CFR 60-1.4 and 41 CFR 60-741.5.) Seller is aware of and is fully informed of Seller's responsibilities under Executive Order 11246 (reference to which include amendments and orders superseding in whole or in part) and shall be bound by and agrees to the applicable provisions as contained in Section 202 of said Executive Order and the Equal Opportunity Clause as set forth in 41 CFR 60-1.4 and 41 CFR 60-741.5(a), which clauses are hereby incorporated by reference.

26.2 Equal Opportunity For Disabled Veterans, Recently Separated Veterans, Other Protected Veterans and Armed Forces Service Medal Veterans. Applicable to (i) contracts of \$25,000 or more entered into before December 31, 2003 (41 CFR 60-250.4) or (ii) each federal government contract of \$100,000 or more, entered into or modified on or after December 31, 2003 (41 CFR 60-300.4) for the purchase, sale or use of personal property or nonpersonal services (including construction).) If applicable to Seller under this Agreement, Seller agrees that it is, and shall remain, in compliance with the rules and regulations promulgated under The Vietnam Era Veterans Readjustment Assistance Act of 1974, as amended by the Jobs for Veterans Act of 2002, including the requirements of 41 CFC 60-250.5(a) (for orders/contracts entered into before December 31, 2003) and 41 CFR 60-300.5(a) (for orders/contracts entered into or modified on or after December 31, 2003) which are incorporated into this Agreement by reference.

ARTICLE 27
SET OFF

Company shall have the right to set off any payment due and owing by Seller, including but not limited to any payment under this Agreement and any payment due under any award made under Article 28 (Dispute Resolution), against Company's payments of subsequent monthly invoices as necessary.

ARTICLE 28
DISPUTE RESOLUTION

- 28.1 Good Faith Negotiations. Before submitting any claims, controversies or disputes ("Dispute(s)") under this Agreement to the dispute resolution procedures set forth in Article 28 (Dispute Resolution), the presidents, vice presidents, or authorized delegates from both Seller and Company, having full authority to settle the Dispute(s), shall personally meet in Honolulu, Hawai'i and attempt in good faith to resolve the Dispute(s) (the "Management Meeting"). The Parties shall endeavor to meet within fourteen (14) Days of a Party's request for a Management Meeting and the Parties may agree to meet remotely via an agreed upon video conferencing platform (e.g., Microsoft Teams, Zoom, Cisco Webex, etc.) if such would facilitate scheduling the Management Meeting within the desired fourteen (14) Days. A Party's refusal to meet within thirty (30) Days of a request for such a meeting by a Party shall be deemed a material default of this Agreement.
- 28.2 Mediation. Any and all Dispute(s) arising out of or relating to this Agreement which remain unresolved for a period of twenty (20) Days after the Management Meeting takes place may, upon the agreement of the Parties, first be submitted to confidential mediation in Honolulu, Hawai'i pursuant to the administration by, and in accordance with the Commercial Arbitration Rules and Mediation Procedures ("Commercial Rules") of the American Arbitration Association ("AAA") then in effect. If the Parties agree to submit the Dispute(s) to confidential mediation, the Parties shall each pay 50% of the cost of the mediation (i.e., the fees and expenses charged by the mediator and AAA) and shall otherwise each bear their own mediation costs and attorneys' fees.
- 28.3 Arbitration. If the Parties do not agree to mediation of the Dispute(s) within thirty (30) Days after the Management Meeting, or if the Parties submit the Dispute(s) to mediation but settlement of the Dispute(s) is not reached within thirty (30) Days after completion of the mediation, either Party may initiate arbitration by submitting a demand for arbitration within thirty (30) Days after the date of either of the above events. Such Dispute(s) shall be resolved in Honolulu, Hawai'i by arbitration administered by AAA under its then-current Commercial

Rules, including, if appropriate, the Procedures for Large Complex Commercial Disputes.

- (a) Initiation of Arbitration. A Party submitting the Dispute(s) to arbitration shall initiate the arbitration pursuant to the Commercial Rules and shall identify provisions of this Agreement that such Party alleges is subject to the Dispute(s). A respondent shall file an answering statement and/or counterclaim within twenty-one (21) Days of receipt of notice from AAA of the initiation of the arbitration. Any response to a counterclaim shall be filed within twenty-one (21) Days of receipt of such counterclaim.
- (b) Selection of Arbitrator. If a Party initiates arbitration of the Dispute(s), the Parties shall attempt to mutually agree on one person to serve as arbitrator of the Dispute(s). If the Parties are unable to mutually select an arbitrator within fourteen (14) Days of filing an answering statement and/or counterclaim, the arbitrator will be appointed pursuant to the Commercial Rules, provided, however, that the Parties may agree to extend the time to mutually select an arbitrator. The Parties agree that, regardless of the amount in controversy in the Dispute(s), one person shall serve as arbitrator.
- (c) Authority of Arbitrator, Judicial Review. The award rendered by the arbitrator shall be final, non-appealable and binding on the Parties and may be entered in any court having jurisdiction. The arbitrator need not enter a reasoned award unless a Party requests such award prior to the selection of the arbitrator or unless the arbitrator determines that a reasoned award is appropriate. Judgment on the award shall be final and non-appealable.
- (d) Confidentiality. Except as may be required by applicable law or to enter an award pursuant to Section 28.3(c) (Authority of Arbitrator, Judicial Review), neither Party nor the arbitrator may disclose the existence, content or results of any arbitration without the prior written consent of both Parties, unless to protect or pursue a legal right.

28.4 Exclusions. The provisions of this Article 28 (Dispute Resolution) shall not apply to any disputes within the

authority of any of (i) an Independent Evaluator under Article 23 (Process for Addressing Certain Revisions), (ii) an Independent AF Evaluator under Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) or (iii) an OEPR Evaluator under Attachment U (Calculation and Adjustment of Net Energy Potential).

28.5 Document Retention. If either party initiates dispute resolution under this Article 28 (Dispute Resolution), then each Party must retain and preserve all records, including documents, which may be relevant to such Dispute, in accordance with applicable Laws until such Dispute is resolved.

28.6 Waiver of Trial by Jury. Each of the Parties hereto hereby irrevocably waives, to the fullest extent permitted by applicable law, any and all right to trial by jury in any legal proceeding, suit, or action arising out of or related to this Agreement.

ARTICLE 29
MISCELLANEOUS

29.1 Amendments. Any amendment or modification of this Agreement or any part hereof shall not be valid unless in writing and signed by the Parties. Any waiver hereunder shall not be valid unless in writing and signed by the Party against whom waiver is asserted. Notwithstanding the foregoing, administrative changes mutually agreed by Company and Seller in writing, such as changes to settings shown in Attachment E (Single-Line Drawing and Interface Block Diagram) and Attachment F (Relay List and Trip Scheme) and changes to numerical values of Technical and Operational Requirements in Section 3 (Technical and Operational Requirements) of Attachment B (Facility Owned by Seller) shall not be considered amendments to this Agreement requiring PUC approval.

29.2 Binding Effect. This Agreement shall be binding upon and inure to the benefit of the Parties hereto and their respective successors, legal representatives, and permitted assigns.

29.3 Notices.

- (a) All notices, consents and waivers under this Agreement shall be in writing and will be deemed to have been duly given when (i) delivered by hand, (ii) sent by electronic mail ("E-mail") (provided receipt thereof is confirmed via E-mail or in writing by recipient), (iii) sent by certified mail, return receipt requested, or (iv) when received by the addressee, if sent by a nationally recognized overnight delivery service (receipt requested), in each case to the appropriate addresses and E-mail addresses set forth below (or to such other addresses and E-mail addresses as a Party may designate by notice to the other Party):

Company

By Mail:

Delivered by Hand or Overnight Delivery:

By E-mail:

With a copy to:

By Mail:

Hawaiian Electric Company, Inc.
Legal Division
P.O. Box 2750
Honolulu, Hawai'i 96840

By E-mail:

Hawaiian Electric Company, Inc.
Legal Division
Email: legalnotices@hawaiianelectric.com

Seller

By Mail:

Delivered by Hand or Overnight Delivery:

By E-mail:

Notice sent by mail shall be deemed to have been given on the date of actual delivery or at the expiration of the fifth Day after the date of mailing, whichever is earlier. Any Party hereto may change its address for written notice by giving written notice of such change to the other Party hereto.

Any notice delivered by E-mail shall request a receipt thereof confirmed by E-mail or in writing by the recipient and followed by personal or mail delivery of such correspondence and attachments as may be requested by the recipient, and the effective date of such notice shall be the date of receipt, provided such receipt has been confirmed by the recipient.

The Parties may agree in writing upon additional means of providing notices, consents and waivers under this Agreement in order to adapt to changing technology and commercial practices.

29.4 Effect of Section and Attachment Headings. The Table of Contents and paragraph headings of the various sections and attachments have been inserted in this Agreement as a matter of convenience for reference only and shall not modify, define or limit any of the terms or provisions hereof and shall not be used in the interpretation of any term or provision of this Agreement.

29.5 Non-Waiver. Except as otherwise provided in this Agreement, no delay or forbearance of Company or Seller in the exercise of any remedy or right will constitute a waiver thereof, and the exercise or partial exercise of a remedy or right shall not preclude further exercise of the same or any other remedy or right.

- 29.6 Relationship of the Parties. Nothing in this Agreement shall be deemed to constitute either Party hereto as partner, agent or representative of the other Party or to create any fiduciary relationship between the Parties. Seller does not hereby dedicate any part of Facility to serve Company, Company's customers or the public.
- 29.7 Entire Agreement. This Power Purchase Agreement for Renewable Dispatchable Generation, the IRS Letter Agreement and the GHG Letter Agreement (together with any confidentiality or non-disclosure agreements entered into by the Parties during the process of negotiating this Agreement and/or discussing the specifications of the Facility) constitutes the entire agreement between the Parties relating to the subject matter hereof, superseding all prior agreements, understandings or undertakings, oral or written. Each of the Parties confirms that in entering into this Agreement, it has not relied on any statement, warranty or other representations (other than those set out in this Agreement) made or information supplied by or on behalf of the other Party.
- 29.8 Governing Law, Jurisdiction and Venue. Interpretation and performance of this Agreement shall be in accordance with, and shall be controlled by, the laws of the State of Hawai'i, other than the laws thereof that would require reference to the laws of any other jurisdiction. By entering into this Agreement, Seller submits itself to the personal jurisdiction of the courts of the State of Hawai'i and agrees that the proper venue for any civil action arising out of or relating to this Agreement shall be Honolulu, Hawai'i. Each of the Parties hereto hereby irrevocably waives, to the fullest extent permitted by applicable law, any and all right to trial by jury in any legal proceeding, suit, or action arising out of or related to this Agreement.
- 29.9 Limitations. Nothing in this Agreement shall limit Company's ability to exercise its rights as specified in Company's Tariff as filed with the PUC, or as specified in General Order No. 7 of the PUC's Standards for Electric Utility Service in the State of Hawai'i, as either may be amended from time to time.
- 29.10 Further Assurances. If either Party determines in its reasonable discretion that any further instruments,

assurances or other things are necessary or desirable to carry out the terms of this Agreement, the other Party will execute and deliver all such instruments and assurances and do all things reasonably necessary or desirable to carry out the terms of this Agreement.

29.11 Electronic Signatures and Counterparts. The parties agree that this Agreement and any subsequent writings, including amendments, may be executed and delivered by exchange of executed copies via E-mail or other acceptable electronic means, and in electronic formats such as Adobe PDF or other formats mutually agreeable between the parties which preserve the final terms of this Agreement or such writing. A party's signature transmitted by facsimile, E-mail, or other acceptable electronic means shall be considered an "original" signature which is binding and effective for all purposes of this Agreement. This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which shall together constitute one and the same instrument binding all Parties notwithstanding that all of the Parties are not signatories to the same counterparts. For all purposes, duplicate unexecuted and unacknowledged pages of the counterparts may be discarded and the remaining pages assembled as one document.

29.12 Definitions. Capitalized terms used in this Agreement and not otherwise defined in the context in which they first appear are defined in the Definitions Section.

29.13 Severability. If any term or provision of this Agreement, or the application thereof to any person, entity or circumstances is to any extent invalid or unenforceable, the remainder of this Agreement, or the application of such term or provision to persons, entities or circumstances other than those as to which it is invalid or unenforceable, shall not be affected thereby, and each term and provision of this Agreement shall be valid and enforceable to the fullest extent permitted by law, and the Parties will take all commercially reasonable steps, including modification of the Agreement, to preserve the economic "benefit of the bargain" to both Parties notwithstanding any such aforesaid invalidity or unenforceability.

29.14 Settlement of Disputes. Except as otherwise expressly provided, any dispute or difference arising out of this Agreement or concerning the performance or the non-performance by either Party of its obligations under this Agreement shall be determined in accordance with the dispute resolution procedures set forth in Article 28 (Dispute Resolution) of this Agreement.

29.15 Environmental Credits and RPS. To the extent not prohibited by law, Company shall have the sole and exclusive right to use the electric energy purchased hereunder to meet RPS and any Environmental Credit shall be the property of Company; provided, however, that such Environmental Credits shall be to the benefit of Company's ratepayers in that the value must be credited "above the line". Seller shall use all commercially reasonable efforts to ensure such Environmental Credits are vested in Company, and shall execute all documents, including, but not limited to, documents transferring such Environmental Credits, without further compensation; provided, however, that Company agrees to pay for all reasonable costs associated with such efforts and/or documentation.

29.16 Schedule of Defined Terms and Attachments. The Schedule of Defined Terms and each Attachment to this Agreement constitute essential and necessary parts of this Agreement.

29.17 Proprietary Rights. Seller agrees that in fulfilling its responsibilities under this Agreement, it will not use any process, program, design, device or material that infringes on any United States patent, trademark, copyright or trade secret ("Proprietary Rights"). Seller agrees to indemnify, defend and hold harmless the Indemnified Company Party from and against all losses, damages, claims, fees and costs, including but not limited to reasonable attorneys' fees and costs, arising from or incidental to any suit or proceeding brought against the Indemnified Company Party for infringement of Third Party Proprietary Rights arising out of Seller's performance under this Agreement, including but not limited to patent infringement due to the use of technical features of the Facility to meet the Technical and Operational Requirements specified in the Agreement.

29.18 Negotiated Terms. The Parties agree that the terms and conditions of this Agreement are the result of negotiations between the Parties and that this Agreement shall not be construed in favor of or against any Party by reason of the extent to which any Party or its professional advisors participated in the preparation of this Agreement.

29.19 Computation of Time. In computing any period of time prescribed or allowed under this Agreement, the Day of the act, event or default from which the designated period of time begins to run shall not be included. If the last Day of the period so computed is not a Business Day, then the period shall run until the end of the next Day which is a Business Day.

29.20 PUC Approval.

- (a) PUC Approval Order. The term "PUC Approval Order" means an order from the PUC that does not contain terms and conditions deemed to be unacceptable by Company, and is in a form deemed to be reasonable by Company, in its sole, but nonarbitrary, discretion, ordering that:
 - (i) this Agreement is approved;
 - (ii) Company is authorized to include the purchased energy costs (and related revenue taxes) that Company incurs under this Agreement in Company's Energy Cost Recovery Clause, or equivalent, to the extent such costs are not included in Base Rates for the Term;
 - (iii) Company is authorized to include the Lump Sum Payment that Company incurs under this Agreement in Company's Purchase Power Adjustment Clause, to the extent such costs are not included in Base Rates for the Term;
 - (iv) the purchased energy costs and the Lump Sum Payment to be incurred by Company as a result of this Agreement are reasonable;
 - (v) Company's purchased power arrangements under this Agreement, pursuant to which Company will purchase renewable dispatchable generation from

Seller, are prudent and in the public interest;
and

(vi) determine that the ___kV line extension that is included in the Company-Owned Interconnection Facilities should be constructed above the surface of the ground, if applicable.

- (b) Non-appealable PUC Approval Order. The term "Non-appealable PUC Approval Order" means a PUC Approval Order (i) that is not subject to appeal to any Circuit Court of the State of Hawai'i, Intermediate Court of Appeals of the State of Hawai'i, or the Supreme Court of the State of Hawai'i, because the period permitted for such an appeal (the "Appeal Period") has passed without the filing of notice of such an appeal, or (ii) that was affirmed on appeal to any Circuit Court of the State of Hawai'i, Intermediate Court of Appeals of the State of Hawai'i, or the Supreme Court of the State of Hawai'i, or was affirmed upon further appeal or appellate process, and that is not subject to further appeal, because the jurisdictional time permitted for such an appeal and/or further appellate process such as a motion for reconsideration or an application for writ of certiorari has passed without the filing of notice of such an appeal or the filing for further appellate process.
- (c) Company's Written Statement. Not later than thirty-five (35) Days after the issuance of a PUC order approving this Agreement, Company shall provide Seller with a copy of such order together with a written statement as to whether the conditions set forth in Section 29.20(a) (PUC Approval Order) have been met and the order constitutes a PUC Approval Order. If Company's written statement declares that the conditions set forth in Section 29.20(a) (PUC Approval Order) have been satisfied, the date of the issuance of the PUC Approval Order shall be the "PUC Approval Order Date".
- (d) Non-appealable PUC Approval Order Date. If Company provides the written statement referred to in Section 29.20(c) (Company's Written Statement) to the effect that the conditions referred to in Section 29.20(a) (PUC Approval Order) have been satisfied, the term

"Non-appealable PUC Approval Order Date" shall be defined as follows:

- (i) If a PUC Approval Order is issued and is not made subject to a motion for reconsideration or clarification filed with the PUC or an appeal, the Non-appealable PUC Approval Order Date shall be the date one Day after the expiration of the Appeal Period following the issuance of the PUC Approval Order, or the date of Company's written statement as required under Section 29.20(c) (Company's Written Statement), whichever is later;
 - (ii) If the PUC Approval Order became subject to a motion for reconsideration or clarification, and the motion for reconsideration or clarification is denied or the PUC Approval Order is affirmed after reconsideration or clarification, and such order is not made subject to an appeal, the Non-appealable PUC Approval Order Date shall be deemed to be the date one Day after the expiration of the Appeal Period following the order denying reconsideration of or clarification of, or affirming, the PUC Approval Order; or
 - (iii) If the PUC Approval Order, or an order denying reconsideration or clarification of the PUC Approval Order or affirming approval of the PUC Approval Order after reconsideration or clarification, becomes subject to an appeal, then the Non-appealable PUC Approval Order Date shall be the date upon which the PUC Approval Order becomes a non-appealable order within the meaning of the definition of a Non-Appealable PUC Approval Order in Section 29.20(b) (Non-appealable PUC Approval Order).
- (e) Unfavorable PUC Order. The term "Unfavorable PUC Order" means an order from the PUC concerning this Agreement that: (i) dismisses Company's application; (ii) denies Company's application; or (iii) approves Company's application but contains terms and conditions deemed unacceptable by Company in its sole discretion and therefore does not meet the definition

of a PUC Approval Order as set forth in Section 29.20(a) (PUC Approval Order).

29.21 Community Engagement.

- (a) The Parties acknowledge that, prior to the Execution Date, Seller provided to Company a comprehensive community engagement and communications plan to work with and inform neighboring communities and stakeholders to gain their support for the Project ("Community Engagement Plan").
- (i) General Requirements. Seller agrees to work with the Host Community and neighboring communities and stakeholders and provide them timely information during all phases of the Project, including but not limited to the following information: Project description, Project stakeholders, community concerns and Seller's efforts to address such concerns, Project benefits, Governmental Approvals, Project schedule, plan for reporting construction related updates, labor and prevailing wage commitment (if any), and a Community Outreach Plan which factors in monthly Project status updates. The "Host Community" shall refer generally to the residential community in the immediate vicinity of the Project that would be affected by the ongoing development, construction, operation and maintenance of the Project, including but not limited to increased traffic, construction noise, odors, dust and debris, modified or affected view planes and other environmental effects. Seller's determination of the Host Community shall be subject to review by Company to ensure that the Host Community has been satisfactorily identified and that the benefits of Seller's Community Benefits Program are targeting specific needs identified by the Host Community.
- (ii) Community Benefits Program. Seller shall also provide Seller's plan for the creation of the mandatory community benefits program (the "Community Benefits Program") required under the RFP and included in Seller's RFP Proposal.
[NOTE: COMPANY RESERVES THE RIGHT TO REQUIRE

REVISIONS AND/OR ADDITIONAL PROVISIONS TO
SELLER'S COMMUNITY BENEFITS PROGRAM TO ADDRESS
ISSUES IDENTIFIED IN THE RFP EVALUATION PROCESS].

- (a) The Community Benefits Program shall be designed to specifically benefit the needs identified by the Host Community affected by the Project by addressing the Host Community's identified needs, including but not limited to, one or more of the following: infrastructure improvements, enhanced educational opportunities, jobs and job training, historical and/or cultural protection, neighborhood beautification, identified mitigation of Project effects on the Host Community, and any other similar community benefit. Any material revision(s) to the Community Benefits Program (from that proposed in Seller's RFP Proposal) shall be subject to Company's prior review and approval before implementation and funding by Seller.
- (b) Seller shall implement the Community Benefits Program no later than six (6) months after the Commercial Operations Date, with the requirement that decisions on the community benefits and distribution of the first annual payment of funds be completed no later than six (6) months after program implementation.
- (c) Annually, Seller shall re-fund the Community Benefits Program with the required amount even if all or any portion of prior year's funds remains to be distributed. The annual funding amount for Seller's Community Benefit Program shall be no less than \$3,000 per MW of Contract Capacity per year, provided however, that Seller's Community Benefits Program may commit to fund a higher amount above the applicable minimum at Seller's option (the "Community Benefits Funding Amount"). With Company's review and prior approval, other methods and timing of funding the Community Benefits Funding

Amount may be proposed provided that such alternative methods do not materially alter or diminish the intended effects of an annual funding requirement. Approval will be at Company's sole discretion.

- (d) Results of the Community Benefits Program, including but not limited to, disclosure of the community benefit(s) funded, the recipients and amounts distributed and a summary of the community benefit(s) to be expected from such funding, shall be annually reported and publicly available for review at any time on Seller's website and upon request.
- (e) It shall be Seller's sole responsibility to ensure that the Community Benefits Program is properly funded by Seller and that funds are distributed for the benefit of the needs identified by the Host Community on a timely basis. The Community Benefits Program shall be subject to audit by Company no more than once every two years during the Term to ensure compliance by Seller, provided, however, that if Company receives credible evidence and/or reports of abuse or neglect of the Community Benefits Program by Seller or any of its partners administering the program (a "Program Complaint"), Company may conduct an immediate audit notwithstanding that a prior audit had been conducted in the year immediately preceding the Program Complaint. Seller shall cooperate with Company's reasonable requests to Seller in its efforts to complete any audit. Seller shall reimburse Company for actual expenses incurred in completing any audit (whether biennial or as a result of a Program Complaint) of Seller's Community Benefits Program. Seller shall additionally pay Company for Company's time and effort, e.g., labor and overhead, to complete an audit necessitated by a Program Complaint.

- (f) If Seller fails to fund any annual funding requirement for the Community Benefits Program, then Seller, upon demand by Company, shall make the required annual funding within thirty (30) Days of Company's demand. If Seller does not make such funding after demand by Company within the time required, Company shall be entitled to, at Company's sole option, setoff the funding requirement from amounts due to Seller or draw upon Operating Period Security in the amount necessary so that Company can direct such funds to the Community Benefits Program.
- (g) If an audit discovers and confirms that funds previously distributed under the Community Benefits Program were misused or otherwise not expended for the benefit of the needs identified by the Host Community in accordance with the program, Seller shall, in addition to the annual funding requirement for the next year of the program, also re-fund the program with the amount of the misused funds for reallocation and distribution.
- (h) If Seller, with Company's prior approval, administers its own Community Benefits Program (including any program administered by an affiliate or non-profit foundation of Seller), and it is discovered and confirmed that Seller has not funded its Community Benefits Program and/or has not distributed such funds in accordance with the program (as such may be revised with Company's prior review and approval) in any year during the Term, Seller shall double its funding to and distribution of funds from the program in the subsequent year. If Seller fails to properly fund or distribute funds in accordance with the program for two (2) years or more, Company may disqualify Seller's Community Benefits Program and require Seller to administer a new program with a Host Community-based non-profit

entity capable of administering a new Community Benefits Program for and on behalf of Seller.

(iii) Seller's Community Outreach Plan is a public document and shall remain available to members of the community on the Seller's website for the Term of this Agreement and upon request. Seller shall also provide Company with links to its Project website and Community Outreach Plan.

(b) The Parties also acknowledge that, within thirty (30) Days of Proposal submission, Seller provided reasonable advance notice of a minimum of fourteen (14) days and hosted a public meeting for community and neighborhood groups in and around the vicinity of the Project site that provided the neighboring community, stakeholders, and the general public with: (i) a reasonable opportunity to learn about the proposed Project; (ii) an opportunity to engage in a dialogue about concerns, mitigation measures, and potential community benefits of the proposed Project; (iii) information regarding the Seller's cultural impact plan, including any findings made and mitigations identified to-date as part of the Archaeological Literature Review and Field Inspection Report as required by the RFP; and (iv) information concerning the process and/or intent for the public's input and engagement, including advising attendees that they will have fourteen Days from the date of said public meeting to submit written comments to Company and/or Seller for inclusion for evaluation of the RFP Proposal and for inclusion in the Company's submission to the PUC of its application for a satisfactory PUC Approval Order. Seller shall collect all public comments, and then provide Company copies of all comments received in their original, unedited form, along with copies of all comments with personal information redacted and ready for filing, within 21 days after the public meeting; provided, however, that if members of the public submit comments to the Company directly, then Company shall share such comments with Seller for inclusion in Company's PUC Application. Seller agrees that Company may submit any and all public comments (presented in its original, unedited form) as part of its PUC application for this Project.

- (c) The Parties also acknowledge that, subsequent to selection to the RFP final award group and prior to the Execution Date, Seller provided reasonable advance notice and hosted a public meeting for community and neighborhood groups in and around the vicinity of the Project site that provided the neighboring community, stakeholders, and the general public with: (i) a reasonable opportunity to learn about the proposed Project; (ii) an opportunity to engage in a dialogue about concerns, mitigation measures, and potential community benefits of the proposed Project; (iii) an update regarding the Seller's cultural impact plan, including any findings made and mitigations identified to-date as part of the Archaeological Literature Review and Field Inspection Report as required by the RFP; and (iv) information concerning the process and/or intent for the public's input and engagement, including advising attendees that they will have thirty (30) Days from the date of said public meeting to submit written comments to Company and/or Seller for inclusion in the Company's submission to the PUC of its application for a satisfactory PUC Approval Order. Seller shall collect all public comments, and then provide Company copies of all comments received in their original, unedited form, along with copies of all comments with personal information redacted and ready for filing. Seller agrees that Company may submit any and all public comments (presented in its original, unedited form) as part of its PUC application for this Project.
- (d) Seller acknowledges and agrees that subsequent to the PUC Submittal Date and prior to the date when the Parties' statements of position are to be filed in the docketed PUC proceeding for this Project, Seller will solicit public comments concerning the Project a second time. Seller will submit to the PUC as part of the docketed PUC proceeding for this Project, any and all public comments (presented in its original, unedited form) received by Company and/or Seller regarding the Project that are not received in time to include as part of the Company's application for a satisfactory PUC Approval Order.
- (e) The Parties acknowledge and agree that Seller is responsible for community outreach and engagement for the Project, and that the public meeting and comment

solicitation process described in this Section 29.21 (Community Engagement) do not represent the only community outreach and engagement activities that can or should be performed by Seller. Without limitation to the generality of the preceding sentence, Seller agrees to take into account the Project's potential impacts on historical and cultural resources and, at a minimum, Seller shall describe: (i) any valued cultural, historical, or natural resources in the area in question, including the extent to which traditional and customary native Hawaiian rights are exercised in the area; (ii) the extent to which those resources - including traditional and customary native Hawaiian rights - will be affected or impaired by the Project; and (iii) the feasible action, if any, to be taken to reasonably protect native Hawaiian rights if they are found to exist. Seller shall determine and implement such additional means as may be reasonably necessary to share information with and involve the community and neighborhood groups in and around the vicinity of the Facility during the Project planning and development process through the Term of this Agreement and shall timely inform Company of its plans and activities in this regard.

- (f) Upon the Execution Date and at all times during the Term of this Agreement, Seller shall designate an individual as the "Seller's Community Representative." The Seller's Community Representative shall be the primary contact between the community and the Seller and shall be available during the Term of this Agreement to receive and answer questions from the community. As of the Execution Date, the Seller's Community Representative and the E-mail address and phone number for Seller's Community Representative are as follows:

Name: _____

Email Address: _____

Phone Number: _____

Seller shall notify Company in writing upon designation of any new Seller's Community Representative.

29.22 Change in Standard System or Organization.

(a) Consistent With Original Intent. If, during the Term, any standard, system or organization referenced in this Agreement should be modified or replaced in the normal course of events, such modification or replacement shall from that point in time be used in this Agreement in place of the original standard, system or organization, but only to the extent such modification or replacement is generally consistent with the original spirit and intent of this Agreement.

(b) Eliminated or Inconsistent With Original Intent. If, during the Term, any standard system or organization referenced in this Agreement should be eliminated or cease to exist, or is modified or replaced and such modification or replacement is inconsistent with the original spirit and intent of this Agreement, then in such event the Parties will negotiate in good faith to amend this Agreement to a standard, system or organization that would be consistent with the original spirit and intent of this Agreement.

29.23 No Third-Party Beneficiaries. Nothing expressed or referred to in this Agreement will be construed to give any person or entity other than the Parties any legal or equitable right, remedy, or claim under or with respect to this Agreement or any provision of this Agreement. This Agreement and all of its provisions and conditions are for the sole and exclusive benefit of the Parties and their successors and permitted assigns.

29.24 Hawai'i General Excise Tax. Seller shall, when making payments to Company under this Agreement, pay such additional amount as may be necessary to reimburse Company for the Hawai'i general excise tax on gross income and all other similar taxes imposed on Company by any Governmental Authority with respect to payments in the nature of gross receipts tax, sales tax, privilege tax or the like, but excluding federal or state net income taxes. By way of example and not limitation, as of the Execution Date, all payments subject to the Hawai'i general excise tax **[on the islands of Maui, Moloka'i and Lāna'i (totaling 4.0% as of the Execution Date) would include an additional 4.166% [plus surcharge on Hawai'i island (totaling 4.5% as of the Execution Date) would include an additional 4.712%]] [plus surcharge on the island of O'ahu (totaling 4.5% as of the**

Execution date) would include an additional 4.712%)] so the underlying payment will be net of such tax liability.

29.25 Survival of Obligations. The rights and obligations that are intended to survive a termination of this Agreement are all of those rights and obligations that this Agreement expressly provides shall survive any such termination and those that arise from Seller's or Company's covenants, agreements, representations, and warranties applicable to, or to be performed, at or during any time prior to or as a result of the termination of this Agreement, including, without limitation:

- (a) The obligation to pay Daily Delay Damages under Section 13.4 (Damages and Termination);
- (b) The obligation to pay Termination Damages under Article 16 (Damages in the Event of Termination by Company);
- (c) The indemnity obligations under Article 17 (Indemnification) and Section 29.17 (Proprietary Rights);
- (d) The dispute resolution provisions of Article 28 (Dispute Resolution);
- (e) Section 29.3 (Notices), Section 29.5 (Non-Waiver), Section 29.8 (Governing Law, Jurisdiction and Venue), Section 29.9 (Limitations), Section 29.13 (Severability), Section 29.14 (Settlement of Disputes), Section 29.15 (Environmental Credits and RPS), Section 29.17 (Proprietary Rights), Section 29.19 (Computation of Time), Section 29.23 (No Third-Party Beneficiaries), Section 29.24 (Hawai'i General Excise Tax), Section 29.25 (Survival of Obligations), Section 7 (Land Restoration) of Attachment G (Company-Owned Interconnection Facilities) and Section 1(d) (Seller's Right to Transfer) and Section 2(d) (Right of First Refusal) of Attachment P (Sale of Facility by Seller); and
- (f) Seller's obligations under Section 3 (Seller Payment to Company for Company-Owned Interconnection Facilities and Review of Facility) of Attachment G (Company-Owned Interconnection Facilities) to pay interconnection costs and Section 4 (Ongoing Operation and Maintenance Charges) of Attachment G (Company-Owned Interconnection Facilities) to pay operation and maintenance costs incurred up to the date of termination of the Agreement.

29.26 Certain Rules of Construction. For purposes of this Agreement:

- (a) "Including" and any other words or phrases of inclusion will not be construed as terms of limitation, so that references to "included" matters will be regarded as nonexclusive, noncharacterizing illustrations.
- (b) "Copy" or "copies" means that the copy or copies of the material to which it relates are true, correct and complete.
- (c) When "Article," "Section," "Schedule," or "Attachment" is capitalized in this Agreement, it refers to an article, section, schedule or attachment to this Agreement.
- (d) "Will" has the same meaning as "shall" and, thus, connotes an obligation and an imperative and not a futurity.
- (e) Titles and captions of or in this Agreement, the cover sheet and table of contents of this Agreement, and language in parenthesis following Section references are inserted only as a matter of convenience and in no way define, limit, extend or describe the scope of this Agreement or the intent of any of its provisions.
- (f) Whenever the context requires, the singular includes the plural and plural includes the singular, and the gender of any pronoun includes the other genders.
- (g) Any reference to any statutory provision includes each successor provision and all applicable Laws as to that provision.

29.27 Agreement is Not a Design or Construction Contract.

This Agreement is not a design or construction contract. The Parties acknowledge and agree that Seller will finance and develop the Facility for Seller to own and operate. Seller is not a design professional or a contractor. Seller is not hereby undertaking to perform and is not holding itself out or offering to perform any work for which a professional or contractor's license may be required under the laws of the State of Hawai'i. Notwithstanding anything to the contrary, all work related to the design, engineering, and construction of the Facility shall be performed by design professionals and contractors who hold the appropriate licenses issued by the State of Hawai'i and intend to develop the Facility in full

compliance with all applicable state laws. For the avoidance of doubt, in all instances where this Agreement refers to Seller performing the acts of constructing, building or installing, said language shall be interpreted to mean that such work will be performed by duly licensed contractors properly retained by Seller in accordance with laws of the State of Hawai'i.

[Signatures for this Power Purchase Agreement for Renewable Dispatchable Generation appear on the following page]

IN WITNESS WHEREOF, Company and Seller have executed this Agreement as of the day and year first above written.

HAWAIIAN ELECTRIC COMPANY, INC.,
or
MAUI ELECTRIC COMPANY, LIMITED
or
HAWAI'I ELECTRIC LIGHT COMPANY,
INC.

By _____
Name:
Its:

By _____
Name:
Its:

("Company")

[NAME OF PROJECT ENTITY]

By _____
Name:
Its:

By _____
Name:
Its:

("Seller")

SCHEDULE OF DEFINED TERMS

For the purposes of this Agreement, the following capitalized terms shall have the meanings set forth below:

"Acceptance Notice": Shall have the meaning set forth in Section 1(a)(ii) of Attachment P (Sale of Facility by Seller) to this Agreement.

"Acceptance Test": A test conducted by Seller and witnessed by Company, within thirty (30) Days of completion of all Interconnection Facilities and in accordance with criteria and test procedures determined by Company and Seller as set forth in Section 2(f) (Acceptance Test Procedures) of Attachment G (Company-Owned Interconnection Facilities), to determine conformance with Article 3 (Facility Owned and/or Operated by Seller) and Attachment G (Company-Owned Interconnection Facilities) and Good Engineering and Operating Practices. Attachment N (Acceptance Test General Criteria) provides general criteria to be included in the written protocol for the Acceptance Test. Successful completion of the Acceptance Test shall be a condition precedent for the performance of the Control System Acceptance Test and the Commercial Operations Date.

"Act 191": Shall have the meaning set forth in Section 2(b)(i) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).

"Active Power Control Interface": Shall have the meaning set forth in Section 1(g) (Active Power Control Interface) of Attachment B (Facility Owned by Seller) of this Agreement.

[WIND] "Actual Generation": The measured energy delivered from the WTGs to the BOP over a given time period.

"Actual Output": The total quantity of electric energy (measured in kilowatt hours) produced by the Facility over a given time period and delivered to the Point of Interconnection, as measured by the revenue meter. "Actual Output" is the equivalent of "Net Energy."

"Agreement": Shall have the meaning set forth in the preamble before the "Whereas" clauses on page 1 of the document captioned

"Power Purchase Agreement for Renewable Dispatchable Generation".

"Appeal Period": Shall have the meaning set forth in Section 29.20(b) (Non-appealable PUC Approval Order) of this Agreement.

"Applicable NEP Verification Date": For the Initial OEPR, the Initial NEP Verification Date. For any Subsequent OEPR, the first Day of the calendar month following the calendar month during which there occurs the first anniversary of the event (e.g., completion of equipment replacement) which occasioned the preparation of such Subsequent OEPR.

"Applicable Period Lump Sum Payment": For each applicable period (i.e., each calendar month, each Contract Year and each BESS Measurement Period, as applicable), the total amount of Lump Sum Payment payable for such period, as such amount may be calculated and adjusted from time to time as set forth in Section 2.3 (Lump Sum Payment) of this Agreement and/or Section 3 (Calculation of Lump Sum Payment) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement, including but not limited to any downward adjustment made pursuant to Section 3(d) of said Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS), but excluding any set-off of liquidated damages under Section 2.12 (Payment of Liquidated Damages for Failure to Achieve Performance Metrics; Limitation on Liquidated Damages). For purposes of calculating liquidated damages under Section 2.5(a) ([PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric and Liquidated Damages), the "Applicable Period Lump Sum Payment" is the monthly Lump Sum Payment payable for the last calendar month of the [PV System EAF or MPXEEAF] Assessment Period in question. For purposes of calculating liquidated damages under Section 2.6(a) ([GPR or GPI] Performance Metric and Liquidated Damages), the "Applicable Period Lump Sum Payment" is the [MPR or PI] Assessment Period Lump Sum Payment payable for the last calendar month of the [MPR or PI] Assessment Period in question. For purposes of calculating liquidated damages under Section 2.8(a) (BESS Capacity and Liquidated Damages), Section 2.9(a) (BESS Annual Equivalent Availability Factor and Liquidated Damages), Section 2.10 (BESS Annual Equivalent Forced Outage Factor; Liquidated Damages; Termination Rights), and Section 2.11(a) (RTE and Liquidated Damages), the "Applicable Period Lump Sum Payment" is the BESS Allocated Portion of the Lump Sum Payment for the three months of the BESS Measurement Period in question.

"Appraised Fair Market Value of the Facility": Shall have the meaning set forth in Section 3(d) of Attachment P (Sale of Facility by Seller) to this Agreement.

"BAFO": Shall mean Seller's Best and Final Offer, as such term is defined in the RFP.

"BAFO Unit Price": Shall mean the dollar amount per MWh of Net Energy Potential described in Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS), which is based on the Investment Grade Lump Sum Payment, Step-In Agreement Lump Sum Payment, and Non-Investment Grade Lump Sum Payment, as applicable, provided by Seller in its BAFO.

"Battery Energy Storage System" or "BESS": The battery energy storage system as described in Section 5 of Attachment A (Description of Generation, Conversion and Storage Facility) to this Agreement, together with all other equipment, devices, and associated appurtenances owned, controlled, operated and managed by Seller in connection with or to facilitate, the storage, transmission, delivery or furnishing by Seller to Company of the electric energy stored in the BESS.

[PV]"Benchmark Performance Ratio": Shall have the meaning set forth in Section 3(a) (Benchmark Performance Ratio) of Attachment Q (Calculation of Certain Metrics) of this Agreement.

"BESS Allocated Portion of the Lump Sum Payment": For each BESS Measurement Period, an amount equal to fifty percent (50%) of the total of the three monthly Lump Sum Payments for such period without taking into account any set-offs against such monthly Lump Sum Payments.

"BESS Annual Equivalent Availability Factor": Shall be as described in Attachment X (BESS Annual Equivalent Availability Factor) to this Agreement.

"BESS Annual Equivalent Forced Outage Factor": Shall have the meaning set forth in Attachment Y (BESS Annual Equivalent Forced Outage Factor) to this Agreement.

"BESS Aux Loads": The energy that the Facility loses and/or uses in the process of charging and discharging energy under Company dispatch. BESS Aux Loads do not include the load consumed by the BESS when not charging or discharging energy, but connected

to the Company System, as those loads are considered Station Service. BESS Aux Loads are expected to be variable with charging or discharging, and represent an increase in consumption above Station Service while charging or discharging energy.

"BESS Capacity Cure Period": Shall have the meaning set forth in Section 2.8(b) (BESS Capacity Termination Rights).

"BESS Capacity Performance Metric": Shall have the meaning set forth in Attachment W (BESS Tests) to this Agreement.

"BESS Capacity Ratio": Shall have the meaning set forth in Attachment W (BESS Tests) to this Agreement.

"BESS Capacity Test": Shall have the meaning set forth in Attachment W (BESS Tests) to this Agreement.

"BESS Contract Capacity": [REDACTED]/[REDACTED] MW/MWh, which represents the anticipated maximum net instantaneous active power and maximum energy storage capability (MWh stored that represents a 100% State of Charge) for export or import at the Point of Interconnection upon Commercial Operations as proposed by Seller in its RFP Proposal. The BESS Contract Capacity (MW) shall not be less than the Net Nameplate Capacity. **[DRAFTING NOTE: For IGP RFP the BESS Contract Capacity MWh rating for a Paired Facility (PV+BESS or Wind+BESS) must be sized to support the Facility's Net Nameplate Capacity for at least four (4) continuous hours.]**

"BESS EAF Performance Metric": Shall have the meaning set forth in Section 2.9(a) (BESS Annual Equivalent Availability Factor and Liquidated Damages).

"BESS EFOF Performance Metric": Shall have the meaning set forth in Section 2.10 (BESS Annual Equivalent Forced Outage Factor; Liquidated Damages; Termination Rights).

"BESS Measurement Period": Shall mean, in any Contract Year, the following periods of three calendar months each: (i) the period beginning on the first day of the first calendar month of such Contract Year and extending through the last day of the third calendar month of such Contract Year; (ii) the period beginning on the first day of the fourth calendar month of such Contract Year and extending through the last day of the sixth calendar month of such Contract Year; (iii) the period beginning on the first day of the seventh calendar month of such Contract Year

and extending through the last day of the ninth calendar month of such Contract Year; and (iv) the period beginning on the first day of the tenth calendar month of such Contract Year and extending through the last day of the twelfth calendar month of such Contract Year.

"BESS Measurement Period Report": For each BESS Measurement Period, the report of the data necessary for calculation of the Performance Metrics for such BESS Measurement Period to be provided by Seller to Company in the form set forth in Section 1 (Monthly Report) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) to this Agreement or such other form as the Company may approve in writing.

"Bid Cost": Shall have the meaning set forth in Section 2(f)(i) (Evidence of Cost Increases Due to Tariffs) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).

"Bill of Material": A list of equipment to be installed at the Facility including, but not necessarily limited to, items such as relays, breakers, and switches.

[WIND] "BOP": The "balance of the plant", i.e., the infrastructural components of the Facility (excluding the WTG(s) and the BESS) which support transfer of energy between the WTG(s) and the Point of Interconnection. The infrastructure normally consists of the site electrical facilities, SCADA and the civil plant (such as foundations and roads), which support the operation and maintenance of the WTG(s).

[WIND] "BOP Benchmark": The BOP Benchmark shall be determined and re-evaluated as set forth in Section 3(t) (Balance of Plant ("BOP") Efficiency Ratio) of Attachment B (Facility Owned by Seller) to this Agreement.

[WIND] "BOP Efficiency Ratio": The estimated efficiency of the Facility during a given period in delivering to the Point of Interconnection the electric energy produced by the WTG(s).

[WIND] "BOP IE Benchmark Estimate": The estimated BOP Efficiency Ratio associated with the NEP IE Estimate.

"Business Day": Any calendar day that is not a Saturday, a Sunday, or a federal or Hawai'i state holiday.

"Capacity Available for Dispatch": The calculated net potential maximum power production of the Facility reported in megawatts (MW) at the Point of Interconnection taking into account (i) equipment equivalent availability during the period, (ii) the available energy resource (iii) the BESS State of Charge and (iv) Station Service, Generation Aux Loads and BESS Aux Loads.

"Change in Control": Shall have the meaning set forth in Section 1(b) (Change in Ownership Interests and Control of Seller) of Attachment P (Sale of Facility by Seller) to this Agreement.

"Claim": Any claim, suit, action, demand or proceeding.

"Claiming Entity": Shall mean Seller and any direct or indirect owner of a membership interest in Seller which is eligible to claim a Refundable Tax Credit or Non-Refundable Tax Credit in a given year.

"COD Delay LD Period": Shall have the meaning set forth in Section 13.4(a)(2).

"Commercial Operations": Upon satisfaction of the following conditions, the Facility shall be considered to have achieved Commercial Operations on the Day specified in Seller's written notice described below: (i) the Acceptance Test has been passed, (ii) all generating units for the entire Facility have passed a Control System Acceptance Test, (iii) the Transfer Date has occurred, (iv) Seller has (1) provided to Company the Required Models (as defined in Section 6(a) (Seller's Obligation to Provide Models) of Attachment B (Facility Owned by Seller)) in the form of Source Code, (2) placed the current version of the Source Code for the Required Models with the Source Code Escrow Agent as required in Section 6(b)(i)(A) (Establishment of Source Code Escrow) of Attachment B (Facility Owned by Seller), or (3) if Seller is unable to arrange for the placement of the appropriate Source Code into the Source Code Escrow account, Seller has issued a Source Code LC as required in Section 6(b)(ii)(A) (Establishment of Source Code Security) of Attachment B (Facility Owned by Seller), (v) Seller has demonstrated that the Facility satisfies the BESS Capacity Performance Metric and RTE Performance Metric, in accordance with the terms of Attachment W (BESS Tests), and (vi) Seller provides Company with written notice that (aa) Seller is ready to declare the Commercial Operations Date and (bb) the Commercial Operations Date will occur within 24 hours (i.e., the next Day).

"Commercial Operations Date" or "COD": The date on which Facility first achieves Commercial Operations.

"Company": Shall have the meaning set forth in the preamble to the Agreement.

[WIND] "Company-Designated BOP Benchmark": The BOP Benchmark associated with the Company-Designated NEP Estimate as designated by Company pursuant to Section 1(c) (NEP IE Estimate and Company-Designated NEP Estimate) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement.

"Company-Designated NEP Estimate": The estimated Net Energy Potential of the Facility as designated by Company pursuant to Section 1(c) (NEP IE Estimate and Company-Designated NEP Estimate) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement.

"Company Dispatch": Company's right, through supervisory equipment or otherwise, to direct or control both the capacity and the energy output of the Facility from its minimum output rating to its maximum output rating consistent with this Agreement (including, without limitation, Good Engineering and Operating Practices and the requirements set forth in Section 3 (Technical and Operational Requirements) of Attachment B (Facility Owned by Seller) to this Agreement), which dispatch shall include real power, reactive power, voltage, frequency, the determination to cycle a unit off-line or to restart a unit, the droop control setting, the Ramp Rate setting, and other characteristics of such electric energy output whose parameters are normally controlled or accounted for in a utility dispatching system.

"Company Milestone Date": Shall have the meaning set forth in Section 13.8 (Company Milestones).

"Company Milestones": Each of the milestones identified as such in Attachment K-1 (Seller's Conditions Precedent and Company Milestones).

"Company-Owned Interconnection Facilities": Shall have the meaning set forth in Section 1(a) (General) of Attachment G (Company-Owned Interconnection Facilities).

"Company Request": Each Technical and Operational Requirements Information Request, each RPS Information Request, and each Resilience Requirements Information Request.

"Company System": The electric system owned and operated by Company (to include any non-utility owned facilities) consisting of power plants, transmission and distribution lines, and related equipment for the production and delivery of electric power to the public.

"Company System Operator": The authorized representative of Company who is responsible for carrying out Company dispatch and curtailment of electric energy generation interconnected to the Company System.

"Company's Recommendations": Shall have the meaning set forth in Section 4(c) of Attachment B (Facility Owned by Seller) to this Agreement.

"Competitive Bidding Framework": The Framework for Competitive Bidding contained in Decision and Order No. 23121 issued by the Public Utilities Commission on December 8, 2006, and any subsequent orders providing for modifications from those set forth in Order No. 23121 issued December 8, 2006.

"Construction Delay LD Period": Shall have the meaning set forth in Section 13.4(a)(1).

"Construction Financing Closing Milestone": Shall have the meaning set forth in Attachment K (Guaranteed Project Milestones).

"Construction Milestones": The Reporting Milestones set forth in Attachment L (Reporting Milestones) and the Guaranteed Project Milestones set forth in Attachment K (Guaranteed Project Milestones).

"Consultants List": Shall have the meaning set forth in Section 4(e) of Attachment B (Facility Owned by Seller) to this Agreement.

"Consumer Advocate": Shall have the meaning set forth in Section 24.2 (Confidentiality).

"Contract Capacity": kW, which represents the anticipated maximum net instantaneous active power for export at the Point

of Interconnection of the Facility upon Commercial Operations as proposed by Seller in its RFP Proposal.

"Contract Pricing": The total of the Energy Payment (if any) and the Lump Sum Payment.

"Contract Year": A twelve (12) calendar month period commencing on either: (i) the Commercial Operations Date (if the Commercial Operations Date occurs on the first Day of a calendar month) and thereafter on each anniversary of the Commercial Operations Date; or (ii) the first Day of the calendar month following the month during which the Commercial Operations Date occurs, and thereafter on each anniversary of the first Day of such month; provided, however, that, in the latter case, the initial Contract Year shall also include the Days from the Commercial Operations Date to the first Day of the succeeding calendar month.

"Contractors": Shall have the meaning set forth in Section 2(a)(i) of Attachment G (Company-Owned Interconnection Facilities) to this Agreement.

"Control System Acceptance Test(s)" or "CSAT": A test or tests performed on the centralized and collective control systems and Active Power Control Interface of a Pre-CSAT Partial Installation, as applicable, and the Facility, which includes successful completion of the Control System Telemetry and Control List, in accordance with procedures set forth in Section 1(h) (Control System Acceptance Test Procedures) of Attachment B (Facility Owned by Seller). Attachment O (Control System Acceptance Test Criteria) provides general criteria to be included in the written protocol for the Control System Acceptance Test.

"Control System Telemetry and Control List": The Control System Telemetry and Control List includes, but is not limited to, all of the Facility's equipment and generation performance/quality parameters that will be monitored, alarmed and/or controlled by Company's Energy Management System (EMS) throughout the Term of this Agreement.

Examples of the Control System Telemetry and Control List include:

- Seller's substation/equipment status - breaker open/closed status, equipment normal/alarm operating status, etc.
- Seller's generation data (analog values) - number of generators available/online, voltage, current, MW, MVAR, etc.
- Seller's generation performance (status and/or analog values) - Ramp Rate, generator frequency, etc.
- Active Power control interface - dispatch MW setpoint, etc.
- Voltage control interface - voltage kV setpoint, etc.
- Power factor control interface - power factor setpoint, etc.

"Covered Entities": Shall mean the International Brotherhood of Electrical Workers, Local 1260, the Bricklayers & Allied Craftworkers, Local Union 1, the Operating Engineers, Local Union 3, District Council 50 (Local Union 1791, Local Union 1889, Local Union 1926, and Local Union 1944), the Elevator Constructors, Local Union 126, the Heat & Frost Insulators & Allied Workers, Local Union 132, the United Union of Roofers, Waterproofers & Allied Workers, Local Union 221, the International Association of Sheet Metal, Air, Rail & Transportation Workers, Local Union 293, the Laborers International Union of North America, Local Union 368, the Iron Workers, Local Union 625, the International Brotherhood of Boilermakers, Local Union 627, the Operative Plasterers and Cement Masons, Local Union 630, the Plumbers and Fitters, Local Union 675, the Hawaii Teamsters & Allied Workers, Local Union 996, and the International Brotherhood of Electrical Workers, Local Union 1186.

"Daily Delay Damages": \$ [REDACTED] per Day. **[DRAFTING NOTE: Calculate as follows: (Contract Capacity X \$50/kW ÷ 180 Days = Daily Delay Damages.)]**

"Day": A calendar day.

"Defaulting Party": The Party whose failure, action or breach of its obligations under this Agreement results in an Event of Default under Article 15 (Events of Default) of this Agreement.

"Development Period Security": An amount equal to \$50/kW of the Contract Capacity.

"Disconnection Event": Shall have the meaning set forth in Section 4(a) of Attachment B (Facility Owned by Seller) to this Agreement.

"Dispute": Shall have the meaning set forth in Section 28.1 (Good Faith Negotiations).

"E-mail": Shall have the meaning set forth in Section 29.3 (Notices).

"Effective Date": Shall mean the same date as the Non-appealable PUC Approval Order Date.

"EMS" or "Energy Management System": The real-time, computer-based control system, or any successor thereto, used by Company to manage the supply and delivery of electric energy to its consumers. It provides the Company System Operator with an integrated set of manual and automatic functions necessary for the operation of the Company System under both normal and emergency conditions. The EMS provides the interfaces for the Company System Operator to perform real-time monitoring and control of the Company System, including but not limited to monitoring and control of the Facility for system balancing, supplemental frequency control and economic dispatch as prescribed in this Agreement.

"Energy Cost Recovery Clause": The provision in Company's rate schedules that allows Company to pass through to its customers Company's costs of fuel and purchased power energy.

"Energy Payment": The amount (if any) that Company will pay Seller for electric energy delivered to Company in accordance with the terms and conditions of this Agreement on a monthly basis as set forth in Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement.

"Engineering and Design Work": Shall have the meaning set forth in Section 3(a) (Seller Payment to Company) of Attachment G (Company-Owned Interconnection Facilities).

"Environment": Shall have the meaning set forth in Section 1(b)(iii)(G)(3) (Endpoint and Server Security) of Attachment B (Facility Owned by Seller) to this Agreement.

"Environmental Credits": Any environmental credit, offset, or other benefit allocated, assigned or otherwise awarded by any

Governmental Authority, international agency, or non-governmental renewable energy certificate accounting and verification organization to Company or Seller based in whole or in part on the fact that the Facility is a non-fossil fuel facility. Such Environmental Credits shall include, without limitation, the non-energy attributes of renewable energy including, but not limited to, any avoided emissions of pollutants to the air, soil, or water such as sulfur dioxide, nitrogen oxides, carbon monoxide, particulate matter, and hazardous air pollutants; any other pollutant that is now or may in the future be regulated under the pollution control laws of the United States; and avoided emissions of carbon dioxide and any other greenhouse gas, along with the renewable energy certificate reporting rights to these avoided emissions, but in all cases shall not mean tax credits.

"EPC Contractor": Shall mean Seller's engineering, procurement and construction contractor for the Facility.

"Escrow Agent": Shall have the meaning set forth in Section 14.9 (L/C Proceeds Escrow).

"Event of Default": Shall have the meaning set forth in Article 15 (Events of Default) of this Agreement.

"Excess Energy Conditions": An operating condition on the Company System that may occur when Company has more energy available than is required to meet the load on the Company System at any point in time and the generating assets interconnected with the Company System are operating at or near their minimum levels, taking into consideration factors such as the need to maintain system reliability and stability under changing system conditions and configurations, the need for downward regulating reserves, the terms and conditions of power purchase agreements for base-loaded firm capacity or scheduled energy, and the normal minimum loading levels of such units.

"Exclusive Negotiation Period": Shall have the meaning set forth in Section 2(b) (Negotiations) of Attachment P (Sale of Facility by Seller) to this Agreement.

"Execution Date": The date designated as such on the first page of this Agreement or, if no date is so designated, the date the Parties exchanged executed signature pages to this Agreement.

"Exempt Sales": Shall have the meaning set forth in Section 1(c) (Exempt Sales) of Attachment P (Sale of Facility by Seller) to this Agreement.

"Existing Tariffs": Shall have the meaning set forth in Section 2(g) (Tariff Rate Reduction) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).

[WIND] "Expected Generation": The theoretical production of the WTGs over a given period of time based on the measured meteorological data during such period and the WTG Measured Power Curve, calculated as set forth in Section 5 (Calculation of Expected Generation for Each WTG) of Attachment Q (Calculation of Certain Metrics).

"Facility": Seller's renewable electric energy facility that is the subject of this Agreement, including the [PV System or WTGs, the BOP], the BESS, all Seller-Owned Interconnection Facilities and all other equipment, devices, associated appurtenances owned, controlled, operated and managed by Seller in connection with, or to facilitate, the production, generation, storage, transmission, delivery or furnishing of electric energy by Seller to Company and required to interconnect with the Company System.

"Facility Debt": The obligations of Seller and its affiliates to any lender pursuant to the Financing Documents, including without limitation, principal of, premium and interest on indebtedness, fees, expenses or penalties, amounts due upon acceleration, prepayment or restructuring, swap or interest rate hedging breakage costs and any claims or interest due with respect to any of the foregoing.

"Facility Lender": Any lender(s) or tax equity financing party providing any Facility Debt and any successor(s) or assigns thereto, collectively.

"FASB": Shall have the meaning set forth in Section 24.1 (Financial Compliance).

"FASB ASC 810": Shall have the meaning set forth in Section 24.1 (Financial Compliance).

"FASB ASC 842": Shall have the meaning set forth in Section 24.1 (Financial Compliance).

"Federal Non-Refundable Tax Credit": Shall mean any U.S. federal tax credit for which the federal government is not required to refund any tax credit which exceeds the tax payments due to the federal government by the Claiming Entity or to provide a cash rebate in lieu of such credit to the Claiming Entity.

"Federal Refundable Tax Credit": Shall mean any U.S. federal tax credit for which the federal government is required to refund any tax credit which exceeds the tax payments due to the federal government by the Claiming Entity or to provide a cash rebate in lieu of such credit to the Claiming Entity.

"Final Non-appealable Order from the PUC": Shall have the meaning set forth in Section 5(d) of Attachment P (Sale of Facility by Seller) to this Agreement.

"Financial Compliance Information": Shall have the meaning set forth in Section 24.1 (Financial Compliance).

"Financial Termination Costs": Shall have the meaning set forth in Section 6 (Make Whole Amount) of Attachment P (Sale of Facility by Seller) to this Agreement.

"Financing Cost Comparison": Shall mean a cost comparison, confirmed as accurate by an officer of Seller (or other documentation reasonably acceptable to Company), and which illustrates the difference between the (1) financing costs Seller estimated for each of its construction financing and its long-term financing, as applicable, when it submitted its BAFO, consistent with the indicative costs and fees and any other documentation Seller received from potential lenders and financing parties (and submitted as part of its RFP Proposal) supporting such estimated financing costs, and (2) Seller's actual financing costs for its construction financing or long-term financing, as applicable, as supported by executed financing agreements and/or other documentation of costs paid by Seller to lenders or other financing parties to complete the Construction Financing Closing Milestone or to close on long-term financing, as applicable.

"Financing Documents": The loan and credit agreements, notes, bonds, indentures, security agreements, lease financing agreements, mortgages, deeds of trust, interest rate exchanges, swap agreements and other documents relating to the development, bridge, construction and/or permanent debt financing for the Facility, including any credit enhancement, credit support,

working capital financing, tax equity financing or refinancing documents, and any and all amendments, modifications, or supplements to the foregoing that may be entered into from time to time by and at the discretion of Seller and/or its affiliates in connection with financing for the development, construction, ownership, leasing, operation or maintenance of the Facility.

"Financing Purposes": Shall have the meaning set forth in Section 1(c) (Exempt Sales) of Attachment P (Sale of Facility by Seller) to this Agreement.

"First Benchmark Period": The period commencing on the Commercial Operations Date and ending on the last Day of the calendar month during which an OEPR Evaluator issues the Initial OEPR. During the First Benchmark Period, the First NEP Benchmark shall be the estimate of Net Energy Potential that is used to calculate the Lump Sum Payment as provided in Section 3(a) (Lump Sum Payment During First Benchmark Period) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement.

"First NEP Benchmark": The estimate of Net Energy Potential that is used to calculate the Lump Sum Payment during the First Benchmark Period as provided in Section 3(a) (Lump Sum Payment During First Benchmark Period) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement. The First NEP Benchmark shall consist of whichever of the following is applicable as of the Commercial Operation Date, as more fully provided in Section 1(c) (NEP IE Estimate and Company-Designated NEP Estimate) and Section 1(d) (NEP IE Estimate, Liquidated Damages and Seller's Null and Void Right) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement: (i) NEP RFP Projection, (ii) NEP IE Estimate, (iii) Company-Designated NEP Estimate or (iv) such other amount as the Parties may agree in writing.

"First OEPR": Shall have the meaning set forth in Section 4(f) (Timeline and Fees) of this Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement.

"Force Majeure": An event that satisfies the requirements of Section 21.1 (Definition of Force Majeure) and is consistent with Section 21.2 (Events That Could Qualify as Force Majeure) but not excluded by Section 21.3 (Exclusions From Force Majeure).

"Force Majeure Notice": Shall have the meaning set forth in Section 21.4 (Satisfaction of Certain Conditions).

"Full Dispatch": A time period during which all inverters are available and there are no technical restrictions or limitations affecting generation imposed to meet Company Dispatch.

"GAAP": Shall have the meaning set forth in Section 24.5(a) (Consolidation).

"GDPIPD" or "Gross Domestic Product Implicit Price Deflator": Shall mean the index value shown in the United States Department of Commerce, Bureau of Economic Analysis ("BEA") publication entitled "Implicit Price Deflators for Gross Domestic Product", Table 1.1.9, Line 1, for each quarter of the calendar year (BEA Interactive Data Application), or a successor publication or index, which may be used to adjust the BAFO Unit Price.

"GDPIPD_{BAFO Submission}": [insert value], which represents the GDPIPD as of the calendar quarter in which Seller submitted its BAFO.

"GDPIPD_{PUC Approval}": Shall mean the latest GDPIPD released as of the PUC Approval Order Date.

"GDPIPD Compare Rate": Shall have the meaning set forth in Section 2(d) (BAFO Unit Price Adjustment) to Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).

"Generation System Aux Loads": The energy that the Facility loses and or uses in the process of producing energy under Company dispatch. Generation System Aux Loads do not include the load consumed by the System when not producing energy, but connected to the Company System, as those loads are considered Station Service. Generation System Aux Loads are expected to be variable with Facility production, and represent an increase in consumption above Station Service during production.

"GHG Letter Agreement": Shall mean the letter agreement and any written, signed amendments thereto, between Company and Seller that collectively describe the scope, schedule, and payment arrangements for the greenhouse gas emissions analysis to be completed in connection with the application with the PUC for regulatory approval of this Agreement.

"Good Engineering and Operating Practices": The practices, methods and acts engaged in or approved by a significant portion

of the electric utility industry for similarly situated U.S. facilities, considering Company's isolated island setting, that at a particular time, in the exercise of reasonable judgment in light of the facts known or that reasonably should be known at the time a decision is made, would be expected to accomplish the desired result in a manner consistent with law, regulation, reliability for an island system, safety, environmental protection, economy and expedition. With respect to the Facility, Good Engineering and Operating Practices include, but are not limited to, taking reasonable steps to ensure that:

- (a) Adequate materials, resources and supplies, including spare parts inventories, are available to meet the Facility's needs under normal conditions and reasonably foreseeable abnormal conditions.
- (b) Sufficient operating personnel are available and are adequately experienced and trained to operate the Facility properly, efficiently and within manufacturer's guidelines and specifications and are capable of responding to emergency conditions.
- (c) Preventive, routine and non-routine maintenance and repairs are performed on a basis that ensures reliable long-term and safe operation, and are performed by knowledgeable, trained and experienced personnel utilizing proper equipment, tools, and procedures.
- (d) Appropriate monitoring and testing is done to ensure equipment is functioning as designed and to provide assurance that equipment will function properly under both normal and reasonably foreseeable abnormal conditions.
- (e) Equipment is operated in a manner safe to workers, the general public and the environment and in accordance with equipment manufacturer's specifications, including, without limitation, defined limitations such as temperature, current, frequency, polarity, synchronization, control system limits, etc.
- (f) Equipment and components are designed and manufactured to meet or exceed the standard of durability that is generally used for similarly situated renewable energy facilities, considering Company's isolated island setting, and will function properly over the full range of ambient temperature and weather conditions

reasonably expected to occur at the Site and under both normal and emergency conditions.

"Governmental Approvals": All permits, licenses, approvals, certificates, entitlements and other authorizations issued by Governmental Authorities, as well as any agreements with Governmental Authorities, required for the construction, ownership, operation and maintenance of the Facility and the Company-Owned Interconnection Facilities, and all amendments, modifications, supplements, general conditions and addenda thereto.

"Governmental Authority": Any federal, state, local or municipal governmental body; any governmental, quasi-governmental, regulatory or administrative agency, commission, body or other authority exercising or entitled to exercise any administrative, executive, judicial, legislative, policy, regulatory or taxing authority or power; or any court or governmental tribunal.

"[GPR or GPI] Performance Metric": Shall have the meaning set forth in Section 2.6(a) ([GPR or GPI] Performance Metric and Liquidated Damages) of this Agreement.

"Guaranteed Commercial Operations Date": , which is the date Seller guarantees that it will achieve the Commercial Operations Date.

"Guaranteed Procurement Payment Date": The date specified in Attachment K (Guaranteed Project Milestones) that Seller shall make payment to Company of the amount required under Section 3(b)(iii) (Balance of Company-Owned Interconnection Facilities Prepayment) of Attachment G (Company-Owned Interconnection Facilities).

"Guaranteed Project Milestone": Each of the milestone events identified in Attachment K (Guaranteed Project Milestones) of this Agreement.

"Guaranteed Project Milestone Date": Each of the milestone dates identified in Attachment K (Guaranteed Project Milestones) of this Agreement.

"Hawai'i Investment Tax Credit": Shall mean a credit against Hawai'i source income for which Seller is eligible on the Commercial Operations Date or thereafter because of investment in renewable energy technologies incorporated into the Facility.

"Hawai'i Non-Refundable Tax Credit": Shall mean any Hawai'i Investment Tax Credit for which the State of Hawai'i is not required to refund any tax credit which exceeds the tax payments due to the State of Hawai'i by the Claiming Entity or to provide a cash rebate in lieu of such credit to the Claiming Entity.

"Hawai'i Production Tax Credit": Shall mean a credit against Hawai'i source income for which Seller is eligible on the Commercial Operations Date or thereafter because of the energy produced by the Facility.

"Hawai'i Refundable Tax Credit": Shall mean any Hawai'i Investment Tax Credit for which the State of Hawai'i is required to refund any tax credit which exceeds the tax payments due to the State of Hawai'i by the Claiming Entity or to provide a cash rebate in lieu of such credit to the Claiming Entity.

"Hawai'i Renewable Energy Tax Credit": The Hawai'i Investment Tax Credit and the Hawai'i Production Tax Credit.

"HEI": Shall have the meaning set forth in Section 19.7 (Assignment By Company).

"HERA": The Hawai'i Electric Reliability Administrator.

"HERA Law": Act 166 (Haw. Leg. 2012), which was passed by the 27th Hawai'i Legislature in the form of S.B. No. 2787, S.D. 2, H.D.2, C.D.1 on May 2, 2012 and signed by the Governor on June 27, 2012. The effective date for the law is July 1, 2012. The HERA Law authorizes (i) the PUC to develop, adopt, and enforce reliability standards and interconnection requirements, (ii) the PUC to contract for the performance of related duties with a party that will serve as the HERA, and (iii) the collection of a Hawai'i electricity reliability surcharge to be collected by Hawai'i's electric utilities and used by the HERA. Reliability standards and interconnection requirements adopted by the PUC pursuant to the HERA Law will apply to any electric utility and any user, owner, or operator of the Hawai'i electric system. The PUC also is provided with the authority to monitor and compel the production of data, files, maps, reports, or any other information concerning any electric utility, any user, owner or operator of the Hawai'i electric system, or other person, business, or entity, considered by the Commission to be necessary for exercising jurisdiction over interconnection to

the Hawai'i electric system, or for administering the process for interconnection to the Hawai'i electric system.

"IE Energy Assessment Report": The bankable energy assessment report (including but not limited to an assessment of the Facility's Net Energy Potential) prepared for the Facility Lender by an independent engineer as part of the Facility Lender's due diligence leading up to the Facility Lender's legally binding commitment to provide a specific amount of financing for the Project as evidenced by the Facility Lender's execution of the Financing Documents.

"Indemnified Company Party": Shall have the meaning set forth in Section 17.1(a) (Indemnification Against Third Party Claims) of this Agreement.

"Indemnified Seller Party": Shall have the meaning set forth in Section 17.2(a) (Indemnification Against Third Party Claims) of this Agreement.

"Independent AF Evaluator": A person empowered, pursuant to Section 4(a) (Appointment of Independent AF Evaluator) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) to resolve disagreements due to failure of the Parties to resolve a Monthly Report Disagreement.

"Independent Evaluator": A person empowered, pursuant to Section 23.5 (Failure to Reach Agreement) and Section 23.10 (Dispute) of this Agreement, to resolve disputes due to failure of the Parties to agree on a Technical and Operational Requirements Revision Document.

"Independent Tax Expert": Shall mean a person (i) with experience and knowledge in the field of tax equity project finance for utility scale electric generating facilities and in the field of the Hawai'i Renewable Energy Tax Credit and (ii) who is neutral, impartial and not predisposed to favor either Party.

"Initial NEP OEPR Estimate": The NEP OEPR Estimate set forth in or derived from the Initial OEPR, as more fully set forth in Section 4(e) (Terms of Engagement) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement.

"Initial NEP Verification Date": The first Day of the calendar month following the [[PV]fifteenth (15th) or [Wind]twenty-fourth (24th)] calendar month after the Commercial Operations Date.

"Initial OEPR": The OEPR to be prepared pursuant in Section 2 (Initial OEPR) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement.

"Initial Term": Shall have the meaning set forth in Section 12.1 (Term).

"Interconnection Facilities": The equipment and devices required to permit the Facility to operate in parallel with, and deliver electric energy to, the Company System and provide reliable and safe operation of, and power quality on, the Company System (in accordance with applicable provisions of the PUC's General Order No. 7, Company tariffs, operational practices, interconnection requirements studies, and planning criteria), such as, but not limited to, transmission and distribution lines, transformers, switches, and circuit breakers.

"Interconnection Requirements Study" or "IRS": A study, performed in accordance with the terms of the IRS Letter Agreement to determine, among other things, (a) the system requirements and equipment requirements to interconnect the Facility with the Company System, (b) the Technical and Operational Requirements for the Facility, and (c) an estimate of interconnection costs and project schedule for interconnection of the Facility.

"Interface Block Diagram": The visual representation of the signals between Seller and Company, including but not limited to, Telemetry and Control points, digital fault recorder settings, telecommunications and protection signals.

"Investment Grade Lump Sum Payment": Shall mean the Investment Grade Lump Sum Payment (\$/year) amount provided by Seller in its BAFO.

"Investment Grade Status": A credit rating for Company's senior unsecured long-term debt obligations or an issuer credit rating for the Company, in each case, without regard for third-party credit enhancements, meeting at least two out of three of the following:

- (1) BBB- or higher for S&P Global Ratings, or any successor by law;
- (2) BAA3 or higher by Moody's Investor Services, Inc., or any successor by law; or
- (3) BBB- or higher by Fitch Ratings, Inc., or any successor by law.

"IRS Letter Agreement": The system impact study and Facility study letter agreement and any written, signed amendments thereto, between Company and Seller that collectively describe the scope, schedule, and payment arrangements for the Interconnection Requirements Study.

"kV": Kilovolt.

"kW": Kilowatt. Unless expressly provided otherwise, all kW values stated in this Agreement are alternating current values and not direct current values.

"Land Rights": All easements, rights of way, licenses, leases, surface use agreements and other interests or rights in real estate.

"Laws": All federal, state and local laws, rules, regulations, orders (including, but not limited to, executive orders), ordinances, permit conditions and other governmental actions.

"L/C Proceeds": Shall have the meaning set forth in Section 14.8 (Failure to Renew or Extend Letter of Credit).

"LD Assessment Date": For purposes of assessing liquidated damages for failure to satisfy any of the Performance Metrics, the "LD Assessment Date" is the Day following the expiration of the 10-Business Day period provided for Company to submit, pursuant to Section 2(a) (Notice of Disagreement With Monthly Report) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) to this Agreement, a Notice of Monthly Report Disagreement concerning any calculation material to the assessment of such liquidated damages.

"LDT": Shall have the meaning set forth in Section 2.11(a) (RTE and Liquidated Damages).

"Losses": Any and all direct, indirect or consequential damages, fines, penalties, deficiencies, losses, liabilities (including settlements and judgments), costs, expenses (including reasonable attorneys' fees and court costs) and disbursements.

"Lowest BESS Capacity Bandwidth": Shall have the meaning set forth in Section 2.8(a) (BESS Capacity and Liquidated Damages).

"Lump Sum Payment": The payment to be made by Company to Seller in exchange for (i) the Actual Output produced by the Facility and delivered to the Point of Interconnection in response to Company's Dispatch of the Facility, (ii) the availability of the Facility's Net Energy Potential for Company Dispatch in accordance with this Agreement and (iii) the availability of the BESS. When necessary to account for the availability of some but not all of the Facility, the amount of the monthly Lump Sum Payment is to be allocated pro rata to each individual unit and shall be calculated and adjusted as provided in Section 3 (Calculation of Lump Sum Payment) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement.

"Make Whole Amount": Shall have the meaning set forth in Section 6 (Make Whole Amount) of Attachment P (Sale of Facility by Seller).

"Malware": means computer software, code or instructions that: (a) intentionally, and with malice intent by a third party, adversely affect the operation, security or integrity of a computing, telecommunications or other digital operating or processing system or environment, including without limitation, other programs, data, databases, computer libraries and computer and communications equipment, by altering, destroying, disrupting or inhibiting such operation, security or integrity; (b) without functional purpose, self-replicate without manual intervention; (c) purport to perform a useful function but which actually performs either a destructive or harmful function, or perform no useful function other than utilize substantial computer, telecommunications or memory resources with the intent of causing harm; or (d) without authorization collect and/or transmit to third parties any information or data; including such software, code or instructions commonly known as viruses, Trojans, logic bombs, worms, adware and spyware.

"Management Meeting": Shall have the meaning set forth in Section 28.1 (Good Faith Negotiations).

[PV] "Measured Performance Ratio" or "MPR": Shall have the meaning set forth in Section 2 (Calculation of Measured Performance Ratio) of Attachment Q (Calculation of Certain Metrics) of this Agreement.

[WIND] "Measured Power Curve": For each WTG, the measured power curve for such turbine for the initial Contract Year as (i) calculated as set forth in Section 4 (Determination of Measured Power Curve) of Attachment Q (Calculation of Certain Metrics) to this Agreement, (ii) agreed by the Parties as set forth in Section 3(b) (Submission of MPC Disagreement to Independent AF Evaluator) of said Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) or (iii) decided by the Independent AF Evaluator as set forth in Section 4(d) (Written Decision of Independent AF Evaluator) of said Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator).

[WIND] "Measured Wind Speed": For each WTG, the arithmetic mean, over any given period of time, of the wind speed readings from such turbine's nacelle anemometer, taken or sampled every two (2) seconds by the Facility's Monitoring and Communication Equipment, in miles per hour (mph). For calculations under this Agreement based on Measured Wind Speed in m/s, the conversion factor shall be 1 mph = 0.447 m/s.

"MMS or MMT": Meteorological monitoring station or meteorological monitoring tower.

[WIND] "Modified Pooled OMC Equipment Availability Factor" or "MPXEEAF": Shall be calculated for each MPXEEAF Assessment Period as set forth in Section 1 (Calculation of the Modified Pooled OMC Equipment Availability Factor) of Attachment Q (Calculation of Certain Metrics) to this Agreement.

[WIND] "Modified Pooled OMC Equipment Availability Factor Performance Metric": Shall have the meaning set forth in Section 2.5(a) (Modified Pooled OMC Equipment Availability Factor Performance Metric and Liquidated Damages) of this Agreement.

"Modification Pricing Impact": Each Revision Modification Pricing Impact and Resilience Requirements Modification Pricing Impact, as applicable.

"Monitoring and Communication Equipment": Shall have the meaning set forth in Section 6.2 (Monitoring and Communication Equipment) of this Agreement.

"Monthly Progress Report": Shall have the meaning set forth in Section 13.7 (Monthly Progress Report).

"Monthly Report": The report of the data (for the calendar month and for the [PV System EAF or MPXEEAF] Assessment Period, the [MPR or PI] Assessment Period and the BESS Measurement Period ending with such calendar month) necessary for the calculation of Performance Metrics to be provided by Seller to Company as set forth in Section 1 (Monthly Report) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) to this Agreement. Without limitation to the generality of the preceding sentence, references to the Monthly Report for a month that constitutes the final month of a BESS Measurement Period shall be deemed to include the BESS Measurement Period Report for such BESS Measurement Period.

"Monthly Report Disagreement": Any disagreement arising out of a Monthly Report, including whether the applicable Performance Metrics have been satisfied.

"Most Recent Prior NEP Benchmark": In the event a Subsequent OEPR is prepared for an OEPR Period of Record ending on or after the commencement of the [[PV]fourth (4th) or [Wind]sixth (6th)] Contract Year, the "Most Recent Prior NEP Benchmark" shall be (i) for the first such Subsequent OEPR, the Second NEP Benchmark that was used to calculate the Lump Sum Payment for the last month of the Second Benchmark Period pursuant to Section 3(c)(i) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement and (ii) for all Subsequent OEPRs prepared after the aforementioned first Subsequent OEPR, the NEP OEPR Estimate obtained from the immediately preceding Subsequent OEPR.

[WIND]"MPC Disagreement": Shall have the meaning set forth in Section 3(a) (Notice of Disagreement With Determination of Measured Power Curve) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator).

[PV]"MPR": Shall have the meaning set forth in Section 2(a) of Attachment Q (Calculation of Certain Metrics) of this Agreement.

[PV] "MPR Assessment Period": Shall mean, for purposes of calculating a Measured Performance Ratio, a rolling period of twelve (12) consecutive calendar months. At the end of each calendar month, the MPR Assessment Period will roll forward to include the next calendar month. The initial "MPR Assessment Period" shall consist of the 12 full calendar months of the initial Contract Year.

[PV] "MPR Assessment Period Lump Sum Payment": For each MPR Assessment Period, the monthly Lump Sum Payment for the concluding month of such MPR Assessment Period after deducting the amounts (if any) payable as liquidated damages under Section 2.5(a) (PV System Equivalent Availability Factor Performance Metric and Liquidated Damages) for that same calendar month.

[PV] "MPR Test": Shall have the meaning set forth in Section 2(d) (MPR Test) of Attachment Q (Calculation of Certain Metrics) of this Agreement.

[WIND] "MPXEEAF Assessment Period": Shall mean, for purposes of calculating a Modified Pooled OMC Equipment Availability Factor, a rolling period of twelve (12) consecutive calendar months. At the end of each calendar month, the MPXEEAF Assessment Period will roll forward to include the next calendar month and thus create a new MPXEEAF Assessment Period. The initial MPXEEAF Assessment Period shall consist of the 12 full calendar months of the initial Contract Year.

[WIND] "MPXEEAF Assessment Period Lump Sum Payment": For each MPXEEAF Assessment Period, the monthly Lump Sum Payment for the concluding calendar month of such MPXEEAF Assessment Period.

"MW": Megawatt. Unless expressly provided otherwise, all MW values stated in this Agreement are alternating current values and not direct current values.

"NEP IE Estimate": The estimated Net Energy Potential of the Facility to which the IE Energy Assessment Report assigns a P95 as more fully set forth in Attachment U (Calculation and Adjustment of Net Energy Potential).

"NEP OEPR Estimate": For each OEPR, the estimated Net Energy Potential of the Facility to which such OEPR assigns a P95 as more fully set forth in Attachment U (Calculation and Adjustment of Net Energy Potential).

"NEP RFP Projection": The Net Energy Potential of the Facility to which Seller assigned a P95 as more fully set forth in Attachment U (Calculation and Adjustment of Net Energy Potential). The NFP RFP Projection for the Facility as specified in Seller's RFP Proposal is [REDACTED] MWh, which may be adjusted upward pursuant to Section 1(b) (NEP RFP Projection) of Attachment U (Calculation and Adjustment of Net Energy Potential).

"NERC GADS": Shall have the meaning set forth in Section 2.4(a) (Design, Operation and Maintenance to Achieve Required Performance Metrics).

"Net Amount": Shall mean, with respect to any Hawai'i Renewable Tax Credit, the amount remaining after deducting any documented and reasonable financial, legal, administrative and other costs and expenses of applying for, pursuing, monetizing and receiving the applicable Hawai'i Renewable Tax Credit, and all payments to or reserves required by Seller's lenders or other financing parties in connection with the application for or receipt of such Hawai'i Renewable Tax Credit.

"Net Energy": The total quantity of electric energy (measured in kilowatt hours) produced by the Facility over a given time period and delivered to the Point of Interconnection, as measured by the revenue meter. "Net Energy" is the equivalent of "Actual Output."

"Net Energy Potential": The estimated single number with a 95% probability of exceedance (P95) for the annual Net Energy that could be produced by the Facility based on a Renewable Resource Baseline and the estimated losses and uncertainties over a ten-year period. The Net Energy Potential is subject to adjustment as provided in Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement, but in no circumstances shall the Net Energy Potential exceed the NEP RFP Projection.

"Net Nameplate Capacity": Shall mean the kW value set forth as the Net Nameplate Capacity in Attachment A (Description of Generation, Conversion and Storage Facility) to this Agreement.

"Net Tariff Increase": Shall have the meaning set forth in Section 2(f)(iii) (Calculation of Net Tariff Increase and Tariff Rate Adjustment) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).

"New Tariffs": Shall have the meaning set forth in Section 2(f) (Tariff Rate Adjustment) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).

"New Tariff Cost": Shall have the meaning set forth in Section 2(f)(i) (Evidence of Cost Increases Due to Tariffs) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).

"Non-appealable PUC Approval Order": Shall have the meaning set forth in Section 29.20(b) (Non-appealable PUC Approval Order) of this Agreement.

"Non-appealable PUC Approval Order Date": Shall have the meaning set forth in Section 29.20(d) (Non-appealable PUC Approval Order Date) of this Agreement.

"Non-defaulting Party": Shall have the meaning set forth in Section 15.4 (Rights of the Non-Defaulting Party; Forward Contract) of this Agreement.

"Non-Investment Grade Lump Sum Payment": Shall mean the Non-Investment Grade Lump Sum Payment (\$/year) amount provided by Seller in its BAFO.

"Non-performing Party": The Party who is in breach of, or is otherwise failing to perform, its obligations under this Agreement.

[WIND]"Notice of Disagreement": A Notice of Monthly Report Disagreement or Notice of MPC Disagreement, as applicable.

"Notice of Monthly Report Disagreement": Shall have the meaning set forth in Section 2(a) (Notice of Disagreement With Monthly Report) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) to this Agreement.

[WIND]"Notice of MPC Disagreement": The written notice of MPC Disagreement submitted by Seller within the 30-Day period set forth in Section 3(a) (Notice of Disagreement With Measured Power Curve Determination) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) to this Agreement.

"OEPR": An Operational Energy Production Report, including the Initial OEPR and each Subsequent OEPR.

"OEPR Conference": Shall have the meaning set forth in Section 4(g) (Review of the First OEPR Evaluator Report) of this Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement.

"OEPR Consultants List": The engineering firms identified as provided in Section 4(j) (Acceptable Persons and Entities) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement, as such list may be expanded or contracted by the Parties as provided in Section 4(b) (Eligibility for Appointment as OEPR Evaluator) of said Attachment U (Calculation and Adjustment of Net Energy Potential) or Section 4(b) (Eligibility for Appointment as Independent AF Evaluator) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) to this Agreement.

"OEPR Evaluator": Shall have the meaning set forth in Section 4(a) (Selection of OEPR Evaluator) of Attachment U (Calculation and Adjustment of Net Energy Potential) of this Agreement.

"OEPR Period of Record": For each OEPR, the twelve-month period preceding the Applicable NEP Verification Date for such OEPR.

"Offer Date": Shall have the meaning set forth in Section 1(a)(i) of Attachment P (Sale of Facility by Seller) to this Agreement.

"Offer Materials": Shall have the meaning set forth in Section 1(a)(i) of Attachment P (Sale of Facility by Seller) to this Agreement.

"Offer Notice": Shall have the meaning set forth in Section 1(a)(i) of Attachment P (Sale of Facility by Seller) to this Agreement.

"Offer Price": Shall have the meaning set forth in Section 1(a)(i) of Attachment P (Sale of Facility by Seller) to this Agreement.

"Operating Period Security": Shall have the meaning set forth in Section 14.4 (Operating Period Security).

"Parent Entity": [REDACTED], a **[state type of entity and jurisdiction of organization]**.

"Parties": Seller and Company, collectively.

"Party": Each of Seller or Company.

[WIND] "Performance Index" or "PI": Shall be calculated as set forth in Section 2 (Calculation of Performance Index) of Attachment Q (Calculation of Certain Metrics) to this Agreement.

"Performance Metric LD Period": For liquidated damages payable under Section 2.5(a) ([PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric and Liquidated Damages), the Performance Metric LD Period is the most recent calendar month of the [PV System EAF or MPXEEAF] Assessment Period in question. For liquidated damages payable under Section 2.6(a) ([GPR or GPI] Performance Metric and Liquidated Damages), the Performance Metric LD Period is the most recent calendar month of the [MPR or PI] Assessment Period in question. For liquidated damages payable under Section 2.8(a) (BESS Capacity and Liquidated Damages), Section 2.9(a) (BESS Annual Equivalent Availability Factor and Liquidated Damages), Section 2.10 (BESS Annual Equivalent Forced Outage Factor; Liquidated Damages; Termination Rights) and Section 2.11(a) (RTE and Liquidated Damages), the Performance Metric LD Period is the three-month period of the BESS Measurement Period in question.

"Performance Metrics": Each of the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric, the [GPR or GPI] Performance Metric, the BESS Capacity Performance Metric, the BESS EAF Performance Metric, the BESS EFOF Performance Metric, and the RTE Performance Metric.

"Performance Metrics LDs": Shall have the meaning set forth in Section 2.12(a) (Payment of Performance Metrics LDs by Seller).

"Permitted Lien": Shall have the meaning set forth in Section 4 (Purchase and Sale Agreement) of Attachment P (Sale of Facility by Seller) to this Agreement.

[WIND] "PI Assessment Period": Shall mean, for purposes of calculating a Performance Index, a rolling period of twelve (12) consecutive calendar months. At the end of each calendar month, the PI Assessment Period will roll forward to include the next calendar month and thus create a new PI Assessment Period. The initial "PI Assessment Period" shall consist of the 12 full calendar months of the initial Contract Year.

[WIND]"PI Assessment Period Lump Sum Payment": For each PI Assessment Period, the monthly Lump Sum Payment for the concluding month of such PI Assessment Period after deducting the amounts (if any) payable as liquidated damages under Section 2.5(a) (Modified Pooled OMC Equipment Availability Factor Performance Metric and Liquidated Damages) for that same calendar month.

[WIND]"PI Test": Shall have the meaning set forth in Section 2(c) (v) (PI Test) of Attachment Q (Calculation of Certain Metrics) to this Agreement.

"Point of Interconnection" or "POI": The point of delivery of electric energy and/or capacity supplied by Seller to Company, depicted in Attachment E (Single-Line Drawing and Interface Block Diagram) based on the results of the IRS, where the Facility owned by the Seller interconnects with the Company System. The Seller shall own and maintain the facilities from the Facility to the Point of Interconnection, excluding any Company-Owned Interconnection Facilities located on the Site. The Company shall own and maintain the facilities from the Point of Interconnection to the Company's system.

"Post-CSAT Partial In-Service Date": Each date from which a Post-CSAT Partial Installation may commence normal operations in parallel with the Company System.

"Post-CSAT Partial Installation": The aggregate of all partial installations (in MW) of the Facility's total Contract Capacity, each approved in accordance with Section 3.4 (Partial Commissioning), which has successfully completed the Control System Acceptance Test

[WIND]"Power Curve": A table of wind speeds and MW at a reference density.

"Power Possible": The calculated potential maximum power production of the Facility reported in megawatts (MW) at the Point of Interconnection taking into account (i) equipment equivalent availability during the period and (ii) the available energy resource. The Power Possible is a telemetered value provided to Company as an analog value (i.e., pure instantaneous).

"Pre-CSAT Partial In-Service Date": Each date from which a Pre-CSAT Partial Installation has been placed into service by

commencing the Control System Acceptance Test by delivering Test Energy to the Point of Interconnection in accordance with this Agreement.

"Pre-CSAT Partial In-Service Notice": Shall have the meaning set forth in Section 3.4 (Partial Commissioning).

"Pre-CSAT Partial Installation": Any partial installation approved in accordance with Section 3.4 (Partial Commissioning), aggregated with the most recent Post-CSAT Partial Installation (in MW), of the Facility's total Contract Capacity which has commenced (but not yet completed) the Control System Acceptance Test.

"Prime Rate": The "prime rate" of interest, as published from time to time by The Wall Street Journal (or the average prime rate if a high and a low prime rate are therein reported). The Prime Rate shall change without notice with each change in the prime rate reported by The Wall Street Journal, as of the date such change is reported. Any such rate is a general reference rate of interest, may not be related to any other rate, may not be the lowest or best rate actually charged by any lender to any customer or a favored rate and may not correspond with future increases or decreases in interest rates charged by lenders or market rates in general.

"Proceeds": Shall have the meaning set forth in Section 6(b)(ii)(C) (Extend Letter of Credit) of Attachment B (Facility Owned by Seller) to this Agreement.

"Proceeds Escrow Agent": Shall have the meaning set forth in Section 6(b)(ii)(D) (Proceeds Escrow) of this Attachment B (Facility Owned by Seller).

"Proceeds Escrow Agreement": Shall mean the escrow agreement between Company and the Proceeds Escrow Agent naming Company as beneficiary thereunder, which agreement shall be acceptable in form and substance to Company.

"Project": The Facility as described in Attachment A (Description of Generation, Conversion and Storage Facility).

"Project Documents": This Agreement, any ground lease or other agreement or instrument in respect of the Site and/or the Land Rights, all construction contracts to which Seller is or becomes a party thereto, operation and maintenance agreements, and all

other agreements, documents and instruments to which Seller is or becomes a party thereto in respect of the Facility, other than the Financing Documents, as the same may be modified or amended from time to time in accordance with the terms thereof.

"Project Equipment": Shall have the meaning set forth in Section 2(f) (Tariff Rate Adjustment) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).

"Proposed Actions": Shall have the meaning set forth in Section 4(c) of Attachment B (Facility Owned by Seller) to this Agreement.

"Proprietary Rights": Shall have the meaning set forth in Section 29.17 (Proprietary Rights) of this Agreement.

"PSA": Shall have the meaning set forth in Section 4 (Purchase and Sale Agreement) of Attachment P (Sale of Facility by Seller) to this Agreement.

"PUC" or "Commission": Shall have the meaning set forth in the Recitals.

"PUC Approval Order": Shall have the meaning set forth in Section 29.20(a) (PUC Approval Order) of this Agreement.

"PUC Approval Order Date": Shall have the meaning set forth in Section 29.20(c) (Company's Written Statement) of this Agreement.

"PUC Approval Time Period": Shall have the meaning set forth in Section 12.6(b) (Time Period for PUC Approval).

"PUC Order Appeal Period": Shall have the meaning set forth in Section 12.6(b) (Time Period for PUC Approval).

"PUC Revision Order": The decision and order of the PUC (i) approving the application or motion by the Parties seeking (a) approval of each Technical and Operational Requirements Revision and each Resilience Requirements Revision in question (if applicable) and (b) approval of the associated Revision Document in question, (ii) finding that the impact of the changes to the Contract Pricing on Company's revenue requirements is reasonable (if applicable), and (iii) approving the inclusion of the costs arising out of pricing changes in Company's Energy Cost Recovery

Clause and/or Company's Purchase Power Adjustment Clause (or equivalent).

"PUC Submittal Date": The date of the submittal of Company's complete application or motion for a satisfactory PUC Approval Order pursuant to Section 12.3 (PUC Approval) of this Agreement.

"PUC's Standards": Standards for Small Power Production and Cogeneration in the State of Hawai'i, issued by the Public Utilities Commission of the State of Hawai'i, Chapter 74 of Title 6, Hawai'i Administrative Rules, currently in effect and as may be amended from time to time.

"Purchased Power Adjustment Clause": The provision in Company's rate schedules that allows Company to pass through to its customers Company's costs of purchased power non-energy.

[PV]"PV System": The photovoltaic solar electric generating project as more particularly described in Attachment A (Description of Generation, Conversion and Storage Facility).

[PV]"PV System EAF Assessment Period": Shall mean, for purposes of calculating a PV System Equivalent Availability Factor, a rolling period of twelve (12) consecutive calendar months. At the end of each calendar month, the PV System EAF Assessment Period will roll forward to include the next calendar month and thus create a new PV System EAF Assessment Period. The initial "PV System Assessment Period" shall consist of the 12 full calendar months of the initial Contract Year.

[PV]"PV System Equivalent Availability Factor": Shall be calculated for each PV System EAF Assessment Period as set forth in Section 1 (Calculation of the PV System Equivalent Availability Factor) of Attachment Q (Calculation of Certain Metrics) of this Agreement.

[PV]"PV System Equivalent Availability Factor Performance Metric": Shall have the meaning set forth in Section 2.5(a) (PV System Equivalent Availability Factor Performance Metric and Liquidated Damages).

"Qualified Consultant": Shall have the meaning set forth in Section 4(e) of Attachment B (Facility Owned by Seller) to this Agreement.

"Ramp Rate": The rate at which the active power output of the Facility is changed in a constant manner over a fixed time in units of MW/minute. The ramp should be a constant slope over the duration of the change in output, and not a step change(s). See Attachment B (Facility Owned by Seller) for the specifications and limits to the Facility Ramp Rate.

"Recipient": Shall have the meaning set forth in Section 24.2 (Confidentiality).

"Renewable Portfolio Standards" or "RPS": The Hawai'i law that mandates that Company and its subsidiaries generate or purchase certain amounts of their net electricity sales over time from qualified renewable resources. The RPS requirements in Hawai'i are currently codified as Hawai'i Revised Statutes (HRS) 269-91 through 269-95.

"Renewable Resource Baseline": The estimated renewable resource potential of the Site for a typical meteorological year, derived using at minimum, long-term solar resource data correlated and adjusted for on-site measurements once available. For avoidance of doubt, the purpose of this term is to provide a short-hand characterization of the nature of the renewable resource risk assumed by the Seller under this Agreement in making its Site selection.

"Reporting Milestones": Each of the milestones identified as such in Attachment L (Reporting Milestones).

"Required Model" or "Required Models": Shall have the meaning set forth in Section 6(a) (Seller's Obligation to Provide Models) of Attachment B (Facility Owned by Seller) of this Agreement.

"Resilience Requirements": The various standards for the Facility and the Company-Owned Interconnection Facility specified in Section 1(b)(iii)(I) (Resilience Requirements) of Attachment B (Facility Owned by Seller) and Section 2(a)(iii) of Attachment G (Company-Owned Interconnection Facility), as such standards may be revised from time to time pursuant to Article 23 (Process for Addressing Certain Revisions) of this Agreement.

"Resilience Requirements Information Request": A written notice from Company to Seller proposing revisions to one or more of the Resilience Requirements then in effect and requesting information from Seller concerning such proposed revision(s).

"Resilience Requirements Modification": For each Resilience Requirements Revision, any capital improvements, additions, enhancements, replacements, repairs or other operational modifications to the Facility and/or to changes in Seller's operations or maintenance practices necessary to enable the Facility to achieve the requirements of such Resilience Requirements Revision that exceed the requirements of any applicable Laws.

"Resilience Requirements Modification Pricing Impact": Any reimbursement as may be necessary to specifically reflect the recovery of the net costs specifically attributable to any Resilience Requirements Modification, which shall consist of the following: (i) recovery of, and return on, any capital investment (aa) made over a cost recovery period starting after the Resilience Requirements Modification is made effective following a PUC Revision Modification Order through the end of the Initial Term and (bb) based on a proposed capital structure that is commercially reasonable for such an investment and the return on investment is at market rates for such an investment or similar investment); (ii) recovery of reasonably expected net additional operating and maintenance costs; and (iii) recovery of reasonably expected applicable federal or state tax credits lost or not obtainable which are directly attributable to the Resilience Requirements Modification.

"Resilience Requirements Proposal": A written communication from Seller to Company detailing the following with respect to a proposed Resilience Requirements Revision: (i) a statement as to whether Seller believes that it is technically feasible to comply with the Resilience Requirements Revision and the basis therefor; (ii) the Resilience Requirements Modifications proposed by Seller to comply with the Resilience Requirements Revision; (iii) the capital and incremental operating costs of any necessary technical improvements, and any other incremental net operating or maintenance costs associated with any necessary operational changes, and any expected lost revenues associated with expected reductions in electric energy delivered to Company; (iv) the Resilience Requirements Modification Pricing Impact of such costs and/or lost revenues; (v) information regarding the effectiveness of such technical improvements or operational modifications; (vi) proposed contractual consequences, that would be commercially reasonable under the circumstances, for failure to comply with the Resilience Requirements Revision; and (vii) such other information as may

be reasonably required by Company to evaluate Seller's proposals. A Resilience Requirements Proposal may be issued either in response to a Resilience Requirements Information Request or on Seller's own initiative; provided, however, that, in accordance with Section 23.3 (Seller Proposal), Company shall have no obligation to evaluate a Resilience Requirements Proposal submitted at Seller's own initiative.

"Resilience Requirements Revision": A revision, as specified in a Resilience Requirements Information Request or a Seller-initiated Resilience Requirements Proposal, to the Resilience Requirements in effect as of the date of such Request or Proposal.

"Resilience Requirements Revision Document": A document specifying one or more Resilience Requirements Revisions and setting forth the changes to the Agreement necessary to implement such Resilience Requirements Revision(s). A Resilience Requirements Revision Document may be either a written agreement executed by Company and Seller or as directed by the Independent Evaluator pursuant to Section 23.10 (Dispute) of this Agreement, in the absence of such written agreement.

"Revision Document": Each Technical and Operational Requirements Revision Document, RPS Revision Document, and Resilience Requirements Revision Document, as applicable.

"Revision Modification": Each Technical and Operational Requirements Modification, RPS Modification, and Resilience Requirements Modification, as applicable.

"Revision Modification Pricing Impact": Any reimbursement, adjustment in Contract Pricing and/or the calculation of Performance Metrics LDs, as may be necessary to specifically reflect the recovery of the net costs and/or net lost revenues specifically attributable to any Technical and Operational Requirements Modification or RPS Modification, which shall consist of the following: (i) recovery of, and return on, any capital investment (aa) made over a cost recovery period starting after the Technical and Operational Requirements Modification or RPS Modification is made effective following a PUC Revision Modification Order through the end of the Initial Term and (bb) based on a proposed capital structure that is commercially reasonable for such an investment and the return on investment is at market rates for such an investment or similar investment); (ii) recovery of reasonably expected net additional

operating and maintenance costs; (iii) recovery of reasonably expected applicable federal or state tax credits lost or not obtainable which are directly attributable to the Technical and Operational Requirements Modification or RPS Modification; and (iv) an adjustment in Contract Pricing or Performance Metrics, as applicable, necessary to compensate Seller for reasonably expected reductions, if any, in the Lump Sum Payment, or reasonably expected increases in Performance Metrics LDs directly related to the Technical and Operational Requirements Modification or RPS Modification.

"Revenue Metering Package": The revenue meter, revenue metering PTs and CTs, and secondary wiring.

"RFP": Company's Request for Proposals for [REDACTED], Island of [REDACTED], issued on [REDACTED], 202[REDACTED], to which Seller responded in proposing this Project.

"RFP Proposal": The documents and submissions comprising Seller's proposal selected in the Final Award Group in response to the RFP.

"Right of First Negotiation Period": Shall have the meaning set forth in Section 1(a)(ii) of Attachment P (Sale of Facility by Seller) to this Agreement.

"RPS Amendment": Any amendment to the RPS subsequent to Effective Date that revises the definition of "renewable electric energy" under the RPS such that the electric energy delivered from the Facility no longer comes within such revised definition.

"RPS Information Request": A written notice from Company to Seller asking Seller to develop and recommend to Company reasonable measures to cause the electric energy delivered from the Facility to come within the revised definition of "renewable electrical energy" under the RPS Amendment in question.

"RPS Modifications": Any capital improvements, additions, enhancements, replacements, repairs or other operational modifications to the Facility and/or to changes in Seller's operations or maintenance practices necessary to enable the electric energy delivered from the Facility to come within the revised definition of "renewable electrical energy" resulting from the RPS Amendment in question.

"RPS Proposal": A written communication from Seller to Company detailing the following in response to a RPS Information Request: (i) a statement as to whether Seller believes that it is technically feasible to for Seller to cause the electric energy delivered from the Facility to come within the revised definition of "renewable electrical energy" under RPS Amendment in question and the basis for that belief; (ii) the RPS Modifications proposed by Seller to achieve that result; (iii) the capital and incremental operating costs of any necessary technical improvements, and any other incremental net operating or maintenance costs associated with any necessary operational changes, and any expected lost revenues associated with expected reductions in electric energy delivered to Company; (iv) the Revision Modification Pricing Impact of such costs and/or lost revenues; (v) information regarding the effectiveness of such technical improvements or operational modifications; (vi) proposed contractual consequences, that would be commercially reasonable under the circumstances, if the RPS Modifications fail to cause the energy delivered from the Facility to come within the revised definition of "renewable electrical energy"; and (vii) such other information as may be reasonably required by Company to evaluate Seller's proposals. A RPS Proposal may be issued either in response to a RPS Information Request or on Seller's own initiative.

"RPS Revision Document": A document specifying one or more measures to cause the electric energy delivered from the Facility to come within the revised definition of "renewable electrical energy" under the RPS Amendment in question. A RPS Revision Document may be either a written agreement executed by Company and Seller or as directed by the Independent Evaluator pursuant to Section 23.10 (Dispute) of this Agreement, in the absence of such written agreement.

"RTE Cure Period": Shall have the meaning set forth in Section 2.11(b) (RTE Termination Rights).

"RTE Performance Metric": %, which represents the lowest acceptable efficiency of the BESS for a full charge and discharge cycle as more fully set forth in Attachment W (BESS Tests). **[DRAFTING NOTE: RTE PERFORMANCE METRIC TO BE TAKEN FROM RESPONSE TO RFP.]**

"RTE Ratio": Shall have the meaning set forth in Attachment W (BESS Tests) to this Agreement.

"SCADA" or "Supervisory Control And Data Acquisition": The Company system that provides remote control and monitoring of Company's transmission and sub-transmission systems and enables Company to perform real-time control of equipment in the field and to monitor the conditions and status of the Company System.

"Second Benchmark Period": The period commencing on the first Day of the calendar month following the month during which an OEPR Evaluator issues the Initial OEPR and ending with the expiration of the [[PV]third (3rd) or [wind]fifth (5th)] Contract Year. For avoidance of doubt, the effect of the foregoing definition is that the Second Benchmark Period will follow immediately upon the expiration of the First Benchmark Period.

"Second NEP Benchmark": For each calendar month during the Second Benchmark Period, the estimate of Net Energy Potential to be used during such calendar month to calculate the Lump Sum Payment pursuant to Section 3(b)(i) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement. For avoidance of doubt, the Second NEP Benchmark may vary during the Second Benchmark Period as and to the extent provided in said Section 3(b)(i).

"Second NUG Contract": Shall have the meaning set forth in Section 1(e) (Revisions to Costs) of Attachment G (Company-Owned Interconnection Facilities) to this Agreement.

"Second OEPR": Shall have the meaning set forth in Section 4(g) (Review of the First OEPR Evaluator Report) of this Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement.

"Second OEPR Evaluator": Shall have the meaning set forth in Section 4(g) (Review of the First OEPR Evaluator Report) of this Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement.

"Section 5": Shall have the meaning set forth in Section 5(g) of Attachment A (Description of Generation, Conversion and Storage Facility) to this Agreement.

"Security Funds": Shall have the meaning set forth in Section 14.6 (Security Funds) of this Agreement.

"Seller": Shall have the meaning set forth in the preamble to the Agreement.

"Seller-Attributable Non-Generation": Refers to time periods during which the individual unit in question (or the Facility as a whole) is not dispatched or is derated or shutdown (or the Facility is disconnected) because of any of the following:

- (i) The Facility's failure to comply with any of the Technical and Operational Requirements, Good Engineering and Operating Practices, Governmental Approvals, Resilience Requirements, applicable Laws or Seller's other obligations under this Agreement;
- (ii) Seller-Attributable System Conditions;
- (iii) Conditions at or on either side of the Point of Interconnection arising from the acts or omissions of Seller or any of its affiliates, employees, agents, contractors, vendors, materialmen, independent contractors or suppliers of Seller, acting in such capacity for the benefit of Seller ("Seller Representatives"), unless such acts or omissions are themselves excused by reasons of Force Majeure pursuant to Article 21 (Force Majeure) of this Agreement;
- (iv) A disconnection initiated by the Company pursuant to this Article 9 (Personnel and System Safety) of this Agreement that is caused by Seller or any Seller Representatives;
- (v) The Company has reasonably decided that it is inadvisable for such individual unit (or the Facility as a whole) to continue normal operations without a further Control System Acceptance Test as provided in Section 7(a) (Testing Requirements) of Attachment B (Facility Owned by Seller);
- (vi) The Facility is deemed to be in Seller-Attributable Non-Generation status under any of the following Sections of Attachment B (Facility Owned by Seller): Section 1(g)(vi), Section 1(j) (Demonstration of Facility) or Section 4(e);
- (vii) The Facility is shutdown at the direction of Company as provided in Section 6.4 (Shutdown for Lack

of Reliable Real Time Data), and such shutdown is caused by Seller or any Seller Representatives; and

- (viii) The Facility fails to comply with Company Dispatch or other outage or deration as provided in Section 8.3 (Company Rights of Dispatch)

Each time period of Seller-Attributable Non-Generation shall constitute an Outage or Deration, as applicable.

"Seller-Attributable System Conditions": Conditions on the Company System:

- (i) that result from either (aa) the Facility's generation and/or delivery of electric power to the Company System or (bb) any condition arising from the acts or omissions of Seller or any Seller Representative, unless such acts or omissions are themselves excused by reasons of Force Majeure pursuant to Article 21 (Force Majeure) of this Agreement; and
- (ii) caused by or attributable to the Facility or Seller or any Seller Representatives that Company reasonably determines to either (xx) be inconsistent with Good Engineering and Operating Practices on the Company System or (yy) jeopardize the safety, reliability or stability of the Company System.

For avoidance of doubt, the Company's inability to dispatch the Facility due to the existence of Excess Energy Conditions on the Company System shall not constitute Seller-Attributable System Conditions.

"Seller-Owned Interconnection Facilities": The Interconnection Facilities constructed and owned by Seller.

"Seller Proposal": Each Technical and Operational Requirements Proposal, each RPS Proposal, and each Resilience Requirements Proposal.

"Seller's Conditions Precedent Date": Shall have the meaning set forth in Section 13.8 (Company Milestones).

"Site": The parcel of real property on which the Facility will be constructed and located, together with any Land Rights reasonably necessary for the construction, ownership, operation

and maintenance of the Facility. The Site is identified in Attachment A (Description of Generation, Conversion and Storage Facility) to this Agreement.

"Source Code": Shall mean the human readable source code of the Required Models which: (i) will be narrated documentation related to the compilation, linking, packaging and platform requirements and any other materials or software sufficient to enable a reasonably skilled programmer to build, modify and use the code within a commercially reasonable period of time for the purposes of a Source Code Authorized Use; and (ii) can reasonably be compiled by a computer for execution.

"Source Code Authorized Use": Shall have the meaning set forth in Section 6(b)(i)(E) (Authorized Use) of Attachment B (Facility Owned by Seller) of this Agreement.

"Source Code Escrow": Shall mean the escrow established with the Source Code Escrow Agent under the terms of the Source Code Escrow Agreement under which Source Code shall be confidentially deposited by a Source Code Owner for safekeeping and, upon the satisfaction of certain conditions, release to the Company.

"Source Code Escrow Agent": Shall mean Iron Mountain Intellectual Property Management, Inc. or such other similar escrow agent approved by Company.

"Source Code Escrow Agreement": Shall mean a multi-party escrow agreement between Company, Source Code Escrow Agent and any and all Source Code Owners depositing Source Code into the Source Code Escrow which, among other matters, names Company as beneficiary thereunder, and is otherwise acceptable in form and substance to Company.

"Source Code Owner": Shall mean the developer and/or owner of the Required Models utilizing Source Code authorized to deposit the Source Code with the Source Code Escrow Agent upon the terms of the Source Code Escrow Agreement.

"SOX 404": Shall have the meaning set forth in Section 24.1 (Financial Compliance).

"Standards": Shall have the meaning set forth in Section 2(c) (Plans) of Attachment G (Company-Owned Interconnection Facilities) to this Agreement.

"Standby Letter of Credit": Shall have the meaning set forth in Section 6(a) (Standby Letter of Credit) of Attachment G (Company-Owned Interconnection Facilities) to this Agreement.

"State of Charge": Energy in the BESS stated as MWh of stored energy and as a percentage of BESS Contract Capacity.

"Station Service": The energy used by the Facility associated with the communication equipment, substation, lighting, and balance of plant equipment at all times. Station Service loads are relatively fixed or constant and do not vary with renewable energy production and BESS charging/discharging activities. Station Service does not include Generation System Aux Loads and BESS Aux Loads, but includes the loads associated with the Generation System and BESS when not producing or charging/discharging energy under Company Dispatch.

"Station Service Metering Package": The Station Service meter and all associated equipment used to track Station Service energy used during grid charging events and when the Facility cannot self-serve Station Service.

"Step-In Agreement Lump Sum Payment": Shall mean the Step-In Agreement Lump Sum Payment (\$/year) amount provided by Seller in its BAFO.

"Study": Shall have the meaning set forth in Section 4(e) of Attachment B (Facility Owned by Seller) to this Agreement.

"Submission Notice": Shall have the meaning set forth in Section 4(a) (Appointment of Independent AF Evaluator) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) to this Agreement.

"Subsequent NEP OEPR Estimate": For each Subsequent OEPR, the NEP OEPR Estimate derived from such Subsequent OEPR.

"Subsequent OEPR": Any OEPR prepared pursuant to Section 3 (Subsequent OEPRs) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement.

"Subsequent Owner": Shall have the meaning set forth in Section 19.4 (Financing Document Requirements).

"Tariff Rate Adjustment": Shall have the meaning set forth in Section 2(f) (Tariff Rate Adjustment) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).

"Tariff Rate Reduction": Shall have the meaning set forth in Section 2(g) (Tariff Rate Reduction) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).

"Technical and Operational Requirements": The various technical and operational requirements for the operation of the Facility and the delivery of electric energy from the Facility to Company specified in Section 3 (Technical and Operational Requirements) of Attachment B (Facility Owned by Seller), as such standards may be revised from time to time pursuant to Article 23 (Process for Addressing Certain Revisions) of this Agreement.

"Technical and Operational Requirements Information Request": A written notice from Company to Seller proposing revisions to one or more of the Technical and Operational Requirements then in effect and requesting information from Seller concerning such proposed revision(s).

"Technical and Operational Requirements Modifications": For each Technical and Operational Requirements Revision, any capital improvements, additions, enhancements, replacements, repairs or other operational modifications to the Facility and/or to changes in Seller's operations or maintenance practices necessary to enable the Facility to achieve the performance requirements of such Technical and Operational Requirements Revision.

"Technical and Operational Requirements Proposal": A written communication from Seller to Company detailing the following with respect to a proposed Technical and Operational Requirements Revision: (i) a statement as to whether Seller believes that it is technically feasible to comply with the Technical and Operational Requirements Revision and the basis therefor; (ii) the Technical and Operational Requirements Modifications proposed by Seller to comply with the Technical and Operational Requirements Revision; (iii) the capital and incremental operating costs of any necessary technical improvements, and any other incremental net operating or maintenance costs associated with any necessary operational changes, and any expected lost revenues associated with expected reductions in electric energy delivered to Company; (iv) the Revision Modification Pricing Impact of such costs and/or lost

revenues; (v) information regarding the effectiveness of such technical improvements or operational modifications; (vi) proposed contractual consequences, that would be commercially reasonable under the circumstances, for failure to comply with the Technical and Operational Requirements Revision; and (vii) such other information as may be reasonably required by Company to evaluate Seller's proposals. A Technical and Operational Requirements Proposal may be issued either in response to a Technical and Operational Requirements Information Request or on Seller's own initiative; provided, however, that, in accordance with Section 23.3 (Seller Proposal), Company shall have no obligation to evaluate a Technical and Operational Requirements Proposal submitted at Seller's own initiative.

"Technical and Operational Requirements Revision": A revision, as specified in a Technical and Operational Requirements Information Request or a Seller-initiated Technical and Operational Requirements Proposal, to the Technical and Operational Requirements in effect as of the date of such Request or Proposal.

"Technical and Operational Requirements Revision Document": A document specifying one or more Technical and Operational Requirements Revisions and setting forth the changes to the Agreement necessary to implement such Technical and Operational Requirements Revision(s). A Technical and Operational Requirements Revision Document may be either a written agreement executed by Company and Seller or as directed by the Independent Evaluator pursuant to Section 23.10 (Dispute) of this Agreement, in the absence of such written agreement.

"Telemetry and Control": The interface between Company's EMS and the physical equipment at the Facility.

"Term": Shall mean the Initial Term.

"Termination Damages": Liquidated damages calculated in accordance with Article 16 (Damages in the Event of Termination by Company) of this Agreement.

"Test Energy": Shall have the meaning set forth in Section 4 (Test Energy) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement.

"Third OEPR": Shall have the meaning set forth in Section 4(h) (Review of the Second OEPR Evaluator Report) of this Attachment

U (Calculation and Adjustment of Net Energy Potential) to this Agreement.

"Third OEPR Evaluator": Shall have the meaning set forth in Section 4(h) (Review of the Second OEPR Evaluator Report) of this Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement.

"Third Party": Any person or entity other than Company or Seller, and includes, but is not limited to, any subsidiary or affiliate of Seller.

"Tier 1 Bandwidth": The Tier 1 bandwidth set forth in Section 2.6(a) ([GPR or GPI] Performance Metric and Liquidated Damages) of this Agreement.

"Tier 2 Bandwidth": The Tier 2 bandwidth set forth in Section 2.6(a) ([GPR or GPI] Performance Metric and Liquidated Damages) of this Agreement.

"Total Actual Interconnection Cost": Actual costs for the Interconnection Facilities, to be designed, engineered and constructed by Company, as provided in Attachment G (Company-Owned Interconnection Facilities) to this Agreement.

"Total Actual Relocation Cost": Shall have the meaning set forth in Section 5(b) of Attachment G (Company-Owned Interconnection Facilities) to this Agreement.

"Total Adjustment": Shall have the meaning set forth in Section 2(h)(ii) (Total Adjustment Cap) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).

"Total Adjustment Cap": Shall have the meaning set forth in Section 2(h)(ii) (Total Adjustment Cap) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).

"Total Estimated Interconnection Cost": Estimated costs for the Interconnection Facilities, to be designed, engineered and constructed by Company, as provided in Attachment G (Company-Owned Interconnection Facilities) to this Agreement.

"Total Estimated Relocation Cost": Shall have the meaning set forth in Section 5(a) of Attachment G (Company-Owned Interconnection Facilities) to this Agreement.

"Total Facility Load": The total consumption of Seller's Facility. Total Facility Load comprised of all Generation System Aux Loads, BESS Aux Loads, Station Service.

"Total Interconnection Cost": Shall have the meaning set forth in Section 3(a)(i) of Attachment G (Company-Owned Interconnection Facilities) to this Agreement.

"Transfer Date": The date, prior to the earlier of (i) the first Pre-CSAT Partial In-Service Date (if applicable), or (ii) the Commercial Operations Date, upon which Seller transfers to Company all right, title and interest in and to Company-Owned Interconnection Facilities to the extent, if any, that such facilities were constructed by Seller and/or its contractors.

"Unfavorable PUC Order": Shall have the meaning set forth in Section 29.20(e) (Unfavorable PUC Order).

"Unit Price": Shall mean the dollar amount per MWh of Net Energy Potential resulting from any adjustment to the BAFO Unit Price as described in Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).

[WIND] "WTG": A wind turbine generating system and its internal components and subsystems.

ATTACHMENT A
DESCRIPTION OF GENERATION, CONVERSION AND STORAGE FACILITY
[ALL ISLANDS]

1. Name of Facility: _____

(a) Location: _____ (TMK No. _____)

(b) Telephone number (for system emergencies): _____

(c) E-Mail Address: _____

2. Owner (if different from Seller): _____

If Seller is not the owner, Seller shall provide Company with a certified copy of a certificate warranting that the owner is a corporation, partnership or limited liability company in good standing with the Hawai'i Department of Commerce and Consumer Affairs which shall be attached hereto as Exhibit A-1 (Good Standing Certificates).

3. Operator: _____

4. Name of person to whom payments are to be made:

(a) Mailing address: _____

(b) Hawai'i Gross Excise Tax License number: _____

5. Equipment:

(a) Type of facility and conversion equipment:

[For example: Small power production facility designated as a Qualifying Facility that produces electric energy using _____.]

(b) Design and capacity

Total Facility Capacity:

Inverters/WTGs _____ kW

Energy Storage _____ / _____ kW/kWh

Synchronous Generators _____ kW

Individual Unit of Aux Load (Generator & Storage): **[if more than one type, list information for each type]**
List expected Aux Load and expected Total Facility Loads.

Maximum Auxiliary load:

	kVAR	kVAR
kW	Consumed	Produced

Total Number of Generators (Inverters, PV Modules, BESS Modules/WTGs/Synchronous]:

Example 1 (Wind + BESS):

Ten (10) Brand X, 1500 kW AC, Wind Turbine Generators;

Ten (10) Brand Y, 1650 kW DC, BESS Modules

Ten (10) Brand Z, 1500 kW AC, BESS Inverters

Example 2 (PV + BESS; AC-Coupled):

Seventy-five thousand (75000) Brand W, 200 W DC, PV Modules;

Ten (10) Brand X, 1500 kW AC, PV-Inverters;

Ten (10) Brand Y, 1650 kW DC, BESS Modules

Ten (10) Brand Z, 1500 kW AC, BESS Inverters

Example 3 (PV + BESS; DC-Coupled):

Seventy-five thousand (75000) Brand X, 200 W DC, PV Modules;

Ten (10) Brand Y, 1650 kW DC, BESS Modules

Ten (10) Brand Z, 1500 kW AC, Central Inverters

Description of Generator Equipment:

[For example: Describe the type of energy and conversion equipment, capacity, and any special features. (i.e. Modules per converter; AC or DC coupling; DC/AC ratio; plant controller information)]

Total Number of Energy Storage Units:

[number and size of each unit, e.g., one (1) Brand X, 200 kW/800 kWh; one (1) Brand Y, 300 kW/1200 kWh. Brand is Make & Model.]

Description of Storage Equipment:

[For example: Describe the type of energy storage equipment, capacity, and any special features.]

Individual Unit (Generator & Storage): **[if more than one type, list information for each type]**

Maximum Auxiliary load:

	kVAR Consumed	kVAR Produced
kW		

Generator:

Type (PV Inverter, BESS Inverter, Central Inverter, Synchronous)

Rated Power _____ kW (AC)

Voltage _____ V, _ phase

Frequency _____ Hz

Class of Protection

Number of Poles

Rated Speed _____ rpm

Rated Current _____ A

Rated Power Factor See Exhibit B-2

(c) [RESERVED]

(d) Net Nameplate Capacity: Shall be the net instantaneous active power capability of the Facility at the point of interconnection, considering all generation and converter equipment and power plant controls which may act to limit the Facility capability in steady state conditions. The Net Nameplate Capacity shall not be less than the Contract Capacity and shall not limit expected transient dynamic responses to system events.

The Net Nameplate Capacity of this Facility shall be: _____ kW. The maximum kW value set forth in the Interconnection Requirements Study.

(e) Description of Facility SCADA and control system(s):
[Describe the SCADA and control system utilized for Facility monitoring and control.]

(f) [RESERVED]

(g) Seller may propose revisions to this Section 5 of Attachment A (Description of Generation, Conversion and Storage Facility) ("Section 5") for Company's approval prior to commencement of construction, provided, however, that (i) no such revision to this Section 5 shall change the type of Facility, the conversion method, the storage method, or the renewable resource used by the Facility; (ii) Seller shall be in compliance with all other terms and conditions of this Agreement; and (iii) such revision(s) shall not change the characteristics of the Facility equipment or the specifications used in the IRS. Any revision to this Section 5 complying with items (i) through (iii) above shall be subject to Company's prior approval, which approval shall not be unreasonably withheld. If Seller's proposed revision(s) to this Section 5 otherwise satisfies items (i) and (ii) above but not item (iii) such that Company, in its reasonable discretion, determines that a re-study or revision to all or any part of the IRS is required to accommodate Seller's proposed revision(s), Company may, in its sole and absolute discretion, conditionally approve such revision(s) subject to a satisfactory re-study or revision to the IRS and Seller's payment and continued obligation to be liable and responsible for all costs and expenses of re-studying or revising such portions of the IRS and for modifying and paying for all costs and expenses of modification to the Facility, the Company-Owned Interconnection Facilities based on the results of the re-studies or revisions to the IRS. Any changes made to this Attachment A (Description of Generation, Conversion and Storage Facility) or the Agreement as a result of this Section 5(g) of Attachment A (Description of Generation, Conversion and Storage Facility) shall be reflected in a written amendment to the Agreement.

Seller understands and acknowledges that Company's review and approval of Seller's proposed revisions to this Section 5 and any necessary re-studies or revisions to the IRS shall be subject to Company's then-existing time and personnel constraints. Company agrees to use commercially reasonable efforts, under such time and personnel constraints, to complete any necessary reviews, approvals and/or re-studies or revisions to the IRS.

Any delay in completing, or failure by Seller to meet, any subsequent Seller milestones under Article 13 (Guaranteed Project Milestones Including Commercial Operations) as a result of any revision pursuant to this Section 5 by Seller (whether requiring a re-study or revision to the IRS or not) shall be borne entirely by Seller and Company shall not be responsible or liable for any delay or failure to meet any such milestones by Seller.

6. Insurance carrier(s): **[SELLER TO PROVIDE INFORMATION]**
7. If Seller is not the operator, Seller shall provide a copy of the agreement between Seller and the operator which requires the operator to operate the Facility and which establishes the scope of operations by the operator and the respective rights of Seller and the operator with respect to the sale of electric energy from Facility no later than the Commercial Operations Date. In addition, Seller shall provide a certified copy of a certificate warranting that the operator is a corporation, partnership or limited liability company in good standing with the Hawai'i Department of Commerce and Consumer Affairs no later than the Commercial Operations Date.
8. Seller shall provide a certified copy of a certificate warranting that Seller is a corporation, partnership or limited liability company in good standing with the Hawai'i Department of Commerce and Consumer Affairs which shall be attached hereto as Exhibit A-1 (Good Standing Certificates).
9. Seller, owner and operator shall provide Company a certificate and/or description of their ownership structures which shall be attached hereto as Exhibit A-2 (Ownership Structure).

10. In the event of a change in ownership or identity of Seller, owner or operator, such entity shall provide within 30 Days thereof, a certified copy of a new certificate and a revised ownership structure. The preceding sentence is without limitation to the provisions Article 19 (Transfers, Assignments, and Facility Debt) of the Agreement.

EXHIBIT A-1
GOOD STANDING CERTIFICATES

EXHIBIT A-2
OWNERSHIP STRUCTURE

ATTACHMENT B
FACILITY OWNED BY SELLER

1. The Facility.

(a) Drawings, Diagrams, Lists, Settings and As-Builts.

- (i) Single-Line Drawing, Interface Block Diagram, Relay List, Relay Settings and Trip Scheme. A preliminary single-line drawing (including notes), Interface Block Diagram, relay list, relay settings, and trip scheme of the Facility shall, after Seller has obtained prior written consent from Company, be attached to this Agreement on the Execution Date as Attachment E (Single-Line Drawing and Interface Block Diagram) and Attachment F (Relay List and Trip Scheme). A final single-line drawing (including notes), Interface Block Diagram, relay list and trip scheme of the Facility shall, after having obtained prior written consent from Company, be labeled the "Final" Single-Line Drawing, the "Final" Interface Block Diagram and the "Final" Relay List and Trip Scheme and shall supersede Attachment E (Single-Line Drawing and Interface Block Diagram) and Attachment F (Relay List and Trip Scheme) to this Agreement and shall be made a part hereof on the Commercial Operations Date. After the Commercial Operations Date, no changes shall be made to the "Final" Single-Line Drawing, the "Final" Interface Block Diagram and the "Final" Relay List and Trip Scheme without the prior written consent of Seller and Company. The single-line drawing shall expressly identify the Point of Interconnection of Facility to Company System.
- (ii) As-Builts. Seller shall provide final as-built drawings of the Seller-Owned Interconnection Facilities within 30 Days of the successful completion of the Acceptance Test.
- (iii) Modeling. Seller shall provide the models as set forth in Exhibit B-1 (Modeling Requirements).

- (iv) No Material Changes. Seller agrees that no material changes or additions to the Facility as reflected in the "Final" Single-Line Drawing (including notes), the "Final" Interface Block Diagram, and the "Final" Relay List and Trip Scheme shall be made without Seller first having obtained prior written consent from Company. The foregoing is subject to changes and additions as part of any Technical and Operational Requirements Modifications. If Company directs any changes in or additions to the Facility records and operating procedures that are not part of any Technical and Operational Requirements Modifications, Company shall specify such changes or additions to Seller in writing, and, except in the case of an emergency, Seller shall have the opportunity to review and comment upon any such changes or additions in advance.

(b) Certain Specifications for the Facility.

- (i) Seller shall furnish, install, operate and maintain the Facility, including breakers, relays, switches, synchronizing equipment, monitoring equipment and control and protective devices approved by Company as suitable for parallel operation of the Facility with Company System. The Facility shall be accessible at all times to authorized Company personnel.
- (ii) The Facility shall include:

[LIST OF THE FACILITY]

Examples may include, but are not limited to:

- **Seller-Owned Interconnection Facilities**
- **Substation**
- **Control and monitoring facilities**
- **Transformers**
- **Generating and/or BESS equipment (as described in Attachment A)**
- **"Lockable" cabinets or housings suitable for the installation of the Company-Owned Interconnection Facilities located on the Site**

- Relays and other protective devices
- Telecommunications equipment for communications, telemetry and control

(iii) The Facility shall comply with the following: **[includes excerpts of language that may be requested by Company]**

- (A) Seller shall install a [REDACTED] kV gang operated, load breaking, lockable disconnect switch and all other items for its switching station (relaying, control power transformers, high voltage circuit breaker). Bus connection shall be made to a manually and automatically (via protective relays) operated high-voltage circuit breaker. The high-voltage circuit breaker shall be fitted with bushing style current transformers for metering and relaying. Downstream of the high-voltage circuit breaker, a structure shall be provided for metering transformers. From the high-voltage circuit breaker, another bus connection shall be made to another pole mounted disconnect switch, with surge protection.
- (B) Seller shall provide within the Seller-Owned Interconnection Facilities a separate, fenced area with separate access for Company. Seller shall provide all conduits, structures and accessories necessary for Company to install the Revenue Metering Package. Seller shall also provide within such area, space for Company to install its communications, supervisory control and data acquisition ("SCADA") equipment (remote terminal unit or equivalent) and certain relaying if necessary for the interconnection. Seller shall also provide AC and DC source lines as specified by Company. Seller shall provide a telephone line for Company-owned meters. Seller shall work with Company to determine an acceptable location and size of the fenced-in area. Seller shall provide an acceptable demarcation cabinet on its side of the fence

where Seller and Company wiring will connect/interface.

- (C) Seller shall ensure that the Seller-Owned Interconnection Facilities have a lockable cabinet for switching station relaying equipment. Seller shall select and install relaying equipment acceptable to Company. At a minimum, the relaying equipment will provide over and under frequency (81), negative phase sequence (46), under voltage (27), over voltage (59), ground over voltage (59G), over current functions (50/51) and direct transfer trip (if required). The settings shall meet or exceed the requirements for over/under frequency and voltage ride-through set forth in IEEE 2800-2022 Section 9 "Protection". Seller shall install protective relays that operate a lockout relay (86), which in turn will trip the main circuit breaker and not allow it to be reclosed without reset.
- (D) High Resolution Data: Seller shall install and make available to the Company time stamped and sequential data recordings for all inverter-based resources (and all generating resources) to perform event analysis and verify Facility performance during steady state and transient disturbance events. This will include a time-synchronized phasor measurement unit and a disturbance monitor fault recorder, as specified by Company, at the Facility POI, and access to multiple sources to provide sufficient clarity as to any abnormal response or behavior within the Facility, including Facility control settings and static values, SCADA data, sequence of events recording (SER) data, dynamic disturbance recorder (DDR) data, and inverter fault codes and inverter-level dynamic recordings. This data will be used to review the Facility response to system dynamics, such as the frequency response (normal droop), reactive response, etc. Such high-resolution measurement data collection

and provisioning requirements are intended to be in accordance with IEEE 2800-2022 Section 11 "Measurement data for performance monitoring and validation".

- (E) Company Telemetry and Control. Seller's equipment shall provide at a minimum:
- (1) Interface with Company's Telemetry and Control, or designated communications and control interface, to provide telemetry of electrical quantities such as total Facility net MW, MVar, power factor, voltages, currents, and other quantities as identified by the Company;
 - (2) Interface with Company's Telemetry and Control, or designated communications and control interface, to provide status for circuit breakers, reactive devices, switches, inverters, BESS equipment, and other equipment as identified by the Company;
 - (3) Interface with Company's Telemetry and Control, or designated communications and control interface, to provide control of the voltage, var, or pf target setpoint at the point of regulation when operating in each regulation control mode;
 - (4) Interface with Company's Telemetry and Control, or designated communications and control interface, to provide the active power control requirements of this Agreement;
 - (5) Interface with Company's Telemetry and Control, or designated communications and control interface, for the Company to specify control system modes of operation and parameters, for remotely configurable parameters and operating states required under this Agreement;

- (6) For Variable Energy Facilities: Interface with Company's Telemetry and Control, or designated communications and control interface, to provide telemetry of equipment availability, Station Service Load, Aux Load, Power Possible, and meteorological and production data required under Section 8 (Data and Forecasting) of this Attachment B (Facility Owned by Seller) and the Facility's Capacity Available for Dispatch;
- (7) Seller shall provide such analog telemetry to Company via SCADA communication and protocol acceptable to Company at a continuous scan updated not less frequently than every 2 seconds; and
- (8) Provision for Loss of Telemetry and Control: If Company's Telemetry and Control, or designated communications and control interface, is unavailable, due to loss of communication link, Telemetry and Control failure, or other event resulting in loss of the remote control by Company, provision must be made for Seller to be able to institute via local controls, within 5 minutes (or such other period as Company accepts in writing) of the verbal directive by the Company System Operator, such change in voltage regulation target and real power export or import as directed by the Company System Operator.
- (9) The Facility shall have the capability of a variable, settable value that represents the minimum charge maintained in the BESS for Company Dispatch. This value shall be set remotely by the Company in order to preserve energy for blackstart or other purposes.

- (F) If Seller adds, deletes and/or changes any of its equipment, or changes its design in a manner that would change the characteristics of the equipment and specifications used in the IRS, Seller shall be required to obtain Company's prior written approval. If an analysis to revise parts of the IRS is required, Seller shall be responsible for the cost of revising those parts of the IRS, and modifying and paying for the cost of the modifications to the Facility and/or the Company-Owned Interconnection Facilities based on the revisions to the IRS.
- (G) Cybersecurity and Critical Infrastructure Protection. While the State of Hawaii is not currently under North American Electric Reliability Corporation ("NERC") jurisdiction, the Facility shall be designed and maintained with the criteria to meet at all times applicable NERC Critical Infrastructure ("CIP") Medium Impact compliance requirements as the same may be amended, updated and/or replaced during the Term.
- (1) Security Policies and Documentation. Seller shall implement and document security policies and standards in accordance with industry best practices (e.g., aligned with the intent of the current version of NERC CIP-003 for Medium Impact Assets) and consistent with Company's security policies and standards. Seller shall submit documentation describing the approach, methodology, and design to provide physical and cyber security (i.e., aligned with the intent of the current version of NERC CIP-003 for Medium Impact Assets) with its submittal of the design drawings pursuant to Section 1(c) (Design Drawings, Bill of Material, Relay Settings and Fuse Selection) of Attachment B (Facility Owned by Seller) which shall be at

least sixty (60) Days prior to the Acceptance Test.

(aa) The design shall meet industry standards and best practices, consistent with the current version of the National Institute of Standards and Technology ("NIST") guidelines as indicated in Special Publication 800-53 "Security and Privacy Controls for Federal Information Systems and Organizations" and Special Publication 800-82 "Guide to Industrial Control Systems (ICS) Security". The system shall be designed with the criteria to meet applicable compliance requirements and identify areas that are not consistent with NIST guidelines and recommendations. In addition, at least sixty (60) days prior to commencement of the Acceptance Test, Seller shall:

- (i) Certify in writing that no equipment, software, or components installed directly or embedded within a telecommunications and/or video surveillance system will be sourced from, or manufactured by, any companies or their subsidiaries or affiliates listed on the Federal Communications Commission (FCC) "List of Equipment and Services Covered by Section 2 of the Secure Networks Act" or any affiliates of such listed company.
- (ii) Identify and disclose all OEM suppliers, subcontractors, and integrators involved in the manufacture, programming, or configuration of proposed telecommunications and/or video surveillance equipment in connection with the Facility.
- (iii) Provide product data sheets and a bill of materials for all hardware and software components of telecommunications and/or video surveillance systems to ensure traceability.
- (iv) Remove and replace any non-compliant telecommunications and/or video surveillance equipment discovered during pre-installation review, active installation, or post-deployment audits at no cost to the Company.

- (bb) The cybersecurity documentation shall include a block diagram of the control system with all external connections clearly described.
 - (cc) Seller shall provide such additional information as Company may reasonably request as part of a security posture assessment.
 - (dd) Company shall be notified in advance when there is any condition that would compromise physical or cyber security.
 - (ee) Seller shall, at the request of Company or, in the absence of any request from Company, at least annually during the term of this Agreement, provide Company with updated documentation and diagrams including a record of changes.
- (2) [RESERVED]
- (3) Endpoint and Server Security. Seller shall implement appropriate endpoint and server security processes and practices commensurate with the level of risk as determined by periodic risk assessments.

Seller shall (consistent with the following sentence) ensure that no Malware or unauthorized code is introduced into any aspect of the Facility, Interconnection Facilities, the Company Systems interfacing with the Facility and Interconnection Facilities, and any of Seller's critical control systems or processes used by Seller to provide energy, including the information, data and other materials delivered by or on behalf of Seller to Company, (collectively, the "Environment"). Seller shall periodically review,

analyze and implement improvements to and upgrades of its Malware prevention and detection programs and processes that are commercially reasonable and consistent with the then current technology industry's standards and, in any case, not less robust than the programs and processes implemented by Seller with respect to its own information systems.

- (4) Cybersecurity Program. Seller shall establish and maintain a continuous cybersecurity program (i.e., aligned with the current version of NERC CIP-003 for medium impact Bulk Energy System Cyber Systems and NIST standards) that enables Seller (or its designated third party) to:
 - (aa) Define the scope and boundaries, policies, and organizational structure of the cybersecurity program.
 - (bb) Conduct periodic risk assessments to identify the specific threats to and vulnerabilities of the Seller's Organization consistent with guidance provided in the current version of NIST Special Publication 800-30 "Guide for Conducting Risk Assessments".
 - (cc) Implement appropriate mitigating controls and training programs and manage resources.
 - (dd) Monitor and periodically test the cybersecurity program to ensure its effectiveness. Seller shall review and adjust their cybersecurity program as appropriate for any assessed risks.

(ee) Applicability is extended to Cloud Service providers and other third-party services the Seller may use.

- (5) Security Monitoring and Incident Response. Company and Seller shall collaborate on security monitoring and incident response, define points of contact on both sides, establish monitoring and response procedures, set escalation thresholds, and conduct training (i.e., aligned with the current version of NERC CIP-008). Seller shall, at the request of Company or, in the absence of any request from Company, at least quarterly, provide Company with a report of the incidents that it has identified and describe measures taken to resolve or mitigate.

In the event that Seller discovers or is notified of a breach, potential breach of security, or security incident at Seller's Facility or of Seller's systems, Seller shall immediately (aa) notify Company of such potential, suspected or actual security breach, whether or not such breach has compromised any of Company's confidential information; (bb) investigate and promptly remediate the effects of the breach, whether or not the breach was caused by Seller; (cc) cooperate with Company with respect to any such breach or unauthorized access or use; (dd) comply with all applicable privacy and data protection laws governing Company's or any other individual's or entity's data; and (ee) to the extent such breach was caused by Seller, provide Company with reasonable assurances satisfactory to Company that such breach, potential breach, or security incident shall not recur. Seller shall provide documentation to Company evidencing the length and impact of the breach. Any remediation

of any such breach will be at Seller's sole expense.

If malicious software or unauthorized code is found to have been introduced into the Environment, Seller will promptly notify Company. Seller shall take immediate action to eliminate and remediate the effects of the Malware, at Seller's expense. Seller shall not modify or otherwise take corrective action with respect to the Company Systems except at Company's request. Seller shall promptly report to Company the nature and status of all efforts to isolate and eliminate malicious software or unauthorized code.

- (6) Monitoring and Audit. Seller shall provide information on available audit logs and reports relating to cyber and physical security (i.e., aligned with the current version of NERC CIP-007 R4). Company may audit Seller's records to ensure Seller's compliance with the terms of this Section 1(b)(iii)(G) (Cybersecurity and Critical Infrastructure Protection) of this Attachment B (Facility Owned by Seller), provided that Company has provided reasonable notice to Seller and any such records of Seller's will be treated by Company as confidential.
- (7) Contingency Plans. Seller shall implement and maintain a business continuity plan, a disaster recovery plan, and an incident response plan ("Contingency Plans" - i.e., aligned with the current version of NERC CIP-009) appropriate for the level of risk based on the impact of Seller's associated facilities, systems and equipment, which, if destroyed, degraded, misused, or otherwise rendered unavailable, would affect the reliable operation of the Company

System. The Contingency Plans shall be provided to Company upon request. Such Contingency Plans shall be updated to reflect lessons learned from real recovery events.

- (8) Supply Chain Risk Management. Seller shall implement and maintain a supply chain risk management plan with implementation of appropriate security controls (i.e., aligned with the current version of NERC CIP-013). Controls should address the following security considerations: (1) software integrity and authenticity; (2) vendor remote access; (3) information system planning; and (4) vendor risk management and procurement controls.

(H) Available Power Production.

- (1) Variable Resource Power Potential. Seller's instantaneous real power (MW) production available to be delivered to the Point of Interconnection from only [PV or Wind] considering equipment and resource availability (). The value will be determined at any given time using the best-available data and methods for an accurate representation of the amount of active power available at the Point of Interconnection for the next several control cycles.
- (2) Variable Resource Power Potential Paired with Storage Operated through a Single Active Power Control Interface. For variable energy systems paired with storage operated through a single active power control interface (i.e., charging indirectly controlled through dispatch), Seller's Capacity Available for Dispatch will be determined at any given time using the best-available data and methods for an accurate representation of the amount of active power available at the Point of

Interconnection for the next several control cycles. Telemetry will be provided to indicate state of charge, including available estimated duration at the current dispatch and Capacity Available for Dispatch given state of charge and forecast production.

- (3) For variable resources where Capacity Available for Dispatch is derived, in part or in whole, from a measured available variable energy source such as solar or wind: To the extent available, the Parties shall use Seller's real time Capacity Available for Dispatch communicated to Company through the SCADA System except to the extent that the Potential Energy does not accurately reflect the actual available active power at the Point of Interconnection within the tolerance provided in Section 3(b) (Active Power and Capacity Available for Dispatch Performance) of this Attachment B (Facility Owned by Seller). During those periods of time when the SCADA derived Capacity Available for Dispatch is unavailable or does not accurately represent the available power production considering equipment and resource availability, the Parties shall use the best available data obtained through commercially reasonable methods to determine the Capacity Available for Dispatch. Follow up actions to resolve the discrepancy will be as provided in Section 1(j) (Demonstration of Facility) of this Attachment B (Facility Owned by Seller).

- (4) [RESERVED]

(I) Resilience Requirements.

- (1) The Facility shall be equipped with a voice communication system capable of

contact with the Company during a Company System outage.

- (2) Facility design and implementation shall be such as to avoid any single points of failure resulting in a loss of greater than [142 MW - Oahu, 20 MW-Maui, 30 MW - Hawai'i] MW net or the total loss of the Facility power output if the Facility Net Nameplate Capacity is less than [142 MW - Oahu, 20MW - Maui, 30 MW - Hawai'i]. For single points of failure, this would apply to settings on the equipment that will cause equipment shutdown.
- (3) Seller shall reserve space within the Site for possible future installation of Company-owned meteorological and safety equipment (such as wind speed, direction and relative humidity monitors, SODAR and irradiance monitors, cameras, etc.) and AC and DC source lines and connectivity infrastructure for such equipment as may be required depending on the Facility resource type and location. In the event Company decides to install such meteorological and/or safety equipment: (i) Seller shall work with Company to determine an acceptable location for such equipment and any associated wiring, interface or other components; and (ii) Company shall pay for the needed equipment, and installation of such equipment, unless otherwise agreed to by the Parties. Company and Seller shall use commercially reasonable efforts to facilitate installation and minimize interference with the operation of the Facility.
- (4) The Facility shall, at a minimum, be assigned a risk category in accordance with, and satisfy the wind load and

seismic load requirements of, the International Building Code and any more stringent requirements imposed under applicable Laws.

- (5) Seller shall consult with jurisdictional fire agencies and other State and/or County agencies with regulatory oversight over wildfire mitigation requirements during the Project's design phase and incorporate all required and recommended wildfire mitigation measures. To the extent any regulatory approval of such wildfire mitigation measures is necessary, Seller shall obtain such approval(s) and such shall be included within the scope of Governmental Approvals as defined in this Agreement.

- (c) Design Drawings, Bill of Material, Relay Settings and Fuse Selection. Seller shall provide to Company for its review the design drawings, Bill of Material, relay settings and fuse selection for the Facility, and Company shall have the right, but not the obligation, to specify the type of electrical equipment, the interconnection wiring, the type of protective relaying equipment, including, but not limited to, the control circuits connected to it and the disconnecting devices, and the settings that affect the reliability and safety of operation of Company's and Seller's interconnected system. Seller shall provide the relay settings and protection coordination study, including fuse selection and AC/DC Schematic Trip Scheme (part of design drawings), for the Facility to Company during the 60% design. Company, at its option, may, with reasonable frequency, witness Seller's operation of control, synchronizing, and protection schemes and shall have the right to periodically re-specify the settings. Seller shall utilize relay settings prescribed by Company, which may be changed over time as Company System requirements change.

- (d) Disconnect Device. Seller shall provide a manually operated disconnect device which provides a visible break to separate Facility from Company System. Such

disconnect device shall be lockable in the OPEN position and be readily accessible to Company personnel at all times.

- (e) Other Equipment. Seller shall install, own and maintain the infrastructure associated with the Revenue Metering Package, including but not limited to all enclosures (meter cabinets, meter pedestals, meter sockets, pull boxes, and junction boxes, along with their grounding/bonding connections), CT/PT mounting structures, conduits and ductlines, enclosure support structures, ground buses, pads, test switches, terminal blocks, isolation relays, telephone surge suppressors, and analog phone lines (one per meter), subject to Company's review and approval. **[COMPANY TO REVISE THIS SECTION 1(e) PRIOR TO EXECUTION FOR SPECIFICS OF THE PROJECT.]**
- (f) Maintenance Plan. Seller shall maintain Seller-Owned Interconnection Facilities in accordance with Good Engineering and Operating Practices.
- (g) Active Power Control Interface.
 - (i) Seller shall provide and maintain in good working order all equipment, computers and software associated with the control system (the "Active Power Control Interface") necessary to interface the Facility active power controls with the Company System Operations Control Center for real power control of the Facility by the Company System Operator. The Active Power Control Interface will be used to control the net real power import or export from the entire Facility remotely from the Company System Operations Control Center through control signals from the Company System Operations Control Center as required in this Attachment B (Facility Owned by Seller).
 - (ii) Company shall review and provide prior written approval of the design for the Active Power Control Interface to ensure compatibility with Company's SCADA and EMS systems. In order to ensure such continued compatibility, Seller shall not materially change the approved design without Company's prior review and prior written

approval. Company's review shall include design description and parameters for Seller's control system(s), which determine provision of net real power from the variable resource system (i.e., wind or PV) and/or the BESS storage, and charging of the BESS storage, in response to the Active Power Control signal or signals.

- (iii) The Active Power Control Interface shall include, but not be limited to, a demarcation cabinet, ancillary equipment and software necessary for Seller to connect to Company's Telemetry and Control, located in Company's portion of the Facility switching station which shall provide the control signals to the Facility and send feedback status to the Company System Operations Control Center. The control type shall be analog output (set point) controls.
- (iv) The Active Power Control Interface shall also include provision for feedback points from the Facility indicating when the Company System Operator active power controls are in effect and the analog value of the controls received from the Company. The Facility shall provide the feedback to the Company SCADA system immediately upon, and within 2 seconds of receiving the respective control signal from Company.
- (v) Seller shall provide an analog input to the Telemetry and Control for the gross MW input or output of the individual generating and BESS units or all Facility generating and BESS units (Company to determine based on number of generating and BESS units), and an analog signal for the total net MW input or output at the Point of Interconnection.
- (vi) The Active Power Control Interface shall provide for remote control of the net real power input or output of the Facility by the Company at all times. If the Active Power Control Interface is unavailable or disabled, the Facility shall not import or export net real power from or to Company, and the Facility shall be deemed to be in Seller-Attributable Non-Generation status, unless the Company, in its sole discretion,

agrees to supply or accept net real power and Seller and Company agree on an alternate means of dispatch. The alternate means of dispatch, including but not limited to local controls, is to be the temporary dispatch mechanism until the Active Power Interface is returned to service and must be capable of changing the real power export or import as directed by the Company System Operator within 5 minutes (or such other period as Company accepts in writing) of the Seller receiving the directive by the Company System Operator, verbal or otherwise permitted by such alternate means. Notwithstanding the foregoing, if Seller fails to provide such remote control features (whether temporarily or throughout the Term) and fails to import or export electric energy to Company as required by this Section 1(g)(vi), then, notwithstanding any other provision of this Attachment B (Facility Owned by Seller), Company shall have the right to derate or disconnect the entire Facility during those periods that such control features are not provided and the Facility shall be deemed to be in Seller-Attributable Non-Generation status for such periods.

- (A) If all local and remote active power controls become unavailable or fail, the Facility shall immediately alert and verbally inform the Company's System Operator.
- (B) If protection is unavailable due to loss of communication link, Telemetry and Control failure, or other event resulting in the loss of the remote control by the Company, provision must be made for the Seller to ramp down and shutdown Facility and open and lockout the main circuit breaker. Company shall approve the proposed design and implementation of this function. **[THESE REQUIREMENTS MAY BE CHANGED BY COMPANY FOLLOWING COMPLETION OF THE IRS]**

- (vii) The rate at which the Facility changes net real power import or export shall comply with the Ramp Rate specified in Section 3(c) (Ramp Rates)

of Attachment B (Facility Owned by Seller). The Facility's Active Power Control Interface will provide the Company SCADA control of the Ramp Rate at which the active power output is changed in response to Company dispatch as specified in Section 3(c) (Ramp Rates) of Attachment B (Facility Owned by Seller). **[THESE REQUIREMENTS MAY BE CHANGED BY COMPANY FOLLOWING COMPLETION OF THE IRS]**

(viii) The Active Power Control Interface shall accept the following active power control(s) from the Company SCADA and EMS systems:

- (A) Maximum Power Import and Export Limits: The Facility is not allowed to exceed these settings under any circumstances. The primary frequency response control specified in Section 3(m) (Active-power - Frequency Response Requirements) of Attachment B (Facility Owned by Seller) is not allowed to increase the Facility's net real power import or export above the Import and Export limits, respectively.
- (B) Power Reference Set Point: The Facility is to import or export active power at this level to the extent allowed by the renewable resource and energy storage and shall be within the tolerance defined in Section 3(b) (Active Power Control and Capacity Available for Dispatch Performance) of this setting when system frequency is within the deadband determined in Section 3(m) (iii) of Attachment B (Facility Owned by Seller). When system frequency exceeds the deadband determined in Section 3(m) (iii) of Attachment B (Facility Owned by Seller), the Facility's net real power import or export is allowed to deviate from this setting when commanded by the primary frequency response control specified in Section 3(m) (Active-power - Frequency Response Requirements) of Attachment B (Facility Owned by Seller).
- (C) Inverter/WTG Enable/Disable Control: The Facility shall include an inverter/WTG

Enable/Disable control. When Disable is selected, the Facility shall ramp down, shutdown, and leave offline its inverters/WTGs. When Enable is selected, the Facility inverters/WTGs can start up, ramp up, and remain in normal operations.

(D) Black start mode Enable/Disable control

(E) Isochronous mode Enable/Disable control

(F) The ability to allocate a portion of stored energy (MW and MWh) toward contingency response and black start reserves and the frequency response parameters required to control the response of these allocations.

(ix) Seller shall not override Company's active power controls without first obtaining specific approval to do so from the Company System Operator.

(x) The requirements of the Active Power Control Interface may be modified as mutually agreed upon in writing by the Parties.

(h) Control System Acceptance Test Procedures.

(i) Conditions Precedent. The following conditions precedent must be satisfied prior to conducting a Control System Acceptance Test on the entire Facility or a Pre-CSAT Partial Installation approved in accordance with Section 3.4 (Partial Commissioning), as applicable:

(A) Facility:

(1) Successful completion of the Acceptance Test.

(2) Facility has been successfully energized.

(3) All of the Facility's generators have been fully synchronized.

- (4) The control system computer has been programmed for normal operations with respect to the Facility.
- (5) All equipment that is relied upon for normal operations (including ancillary devices such as capacitors/inductors, energy storage device, statcom, etc.) shall have been commissioned and be operating within normal parameters for the Facility.

(B) Pre-CSAT Partial Installation:

- (1) Successful completion of the Acceptance Test. Facility requirements will apply to all capacity and resources that have been declared commercial through a partial installation until the Facility is complete indicating all resources comprising the Facility have completed CSAT.
 - (aa) If a Pre-CSAT Partial Installation is requested for a project with multiple substation or circuit points of interconnection, Company will, in its sole discretion, determine if the Acceptance Test must be completed on a full substation.
- (2) Pre-CSAT Partial Installation to be tested has been successfully energized.
- (3) The control system computer has been programmed for normal operations based on the Pre-CSAT Partial Installation configuration being tested.
- (4) All equipment that is relied upon for normal operations (including generating resources, ancillary devices such as capacitors/inductors, energy storage devices, statcom, etc.) shall have been commissioned and be operating within normal parameters for the Pre-CSAT Partial Installation being tested.

- (ii) Facility Energy Equipment. Unless all of the energy equipment (PV System, BESS) of the Facility (or Pre-CSAT Partial Installation being tested, as applicable) in the Control System Acceptance Test is available for the duration of the Control System Acceptance Test, the Control System Acceptance Test will have to be re-run from the beginning unless Seller demonstrates to the satisfaction of the Company that the test results attained with less than all of the Facility's (or Pre-CSAT Partial Installation's) equipment are consistent with the results that would have been attained if all of the equipment had been available for the duration of the test.
- (iii) Procedures. Attachment O (Control System Acceptance Test Criteria) provides general criteria to be included in the written protocol for the Control System Acceptance Test. If any changes have been made to the technical specifications of the Facility or the design of the Facility in accordance with Section 5(f) of Attachment A (Description of Generation, Conversion and Storage Facility), such changes shall be reflected in an amendment to this Agreement, and the written protocol for the Control Systems Acceptance Test shall be based on the Facility as modified. Such amendment shall be executed prior to conducting the Control System Acceptance Test and Company shall have no obligation for any delay in performing the Control Systems Acceptance Test due to the need to complete and execute such amendment.
- (i) Facility Security and Maintenance. Seller is responsible for securing the Facility. Seller shall have personnel available to respond to all calls related to security incidents and shall take commercially reasonable efforts to prevent any security incidents. Seller is also responsible for maintaining the Facility, including vegetation management, to prevent security breaches. Seller shall comply with all commercially reasonable requests of Company to update security and/or maintenance if required to prevent security breaches.

- (j) Demonstration of Facility. Company shall have the right at any time, other than during maintenance or other special conditions, including Force Majeure, communicated by Seller, to notify Seller in writing of Seller's failure, as observed by Company and set forth in such written notice, to meet the telemetry and control requirements specified in Section 1(b) (iii) (E) (Company Telemetry and Control) and/or the operational and performance requirements specified in Section 3 (Technical and Operational Requirements) of this Attachment B (Facility Owned by Seller), and to require documentation or testing to verify compliance with such requirements. Upon receipt of such notice, Seller shall promptly investigate the matter, implement corrective action and provide to Company, within thirty (30) Days of such notice or such longer time period agreed to in writing by Company, a written report of both the results of such investigation and the corrective action taken by Seller; provided, that, if thirty (30) Days is not a reasonable time period to investigate the matter, implement corrective action and provide such written report, Seller shall complete the foregoing within such longer commercially reasonable period of time agreed to by the Parties in writing. If the Seller's report does not resolve the issue to Company's reasonable satisfaction, the Parties shall promptly commission a study to be performed by one of the engineering firms then included on the Qualified Independent Third-Party Consultants List attached to the Agreement as Attachment D (Consultants List) to evaluate the cause of the non-compliance and to make recommendations to remedy such non-compliance. Seller shall pay for the cost of the study. The study shall be completed within ninety (90) Days, unless the selected consultant determines such study cannot reasonably be completed within ninety (90) Days, in which case, such longer period of time as it takes the selected consultant determines is necessary to complete such study shall apply. The consultant shall send the study to Company and Seller. Seller (and/or its Third-Party consultants and contractors), at Seller's expense, shall take such action as the study shall recommend with the objective of resolving the non-compliance. Such recommendations shall be implemented by Seller to Company's reasonable satisfaction no later than forty-five (45) Days from the Day the

completed study is issued by the consultant, unless such recommendation cannot reasonably be implemented within forty-five (45) Days, in which case, Seller shall implement such recommendations within such longer commercially reasonable period of time agreed to by the Parties in writing. Failure to implement such recommendations within this period shall constitute a material breach of this Agreement. The Company shall have the right to declare the Facility derated and the Facility shall be deemed to be in Seller-Attributable Non-Generation status until Seller's aforementioned written report has been completed, any subsequent study commissioned by the Parties has been completed and any recommendations to resolve the non-compliance have been implemented to Company's reasonable satisfaction.

- (k) Applicability of IEEE 2800-2022.¹ The requirements set forth in this Attachment B (Facility Owned by Seller) in its entirety shall be aligned and in accordance with the requirements of IEEE 2800-2022, for all intents and purposes. IEEE 2800-2022 is referenced herein as the Company has adopted specific sections of IEEE 2800-2022, unless otherwise specified or clarified. Should there be conflicts between IEEE 2800-2022 and the requirements specified herein, the requirements of this Agreement, including this Attachment B (Facility Owned by Seller), shall control, consistent with the flexibility afforded the Company serving as the TS Owner and TS Operator, as such terms are defined in IEEE 2800-2022 Section 1 "Overview".

- (i) For purposes of referencing IEEE 2800-2022, the reference point of applicability ("RPA") in Section 4.2 of IEEE 2800-2022 shall apply to the POI.

¹ This Agreement does not adopt Sections 1 through 4 of IEEE 2800-2022. These sections, however, provide context for the sections of IEEE 2800-2022 incorporated into this Agreement. The IEEE 2800-2022 definitions may conflict with definitions in this Agreement and therefore the IEEE 2800-2022 definitions are referenced solely for the purpose of understanding the definition within the context of the specific IEEE 2800-2022 references and not for interpretation of other sections of this Agreement which are not reference sections of IEEE 2800-2022.

- (ii) For purposes of referencing IEEE 2800-2022, the applicable voltages and applicable frequency shall have the meaning set forth in Section 4.3 of IEEE 2800-2022, unless otherwise specified in this Agreement.

The nominal phase-to-phase voltage at the POI shall be ____ kV. **[DRAFTING NOTE: CHANGE TO THE APPROPRIATE POI VOLTAGE FOR THE FACILITY]**

The nominal frequency is 60 Hz.

- (iii) Prioritization of IBR responses. The Facility shall comply with IEEE 2800-2022 Section 4.7 "Prioritization of IBR responses" in its entirety.

2. Operating Procedures. **[NOTE: NUMERICAL SPECIFICATIONS IN THIS SECTION 2 MAY VARY DEPENDING ON THE SPECIFIC PROJECT AND THE RESULTS OF THE PROJECT-SPECIFIC INTERCONNECTION REQUIREMENT STUDY.]**

- (a) Reviews of the Facility. Company may require periodic reviews of the Facility, maintenance records, available operating procedures and policies, and relay settings, and Seller shall implement changes Company deems necessary for parallel operation or to protect the Company System from damages resulting from the parallel operation of the Facility with the Company System.
- (b) Separation. Seller must separate from Company System whenever requested to do so by the Company System Operator pursuant to Article 8 (Company Dispatch) and Article 9 (Personnel and System Safety) of the Agreement.
- (c) Seller Logs. Logs shall be kept by Seller for information on unit availability including reasons for planned and forced outages, circuit breaker trip operations, relay operations, including target initiation, and other unusual events. Company shall have the right to review these logs, especially in analyzing system disturbances. Seller shall maintain such records for a period of not less than six (6) years.

- (d) Reclosing and Return to Service. Under no circumstances shall Seller, when separated from the Company System for any reason, including tripping during disturbances or due to equipment failure, reclose into the Company System without first obtaining specific approval to do so from the Company System Operator. Ramp Rates, behavior and mode of operation upon return to service shall conform to verbal instructions from the System Operator or Active Power control from Company. Following local or system-wide outage conditions, the Facility shall not attempt to automatically reconnect to the grid (unless directed by the Company System Operator) so as to not interfere with Company System Operator blackstart procedures.
- (e) [RESERVED]
- (f) [RESERVED]
- (g) Critical Infrastructure Protection. Seller shall comply with the critical infrastructure protection requirements set forth in Section 1(b)(iii)(G) (Cybersecurity and Critical Infrastructure Protection) of this Attachment B (Facility Owned by Seller).
- (h) Allowed Operations. Facility shall be allowed to import or export net real power to the Company System only when the [REDACTED] circuit is in normal operating configuration served by breaker [REDACTED] at [REDACTED] Substation. **[TO BE DETERMINED BY COMPANY BASED ON THE RESULTS AND REQUIREMENTS OF THE IRS]**

3. Technical and Operational Requirements.

- (a) Reactive Power Control. Seller shall at minimum meet IEEE 2800-2022 Section 5 "Reactive power-voltage control requirements within the continuous operation region", as supplemented or modified by the following **[THESE REQUIREMENTS MAY BE CHANGED BY COMPANY UPON COMPLETION OF THE IRS.]**:
 - (i) Reactive Amount. The Facility shall have sufficient equipment, as specified in IEEE 2800-2022 Section 5 "Reactive power-voltage control requirements within the continuous operation region", so that the Facility will have the

ability to deliver or receive, at the Point of Interconnection, dynamic reactive power at all active power levels including zero active power, as illustrated in the **[generation and BESS capability]** curve(s) attached to this Agreement as Exhibit B-2 (Generator and Energy Storage Capability Curve(s)) **[to be updated by IRS]**, which represents the Facility Composite (Generator and Energy Storage) Capability Curve(s). Full dynamic reactive power capability shall be maintained for system equivalent impedances between _____ and _____ [TBD IRS], and all voltage operating ranges. **[NOTE: THE IRS WILL DETERMINE IF ANY ADDITIONAL REACTIVE POWER RESOURCES WILL BE REQUIRED.]**

- (ii) Seller shall automatically regulate at a point, the point of regulation, between the Seller's generator terminal and the Point of Interconnection to be specified by Company to within 0.5% of a voltage, var, or power factor specified by the Company System Operator to the extent allowed by the Facility reactive power capabilities as defined in Section 3(a)(i) (Reactive Amount) of this Attachment B (Facility Owned by Seller).
- (iii) The Facility shall be able to accept a reactive power droop setting between 0 and 0.3 puV/puVAR **[settable range to be confirmed by IRS]** where puVAR is based on the Reactive Amount specified in Section 3(a)(i) (Reactive Amount) of this Attachment B (Facility Owned by Seller). Company shall have the ability to specify the reactive power droop setting among other voltage control settings remotely through Company SCADA. The Seller shall not change the voltage control settings unless instructed or approved by the Company. The default reactive power droop setting shall be: puV/puVAR **[To be determined by the results of the IRS]**
- (iv) For voltage disturbances at the Point of Interconnection, including faults on the transmission system, for which the applicable voltage is within +/- 5% of the nominal voltage inclusive, the Facility shall at minimum meet

IEEE 2800-2022 Section 5.2.2 "Voltage Control" within the reactive power capabilities described in Section 3(a)(i) (Reactive Amount) of this Attachment B (Facility Owned by Seller). The step response time shall be 1 second or less.

[DRAFTING NOTE: LONGER STEP RESPONSE TIMES MAY BE PERMITTED IF SHOWN TO PROVIDE A MORE STABLE RESPONSE IN IRS]

- (v) For voltage disturbances at the Point of Interconnection, including faults on the transmission system, for which the applicable voltage falls outside of +/- 5% of the nominal voltage, the Facility shall at minimum meet IEEE 2800-2022 Section 7.2.2.3.5 "Response to TS abnormal conditions - Performance Specifications", where the IBR unit maximum current rating is to be provided in accordance with the Short-term Overcurrent Capability as described in Section 3(u) (Short-term Overcurrent Capability) of this Attachment B (Facility Owned by Seller).
- (vi) The voltage setpoint target and present Facility minimum and maximum reactive power limits based on the Facility Composite capability curve shall be provided to the Company SCADA through Company's Telemetry and Control.
- (b) Active Power Control and Capacity Available for Dispatch Performance. The tolerance of active power control accuracy shall be +/- 0.1 MW. When system frequency is within the deadband determined in Section 3(m)(iii) of Attachment B (Facility Owned by Seller) the Facility shall maintain active power output as close to the latest received Power Reference Setpoint as possible, but within this tolerance.
 - (i) The tolerance of Capacity Available for Dispatch accuracy shall be +/- 0.1 MW.
- (c) Ramp Rates.
 - (i) For changes in active power under Seller's local dispatch control Seller shall ensure that the rate of change is at or below a Ramp Rate specified by the Company. This should not

constrain the primary frequency response control described in Section 3(m) (Active-power - Frequency Response Requirements) or the restoration of active power as described in Section 3(d) (Ride-Through Requirements).

(ii) Upon receiving a command from the Company active power control(s) described in Section 1(g)(viii) of this Attachment B (Facility Owned by Seller), Seller shall adjust the Facility's net active power import or export at the Ramp Rate specified by the Company, as described in Section 1(g)(vii) of this Attachment B (Facility Owned by Seller), to the extent allowed by the renewable resource and energy storage. The Facility will respond to the change in Power Reference Setpoint immediately without intentional delay. The maximum dispatchable Ramp Rate shall be as fast as the Facility is able to support but at least the greater of 4 MW/min or 10% of the Facility Contract Capacity per minute; a slower dispatchable Ramp Rate may be specified by the Company.

(iii) The Ramp Rate requirements of this Section 3(c) (Ramp Rates) of this Attachment B (Facility Owned by Seller) shall not impede the response when the Facility net active power import or export is changed by the primary frequency response control described in Section 3(m) (Active-power - Frequency Response Requirements) of this Attachment B (Facility Owned by Seller) or when restoring active power output as described in Section 3(d) (Ride-Through Requirements) of this Attachment B (Facility Owned by Seller).

(d) Ride-Through Requirements.

(i) In meeting the voltage and frequency ride-through requirements in this Attachment B (Facility Owned by Seller), Section 3(e) (Undervoltage Ride-Through), Section 3(f) (Over Voltage Ride-Through), Section 3(g) (Transient Stability Ride-Through), and Section 3(i) (Frequency Ride-Through), the Facility shall not enter momentary cessation of operations within the voltage and

frequency zones and time periods where the Facility must remain connected to the Company System and at minimum meet or exceed the capabilities required in IEEE 2800-2022 Section 7.1 "Response to TS abnormal conditions - Introduction"; Section 7.2.2.3.2 "Low- and high-voltage ride-through capability"; Section 7.2.2.3.3 "Low- and high-voltage ride-through performance"; and 7.3.2.1 "Frequency disturbance ride-through requirements - General requirements and exceptions" as parameterized and modified in this Attachment B (Facility Owned by Seller). Any tripping on calculated frequency should be based on accurately calculated and filtered frequency measurement over a time frame of six cycles, or other period as specified by the Company, and should not use an instantaneously calculated value. In the may trip regions, the Facility shall initiate trip for over/under voltage and frequency conditions only as required for Facility equipment operating limits to avoid damage in accordance with IEEE 2800-2022 Section 9 "Protection", and Section 7.2.1 "Voltage protection requirements" and Section 7.3.1 "Mandatory frequency tripping requirements". Any such protection driven limits of operation should be conveyed to the Company and represented in the provided models. **[THIS PROVISION MAY BE ADJUSTED BY COMPANY UPON COMPLETION OF THE IRS IF MOMENTARY CESSATION IS NEEDED TO PREVENT EQUIPMENT DAMAGE DUE TO A POWER EQUIPMENT LIMITATION. DOCUMENTATION FROM THE EQUIPMENT MANUFACTURER OF SUCH LIMITATION SHALL BE PROVIDED TO COMPANY IN WRITING WITH THE SELLER'S RFP SUBMITTAL AND THE CONDUCT OF THE IRS.]**

- (ii) The Facility shall at minimum meet IEEE 2800-2022 Section 7.2.2.6 "Response to TS abnormal conditions - Restore output after voltage ride-through," as supplemented or modified by the following: During the voltage recovery, following an event resulting in abnormal voltage conditions, the Facility shall maintain its response and subsequently restore active power output to at least 100% of pre-disturbance levels or available active power, whichever is lower, within 1 second without any Ramp Rate

limitation , and as adjusted by the Active-power - frequency response requirements in Section 3(m) (Active-power - Frequency Response Requirements) of this Attachment B (Facility Owned by Seller), or the GFM response described in Section 3(n) (Grid Forming ("GFM")) of this Attachment B (Facility Owned by Seller). Changes of active power are permitted in response to control commands in accordance with Active Power Control or in response to other control settings.

- (iii) The Facility shall meet or exceed the minimum requirements to ride-through consecutive voltage deviation events as required in IEEE 2800-2022 Section 7.2.2.4 (Consecutive voltage deviations ride-through capability) and as modified for the ride-through ranges of Section 3(e) (Undervoltage Ride-Through) and Section 3(f) (Over Voltage Ride-Through) of this Attachment B (Facility Owned by Seller).
- (iv) The response of each generating resource while within the ride-through requirements of Section 3(e) (Undervoltage Ride-Through), Section 3(f) (Over Voltage Ride-Through), Section 3(g) (Transient Stability Ride-Through), and Section 3(i) (Frequency Ride-Through) of this Attachment B (Facility Owned by Seller), and for all expected grid conditions should be stable. The dynamic performance of each resource should be tuned to provide this stable response. Company will work with Seller to ensure during the interconnection process that each resource within the Facility and the Facility supports Company System reliability and provides a stable transient response to grid events.
- (e) Undervoltage Ride-Through. The Facility will meet the following undervoltage ride-through requirements during low voltage affecting one or more of the three voltage phases ("V" is the lowest magnitude voltage of any three voltage phases at the Point of Interconnection): **[THESE VALUES MAY BE CHANGED BY COMPANY IN ITS SOLE DISCRETION UPON COMPLETION OF THE IRS IF REQUIRED FOR SYSTEM PERFORMANCE.]**

$0.80 \text{ pu} \leq V \leq 1.00 \text{ pu}$	The Facility remains connected to the Company System and in continuous operation.
$0.70 \text{ pu} \leq V < 0.80 \text{ pu}$	The Facility remains connected to the Company System for as long as the equipment allows and at minimum ride-through for twenty (20) seconds while the voltage remains in this range.
$0.40 \text{ pu} \leq V < 0.70 \text{ pu}$	The Facility remains connected to the Company System for as long as the equipment allows and at minimum ride-through for ten (10) seconds while the voltage remains in this range.
$0.25 \text{ pu} \leq V < 0.40 \text{ pu}$	The Facility remains connected to the Company System for as long as the equipment allows and at minimum ride-through for 1200 milliseconds while the voltage remains in this range.
$0.00 \text{ pu} \leq V < 0.25 \text{ pu}$	The Facility remains connected to the Company System for as long as the equipment allows and at minimum ride-through for 600 milliseconds while the voltage remains in this range.

- (f) Over Voltage Ride-Through. The Facility will meet the following overvoltage ride-through requirements during high voltage affecting one or more of the three voltage phases (as described below) ("V" is the highest magnitude voltage of any of the three voltage phases at the Point of Interconnection): **[THESE**

VALUES MAY BE CHANGED BY THE COMPANY UPON COMPLETION OF THE IRS. WITHOUT LIMITATION, FOR A DISTRIBUTION-CONNECTED FACILITY, UPON COMPLETION OF THE IRS THE COMPANY MAY SPECIFY REQUIREMENTS FOR A MANDATORY DISCONNECTION FROM THE COMPANY SYSTEM AT $V > 1.2$ pu. RIDE-THROUGH REQUIREMENTS FOR OTHER SYSTEMS WILL BE DETERMINED IN THE IRS.]

$1.00 \text{ pu} \leq V \leq 1.10 \text{ pu}$	The Facility remains connected to the Company System and in continuous operation.
$1.10 \text{ pu} < V \leq 1.20 \text{ pu}$	The Facility remains connected to the Company System for as long as the equipment allows and at minimum ride-through for thirty (30) seconds while the voltage remains in this range.
$V > 1.20 \text{ pu}$	The Facility remains connected to the Company System and ride-through for as long as the equipment allows.

- (g) Transient Stability Ride-Through. In all modes, the Facility shall be designed such that the transient stability of Company System is maintained for normally cleared and secondarily cleared faults. The Facility will be required to remain connected through anticipated rates of change of frequency. The Facility shall provide the options of being configured as active power priority or reactive power priority during the ride-through. The selection of the appropriate priority of the Facility shall be determined by the Interconnection Requirements Study. **[TO BE PROVIDED UPON COMPLETION OF IRS].**

- (h) Voltage Phase Angle Change Ride-Through.

- (i) The Facility shall ride through positive-sequence phase angle changes within a sub-cycle-to-cycle time frame of the voltage at the Point of Interconnection of less than or equal to 30

electrical degrees. In addition, the Facility shall remain in operation for any change in phase angle of individual phases caused by occurrence and clearance of unbalanced faults, provided that the positive-sequence angle change does not exceed the forestated criterion. Active and reactive current oscillations in the post-disturbance period that are positively damped shall be acceptable in response to phase angle changes. Momentary cessation in the post-disturbance period shall not be permitted.

(ii) Inverter phase lock loop (PLL) loss of synchronism shall not cause the inverter to trip or enter momentary cessation within the voltage and frequency ride-through region. Inverters must be capable of riding through temporary loss of synchronism, and regain synchronism, without causing a trip or momentary cessation of the resource.

(i) Frequency Ride-Through. Seller shall at minimum meet IEEE 2800-2022 Section 7.3.2.1 "Frequency disturbance ride-through requirements - General requirements and exceptions" and Section 7.3.2.2 "Frequency disturbance ride-through requirements - Continuous operation region" with the frequency thresholds provided in the following Sections (3)(i)(i) (Underfrequency Ride-Through) and 3(i)(ii) (Overfrequency Ride-Through) replacing the values in the "Percent from f_{nom} " column in IEEE 2800-2022 Section 7.3.2.1, Table 15 -Frequency ride-through capability for an IBR plant):

(i) Underfrequency Ride-Through. The Facility shall meet the following underfrequency ride-through requirements during an underfrequency disturbance ("f" is the Company System frequency at the Point of Interconnection):

57.0 Hz $\leq$ f $\leq$ 60.0 Hz

The Facility remains connected to the Company System and in continuous operation.

56.0 Hz $\leq$ f < 57.0 Hz

The Facility remains connected to the Company System for as long as the

equipment allows and at minimum ride-through for twenty (20) seconds while the frequency remains in this range.

$f < 56.0 \text{ Hz}$

The Facility remains connected to the Company System for as long as the equipment allows.

(ii) Overfrequency Ride-Through. The Facility shall meet the following overfrequency ride-through requirements during an overfrequency disturbance ("f" is the Company System frequency at the Point of Interconnection):

$60.0 \text{ Hz} \leq f \leq 63.0 \text{ Hz}$

The Facility remains connected to the Company System and in continuous operation.

$63.0 \text{ Hz} < f \leq 64.0 \text{ Hz}$

The Facility remains connected to the Company System for as long as the equipment allows and at minimum ride-through for twenty (20) seconds while the frequency remains in this range.

$f > 64.0 \text{ Hz}$

The Facility remains connected to the Company System for as long as the equipment allows.

(j) [RESERVED]

(k) Power Quality. Seller shall at a minimum meet IEEE 2800-2022 Section 8 "Power Quality." Voltage harmonics at the Point of Interconnection caused by the Facility shall not exceed the limits stated in IEEE Standard 519-2014, or latest version "Recommended Practices and Requirements for Harmonic Control in Electrical Power Systems".

(1) [RESERVED]

(m) Active-power - Frequency Response Requirements.

Seller shall at minimum meet IEEE 2800-2022 Section 6 "Active-power - frequency response requirements," as supplemented or modified by the following:

(i) Seller Facility shall provide a primary frequency response (PFR) and fast frequency response (FFR) with the appropriate frequency droop characteristic in both the overfrequency and underfrequency directions except to the extent such response is not operationally possible because of the level of available renewable resource and/or energy storage State of Charge.

(ii) The frequency response control shall be in continuous operation when operating in parallel with the Company System including all continuous operation and ride-through ranges provided in Section 3(e) (Undervoltage Ride-Through), Section 3(f) (Over Voltage Ride-Through), and Section 3(i) (Frequency Ride-Through) of this Attachment B (Facility Owned by Seller), unless directed otherwise by the Company.

(iii) The Company shall have the ability to specify the PFR and FFR droops and deadband settings among other frequency response control settings and enable or disable PFR or FFR remotely through Company SCADA.

(iv) The Primary Frequency response shall change the active power import or export without any Ramp Rate limitation to the extent the equipment can support.

(iv) Primary Frequency Response. IEEE 2800-2022 Section 6, Table 7 - "Parameters of primary frequency response for IBR plant" shall be replaced as follows:

Parameter	Units	Default (Oahu)	Default (Hawaii, Maui)	Ranges of available settings	
				Min	Max

db_{uf}	Hz	0.02	0.017	0.01	0.1
db_{of}	Hz	0.02	0.017	0.01	0.1
k_{uf}	%	5	4	0.1	10
k_{of}	%	5	4	0.1	10

- (v) Fast Frequency Response. IEEE 2800-2022 Section 6, Table 10 - "Parameters of FFR1" shall be replaced as follows:

Parameter	Units	Default (Oahu)	Default (Hawaii, Maui)	Ranges of available settings	
				Min	Max
$f_{uf, FFR1}$	Hz	0.3	0.1	0.1	1
$f_{of, FFR1}$	Hz	0.3	.1	0.1	1
$k_{uf, FFR1}$	%	1	0.833	0.1	4
$k_{of, FFR1}$	%	1	0.833	0.1	4

- (vi) Isochronous Frequency Response Mode. The Facility will provide the capability to supply isochronous mode of operation. The control design shall allow for a bumpless transfer between modes of operation. The Facility will be capable of operating in a zero droop (isochronous) mode of operation. When in this mode of operation, the frequency droop characteristic will be configured as needed to keep system frequency at a target. When isochronous mode of operation is selected while connected to the live system the target frequency shall be initialized to the grid frequency and the target increased or decreased from the Company System through the control interface. In a black start configuration, the target shall be 60 Hz.

- (n) Grid Forming ("GFM"). **[REQUIRED FOR FACILITIES WITH STORAGE, CAPABILITIES OF WIND TURBINE GENERATOR INVERTERS TO PROVIDE THIS FUNCTION IS PREFERABLE AND WOULD BE STUDIED IN THE IRS IF OFFERED]**GFM control sets an internal voltage waveform reference such that an inverter with the GFM control shall be able to synchronize with the grid and regulate active and reactive power generation appropriately, regardless of the grid's strength, or operate independently of other generation. An inverter with GFM control shall immediately respond to grid disturbances to support stability of the grid and maintain its own control stability during the system disturbance.

Seller Facility inverters shall be designed with GFM control and be capable of operating in GFM mode supporting system operation under normal and emergency conditions without relying on the characteristics of synchronous machines. While in GFM mode, the inverters shall support grid operation, consistent with tariff requirements, as a continuous ac voltage source during normal and transient conditions (as long as no limits are reached within the inverter) and be able to synchronize to other voltage sources and operate autonomously if a grid reference is unavailable, and shall be able to share active and reactive power burden with other voltage sources without impacts on system stability.

Seller shall provide information to the Company regarding control design, capabilities, characteristics, etc. of the GFM control of the Facility for Company review and approval. Additional specifics of the GFM control may be defined during the IRS.

Specifically, the GFM controls shall have the following functions and characteristics:

- (i) Allow Seller Facility to operate in stable manner on low system strength grids (e.g. low short circuit ratio, low inertia, inertia-less system, etc.).
- (ii) Sets an internal voltage waveform reference and is able to synchronize with the grid or operate independently of other generation.

- (iii) Responds to system condition changes (i.e. frequency change and voltage change) beyond the control deadband in a timely manner by contributing towards the subsequent recovery of system frequency and voltage to the pre-disturbance value, assuming energy and power margins are available.
- (iv) Provide damping control function which damps oscillation within the interconnection and other adverse interactions among GFM and Grid following Inverter Based Resources (IBRs) and other power electronic devices on the grid.
- (v) Upon the loss of the last synchronous machine in the power system, GFM will have the ability to operate autonomously if a grid reference is unavailable and be able to share active and reactive power burden with other voltage sources without impacts on system stability.
- (vi) Ability to transition from an electrical island to a grid-connect configuration without an impact to system stability.
- (vii) Provide active low-order harmonics cancellation (as applicable).
- (viii) Provide black-start capability (as applicable).
- (ix) Seller shall operate the Facility in grid forming mode only as directed by the Company System Operator, in its sole discretion. The Facility shall be required to communicate to the Company its parameters and settings pertaining to grid forming mode.
- (x) The grid forming control block diagram shall be submitted to the Company for review. The design shall be approved in writing by the Company and implemented by the Seller prior to control system testing. This shall include initial settings for tunable controls parameters based on modeling. The initial control parameters may be modified by seller on company request; based on field data and performance, subsequent system resource

changes, etc. to achieve acceptable system stability.

- (o) Blackstart. The Facility shall be able to blackstart, start and energize itself without support from the Company System to the extent allowed by the operating limits of the Facility.
 - (i) At the Company System Operator's sole discretion and to the extent of the operating limits of the Facility, the Facility shall blackstart and energize a part of the Company System as directed by the Company System Operator.
 - (ii) Upon blackstart and energization of a part of the Company System, the Facility shall:
 - (A) Voltage Regulation according to Section 3(a) (Reactive Power Control) of this Attachment B (Facility Owned by Seller).
 - (B) Frequency Control with an isochronous governor to a frequency target initially set to 60 Hz and adjustable at the sole discretion of the Company System Operator.
 - (C) Supply power to the part of the Company System that the Facility has energized, which shall include supplying power to start synchronous and other inverter-based generating resources.
 - (D) Blackstart and operate in grid forming mode as described in Section 3(n) (Grid Forming ("GFM")) of this Attachment B (Facility Owned by Seller).
 - (iii) The Facility shall seamlessly and bumplessly transition from blackstart mode to normal operating mode as directed by and at the sole discretion of the Company System Operator. The blackstart control mode status shall be telemetered to Company through SCADA.
 - (iv) The Facility shall maintain a minimum level of energy in the Facility storage system for blackstart use to be specified by the Company in its sole discretion.

- (v) The Facility blackstart design and configuration, including the isochronous governor, shall be subject to the prior written approval of Company in its sole discretion and implemented by Seller prior to conducting the CSAT. The blackstart design and configuration may be modified by mutual agreement of Seller and Company.
- (p) [RESERVED]
- (q) Rate of Change of Frequency ("ROCOF"). Seller shall at minimum meet IEEE 2800-2022 Section 7.3.2.3.5 "Rate of change of frequency (ROCOF) ride-through".
- (r) Self-Energization. Seller's Facility shall be able to self-energize, i.e. start and energize itself without connecting with the Company System. The process of interconnecting the energized Facility with the Company System shall be seamless and bumpless using an auto-synchronizing circuit breaker. Immediately upon connecting to the Company System, the Facility shall transition to normal operation. The self-energization control status shall be telemetered to the Company through SCADA.Energization from the Company System. If Seller's Facility is unable to self-energize, then Seller's Facility shall be able to energize from the Company's System. The process from energizing from the Company's System shall occur at the feeder level.
- (s) Energization from the Company System. If Seller's Facility is unable to self-energize, then Seller's Facility shall be able to energize from the Company's System. The process from energizing from the Company's System shall occur at the feeder level.
- (t) Balance of Plant ("BOP") Efficiency Ratio. **[FOR WIND FACILITIES]** Wind Facilities must achieve a satisfactory BOP Efficiency Ratio. Both the BOP Benchmark and the process for determining the BOP Efficiency Ratio will be determined upon completion of the NEP IE Estimate or Company-Designated NEP Estimate in accordance with Section 1(c) (NEP IE Estimate and Company-Designated NEP Estimate) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement. The BOP Benchmark will be re-evaluated as part of the OEPR process under Attachment U (Calculation and Adjustment of Net Energy Potential).

- (u) Short-term Overcurrent Capability. The Facility shall be capable of providing a Short-Term Overcurrent Capability at least 1.6 times the steady-state current that would correspond to the Contract Capacity at nominal voltage at the Point of Interconnection, for a minimum of 5 seconds per event. The Short-Term Overcurrent Capability shall be available during system disturbances through any post disturbance system recovery stage to provide system stability support, during which the Facility net export can be temporarily above the Facility continuous net export limit. If the Facility has a Short-Term Overcurrent Capability greater than the 1.6 minimum provision, the entire Short-Term Overcurrent Capability must be made available to respond during system disturbances. The Facility short-term overcurrent capability is calculated by the formula:

$$\begin{array}{lcl} \text{Facility Short-Term} & \text{Per Unit BESS} & \text{Total of BESS} \\ \text{Overcurrent} & = \text{Inverter Overcurrent} & \text{Inverters MVA} \\ \text{Capability} & \text{Capability} & \times \frac{\text{Facility}}{\text{Contract}} \\ & & \text{Capacity (MW)} \end{array}$$

[TO BE PROVIDED UPON COMPLETION OF IRS]

The Facility current injection shall meet or exceed the requirements of IEEE 2800-2022 Section 7.2.2.3.4 "Current injection during ride-through mode" as modified herein to apply for voltage disturbances within the continuous operation and all ride-through conditions up to the full equipment capability limits as described in Section 3(a) (Reactive Power Control), Section 3(d) (Ride-Through Requirements), and this Section 3(u) (Short-term Overcurrent Capability) of Attachment B (Facility Owned by Seller).

4. Disconnection of Seller Facility.

- (a) Seller must address any Disconnection Event (as defined below) according to the requirements of this Section 4 (Disconnection of Seller Facility) of Attachment B (Facility Owned by Seller). For this purpose, a "Disconnection Event" is a sudden change of active power at the Point of Interconnection of at least ____ MW **[TO BE DETERMINED BY COMPANY FOLLOWING THE IRS]** and/or disconnection of the Facility from the

Company's System in a period of two (2) minutes or less, (i) that is not the result of Company dispatch, frequency droop response, or isolation of the Facility resulting from designed protection fault clearing, and (ii) for which Company does not issue for such disconnection the written notice for failure to meet operational and performance requirements as set forth in Section 1(j) (Demonstration of Facility) of this Attachment B (Facility Owned by Seller). Company's election to exercise its rights under said Section 1(j) (Demonstration of Facility) shall not relieve Seller of its obligation to comply with the requirements of this Section 4 (Disconnection of Seller Facility) of Attachment B (Facility Owned by Seller) for any future Disconnection Event during the pendency of such election or thereafter.

- (b) For every Disconnection Event, Seller shall investigate the cause. Within three (3) Business Days of the Disconnection Event, Seller shall provide, in writing to Company, an incident report that summarizes the sequence of events and probable cause of the Disconnection Event.
- (c) Within forty-five (45) Days of a Disconnection Event, Seller shall provide, in writing to Company, Seller's findings, data relied upon for such findings, and proposed actions to prevent reoccurrence of a Disconnection Event ("Proposed Actions"). The aforementioned findings, data relied upon for such findings, and Proposed Actions, should at a minimum, mimic the reporting requirements outlined in NERC Standard PRC-030-1 (Unexpected Inverter-Based Resource Event Mitigation). Company may assist Seller in determining the causes of and recommendations to remedy or prevent a Disconnection Event ("Company's Recommendations"). Seller shall implement such Proposed Actions (as modified to incorporate the Company's Recommendations, if any) and Company's Recommendations (if any) in accordance with the time period agreed to by the Parties.
- (d) In the event Seller and Company disagree as to (i) whether a Disconnection Event occurred, (ii) the sequence of events and/or probable cause of the Disconnection Event, (iii) the Proposed Actions, (iv) Company's Recommendations, and/or (v) the time period to implement the Proposed Actions and/or

Company's Recommendations, then the Parties shall follow the procedure set forth in Section 5 (Expedited Dispute Resolution) of this Attachment B (Facility Owned by Seller).

- (e) Upon the fourth (4th) Disconnection Event (and each subsequent Disconnection Event) within any Contract Year, the Parties shall follow the procedures set forth in Section 4(a) and Section 4(d) of Attachment B (Facility Owned by Seller), to the extent applicable. If after following the procedures set forth in this Section 4 (Disconnection of Seller Facility) of Attachment B (Facility Owned by Seller), Seller and Company continue to have a disagreement as to (1) the probable cause of the Disconnection Event, (2) the Proposed Actions, (3) the Company's Recommendations, and/or (4) the time period to implement the Proposed Actions and/or the Company's Recommendations, then the Parties shall commission a study to be performed by a qualified independent Third-Party consultant ("Qualified Consultant") chosen from the Qualified Independent Third-Party Consultants List ("Consultants List") attached to the Agreement as Attachment D (Consultants List). Such study shall review the design of, review the operating and maintenance procedures dealing with, recommend modifications to, and determine the type of maintenance that should be performed on Seller-Owned Interconnection Facilities ("Study"). Seller and Company shall each pay for one-half of the total cost of the Study. The Study shall be completed within ninety (90) Days from such fourth Disconnection Event (and each subsequent Disconnection Event) within any Contract Year, unless the Qualified Consultant determines the Study cannot reasonably be completed within ninety (90) Days, in which case, such longer period of time as the Qualified Consultant determines is necessary to complete the Study shall apply. The Qualified Consultant shall send the Study to Company and Seller. Seller (and/or its Third-Party consultants and contractors), at Seller's expense, shall change the design of, change the operating and maintenance procedures dealing with, implement modifications to, and/or perform the maintenance on Seller-Owned Interconnection Facilities recommended by the Study. Such design changes, operating and maintenance procedure changes, modifications, and/or maintenance shall be completed no later than forty-

five (45) Days from the Day the completed Study is issued by the Qualified Consultant, unless such design changes, operating and maintenance procedure changes, modifications, and/or maintenance cannot reasonably be completed within forty-five (45) Days, in which case, Seller shall complete the foregoing within such longer commercially reasonable period of time agreed to by the Parties in writing. Company shall have the right to derate the Facility to a level that maintains reliable operations in accordance with Good Engineering and Operating Practices, and the Facility shall be deemed to be in Seller-Attributable Non-Generation status, until the study has been completed and the study's recommendations have been implemented by Seller to Company's reasonable satisfaction. Nothing in this provision shall affect Company's right to dispatch the Facility as provided for in this Agreement.

- (f) The Consultants List attached hereto as Attachment D (Consultants List) contains the names of engineering firms which both Parties agree are fully qualified to perform the Study. At any time, except when a Study is being conducted, either Party may remove a particular consultant from the Consultants List by giving written notice of such removal to the other Party. However, neither Party may remove a name or names from the Consultants List without approval of the other Party if such removal would leave the list without any names. Intended deletions shall be effective upon receipt of notice by the other Party, provided that such deletions do not leave the Consultants List without any names. Proposed additions to the Consultants List shall automatically become effective thirty (30) Days after notice is received by the other Party unless written objection is made by such other Party within said thirty (30) Day period. By mutual agreement between the Parties, a new name or names may be added to the Consultants List at any time.

- 5. Expedited Dispute Resolution. If there is a disagreement between Company and Seller regarding (i) whether a Disconnection Event occurred, (ii) the sequence of events and/or probable cause of the Disconnection Event, (iii) the Proposed Actions, (iv) the Company's Recommendations, and (v) the time period to implement the Proposed Actions

and/or the Company's Recommendations, then authorized representatives from Company and Seller, having full authority to settle the disagreement, shall meet in Hawai'i (or by telephone conference) and attempt in good faith to settle the disagreement. Unless otherwise agreed in writing by the Parties, the Parties shall devote no more than five (5) Business Days to settle the disagreement in good faith. In the event the Parties are unable to settle the disagreement after the expiration of the time period, then such disagreement shall constitute a Dispute for which either Party may pursue the dispute resolution procedure set forth in Section 28.2 (Mediation) of this Agreement.

6. Modeling.

(a) Seller's Obligation to Provide Models. Within 30 Days of Company's written request, but no later than the Commercial Operations Date, Seller shall provide detailed data regarding the design and location of the Facility, in a form reasonably satisfactory to Company, to allow the modeling of the inverters/WTGs and any other equipment within the Facility identified in the IRS which utilizes Source Code (such as energy storage system, STATCOM or DVAR equipment), including, but not limited to, integrated and validated power flow and transient stability models (such as PSS/E models), a short circuit model (such as an ASPEN model), and an electro-magnetic transient model (such as a PSCAD model) of the inverters/WTGs and any additional equipment identified in the IRS as set forth above, applied assumptions, and pertinent data sets (each a "Required Model" and collectively, the "Required Models"). Thereafter, during the Term, Seller shall provide working updates of any Required Model within 30 Days of (i) Company's written request, or (ii) Seller obtaining knowledge or notice that any Required Model has been modified, updated or superseded by the Source Code Owner.

(b) Escrow Establishment. If, pursuant to Section 6(a) (Seller's Obligation to Provide Models) of this Attachment B (Facility Owned by Seller), the Required Models are provided to the Company in a form other than Source Code, Seller shall arrange for and ensure that the Source Code for the relevant Required Model is deposited into the Source Code Escrow as set forth below in Section 6(b)(i) (Source Code Escrow) of this Attachment B (Facility Owned by Seller) no later than

the time periods set forth in Section 6(a) (Seller's Obligation to Provide Models) of this Attachment B (Facility Owned by Seller) for delivery of the Required Models. Seller shall be responsible for all costs associated with establishing and maintaining the Source Code Escrow. If, however, Seller is unable to deposit the required Source Code into the Source Code Escrow within the time periods set forth in Section 6(a) (Seller's Obligation to Provide Models) of this Attachment B (Facility Owned by Seller), Seller shall, no later than such time periods, instead provide the Source Code LC as set forth below in Section 6(b)(ii) (Source Code Security) of this Attachment B (Facility Owned by Seller).

(i) Source Code Escrow.

- (A) Establishment of Source Code Escrow. If the Required Models are not provided to the Company in the form of Source Code pursuant to Section 6(a) (Seller's Obligation to Provide Models) of this Attachment B (Facility Owned by Seller), Seller shall:
 - (a) arrange for and ensure the deposit of a copy of the current version of the Source Code and relevant documentation for all Required Models with the Source Code Escrow Agent under the terms and conditions of the Source Code Escrow Agreement, and (b) arrange for and ensure the update of the deposited Source Code and relevant documentation for Major Releases and Minor Releases of the Required Models as soon as reasonably possible after they are made generally available.
- (B) Release Conditions. Company shall have the right to obtain from the Source Code Escrow Agent one copy of the escrowed Source Code for the Required Models, under the following conditions upon Company's request:
 - (i) A receiver, trustee, or similar officer is appointed, pursuant to federal, state or applicable foreign law, for the Source Code Owner; or

- (ii) Any voluntary or involuntary petition or proceeding is instituted, under (x) U.S. bankruptcy laws or (y) any other bankruptcy, insolvency or similar proceeding outside of the United States, by or against the Source Code Owner; or
 - (iii) Failure of the Source Code Owner to function as a going concern or operate in the ordinary course; or
 - (iv) Seller and the Source Code Owner fail to provide to Company the Required Models or updated Required Models, or, alternatively, fail to issue a Source Code LC, within the time periods set forth in Section 6(a) (Seller's Obligation to Provide Models) of this Attachment B (Facility Owned by Seller), Company gives written notice of such failure to Seller and the Source Code Owner, and Seller and Source Code Owner fail to remedy such breach within five (5) Days following receipt of such notice.
- (C) Remedies. If Company has the right to obtain from the Source Code Escrow Agent one copy of the escrowed Source Code for the Required Models pursuant to Section 6(b)(i)(B) (Release Conditions) of Attachment B (Facility Owned by Seller), and Company finds that Seller failed to arrange for and ensure the update the Source Code Escrow with the modified and/or updated Source Code and relevant documentation for Major Releases and Minor Releases of the Required Models as provided in Section 6(b)(i)(A) (Establishment of Source Code Escrow) of Attachment B (Facility Owned by Seller) or that the Source Code for the Required Models is incomplete or otherwise unusable, Seller shall be liable to Company for liquidated damages in the amount of \$500 per Day for each Day Seller fails to provide such Source Code to Company or such update to the Source Code to Company from the date

such Major Release or Minor Release was first made available by the Source Code Owner to customers of the Source Code Owner. Failure to provide the updated Source Code of the Required Models within 30 Days' notice from Company of a breach of Section 6(b)(i)(A) (Establishment of Source Code Escrow) of Attachment B (Facility Owned by Seller); provided, that Seller has also failed to provide a satisfactory Source Code LC as set forth in Section 6(b)(ii) (Source Code Security) of this Attachment B (Facility Owned by Seller) shall constitute an Event of Default pursuant to Section 15.2(f) under the Agreement.

- (D) Certification. The Source Code Escrow Agent shall release the Source Code of the Required Models to Company upon receipt of a signed statement by a representative of Company that reads substantially as follows:

The undersigned hereby certifies that (i) I am duly authorized to execute this document on behalf of [**Hawaiian Electric Company, Inc., Maui Electric Company, Limited or Hawai'i Electric Light Company, Inc.**] ("Hawaiian Electric"), and (ii) Hawaiian Electric is entitled to a copy of the Source Code of the Required Models Pursuant to Section 6(b)(i)(B) (Release Conditions) of Attachment B (Facility Owned by Seller) of the Power Purchase Agreement dated as of _____, between _____, and Hawaiian Electric.

- (E) Authorized Use. If Company becomes entitled to a release of the Source Code of the Required Models from escrow, Company may thereafter correct, modify, update and enhance the Required Models for the sole purpose of providing itself the support and maintenance it otherwise would have been entitled to if it had been provided the Required Models by Seller under Section 6(a) (Seller's Obligation to Provide Models) of this Attachment B (Facility Owned by Seller) (the "Source Code Authorized Use").

(F) Confidentiality Obligations. Company shall keep the Source Code of the Required Models confidential pursuant to the confidentiality obligations of the Source Code Escrow Agreement. Company shall restrict access to the Source Code of the Required Models to those employees, independent contractors and consultants of Company who have agreed in writing to be bound by confidentiality and use obligations consistent with those specified in the Escrow Agreement, and who have a need to access the Source Code of the Required Models on behalf of Company to carry out their duties for the Source Code Authorized Use. Promptly upon Seller's request, Company shall provide Seller with the names and contact information of all individuals who have accessed the Source Code of the Required Models, and shall take all reasonable actions required to recover any such Source Code in the event of loss or misappropriation, or to otherwise prevent their unauthorized disclosure or use.

(ii) Source Code Security.

(A) Establishment of Source Code Security. If the Required Models and their relevant Source Code are not provided to the Company in the form of Source Code pursuant to Section 6(a) (Seller's Obligation to Provide Models) of this Attachment B (Facility Owned by Seller) and if the Seller is unable to arrange for and ensure the deposit of the Source Code into the Source Code Escrow established for the benefit of the Company pursuant to Section 6(b)(i) (Source Code Escrow) of this Attachment B (Facility Owned by Seller) then, no later than the time periods set forth in Section 6(a) (Seller's Obligation to Provide Models) of this Attachment B (Facility Owned by Seller) for delivery of the Required Models and Source Code, Seller shall provide an irrevocable standby letter of credit (the "Source Code LC") with no documentation requirement in the amount of Two Hundred Fifty Thousand

Dollars (\$250,000) per Required Model (and its relevant Source Code) substantially in the form attached to this Agreement as Attachment M (Form of Letter of Credit) from a bank doing business in the United States and subject to United States state or federal regulation, with a credit rating of "A-" or better from Standard & Poor's or A3 or better from Moody's. Such letter of credit shall be issued for a minimum term of one (1) year. Furthermore, at the end of each year the security shall be renewed for an additional one (1) year term so that at the time of such renewal, the remaining term of any such security shall not be less than one (1) year. The letter of credit shall include a provision for at least thirty (30) Days' advance notice to Company of any expiration or earlier termination of the letter of credit so as to allow Company sufficient time to exercise its rights under said security if Seller fails to extend or replace the security. In all cases, the reasonable costs and expenses of establishing, renewing, substituting, canceling, increasing, reducing, or otherwise administering the letter of credit shall be borne by Seller.

- (B) Release Conditions. Company shall have the right to draw on the letter of credit the funds necessary to develop and recreate the Required Model or Required Models upon Company's request if Seller fails to provide the Company the Required Models or updated Required Models within the time periods set forth in Section 6(a) (Seller's Obligation to Provide Models) or Section 6(b)(i)(C) (Remedies) of this Attachment B (Facility Owned by Seller), Company gives written notice of such failure to Seller, and Seller fails to remedy such breach within five (5) Days following receipt of such notice for a breach under Section 6(a) (Seller's Obligation to Provide Models), or within thirty (30) Days following receipt of such

notice for a breach under Section 6(b)(i)(C) (Remedies).

- (C) Extend Letter of Credit. If the letter of credit is not renewed or extended no later than thirty (30) Days prior to its expiration or earlier termination, Company shall have the right to draw immediately upon the full amount of the letter of credit and to place the proceeds of such draw (the "Proceeds"), at Seller's cost, in an escrow account in accordance with Section 6(b)(ii)(D) (Proceeds Escrow) of this Attachment B (Facility Owned by Seller), until and unless Seller provides a substitute form of letter of credit meeting the requirements of this Section 6(b)(ii) (Source Code Security) of this Attachment B (Facility Owned by Seller).
- (D) Proceeds Escrow. If Company draws on the letter of credit pursuant to Section 6(b)(ii)(C) (Extend Letter of Credit) of this Attachment B (Facility Owned by Seller), Company shall, in order to avoid comingling the Proceeds, have the right but not the obligation to place the Proceeds in an escrow account as provided in this Section 6(b)(ii)(D) (Proceeds Escrow) of this Attachment B (Facility Owned by Seller) with a reputable escrow agent acceptable to Company ("Proceeds Escrow Agent") subject to an escrow agreement acceptable to Company ("Proceeds Escrow Agreement"). Without limitation to the generality of the foregoing, a federally insured bank shall be deemed to be a "reputable escrow agent." Company shall have the right to apply the Proceeds as necessary to recover amounts Company is owed pursuant to this Section 6 (Modeling) of this Attachment B (Facility Owned by Seller). To that end, the Proceeds Escrow Agreement governing such escrow account shall give Company the sole authority to draw from the account. Seller shall not be a party to such Proceeds Escrow Agreement and shall have no rights to the

Proceeds. Upon full satisfaction of Seller's obligations under Section 6 (Modeling) of this Attachment B (Facility Owned by Seller), Company shall instruct the Proceeds Escrow Agent to remit to the bank that issued the letter of credit that was the source of the Proceeds the remaining balance (if any) of the Proceeds. If there is more than one escrow account with Proceeds, Company may, in its sole discretion, draw on such accounts in any sequence Company may select. Any failure to draw upon the Proceeds for any damages or other amounts due Company shall not prejudice Company's rights to recover such damages or amounts in any other manner.

- (E) Seller's Obligation. If the letter of credit is not sufficient to cover Company's associated consultant fees, costs and expenses to develop and recreate the Required Models, Seller shall pay to Company the difference within ten (10) Days of Company's written notice to Seller.
- (F) Model Verification. Seller shall work with the Company to validate the new Required Models developed by or on behalf of Company within sixty (60) Days of receiving such new Required Models. Seller shall also arrange for and ensure that Company may obtain new Required Models directly from the Source Code Owner in the event that Seller ceases to operate as a going concern or is subject to voluntary or involuntary bankruptcy and is unable or unwilling to obtain the new Required Models from the Source Code Owner.
- (G) Certification. The terms of the letter of credit shall provide for a release of the funds, or in the event the funds have been placed into a Proceeds Escrow, the Proceeds Escrow Agent shall release the necessary funds to Company upon receipt of a signed statement by a representative of Company that reads substantially as follows:

The undersigned hereby certifies that (i) I am duly authorized to execute this document on behalf of **[Hawaiian Electric Company, Inc., Maui Electric Company, Limited, or Hawai'i Electric Light Company, Inc.]** ("Hawaiian Electric"), and (ii) Hawaiian Electric is entitled to \$_____, pursuant to Section 6(b)(ii)(B) (Release Conditions) of Attachment B (Facility Owned by Seller) of the Power Purchase Agreement dated as of _____, between _____, and Hawaiian Electric.

(H) Authorized Use. If Company becomes entitled to a draw of funds from the Source Code Security or a release of funds from the Proceeds Escrow, Company may thereafter use such funds to develop, recreate, correct, modify, update and enhance the Required Models for the sole purpose of providing itself the support and maintenance it otherwise would have been entitled to if it had been provided the Required Models by Seller under Section 6(a) (Seller's Obligation to Provide Models) of this Attachment B (Facility Owned by Seller).

(iii) Supplementary Agreement. The parties stipulate and agree that the escrow provisions in this Section 6(b) (Escrow Establishment) of Attachment B (Facility Owned by Seller) and the Source Code Escrow Agreement and Proceeds Escrow Agreement are "supplementary agreements" as contemplated in 11 U.S.C. § 365(n)(1)(B). In any voluntary or involuntary bankruptcy proceeding involving Seller, failure by Company to assert its rights to "retain its rights" to the intellectual property encompassed by the Source Code or the funds in the Proceeds Escrow, pursuant to 11 U.S.C. § 365(n)(1)(B), under an executory contract rejected in a bankruptcy proceeding, shall not be construed as an election to terminate the contract by Company under 11 U.S.C. § 365(n)(1)(A).

7. Testing Requirements.

- (a) Testing Requirements. Once a Control System Acceptance Test has been successfully passed, Seller shall not replace and/or change the configuration of the Facility control or Post-CSAT Partial Installation control, as applicable, inverter/WTGs control settings and/or ancillary device controls, without prior written agreement from the Company. In the event of any such replacement and/or change, the relevant test(s) of the Control System Acceptance Test shall be redone and must be successfully passed before the replacement or altered equipment is allowed to be placed in normal operations. In the event that Company reasonably determines that such replacement and/or change of controls makes it inadvisable for the Facility to continue in normal operations without a further Control Systems Acceptance Test, the Facility shall be deemed to be in Seller-Attributable Non-Generation status until the new relevant tests of the Control System Acceptance Test have been successfully passed.
- (b) Periodic Testing. Seller shall coordinate periodic testing of the Facility with Company to ensure that the Facility is meeting the technical and operational requirements specified under this Agreement.

8. Data and Forecasting. Seller shall provide Site, meteorological and production data in accordance with the terms of Article 6 (Forecasting) of this Agreement and the following requirements:

- (a) Physical Site Data: Seller shall provide Company with an accurate description of the physical Site, including but not limited to the following, [**as appropriate to the Facility's resource type(s) and use of storage**] which may not be changed during the Term without Company's prior written consent:
 - (i) Location Facility Map showing the layout of the Facility (coverage area or footprint), the coordinates (latitude and longitude), and height above ground of generating equipment, MMS, and each field measurement device (e.g., air density, ambient air pressure, air temperature):

Solar PV: And elevation (above ground), orientation angle and direction (north-east-south-west plane) of arrays/concentrators.

Wind: And height above ground of each WTG hub.

Seller shall provide a map and key for each inverter or WTG sufficient to allow Company to correlate the data received by the Company to each individual resource.

(ii) Solar generation technology employed at the Facility with temperature dependence, mounting, tracking/tilt, and module type.

(iii) Representative power curve(s).

(b) Meteorological and Production Data.

(i) Seller shall install, maintain, and ensure the measurement accuracy acceptable to Company of a minimum of one MMS for facilities with a Contract Capacity of less than 5 MW and a coverage area of not more than one square kilometer.

(ii) Seller shall install, maintain, and ensure measurement accuracy acceptable to Company of a minimum of two MMS for facilities that have either (i) a Contract Capacity of 5 MW or greater or (ii) a coverage area greater than one square kilometer.

(iii) Placement of each MMS should account for the microclimate of the area and Facility coverage area and shall be oriented with respect to the primary wind direction.

(iv) Seller shall arrange for a backup power source from a dedicated distribution line to provide separate service from Company to temporarily store and record the meteorological data from the field measuring devices at the MMS(s). Any such backup power source must be capable of providing power for the field measurement devices for a reasonable period until primary power is restored. The same backup power source can serve multiple MMS(s) as needed by the Facility.

(c) Additional telemetering:

- (i) The following additional data shall be measured and telemetered to Company with an accuracy level acceptable to Company. Units are indicated in parenthesis.

For sites with a variable renewable source (such as Wind or PV):

- Wind speed (m/s)
- Wind direction (Degrees)
- Ambient air Temperature (Degrees C)

Solar PV:

- PV inverters available (Quantity)
- Plane of Array (POA) Irradiance (W/m^2)
- Global Horizontal Irradiance (W/m^2)
- Back of panel temperature (Degrees C)

Wind:

- Number of turbines available (Quantity)
- For each turbine:
 - Wind speed at nacelle(m/s)
 - Wind direction at nacelle (Degrees)
 - Ambient air temperature at hub height (Degrees C)
 - Ambient air pressure at hub height (mbar)

9. Technology Specific Requirements.

(a) [RESERVED]

(b) [RESERVED]

(c) Inverter Systems.

- (i) Direct current generators and non-power (i.e. other than 60 Hertz) alternating current generators can only be installed in parallel with the Company System using a non-islanding synchronous inverter unless alternate designs are approved by the Company. The design shall comply

with the requirements of IEEE Std 2800-2022 (or latest version), except as described in Section 3 (Technical and Operational Requirements) of this Attachment B (Facility Owned by Seller).

- (ii) Self-commutated inverters of the Company-interactive type shall synchronize to the Company System. Line-commutated, thyristor-based inverters are not recommended and will require additional technical study to determine harmonic and reactive power requirements. All interconnected inverter systems shall comply with the harmonic current limits of IEEE Std 519-2014 (or latest version).
- (d) Battery Energy Storage System. The operating parameters of the Battery Energy Storage System ("BESS") for facilities with paired storage shall be as follows:
 - (i) For facilities with variable energy and paired storage: The BESS shall directly charge storage from the variable resource when the Company Active Power Dispatch is for less than the available resource energy.
 - (ii) From the Commercial Operations Date, 100% of the BESS energy capacity must be capable of being charged from the grid.
 - (iii) For Contract Years that are non-leap years, the BESS shall be discharged no more than BESS Contract Capacity x 365, MWh in each Contract Year. For Contract Years that are leap years, the BESS shall be discharged no more than BESS Contract Capacity x 366, MWh in each Contract Year.
 - (iv) The BESS will not be required to discharge more energy than available relative to the available state of charge.
 - (v) Facilities with variable energy and paired storage shall be able to charge the storage from the variable energy resource while disconnected from the Company System. If the Seller's Facility is disconnected from the Company System

but still available for use, the Seller shall charge the storage from the available energy resource while disconnected from the Company System up to the operating limits of the Facility unless otherwise directed by the Company.

(vi) The BESS energy capacity shall be sized above the BESS Contract Capacity to provide sufficient energy to self-energize the Facility in accordance with Section 3(r) (Self-Energization) of this Attachment B (Facility Owned by Seller). The BESS shall maintain sufficient energy to self-energize the Facility at all times except when discharged for such purpose. Upon discharging to self-energize the Facility, the BESS must restore the self-energization energy as soon as possible.

(vii) Facilities with variable energy and paired storage shall design, furnish, and install a BESS that meets all the requirements of this Agreement including specifications referenced in Section 3 (Battery Energy Storage System Design) of Exhibit B-3 (BESS Fire Safety Requirements).

EXHIBIT B-1
MODELING REQUIREMENTS

To be completed based on the Project's characteristics. The Required Models are listed in the RFP Appendix B, Attachment 4 - Model and Interconnection Requirements (IRS) Scope of the RFP.

Modeling requirements are set forth in the RFP Appendix B, Attachment 3 Hawaiian Electric Facility Technical Model Requirements and Review Process of the RFP.

EXHIBIT B-2
GENERATOR AND ENERGY STORAGE CAPABILITY CURVE(S)

[EXHIBIT B-2 WILL BE PREPARED TO REFLECT THE RESULTS OF THE IRS]

EXHIBIT B-3
BESS FIRE SAFETY REQUIREMENTS

Except as modified herein, the Project, including the energy storage technology, power conversion system, and site energy controller shall be designed, manufactured, and tested in compliance with the latest versions (including any issued revisions) of the applicable standards of American National Standards Institute (ANSI), Institute of Electrical Engineers (IEEE), National Electrical Code (NEC), National Electrical Manufacturers Association (NEMA), Occupational Safety and Health Administration (OSHA), American Society for Testing and Materials (ASTM), American Society of Mechanical Engineers (ASME), National Fire Protection Association (NFPA), Factory Mutual Insurance Company (FM) and Owner safety practices. Finally, state and local building, fire, and zoning requirements shall also be met.

All design drawings, specifications, studies, and other engineering documents associated with the Facility shall be sealed by a Professional Engineer (who shall, for all purposes under the Agreement, be licensed to practice in the State of Hawaii and licensed in his or her relevant subject matter, as required by the state). Where drawings, specifications, studies, and other engineering documents are developed as required to manufacture a listed/certified product, a Professional Engineer seal is not required. Prior to the COD, the design drawings, specifications, studies, and other engineering documents shall be revised as necessary to reflect the as-built condition of the Facility and sealed by a Professional Engineer, and Seller shall provide Buyer with a Professional Engineer's certification letter stating that the Facility has been completed in all material respects in accordance with the requirements of this Exhibit B-3 (BESS Fire Safety Requirements). Buyer may allow exceptions to the above documentation requirements for parts of the Facility that are listed/certified products in accordance with Good Engineering and Operating Practice.

1. Safety.

The Project must be compliant with all applicable provisions of IEEE 1547, Underwriters Laboratory (UL) 1642, UL 1741 Supplement A, UL 1973, FMDS 0533 and NFPA. The Project must be able to protect itself from internal failures and utility grid disturbances. As such, the Project must be self-protecting for

alternating current (AC) or direct current (DC) component system failures. In addition, the Project must be able to protect itself from various types of external faults and other abnormal operating conditions on the grid.

The Project must be designed in compliance with applicable federal, state, and local safety standards and regulations with regard to construction and potential exposure to chemicals and with regard to container or enclosure resistance to hazards such as ruptures and exposure to fire.

All Project systems and equipment must be grounded in accordance with the NEC and adhere to the guidelines in IEEE 80 and IEEE 142.

All electrical equipment shall be designed to the 'High Seismic Qualification Level' in accordance with IEEE 693 Standard.

For all Project equipment, Seller shall provide information on all known or reasonably foreseeable safety issues related to the equipment, including appropriate responses on how to handle the Project in case of an emergency, such as fires or module ruptures.

The Project must be designed such as to minimize risk of injury to the workforce and public during installation, maintenance, and operation.

Visual and audible fire alarms shall be included as necessary per all applicable fire and safety codes.

A physical Emergency Stop (E-Stop) button is required to be installed at all entrances and exits of the buildings or containers. The E-Stop button shall have the ability to open contactors/breakers to the inverter and batteries isolating the DC and AC potential.

A baseline emergency action plan should be provided as part of the documentation for the system.

Contractor will provide training for the safe operation of the unit.

2. Fire Protection.

The Seller shall provide fire protection system for the complete BESS system including modification of existing site fire

protection system to meet all applicable codes including the latest approved revision of NFPA 855 "Standard for the Installation of Stationary Energy Storage Systems", the latest approved revision of FMDS 0533 "Lithium-Ion Battery Energy Storage Systems" and the latest approved revision of the applicable County code covering Fire Protection.

Seller shall comply with NFPA and FMDS coordination, design, installation, commissioning, testing, training and startup requirements. This shall include all other requirements as outlined in this Exhibit. Fire Protection system design shall include, but not be limited to, the following:

Emergency vehicle access and fire hydrants per applicable local and national codes,

Appropriate enclosure/spacing per FMDS 0533 and local and national codes,

Hazard Mitigation Analysis (HMA) to defend and gain alignment for the system design with all key stakeholders before the design is finalized (e.g. risk mitigation for runaway prevention)

Emergency response center or kiosk with screens shall be installed outside of danger zone. Emergency response center must include backup generator or second power source (e.g. UPS) to keep the key safety equipment operational during an event,

Shelter design in accordance with NFPA requirements for location, separation, materials of construction, ventilation, smoke or flammable conditions detection, fire suppression, communications/alarms, training, commissioning, permitting, and documentation.

The fire alarm control panel shall provide supervised addressable relays for HVAC shutdown. The HVAC Engineer shall design and specify startup and testing services to support the interface with the Fire Protection System and ensure that the HVAC is de-energized as designed. Alarms shall clearly annunciate location of detected condition within building or by individual container.

Startup and testing of the Fire Protection System will be provided by the fire protection contractor in accordance with NFPA requirements.

If defined by the Hazard Mitigation Analysis (HMA), an exhaust system should be provided to detect and mitigate flammable gases.

3. Battery Energy Storage System Design.

The Contractor shall design, furnish and install a BESS that meets all of the requirements of the Agreement, including this Specification.

Cells and Modules (if applicable)

The energy storage shall consist of cells of proven technology designed for the type of service described herein. For the purposes of this Specification, proven technology shall be defined as cells that have been in successful commercial service in similar type applications for a period of time sufficient to establish a service life and maintenance history. Only cells that are commercially available or for which suitable (not necessarily identical) replacement cells (or modules or strings) can be supplied on short notice throughout the Project life will be allowed. Cells shall be listed to UL 1642 and manufacturer must provide UL certificate prior to shipment to Project Site.

The cells may be supplied as separate, individual units or as group of cells combined into modules. Modules shall be listed to UL 1973, and UL 9540A and manufacturer must provide UL certificate prior to shipment to Site.

Cell construction and accessories (as applicable) shall be sealed to prevent electrolyte seepage. Post seals shall not transmit stresses between the cover or container and the posts. Cell terminals and interconnects shall have adequate current carrying capacity and shall be designed to withstand short circuit forces and current generated by the energy storage. Safety features shall be designed into each cell in accordance with UL 1642, UL 1973, and UL 9540A.

DC Contactors will disconnect the string from the circuit during high temperature conditions but will reconnect once the cell temperatures reach an acceptable range and other conditions are met allowing reconnection. Labeling of the cell (or modules) shall include manufacturer's name, cell type, nameplate rating and date of manufacture, in fully legible characters or QR code. Contractor shall provide a list showing all the modules by their unique identification number along with their corresponding physical location within the project site. The unique

identification numbers shall correspond to their identification within the Project so to provide easy location of all cells or modules.

The energy storage subsystem as a whole and as individual cells shall be designed to withstand seismic events as described herein. The batteries may consist of one or more parallel strings of cells.

DC wiring shall be sized per NEC Article 310 or based on UL standards and be appropriately braced for available fault currents. Protection shall include a DC breaker, fuse or other current-limiting device on the energy storage bus. This protection shall be coordinated with the PCS capabilities and energy storage string protection and shall take into account transients and the L/R ratio at the relevant areas of the DC system. The Project shall operate no higher than 1,500 Volts DC.

The Contractor shall provide information on the impact that weak or failed cells have on the life and performance of the entire string. The Contractor shall specify critical parameters, such as temperature variation limits between cells of a string. The Contractor shall provide a means of monitoring critical parameters to ensure the limits are being met.

Cells, wiring, switchgear and all DC electrical components shall be insulated for 2,000 Volts DC. The Contractor shall have overall responsibility for the safety of the electrical design and installation of the Project. The Project shall include a monitoring/alarm system and/or prescribed maintenance procedures to detect abnormal cell conditions and other conditions that may impair the ability of the Project to meet performance criteria.

The energy storage monitoring system shall be capable of balancing the voltages across cells automatically and independently without any input from the operator or the SEC. Cell monitoring system shall be specified so as to alert the proper personnel in a timely manner that an abnormal cell condition exists or may exist. Abnormal cell conditions shall include over- and under-cell voltage. Temperature is not expected to be monitored at the individual cell level.

The monitoring/alarm system will record data on the number and general location of failed modules, to expedite maintenance and cell replacement. This data shall be stored in non-volatile memory. Such monitoring/alarm system shall be integrated into the overall control system.

The Project shall include racks or shall consist of stackable modules of batteries. Aisle spaces shall be set to permit access for equipment needed for easy removal and replacement of failed modules. The lengths and widths of aisles shall conform to all applicable codes and facilitate access by maintenance personnel. As applicable, the racks shall provide sufficient clearance between tiers to facilitate required modules maintenance, including modules testing and inspection, and replacement.

Rack-mounted modules shall have all connections located on the front of the enclosure or module. Modules shall not be required to be removed from the racks during regular maintenance. All racks and metallic conductive members of stackable modules shall be solidly grounded. Racks shall be seismically designed based on the requirements of this Exhibit B-3 (BESS Fire Safety Requirements) and shall include means to restrain cell movement during seismic events. All designs shall be in accordance with seismic design requirements of this Exhibit B-3 (BESS Fire Safety Requirements).

ATTACHMENT C

[RESERVED]

ATTACHMENT D
CONSULTANTS LIST

(To be completed pursuant to Section 25.4 of the Agreement)

ATTACHMENT E
SINGLE-LINE DRAWING AND INTERFACE BLOCK DIAGRAM

(To be attached pursuant to Section 1(a) of Attachment B)

ATTACHMENT F
RELAY LIST AND TRIP SCHEME

(To be attached pursuant to Section 1(a) of Attachment B)

ATTACHMENT G
COMPANY-OWNED INTERCONNECTION FACILITIES

**[ATTACHMENT G SHALL BE REVISED TO REFLECT THE RESULTS OF THE
IRS]**

1. Description of Company-Owned Interconnection Facilities.

- (a) General. Company shall furnish or construct (or may have Seller furnish or construct, in whole or in part), own, operate and maintain all Interconnection Facilities required to interconnect Company System with Facility at [REDACTED] volts, up to the Point of Interconnection (collectively, the "Company-Owned Interconnection Facilities").
- (b) Site. Where any Company-Owned Interconnection Facilities are to be located on the Site, Seller shall provide, at no expense to Company, a location and access acceptable to Company for all such Company-Owned Interconnection Facilities, as well as an easement, license or right of entry to access such Company-Owned Interconnection Facilities. If power sources (120/240VAC) are required, Seller shall provide such sources, at no expense to Company.
- (c) IRS. An IRS addressing Facility requirements was completed for the Project in accordance with the IRS Letter Agreement, and the results have been incorporated in Attachment B (Facility Owned by Seller) and this Attachment G (Company-Owned Interconnection Facilities) as appropriate.
- (d) Seller's Payment Obligations. Company-Owned Interconnection Facilities, for which Seller has agreed to pay, whether designed, engineered and constructed by Seller or Company, include **[ADD LIST OF COMPANY-OWNED INTERCONNECTION FACILITIES THAT ARE REQUIRED PURSUANT TO THE RESULTS OF THE IRS. THE FOLLOWING IS AN EXAMPLE OF THE TYPES OF FACILITIES THAT COULD BE LISTED]:**
 - (i) [Line extension];
 - (ii) A manually operated, lockable, group operated switch located on a pole prior to the Facility

switching station. Company will install a ____ kV drop into Seller-provided deadend structure.

- (iii) Substation additions and/or modifications of Company's existing structures as necessary. This would include but not be limited to protective relaying and setting changes;
 - (iv) Supervisory control and communications equipment (including but not limited to, SCADA/Telemetry and Control, microwave, satellite, dedicated phone line(s) and/or any other acceptable communications means (determined by Company), fiber optics, copper cabling, installation of batteries and charger system, etc.);
 - (v) Revenue Metering Package as provided in Section 10.1 (Meters) of the Agreement;
 - (vi) Any additional Interconnection Facilities needed to be installed as a result of final determination of Facility switching station site, final design of Facility to enable Company to complete the Interconnection Facilities and be compatible with Good Engineering and Operating Practices; and
 - (vii) If equipment that is not standard to Company is utilized, Seller shall, at the discretion of Company, provide adequate spares.
- (e) Revisions to Costs. The list of Company-Owned Interconnection Facilities, and engineering and testing costs for Company-Owned Interconnection Facilities, for which Seller agrees to pay in accordance with this Attachment G (Company-Owned Interconnection Facilities), are subject to revision if (i) before approving this Agreement, the PUC approves a power purchase agreement for another non-Company owned electric generating facility ("Second NUG Contract") to supply electric energy to Company using the same line to which Facility is to be connected or (ii) the line to which Facility is to be connected and/or the related transformer(s) need(s) to be upgraded and/or replaced as a result of this Agreement and a Second NUG Contract, and the PUC, in approving this Agreement, determines that Seller

should pay for all or part of the cost of such upgrade and/or replacement.

- (f) Review of the Listing and Costs. If the Commercial Operations Date is not achieved by the Guaranteed Commercial Operations Date, as such date may be extended as provided in Section 13.3 (Guaranteed Project and Reporting Milestone Dates), the listing of the Company-Owned Interconnection Facilities required in this Agreement and the cost-estimates for such Company-Owned Interconnection Facilities are subject to review and revision. Such revision may include, but not be limited to, such items as reconductoring an existing transmission or distribution line, construction of a new line, increase transformer capacity, and alternative relay specifications. In addition, such review and revision may require that the Company re-perform or update the IRS at the Seller's expense.
- (g) Responsibility of Seller and Company. The general responsibilities of Seller and Company for the design, procurement, installation, programming/testing, and maintenance/ownership of equipment at the Facility and the Company-Owned Interconnection Facilities is specified in Matrix G-1 (Substation Responsibilities), Matrix G-2 (Telecom Responsibilities) and Matrix G-3 (T&D Responsibilities). **[DRAFTING NOTE: MATRICES WILL BE UPDATED FOLLOWING COMPLETION OF IRS.]**

2. Construction and Support Services by Seller.

- (a) Construction and Support Services by Seller.
 - (i) Seller (and/or its Third Party consultants or contractors (collectively, "Contractors")) will design, engineer, construct, test and place in service, at Seller's expense:
 - (A) The items identified in Matrix G-1 (Substation Responsibilities), Matrix G-2 (Telecom Responsibilities) and Matrix G-3 (T&D Responsibilities) as being the responsibility of Seller to construct; and
 - (B) **[ANY OTHER COMPANY-OWNED INTERCONNECTION FACILITIES TO BE CONSTRUCTED BY SELLER.]**

[NOTE: SUBPARTS "A" AND "B" BETWEEN THEM SHOULD GENERALLY INCLUDE A SUBSET OF THE LIST IN SECTION 1(d) ABOVE.]

- (ii) Seller shall provide the necessary support for the Company's [REDACTED] kV overhead line extension work, which may include, but not limited to:
 - (A) Furnish surveyed topographical drawing including contour lines of project areas and beyond as needed in State Plane coordinates with overlay of the Facility and Company pole line route(s) indicating pole locations and anchors in CADD format acceptable to Company.
 - (B) Staking of Company proposed poles and anchors by surveyor.
 - (C) Graded access roads including gravel if required by Company to provide sufficient vehicle access to Company poles and anchors by Company trucks and cranes.
 - (D) Graded level pads to provide vehicle working areas around all Company poles and anchors.
 - (E) Grading of the areas beneath the Company's overhead lines as needed to provide required ground clearance.
 - (F) Grubbing and clearing of vegetation within Company's easement area or as required.
- (iii) Resilience Requirements.
 - (A) All design, engineering and construction performed by Seller (and/or its Contractors) shall, without limitation, be in accordance with the appropriate risk category determined by, and satisfy the wind load and seismic load requirements of, the International Building Code and any more stringent requirements imposed under applicable Laws.

- (B) Seller shall consult with jurisdictional fire agencies and other State and/or County agencies with regulatory oversight over wildfire mitigation requirements during the Project's design phase and incorporate all required and recommended wildfire mitigation measures. To the extent any regulatory approval of such wildfire mitigation measures is necessary, Seller shall obtain such approval(s) and such shall be included within the scope of Governmental Approvals as defined in this Agreement.
- (b) Coordination of Construction. Prior to Seller engaging the Contractors, Seller shall obtain Company's written approval, which approval shall not be unreasonably withheld. Prior to Seller and/or its Contractors first starting to work on the construction plans for Company-Owned Interconnection Facilities to be constructed by Seller (and/or its Contractors), such as the civil, structural, and construction drawings, specifications to vendors, vendor approved final drawings and materials lists (collectively, the "Plans"), Seller and/or its Contractors shall meet with Company to discuss the construction of such Company-Owned Interconnection Facilities, including but not limited to subjects concerning coordination of construction milestone dates, agreement on areas of interface design, and Company's design/drawing layout and symbols standards, equipment specifications and construction specifications and standards. Company will provide the equipment specifications and construction specifications and standards information so Seller can incorporate such information in its bid documents.
- (c) Plans. Seller shall provide Company its complete Plans at 30%, 60%, 90%, 100% and final issue for construction. No later than sixty (60) Days before Seller and/or its Contractors first start to order materials and equipment for Company-Owned Interconnection Facilities to be constructed by Seller and/or its Contractors, Seller shall provide Company with the final Plans. The Plans for Company-Owned Interconnection Facilities to be constructed by Seller (and/or its Contractors) shall comply with (i) all applicable Laws; (ii) Company's latest design/drawing

layout and symbol standards, equipment specifications, construction specifications and standards, and physical security and cybersecurity requirements and standards; and (iii) Good Engineering and Operating Practices (collectively, the "Standards"). Seller shall submit design drawings in MicroStation format per Company standards.

- (d) Company's Review of the Plans. Unless otherwise agreed to by the Parties, Company shall have twenty (20) Business Days following receipt of the complete Plans at each stage (30%, 60%, 90%, 100% and final issue for construction) for it to review and comment on the Plans, and verify in writing to Seller that the Plans comply with the Standards, which verification shall not be unreasonably withheld. If Company reasonably determines that the Plans are not in accordance with the Standards, then it may request in writing a response from Seller to its comments and Seller shall respond in writing within twenty (20) Business Days of such request by providing (i) its justification for why its Plans conform to the Standards or (ii) changes in the Plans responsive to Company's comments and in accordance with the Standards.
- (e) Company Inspection. Construction work will be subject to Company inspections to ensure that construction is done in accordance with the Standards. Company inspectors will be allowed access to the construction sites for inspections and to monitor construction work. The inspector shall have the authority to work with the appropriate construction supervisor to stop any work that does not meet the Standards. All equipment and materials used in Company-Owned Interconnection Facilities to be constructed by Seller and/or its Contractors shall meet the Standards.
- (f) Acceptance Test Procedures.
 - (i) Seller acknowledges that: (aa) Company has multiple on-going projects with other developers as well as its own capital improvement projects and on-going system work; (bb) Company has limited resources to provide engineering oversight (such as review of plans) to such projects and to participate in the testing of

such projects; (cc) in order for Company to accommodate such oversight and testing, it is necessary for Company to sequentially allocate its resources for each project a year or more in advance; (dd) the result is a queue of such projects that reflects the scheduling commitments of Company's resources to conduct such oversight and to participate in such testing; (ee) if a project is behind the schedule on which Company's resources have been scheduled for the oversight of such project, or if a project is not ready for testing at the time Company's resources have been scheduled for the testing of such project, or if a project does not complete testing within the period for which Company's resources have been scheduled for such testing, the progress of projects later in the queue may be adversely affected; (ff) the Test Ready Deadline that is set forth in Attachment K-1 (Seller's Conditions Precedent and Company Milestones) reflects the scheduling commitment of Company's resources to (i) conduct the oversight necessary to facilitate Seller's achievement of that Test Ready Deadline, (ii) commence the Acceptance Test on the Acceptance Testing Milestone Date that is set forth in Attachment K-1 (Seller's Conditions Precedent and Company Milestones) and (iii) thereafter participate in the Control System Acceptance Test; and (gg) in the Company's sole discretion based on its assessment of Company's resources and overall schedule of projects at the time, the Project may lose its place in the queue and may be assigned a new Acceptance Testing Milestone Date for commencement of the Acceptance Test that may be behind the other projects then in the queue if (i) the Seller fails to satisfy any of the conditions precedent set forth in Section 2(f)(ii) of this Attachment G (Company-Owned Interconnection Facilities) within the time period specified therein for the task in question or, if no time period is specified therein, by the Test Ready Deadline, (ii) the Seller fails to satisfy any of the Seller's Conditions Precedent set forth in Attachment K-1 (Seller's Conditions Precedent and Company Milestones) and/or (iii) the Acceptance Test and the Control System Acceptance Test are not satisfactorily completed

within the time allotted to complete such testing.

(ii) The conduct of the Acceptance Test is subject to the satisfaction of the following conditions precedent within the time period specified below for the task in question or, if no time period is specified, by the Test Ready Deadline that is set forth in Attachment K-1 (Seller's Conditions Precedent and Company Milestones):

- (A) Final Single-Line Drawing, and notes, has received Company's written consent pursuant to Section 1(a)(i) (Single-Line Drawing, Interface Block Diagram, Relay List, Relay Settings and Trip Scheme) of Attachment B (Facility Owned by Seller) to this Agreement.
- (B) Final Relay List and Trip Scheme have received Company's written consent pursuant to Section 1(a)(i) (Single-Line Drawing, Interface Block Diagram, Relay List, Relay Settings and Trip Scheme) of Attachment B (Facility Owned by Seller) to this Agreement.
- (C) Final Interface Block Diagram has received Company consent pursuant to Section 1(a)(i) (Single-Line Drawing, Interface Block Diagram, Relay List, Relay Settings and Trip Scheme) of Attachment B (Facility Owned by Seller) to this Agreement.
- (D) Final Control System Telemetry and Control List has received Company consent.
- (E) Final phasor measurement unit (PMU) devices, if applicable, have received Company consent.
- (F) Control system design and tunable parameters reviewed and mutually agreed upon as needed to meet the Company requirements in accordance with Attachment B (Facility Owned by Seller) Technical and Operational Requirements.

- (G) Agreement on Active Power Control Interface.
- (H) No later than 14 Days prior to commencement of the Acceptance Test:
 - (1) Seller shall have certified to Company that Seller-Owned Interconnection Facilities have been installed and commissioned and such certification has not, prior to the commencement of the Acceptance Test, been subsequently challenged by Company on the basis of on-site observations made by the Company's representatives following the walk-through to be conducted pursuant to Section 2(f)(iii) of this Attachment G (Company-Owned Interconnection Facilities).
 - (2) Seller shall have certified to Company that any Company-Owned Interconnection Facilities built by Seller (and/or its Contractors) have been installed and commissioned and such certification has not, prior to the commencement of the Acceptance Test, been subsequently challenged by Company on the basis of on-site observations made by the Company's representatives following the walk-through to be conducted pursuant to Section 2(f)(iii) of this Attachment G (Company-Owned Interconnection Facilities).
- (I) Any Company-Owned Interconnection Facilities not built by or on behalf of Seller have been installed and commissioned.
- (J) No later than seven (7) Days prior to the commencement of the Acceptance Test, Seller and Company shall have participated in walk-through of fully constructed Interconnection Facilities.
- (K) Redlined as-built drawings of the Seller-Owned Interconnection Facilities and any of the Company-Owned Interconnection Facilities

built by Seller (and/or its Contractors) shall have been provided to Company.

- (L) Continuous power is being supplied to Company's protection and SCADA equipment.
- (M) Not less than four (4) weeks prior to the commencement of the Acceptance Test, the high-speed communication lines required under this Agreement have been commissioned and are ready for use.
- (N) Not less than two (2) weeks prior to the commencement of the Acceptance Test, Seller and Company have participated in an on-Site Acceptance Test coordination meeting.
- (iii) Seller shall provide Company with at least fourteen (14) Days advance written notice of the commencement of the Acceptance Test. The Acceptance Test will be conducted on Business Days during normal business hours and may take a minimum of thirty (30) Days to complete. No electric energy will be delivered from Seller to Company during the Acceptance Test. No later than thirty (30) Days prior to conducting the Acceptance Test, Company and Seller shall agree on a written protocol setting out the detailed procedure and criteria for passing the Acceptance Test. Attachment N (Acceptance Test General Criteria) provides general criteria to be included in the written protocol for the Acceptance Test. At the time that Seller provides its 14-Day notice of the Acceptance Test to Company, Seller shall concurrently schedule a site walk-through of the Facility with Company to occur no later than seven (7) Days prior to the Acceptance Test. Seller's 14-Day notice to Company of the Acceptance Test shall constitute its certification that (i) the completion of the installation and commissioning of the Seller-Owned Interconnection Facilities and the Company-Owned Interconnection Facilities built by Seller (and/or its Contractors) and (ii) a walk-through by Company shall demonstrate, to Company's reasonable satisfaction, Seller's readiness to commence with the Acceptance Test. If, after the

site walk-through, Company representatives reasonably determine that Seller is not ready to commence with the Acceptance Test, in the Company's sole discretion based on its assessment of the nature of Seller's lack of readiness and Company's resources and overall schedule of projects at the time, Company may assign Seller a new Test Ready Deadline and a new Acceptance Testing Milestone Date, which may be behind the other projects then in the queue, coinciding with the estimated time it would take Seller to become test-ready and Company's ability to commence the Acceptance Test. If prior to the new Test Ready Deadline established by Company, Seller becomes ready for the performance of the Acceptance Test, i.e., Seller provides Company with its fourteen (14) Day advance written notice of the commencement of the Acceptance Test (the "Seller Accelerated Test Ready Deadline"), and Company confirms, in its site walk-through of the Facility (which site walk-through the Company may waive in its sole discretion), that Seller is ready for the Acceptance Test, but Company is unable to perform the Acceptance Test within [] Days² (the "Seller Accelerated Acceptance Testing Milestone Date") and Company's inability to commence the Acceptance Test is solely due to the conditions set forth in Section 2(f)(i)(aa) and (bb) of this Attachment G (Company-Owned Interconnection Facilities), then, for up to the period of time from the Seller Accelerated Acceptance Testing Milestone Date to the date that Company commences performance of the Acceptance Test, Seller shall be entitled to a waiver of Daily Delay Damages that would otherwise be accruing if Seller ultimately fails to meet the Guaranteed Commercial Operations Date due to its failure to meet the original Test Ready Deadline specified in Attachment K-1 (Seller's Conditions Precedent and Company Milestones). For clarity, and to explain the limited waiver of Daily Delay Damages provided for in the preceding sentence, if Seller misses its Test Ready Deadline by 45 Days and

² This would be the number of Days between the Test Ready Deadline and the Acceptance Testing Milestone Date stated in the Company Milestones of Attachment K-1 (Seller's Conditions Precedent and Company Milestones).

subsequently misses its Guaranteed Commercial Operations Date for that reason by 60 Days and the period of time between the Seller Accelerated Acceptance Testing Milestone Date and the commencement date of the Acceptance Test is 15 Days (and such delay is solely due to the conditions set forth in Section 2(f)(i)(aa) and (bb) of this Attachment G (Company-Owned Interconnection Facilities)), then Seller shall be entitled to a waiver of 15 Days of Daily Delay Damages otherwise accruing for Seller's failure to meet the Guaranteed Commercial Operations Date. If the above time periods remain the same but Seller only misses the Guaranteed Commercial Operations Date by 30 Days, Seller shall not be entitled to any Daily Delay Damages waiver as the 30-Day failure to meet the Guaranteed Commercial Operations Date would be attributable to the initial 45 Days that Seller missed the Test Ready Deadline. Finally, if the above time periods remain the same but Seller misses its Guaranteed Commercial Operations Date by 50 Days, Seller shall be entitled to only a 5 Day waiver of Daily Delay Damages. In the meantime, Seller shall remediate the deficiencies identified by Company, and the process described in this Section 2(f) (Acceptance Test Procedures) of Attachment G (Company-Owned Interconnection Facilities), shall commence again until Seller's readiness for the Acceptance Test is demonstrated to Company's reasonable satisfaction. Successful completion of the Acceptance Test requires successful completion of each of the individual tests that comprise the Acceptance Test. Retesting of any individual test constitutes a restart of the Acceptance Test if such retesting is required because of a prior failure of such individual test or because a prior test could not be completed because of a problem with the Facility. Within fifteen (15) Business Days of completion of the Acceptance Test and Company's receipt of the final report setting forth the results of the Acceptance Test, Company shall notify Seller in writing whether the Acceptance Test has been passed and, if so, the date upon which the Acceptance Test was passed.

(iv) Company will be present when the Acceptance Test is conducted, and Seller shall promptly correct any deficiencies identified during the Acceptance Test. Seller will be responsible for the cost of Company personnel (and/or Company contractors) performing the duties (such as reviewing the Plans and reviewing the construction) necessary for Company-Owned Interconnection Facilities to be constructed by Seller (and/or its Contractors). If Company (aa) does not make any inspection or test, (bb) does not discover defective workmanship, materials or equipment, or (cc) accepts Company-Owned Interconnection Facilities (that were constructed by Seller and or its Contractors), such action or inaction shall not relieve Seller from its obligation to do and complete the work in accordance with the Plans approved by Company.

(g) As-Built Drawings. Within thirty (30) Days of the successful completion of the Acceptance Test, Seller shall provide for Company review a set of the proposed as-built drawings for the Company-Owned Interconnection Facilities constructed by Seller (and/or its Contractors). Within thirty (30) Days of Company's receipt of the proposed as-built drawings, Company shall provide Seller with either (i) its comments on the proposed as-built drawings or (ii) notice of acceptance of the proposed as-built drawings as final as-built drawings. If Company provides comments on the proposed as-built drawings, Seller shall incorporate such comments into a final set of as-built drawings and provide such final as-built drawings to Company within twenty (20) Days of Seller's receipt of Company's comments.

3. Seller Payment to Company for Company-Owned Interconnection Facilities and Review of Facility. **[TO BE REVISED THROUGH INTERCONNECTION REQUIREMENTS AMENDMENT TO REFLECT COMPANY BUILD OR DEVELOPER BUILD SCENARIO, AS APPLICABLE]**

(a) Seller Payment to Company.

(i) Seller shall pay the Total Estimated Interconnection Cost, which is comprised of the estimated costs of (aa) acquiring, constructing and installing the Company-Owned Interconnection

Facilities to be designed, engineered and constructed by Company, (bb) the engineering and design work (including but not limited to Company, affiliated Company and contracted engineering and design work) associated with (i) the application process for the PUC Approval Order, (ii) developing such Company-Owned Interconnection Facilities and (iii) reviewing and specifying those portions of Facility which allow interconnected operations as such are described in Attachment B (Facility Owned by Seller) (collectively, the "Engineering and Design Work"), and (cc) conducting the Acceptance Test and Control System Acceptance Test (the Engineering and Design Work and the work to conduct the Acceptance Test and Control System Acceptance Test being collectively called the "Company Interconnection Work"). The Total Actual Interconnection Costs (the actual cost of the Company Interconnection Work) are the "Total Interconnection Costs".

- (ii) Summary List of Company-Owned Interconnection Facilities and Related Services to be designed, engineered and constructed by Company:

[THIS LIST SHOULD GENERALLY INCORPORATE A SUBSET OF THE LIST IN ATTACHMENT G, SECTION 1(d), PLUS TESTING.]

- (iii) The following summarizes the Total Estimated Interconnection Cost of the Company-Owned Interconnection Facilities to be designed, engineered and constructed by Company:

[THIS LIST SHOULD INCLUDE ESTIMATED COSTS FOR THE ITEMS LISTED IN ATTACHMENT G, SECTION 3(a)(ii).]

The Total Estimated Interconnection Cost is \$.

- (b) Total Estimated Interconnection Costs. The Total Estimated Interconnection Cost, which, except as otherwise provided herein, is non-refundable, shall be paid by Seller in accordance with the following schedule:

- (i) Initial Payment. Seller, in connection with early engineering offered by Company [or other reason], has paid \$ [REDACTED],000.00 to Company;
- (ii) Company-Owned Interconnection Facilities Prepayment. Within thirty (30) Days after the Effective Date, the total estimated costs related to the Engineering and Design Work are due and payable by Seller to Company;
 - A. Company shall not be obligated to perform any work with respect to Company-Owned Interconnection Facilities until Seller pays the amounts in Section 3(b)(i) (Initial Payment) and Section 3(b)(ii) (Company-Owned Interconnection Facilities Prepayment) of this Attachment G (Company-Owned Interconnection Facilities), and receipt of such payment shall constitute Seller's irrevocable authorization to Company to perform such engineering and design work.
- (iii) Balance of Company-Owned Interconnection Facilities Prepayment. On the Guaranteed Procurement Payment Date, the difference between the portion of the Total Estimated Interconnection Cost paid to date and the Total Estimated Interconnection Cost is due and payable by Seller to Company.
 - A. Company shall not be obligated to perform any work with respect to Company-Owned Interconnection Facilities until Seller pays the amount in this Section 3(b)(iii) (Balance of Company-Owned Interconnection Facilities Prepayment) of this Attachment G (Company-Owned Interconnection Facilities), and receipt of such payment shall constitute Seller's irrevocable authorization to Company to perform such procurement and construction work.
- (c) Scope Changes to Company Interconnection Work. Company may require additional estimated interconnection cost payments (an "Additional Interconnection Cost Payment") that may be required as a result of revisions to the Company-Owned

Interconnection Facilities, other Company Interconnection Work necessary but not covered by the Total Estimated Interconnection Costs and/or revisions to the Project schedule necessitating additional Company Interconnection Work not contemplated when the Total Estimated Interconnection Costs were determined. Company shall prepare commercially reasonable documentation justifying the necessity of the Additional Interconnection Cost Payment, which cannot be unreasonably denied by Seller. Seller shall pay the requested Additional Interconnection Cost Payment within 30 Days of receipt of Company's documentation. If Seller does not make such payment when due, Company shall have the right to draw on the Standby Letter of Credit provided under Section 6(a) (Standby Letter of Credit of this Attachment G (Company-Owned Interconnection Facilities) or, in Company's sole discretion, Company may stop the Company Interconnection Work when funds from the Total Estimated Interconnection Costs are exhausted and shall not be obligated to re-commence Company Interconnection Work until the Additional Interconnection Cost Payment, however made, is received by Company. The amount of the Additional Interconnection Cost Payment shall be included in the Total Estimated Interconnection Costs for purposes of the true-up required under Section 3(d) (True-Up) of Attachment G (Company-Owned Interconnection Facilities).

- (d) True-Up. The final accounting shall take place within one hundred twenty (120) Days of the first to occur of (i) the Commercial Operations Date, (ii) the date this Agreement is declared null and void under either Section 12.5 (Prior to Effective Date) or Section 12.6 (Time Periods for PUC Submittal Date and PUC Approval) of this Agreement, or (iii) the date this Agreement is terminated. Company shall be entitled to an extension for a commercially reasonable amount of time to complete the final accounting if a delay in such completion is caused by Seller's delay or failure to respond to any Company request for information needed to complete the final accounting or take any action necessary for Company to complete the final accounting. Upon completion of the final accounting, Company shall deliver to Seller an invoice for payment of the amount, if any, of the difference between the

Total Estimated Interconnection Cost paid to date and the Total Actual Interconnection Costs, which is the final accounting of the Total Interconnection Costs. Payment of such invoice shall be made within thirty (30) Days of receipt of such invoice from Company. If the Total Actual Interconnection Cost is less than the payments received by Company as the Total Estimated Interconnection Cost, Company shall repay the difference to Seller within thirty (30) Days of the final accounting.

- (e) Audit Rights. Seller shall have the right for a period of one (1) year following receipt of the invoice: (i) upon reasonable prior notice, to audit the books and records of Company to the limited extent reasonably necessary to verify the basis for the amount (if any) by which the Total Actual Interconnection Cost invoiced to Seller exceeds the Total Estimated Interconnection Cost, and (ii) to dispute the amount of any such excess. Seller shall not have the right to audit any other financial records of Company. Company shall make such information available during normal business hours at its offices in Hawai'i. Seller shall pay Company's reasonable actual, verifiable costs for such audits, including allocated overhead.
- (f) Ownership. All Company-Owned Interconnection Facilities including those portions, if any, provided, or provided and constructed, by Seller shall be the property of Company.

4. Ongoing Operation and Maintenance Charges.

- (a) Prior to the Transfer Date. Seller shall operate and maintain, at its sole cost and expense, Company-Owned Interconnection Facilities that it or its Contractors constructed, if any, prior to the Transfer Date.
- (b) On or After the Transfer Date. On and after the Transfer Date, Company shall own, operate and maintain Company-Owned Interconnection Facilities, subject to reimbursement by Seller of the costs thereof incurred by Company in accordance with Section 4(c) (Monthly Bill) of Attachment G (Company-Owned Interconnection Facilities) immediately below.

- (c) Monthly Bill. Company shall bill Seller monthly (or periodically as costs are incurred) for any reasonable costs incurred in operating, maintaining and replacing (to the extent not covered by insurance) Company-Owned Interconnection Facilities. Company's costs will be determined on the basis of, but not limited to, direct payroll, material costs, applicable overhead at the time incurred, consulting fees and applicable taxes. Seller shall, within thirty (30) Days after receipt of an invoice, reimburse Company for such monthly billed operation and maintenance charges. Company's invoice will include itemized charges reasonably necessary for Seller to verify the basis for such charges.

5. Relocation of Company-Owned Interconnection Facilities.

- (a) In the event that the Land Rights include a relocation clause, and such clause is exercised or if Company-Owned Interconnection Facilities must be relocated for any other reason not caused by Company, Seller shall bear the cost of such relocation. Prior to the relocation of the Company-Owned Interconnection Facilities Company shall invoice Seller for the total estimated cost of relocating the Company-Owned Interconnection Facilities (the "Total Estimated Relocation Cost"). Seller shall, within thirty (30) Days after the invoice date, pay to Company the Total Estimated Relocation Cost.
- (b) Once the relocation of the Company-Owned Interconnection Facilities is complete, Company shall conduct a final accounting of all costs related thereto. Within thirty (30) Days of the final accounting, which shall take place within one hundred and twenty (120) Days of completion of the relocation of Company-Owned Interconnection Facilities, Seller shall remit to Company the difference between the Estimated Relocation Cost paid to date and the total actual relocation cost incurred by Company (the "Total Actual Relocation Cost"). If the Total Actual Relocation Cost is less than the payments received by Company as the Total Estimated Relocation Cost, Company shall repay the difference to Seller within thirty (30) Days of the final accounting.

6. Guarantee for Interconnection Costs.

- (a) Standby Letter of Credit. To ensure payment by Seller of all costs and expenses owed to Company (i) in excess of the Total Estimated Interconnection Cost paid in connection with the Company-Owned Interconnection Facilities to be provided and/or constructed by Company described in Section 3 (Seller Payment to Company for Company-Owned Interconnection Facilities and Review of Facility) of this Attachment G (Company-Owned Interconnection Facilities), and (ii) if applicable, in excess of the Total Estimated Relocation Costs paid in connection with the relocation of the Company-Owned Interconnection Facilities as provided in Section 5 (Relocation of Company-Owned Interconnection Facilities) of this Attachment G (Company-Owned Interconnection Facilities), Seller shall obtain an Irrevocable Standby Letter of Credit with no Documentary Requirement ("Standby Letter of Credit") in accordance with the requirements of Section 6(b) (Requirements of the Standby Letter of Credit) of this Attachment G (Company-Owned Interconnection Facilities), wherein Company shall receive payment from the bank upon request by Company.
- (b) Requirements of the Standby Letter of Credit. The Standby Letter of Credit shall be (i) in an amount not less than twenty-five percent (25%) of the Total Estimated Interconnection Cost or Total Estimated Relocation Cost, as applicable, and (ii) in substantially in the form attached to this Agreement as Attachment M (Form of Letter of Credit) from a bank doing business in the United States and subject to United States state or federal regulation, with a credit rating of "A-" or better. If the rating (as measured by Standard & Poors) of the bank issuing the Standby Letter of Credit falls below A-, Company may require Seller to replace the Standby Letter of Credit with a Standby Letter of Credit from another bank doing business in the United States and subject to United States state or federal regulation, with a credit rating of "A-" or better. In connection with the construction of the Company-Owned Interconnection Facilities, the Standby Letter of Credit shall be effective from the earlier of (aa) thirty (30) Days following the Effective Date, or (bb) the date that Seller requests Company to order equipment or commence construction on Company-Owned Interconnection

Facilities. In connection with the relocation of the Company-Owned Interconnection Facilities, if applicable, the Standby Letter of Credit shall be effective within thirty (30) Days after Seller receives the invoice from Company for the Total Estimated Relocation Cost as set forth in Section 5 (Relocation of Company-Owned Interconnection Facilities) of this Attachment G (Company-Owned Interconnection Facilities). The Standby Letter of Credit shall be in effect through the earlier of forty-five (45) Days after the final accounting or seventy-five (75) Days after the Agreement is terminated. Seller shall provide to Company within fourteen (14) Days of the date the Standby Letter of Credit is to be effective as aforesaid, a document from the bank which indicates that such a Standby Letter of Credit has been established.

- (c) Other Form of Security. Notwithstanding the foregoing, in lieu of a Standby Letter of Credit, Company may, at its sole discretion, agree in writing to accept such other form of security as Company deems to provide Company with protection equivalent to a Standby Letter of Credit.

7. Land Restoration.

- (a) Definition of "Land". For the purposes of this Attachment G (Company-Owned Interconnection Facilities), "Land" means any portion of the Site and any other real property where any Company-Owned Interconnection Facilities are located.
- (b) Removal of Interconnection Facilities. After termination of this Agreement or in the event this Agreement is declared null and void under either Section 12.5 (Prior to Effective Date) or Section 12.6 (Time Periods for PUC Submittal Date and PUC Approval) of this Agreement, if requested by Company, Seller shall, at its sole cost and expense, remove (i) the Company-Owned Interconnection Facilities from the Land and (ii) the Seller-Owned Interconnection Facilities from the Land, and, in conjunction with such removal, shall develop and implement a program to recycle, to the fullest extent possible, or to otherwise properly dispose of, all such removed infrastructure; provided, however, that, Company may elect to remove all or part

of the Company-Owned Interconnection Facilities and/or Seller-Owned Interconnection Facilities from the Land because of operational concerns over the removal of such Interconnection Facilities, in which case Seller shall reimburse Company for its costs to remove such Company-Owned Interconnection Facilities and/or Seller-Owned Interconnection Facilities. To the extent Seller is obligated to remove Company-Owned Interconnection Facilities and/or Seller-Owned Interconnection Facilities, Seller shall complete such removal within ninety (90) Days of termination of this Agreement (or declaration that the Agreement is null and void under either Section 12.5 (Prior to Effective Date) or Section 12.6 (Time Periods for PUC Submittal Date and PUC Approval) of this Agreement, or as otherwise agreed to by both Parties in writing.

- (c) Restoration of the Land. After the termination of this Agreement (or declaration that the Agreement is null and void under either Section 12.5 (Prior to Effective Date) or Section 12.6 (Time Periods for PUC Submittal Date and PUC Approval) of this Agreement) and removal of the Company-Owned Interconnection Facilities and/or Seller-Owned Interconnection Facilities, as the case may be, Seller shall, at its sole cost and expense, restore the Land to its condition prior to construction of such Company-Owned Interconnection Facilities and/or Seller-Owned Interconnection Facilities, as applicable. Land restoration shall be completed within ninety (90) Days of termination of this Agreement (or declaration that the Agreement is null and void under either Section 12.5 (Prior to Effective Date) or Section 12.6 (Time Periods for PUC Submittal Date and PUC Approval) of this Agreement), or as otherwise agreed to by both Parties in writing.

8. Transfer of Ownership/Title.

- (a) Transfer of Ownership and Title. On the Transfer Date, Seller shall transfer to Company all right, title and interest in and to Company-Owned Interconnection Facilities to the extent such facilities were designed and constructed by Seller and/or its Contractors together with (i) all applicable manufacturers' or Contractors' warranties which are assignable and (ii) all Land Rights

necessary to own, operate and maintain Company-Owned Interconnection Facilities on and after the Transfer Date. Seller shall provide a written list of the manufacturers' and Contractors' warranties which will be assigned to Company and the expiration dates of such warranties no later than thirty (30) Days before the Transfer Date.

- (b) No Liens or Encumbrances. Company's title to and ownership of Company-Owned Interconnection Facilities that were designed and constructed by Seller and/or its Contractors shall be free and clear of liens and encumbrances.
- (c) Form of Documents. The transfers to be made to Company pursuant to this Section 8 (Transfer of Ownership/Title) of Attachment G (Company-Owned Interconnection Facilities) shall not require any further payment by Company. The form of the document to be used to convey title to the Company-Owned Interconnection Facilities that were designed and constructed by or on behalf of Seller shall be substantially in the form set forth in Attachment H (Form of Bill of Sale and Assignment). The form of the document(s) to be used to assign leases shall be substantially in the form set forth in Attachment I (Form of Grant of Easement). To the extent Land Rights other than leases are transferred to Company, appropriate modifications will be made to Attachment I (Form of Grant of Easement) to effectuate the transfer of such Land Rights.

- 9. Governmental Approvals for Any Company-Owned Interconnection Facilities. Seller shall obtain at its sole cost and expense all Governmental Approvals necessary to the construction, ownership, operation and maintenance of the Company-Owned Interconnection Facilities. For Company-Owned Interconnection Facilities to be constructed by Company, Seller shall provide all Governmental Approvals necessary for the construction of such Company-Owned Interconnection Facilities prior to the commencement of construction by Company. For Company-Owned Interconnection Facilities to be constructed by Seller, Seller shall obtain all Governmental Approvals necessary for construction of the Company-Owned Interconnection Facilities prior to commencement of the construction activity for which such Governmental Approval is required. For all other

Governmental Approvals for Company-Owned Interconnection Facilities, Seller shall provide these prior to the Transfer Date. On or before the Transfer Date, Seller shall provide Company with (i) copies of all such Governmental Approvals obtained by Seller regarding the construction, ownership, operation and maintenance of Company-Owned Interconnection Facilities that Seller and/or its Contractors constructed and (ii) documentation regarding the satisfaction of any condition or requirement set forth in any Governmental Approvals for Company-Owned Interconnection Facilities (excluding on-going reporting or monitoring requirements that may continue beyond the Transfer Date in accordance with such Governmental Approval) or that such Governmental Approvals have otherwise been closed with the issuing Governmental Authority.

10. Land Rights. Seller shall, prior to the commencement of construction of the Company-Owned Interconnection Facilities (whether to be built by Seller or by Company) obtain at its sole cost and expense all Land Rights that are required to construct, own, operate and maintain the Company-Owned Interconnection Facilities. Without limitation to the preceding sentence, Seller shall pay all surveying and mapping costs, appraisal fees, document preparation fees, recording fees or other costs. Seller shall use commercially reasonable efforts to obtain on behalf of the Company perpetual Land Rights for the Company-Owned Interconnection Facilities. Such Land Rights shall contain terms and conditions which are acceptable to Company and the documents setting forth the Land Rights shall be provided in advance of execution to Company for its review and approval and shall be recorded if required by Company. Following the Execution Date, Seller shall provide as part of the Monthly Progress Report the status of negotiations with landowner(s) regarding the Land Rights. Notwithstanding the foregoing, Company shall have the right in its sole discretion, at any time upon notice to Seller, to communicate directly with the landowner(s) and/or participate in the negotiations with landowner(s) for the Land Rights. For so long as Seller has the right under this Agreement to sell electric energy to Company, Seller shall pay for any rents and other payments due under such Land Rights that are associated with Company-Owned Interconnection Facilities.

11. Contracts for Company-Owned Interconnection Facilities.
For all contracts entered into by or on behalf of Seller for Company-Owned Interconnection Facilities to be designed, engineered and constructed, in whole or in part, by or on behalf of Seller, the following shall apply:
(i) Company shall be made an intended third-party beneficiary of such contracts; and (ii) Company shall be provided with copies of such executed contracts, which may be redacted but only to the extent required to prevent disclosure of confidential or proprietary information of Seller or the counterparty to such agreement; provided, however, that such redactions may not conceal information that is necessary for the Company to determine and exercise Company's rights under such contracts as a third-party beneficiary.

transferred to Transferee free and clear of all liens and encumbrances.

3. Governing Law. This Bill of Sale shall be governed by, and construed and interpreted in accordance with, the laws of the State of Hawai'i.

4. Signatures and Counterparts. This Bill of Sale may be executed in counterparts, each of which shall be deemed original, and all of which shall together constitute as one and the same instrument binding all parties notwithstanding that all of the parties are not signatories to the same counterparts. For all purposes, duplicate unexecuted and unacknowledged pages of the counterparts may be discarded, and the remaining pages assembled as one document. This Bill of Sale may also be executed by exchange of executed copies via electronic means, such as PDF. A party's signature transmitted by electronic means shall be considered an "original" signature for purposes of this Bill of Sale.

**[Signatures for Bill of Sale and Assignment
Appear on the Following Page]**

IN WITNESS WHEREOF, Transferor and Transferee have executed this instrument on the day and year first above written.

_____,
a _____

By _____
Its _____

"Transferor"

_____,
a Hawai'i corporation

By _____
Its _____

By _____
Its _____

"Transferee"

SCHEDULE H-1
DESCRIPTION OF TANGIBLE PERSONAL PROPERTY AND FIXTURES

SCHEDULE H-2
DESCRIPTION OF INTANGIBLE PERSONAL PROPERTY

Model RDG PPA (PV+BESS or WIND+BESS)
All Islands

ATTACHMENT I
FORM OF GRANT OF EASEMENT

**[DRAFTING NOTE: THIS FORM OF ATTACHMENT I IS SUITABLE FOR BOTH
PV+BESS AND WIND+BESS PROJECT AND FOR ALL ISLANDS.]**

LAND COURT SYSTEM

REGULAR SYSTEM

After Recordation, Return By: ☐ Mail ☐ Pickup

Hawaiian Electric Company, Inc.
Survey Division
P. O. Box 2750
Honolulu, HI 96840-0001

This document contains _____ pages

HECO WO# _____/JP# _____

TITLE OF DOCUMENT(S):

R/W _____

GRANT OF EASEMENT

PARTIES TO DOCUMENT:

GRANTOR(S):

GRANTEE(S): **[HAWAIIAN ELECTRIC COMPANY, INC.], [HAWAII ELECTRIC
LIGHT COMPANY, INC.], [MAUI ELECTRIC COMPANY, LTD.], a
Hawaii corporation**

DESCRIPTION: Those certain premises situated off _____

Tax Map Keys:

Address:

GRANT OF EASEMENT

THIS GRANT, made this _____ day of _____, 20____, by and between _____ (the "Grantor"), and [**HAWAIIAN ELECTRIC COMPANY, INC.**], [**HAWAII ELECTRIC LIGHT COMPANY, INC.**], [**MAUI ELECTRIC COMPANY, LTD.**], a Hawaii corporation, whose principal place of business is 1099 Alakea Street, Suite 2200, Honolulu, Hawaii, and whose post office address is P.O. Box 2750, Honolulu, Hawaii, 96840 (the "Grantee").

WITNESSETH THAT:

WHEREAS, the Grantor is the owner of those certain premises situated off _____ (the "Premises"); and

WHEREAS, as evidenced by that certain _____ dated _____ and recorded in _____ as Document No. _____, the Grantor entered into an unrecorded _____ with _____, for purposes of constructing and operating a _____ facility (the "Project") on the Premises; and

WHEREAS, the term of the _____ commenced on _____ and continues for a period of _____ years following the Operation Commencement Date (the "Term") as defined in the _____; and

WHEREAS, the Grantee requires that the Grantor grant and convey unto the Grantee easements over, upon, across and through the Premises, to allow the Grantee to receive electric energy generated by the Project and to allow the Project to receive electric service from the Grantee's existing grid, for as long as the _____ shall be in effect.

NOW THEREFORE, the Grantor, in consideration of the sum of One Dollar (\$1.00) paid to the Grantor, the receipt of which is acknowledged, and of the covenants herein made by the Grantee, grants and conveys unto the Grantee a perpetual right and easement to construct, reconstruct, operate, maintain, repair and remove poles, guy wires, anchors, overhead and/or underground wire lines and such other appliances and equipment (the "Grantee's Improvements") as may be necessary for the transmission and distribution of electricity and/or communication, including all service lines emanating from the main trunk line, to be used for light and power and/or communications and control circuits, including, without limiting the generality of the foregoing, the right (but not the obligation) to trim, keep trimmed, remove, and control any trees and vegetation in the way of its lines, appliances and equipment and a right of entry upon the Grantor's land and appurtenant interests, if any, for the aforesaid purposes, over, under, upon, across and through that certain parcel of land situate off _____ (the "Easement").

TO HAVE AND TO HOLD the same unto the Grantee, for as long as the _____ shall be in effect, including any extensions thereto, provided however, that upon the termination of the _____ and the expiration of a termination period of up to _____ days afforded to the Grantee by the Grantor, then all rights granted hereunder shall cease and that upon such termination, Grantee shall have the right to and will, if so requested, remove from the

Easement, at its own expense, the Grantee's Improvements and will restore the ground to as reasonably close to the condition in which it was immediately before the installation of the Grantee's Improvements.

RESERVING, HOWEVER, unto the Grantor, its respective successors, tenants, transferees, licensees and assigns, the right to use any portions of the granted premises not occupied by the lines, appliances and equipment of the Grantee, including rights of way over, under and across the granted premises, provided, however that such reserved rights shall not be exercised in any manner that will unreasonably interfere with the Grantee's use of the Easement, the Grantee's Improvements, or Grantee's access to and maintenance of the Grantee's Improvements.

AND the Grantee hereby covenants and agrees that:

1. Due Care and Diligence. It will use due care and diligence to keep the lines, appliances and equipment owned by the Grantee in good and safe condition and repair and will exercise its rights hereunder in a manner that will occasion only such interference with the use of the land by the owners and occupants as is reasonably necessary.

2. Indemnification. The Grantee, for itself only and not on behalf of the other, will indemnify the Grantor, its tenants and licensees occupying the land affected by this Grant of Easement, from any and all damages to the property of the Grantor and such tenants and licensees caused by such Grantee's failure to maintain its lines, appliances and equipment as provided in paragraph (1) above, and will indemnify and hold harmless the Grantor, its tenants and licensees against all claims, suits and actions by whomsoever brought on account of injuries to or death of persons or damage to property caused by such Grantee's failure to observe the covenants contained in paragraph (1) above. The foregoing indemnification obligations of the Grantee shall not apply to the extent that any such damage, injury, or death is attributable to the negligence or willful misconduct of the Grantor, its tenants and/or licensees occupying the land affected by this Grant of Easement.

IT IS UNDERSTOOD AND AGREED by and between the parties hereto that:

A. Condemnation. If at any time any portion of land across, through or within which this easement passes shall be condemned or taken by any governmental authority, the Grantee shall have the right to claim and recover from the condemning authority, but not from the Grantor, such compensation for the damages to the Grantee's easement and right of way and the appliances and equipment owned by, installed and used in connection with this Grant of Easement, which shall be payable to the Grantee, to the extent of its interest.

B. Landscaping. The Grantor shall install and maintain or cause to be installed and maintained without expense to the Grantee any screening or landscaping of the Grantee's facilities which may now or hereafter be required by law or regulation or governmental agency and will indemnify the Grantee from all loss and liability arising from the breach of this covenant.

C. Warranty of Title. The Grantor, for itself, its heirs and assigns, covenants with the Grantee, its successors and assigns, that the Grantor is seised in fee simple of the property in which the easement is granted and has good right to grant the same; that the Grantee shall enjoy the easement without hindrance and free from all encumbrances; and that the Grantor will warrant and defend the Grantee against the lawful claims and demands of all persons claiming the whole or any part of the said land.

D. Definitions. All defined terms (words such as Grantor, Grantee, etc.) and pronouns used in the singular shall mean and include the plural and include the masculine, feminine or neuter gender, as the context of this grant shall require. The term “person” shall mean an individual, partnership, association, trust, corporation or other entity as the context may require.

E. Parties in Interest. The covenants contained in this Grant of Easement shall inure to the benefit of, and be binding upon, the parties and their heirs, personal representatives, beneficiaries, successors and assigns. Each of the parties which constitute the Grantee covenants, and shall be responsible and obligated, for itself and not for the other Grantee party.

F. Counterparts. The parties agree that this instrument may be executed in counterparts, each of which shall be deemed an original, and the counterparts shall together constitute one and the same instrument, binding all parties notwithstanding that all of the parties are not signatory to the same counterparts. For all purposes, including, without limitation, recordation, filing and delivery of this instrument, duplicate unexecuted and unacknowledged pages of the counterparts may be discarded and the remaining pages assembled as one document. The parties agree that the person or company recording or arranging for the recordation of this instrument is authorized to complete any blanks contained in this instrument with the applicable number of pages, dates, and recordation information, whether before or after this instrument has been notarized by a notary public, and in no event shall completion of any such blanks be deemed an alteration of this instrument by means of the insertion of new content.

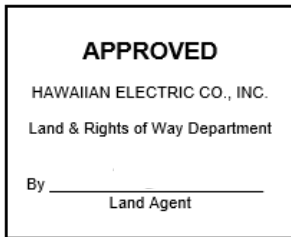
[Signatures begin on the following page.]

Grantor

On this _____ day of _____, 20____, before me personally appeared _____ and _____, to me known, who, being by me duly sworn or affirmed, did say that such person(s) executed the foregoing _____-page instrument entitled GRANT OF EASEMENT, dated _____, as the free act and deed of such person(s), and if applicable, in the capacities shown, having been duly authorized to execute such instrument in such capacities. This acknowledgement is deemed to include my Notary Certification.

Type or print name: _____
Notary Public, First Circuit, State of Hawaii

[Affix Seal]



**[HAWAIIAN ELECTRIC COMPANY, INC.],
[HAWAII ELECTRIC LIGHT COMPANY, INC.],
[MAUI ELECTRIC COMPANY, LTD.],
a Hawaii corporation**

By _____
Name: _____
Title: _____

Grantee

STATE OF HAWAII)
)
 : ss.
CITY AND COUNTY OF)
HONOLULU)

HECO

On this _____ day of _____, 20____, before me appeared _____, to me personally known, who, being by me duly sworn, did say that such person is the _____ of [**HAWAIIAN ELECTRIC COMPANY, INC.**], [**HAWAII ELECTRIC LIGHT COMPANY, INC.**], [**MAUI ELECTRIC COMPANY, LTD.**], a Hawaii corporation, and the foregoing _____-page instrument entitled GRANT OF EASEMENT, dated _____, was signed on behalf of said corporation by authority of its Board of Directors, and said Officer acknowledged said instrument to be the free act and deed of said corporation. This acknowledgement is deemed to include my Notary Certification.

Notary Signature

Type or print name: _____
Notary Public, First Circuit, State of Hawaii

My commission expires:

[Affix Seal]

ATTACHMENT J
COMPANY PAYMENTS FOR ENERGY, DISPATCHABILITY
AND AVAILABILITY OF BESS

[DRAFTING NOTE: THIS FORM OF ATTACHMENT J IS FOR WIND or PV+BESS]

1. Price for Purchase of Electric Energy. For each period between each Post-CSAT Partial In-Service Date and a subsequent Pre-CSAT Partial Installation, Company shall compensate Seller for electric energy delivered by the corresponding Post-CSAT Partial Installation to the Point of Interconnection in response to Company Dispatch in accordance with this Agreement at a rate of seventy percent (70%) of the Unit Price/kWh. For avoidance of doubt, if a partially commissioned Facility undergoes multiple Pre-CSAT Partial Installations, from the commencement of any new CSAT until such CSAT has been successfully passed, all energy delivered by the corresponding Pre-CSAT Partial Installation to the Point of Interconnection in response to Company Dispatch in accordance with this Agreement shall be considered Test Energy and not compensated in accordance with Section 4 (Test Energy) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS).
2. Lump Sum Payment. Commencing on the Commercial Operations Date, Company shall pay Seller for the availability of the Facility's Net Energy Potential to respond to Company Dispatch in accordance with this Agreement, as well as for the BESS availability, a monthly Lump Sum Payment as calculated and adjusted as set forth in this Section 2 (Lump Sum Payment) and Section 3 (Calculation of Lump Sum Payment) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS). For avoidance of doubt, because the Facility's Net Energy Potential will not be available to respond to Company Dispatch in accordance with this Agreement until the Commercial Operations Date, and because the BESS will also not be available until the Commercial Operations Date, if the Commercial Operations Date occurs on a Day that is not the first Day of a calendar month, the monthly Lump Sum Payment shall be prorated for the period from the Commercial Operations Date to the end of that month.
 - (a) Investment Grade Pricing. The Lump Sum Payment shall be the Investment Grade Lump Sum Payment if, by the

Construction Financing Closing Milestone, Company's credit rating reaches Investment Grade Status.

(b) Step-In Agreement Pricing.

(i) The Lump Sum Payment shall be the Step-In Agreement Lump Sum Payment if, by the Construction Financing Closing Milestone: (A) Seller enters into a step-in agreement, or other substantially equivalent assurance in the event of default by Company of its contractual payment obligations under this Agreement (hereinafter, regardless of the form such assurance takes, a "Step-In Agreement"), with the State of Hawai'i or an applicable department thereof (the "State") within ninety days after the State of Hawai'i receives notice of the filing of an application for a PUC Approval Order, in accordance with HRS §§ 269-191 through -196 ("Act 191"), and (B) Company's credit rating does not reach Investment Grade Status. Seller shall not be permitted to opt out of the Step-In Agreement in order to circumvent the applicability of the Step-In Agreement Lump Sum Payment.

(ii) Notwithstanding the application of Section 2(b)(i) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS):

(A) the Lump Sum Payment will be adjusted downward from the Step-In Agreement Lump Sum Payment to the Investment Grade Lump Sum Payment at the start of the next calendar month, if, at any time during the Term, Company's credit rating reaches Investment Grade Status; and

(B) if Seller's actual financing costs are lower than assumed/estimated in developing its Step-In Agreement Lump Sum Payment at the time of bid submission, as demonstrated by the Financing Cost Comparison (which shall be provided to Company, together with all supporting documentation, within thirty Days of Seller's completion of each of the Construction Financing Closing Milestone and the closing of Seller's long-term

financing), Seller will be required to adjust its Step-In Agreement Lump Sum Payment downward on a pro rata basis to reflect such lower financing costs.

(c) Non-Investment Grade Pricing.

- (i) The Lump Sum Payment shall be the Non-Investment Grade Lump Sum Payment if, by the Construction Financing Closing Milestone: (A) the State does not elect to execute a Step-In Agreement with Seller (despite Seller's best efforts); and (B) Company's credit rating does not reach Investment Grade Status.
- (ii) Notwithstanding the application of Section 2(c)(i) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS):
 - (A) the Lump Sum Payment will be adjusted downward from the Non-Investment Grade Lump Sum Payment to the Step-In Agreement Lump Sum Payment at the start of the next calendar month, if, at any time during the Term, Seller executes a Step-In Agreement with the State under Act 191;
 - (B) the Lump Sum Payment will be adjusted downward from the Non-Investment Grade Lump Sum Payment to the Investment Grade Lump Sum Payment at the start of the next calendar month, if, at any time during the Term, Company's credit rating reaches Investment Grade Status; and
 - (C) if Seller's actual financing costs are lower than assumed/estimated in developing its Non-Investment Grade Lump Sum Payment at the time of bid submission, as demonstrated by the Financing Cost Comparison (which shall be provided to Company, together with all supporting documentation, within thirty Days of Seller's completion of each of the Construction Financing Closing Milestone and the closing of Seller's long-term financing), Seller will be required to adjust its Non-Investment Grade Lump Sum

Payment downward on a pro rata basis to reflect such lower financing costs.

- (d) BAFO Unit Price Adjustment. To provide inflation protection to the Seller, the Company will allow Seller a one-time pricing adjustment to its BAFO Unit Price, not to exceed ten percent (10%) of the BAFO Unit Price, based on the increase, if any, in the GDPIPD index between the submission date of Seller's BAFO and the PUC Approval Order Date. Any change in the GDPIPD index value ("GDPIPD Compare Rate") shall be determined by dividing the $GDPIPD_{PUC\ Approval}$ by the $GDPIPD_{BAFO\ Submission}$. If there is no change in the index value or if the index value decreases (i.e., the GDPIPD Compare Rate is less than or equal to 1.0) during the period between Seller's BAFO submission date and the PUC Approval Order Date, Seller will not be permitted an adjustment to its BAFO Unit Price. If the GDPIPD Compare Rate is greater than 1.0, the adjustment to the BAFO Unit Price shall be calculated by multiplying the BAFO Unit Price by the GDPIPD Compare Rate (which shall not exceed 1.10). Any GDPIPD Compare Rate exceeding 1.10 shall be adjusted to be 1.10 in order to determine the Unit Price.
- (e) The "BAFO Unit Price" is \$_____/MWh of Net Energy Potential for the Investment Grade Lump Sum Payment, \$_____/MWh of Net Energy Potential for the Step-In Agreement Lump Sum Payment, and \$_____/MWh of Net Energy Potential for the Non-Investment Grade Lump Sum Payment. If the GDPIPD Compare Rate is greater than 1.0 (i.e., the $GDPIPD_{PUC\ Approval}$ is greater than the $GDPIPD_{BAFO\ Submission}$), the BAFO Unit Price may be adjusted to determine the Unit Price as follows:

Unit Price = BAFO Unit Price × GDPIPD Compare Rate

Where the GDPIPD Compare Rate is capped at 1.10.

The Unit Price in \$/MWh shall be rounded to six (6) decimal places.

EXAMPLE (for illustrative purposes only):

BAFO Submission Date - July 14, 2023

PUC Approval Order Date - August 15, 2025

$GDPIPD_{BAFO\ Submission}$ - 122.762 (Q3 2023)

GDIPD_{PUC Approval} - 124.766 (Q2 2025)
BAFO Unit Price - 214.793375

Calculation of Unit Price:

Unit Price = BAFO Unit Price × GDIPD Compare Rate
GDIPD Compare Rate = GDIPD_{PUC Approval}/GDIPD_{BAFO Submission}
= 124.766/122.762 = 1.016324
Unit Price = \$ 214.793375/MWh × 1.016324 =
\$218.299662/MWh

If GDIPD Compare Rate is greater than 1.10:

Unit Price = \$214.793375/MWh × 1.10 = \$236.272712/MWh

- (f) Tariff Rate Adjustment. The Parties recognize and acknowledge that Seller's purchase of certain Project equipment and materials ("Project Equipment") may be subject to new tariffs or similar import or export duties (collectively, "New Tariffs") that were not contemplated as part of ongoing costs, at the time that Seller submitted its RFP Proposal. For purposes of this Section 2(f) (Tariff Rate Adjustment) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS), Project Equipment shall include equipment and materials paid for by Seller, but purchased by Company as part of the Company-Owned Interconnection Facilities. In the event that after Seller's submittal of its RFP Proposal and before the Commercial Operations Date, New Tariffs are imposed on, applied to, and increase the cost of Project Equipment that (i) Seller purchases and receives for use in and is necessary for the Project, and (ii) is identified in Seller's RFP Proposal, Seller may, subject to the conditions set forth in Section 2(f) (Tariff Rate Adjustment), Section 2(g) (Tariff Rate Reduction), and Section 2(h) (Calculation of Adjustments and Total Adjustment Cap) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS), request a one-time upward New Tariff price adjustment to the BAFO Unit Price ("Tariff Rate Adjustment").
- (i) Evidence of Cost Increases Due to Tariffs. Any Tariff Rate Adjustment, calculated in accordance with Section 2(f)(iii) (Calculation of Net Tariff

Increase and Tariff Rate Adjustment) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS), shall be conditioned on Seller first providing definitive evidence to Company and the independent auditor (described below) that New Tariffs were imposed and applied after the submittal of Seller's RFP Proposal, increasing the cost of Project Equipment, and the independent auditor determining that the Tariff Rate Adjustment is fully supported by such evidence in accordance with the requirements of Section 2(f)(ii) (Independent Auditor) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS). The evidence shall include: (a) documentation from the applicable Project Equipment manufacturer or vendor establishing the cost of the Project Equipment at the time Seller submitted its RFP Proposal, including the cost specifically attributable to any tariffs in effect at that time ("Bid Cost"); (b) documentation from the applicable Project Equipment manufacturer or vendor establishing the cost of the Project Equipment as increased by the New Tariffs, including the cost specifically attributable to the New Tariffs ("New Tariff Cost"); and (c) any other documentation and/or information relating to the New Tariffs and/or Project Equipment requested by Company or the independent auditor. Seller shall not be required to provide evidence under Section 2(f) (Tariff Rate Adjustment) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) for a New Tariff imposed on and applied to equipment or materials purchased by Company as part of the Company-Owned Interconnection Facilities, other than correspondence from Company that interconnection costs have increased due to a New Tariff. Seller shall not be entitled to a Tariff Rate Adjustment: (1) if Seller fails to provide any of the foregoing evidence to the reasonable satisfaction of Company or the independent auditor; (2) if the independent auditor concludes the Tariff Rate Adjustment is not supported by such evidence in accordance with Section 2(f)(ii) (Independent Auditor) of this Attachment J

(Company Payments for Energy, Dispatchability and Availability of BESS); (3) for New Tariffs applicable to Project Equipment that become effective after the Commercial Operations Date; or (4) if the Total Adjustment (including the Tariff Rate Adjustment) exceeds the Total Adjustment Cap. Company reserves the right and opportunity to propose other methods to adequately preserve Seller's RFP Proposal pricing assumptions regarding Project Equipment costs.

- ii. Independent Auditor. Upon Company's receipt of Seller's request for a Tariff Rate Adjustment, Company shall have thirty (30) Days to deliver to Seller a written notice containing: (a) the names of three (3) qualified independent auditors licensed and permitted in the State of Hawai'i and willing to audit and verify Seller's Tariff Rate Adjustment evidence provided pursuant to Section 2(f)(i) (Evidence of Cost Increases Due to New Tariffs) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS); (b) a description provided by each nominee of his or her qualifications to serve as an independent auditor; and (c) each nominee's fee proposal. The Parties shall agree upon and appoint one of the three nominees to serve as the independent auditor within ten (10) Business Days of Seller's receipt of Company's written notice. If the Parties fail to agree upon a mutually acceptable independent auditor within ten (10) Business Days, such disagreement shall constitute a "Dispute" within the meaning of Article 28 (Dispute Resolution) of this Agreement and shall be resolved as provided in said Article 28 (Dispute Resolution). The fees and costs of the independent auditor shall be paid by Seller.

- (A) Audit of Documentation and Information. No later than fifteen (15) Days after appointment of an independent auditor pursuant to Section 2(f)(ii) (Independent Auditor) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS), Seller shall provide to the independent auditor and Company all

evidence related to and supporting the Bid Cost, New Tariff Cost, and proposed Tariff Rate Adjustment (including, without limitation, the documentation and information described in Section 2(f)(i) (Evidence of Cost Increases Due to New Tariffs)) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS), as well as any other documentation and/or information requested by the independent auditor or Company. The independent auditor shall audit and verify such evidence in accordance with the standards applicable to independent auditors in the State of Hawai'i and to the subject matter, including, without limitation, Generally Accepted Auditing Standards (GAAS), to determine whether the proposed Tariff Rate Adjustment is supported by the evidence provided by Seller. The Parties shall assist the independent auditor throughout the process of preparing his or her report, including making key personnel and records available to the independent auditor.

- (B) Independent Auditor Report. Within sixty (60) Days of his or her appointment, the independent auditor shall issue a report to the Parties stating his or her findings, which shall include a determination as to whether the Tariff Rate Adjustment is (i) fully supported by the evidence provided by Seller, (ii) only partially supported by such evidence, while a lower Tariff Rate Adjustment is fully supported by such evidence, or (iii) not supported by such evidence. If the independent auditor's report concludes that the Tariff Rate Adjustment is fully supported by the evidence under subpart (i) above and the Total Adjustment (including the Tariff Rate Adjustment) is below the Total Adjustment Cap set forth in Section 2(h)(ii) (Total Adjustment Cap) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS),

the Parties shall amend the Agreement to reflect the Tariff Rate Adjustment as described in Section 2(h)(i) (Calculation of Adjustments) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS). If the independent auditor's report concludes that the Tariff Rate Adjustment is only partially supported by such evidence but a lower Tariff Rate Adjustment is fully supported by such evidence under subpart (ii) above and the Total Adjustment (including the lower Tariff Rate Adjustment) is below the Total Adjustment Cap set forth in Section 2(h)(ii) (Total Adjustment Cap) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS), the Parties shall amend the Agreement to reflect the lower Tariff Rate Adjustment as described in Section 2(h)(i) (Calculation of Adjustments) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS). If the independent auditor's report concludes that the Tariff Rate Adjustment is not supported by the evidence provided by Seller under subpart (iii) above, Seller shall not be entitled to the Tariff Rate Adjustment.

- iii. Calculation of Net Tariff Increase and Tariff Rate Adjustment. The "Net Tariff Increase" shall be equal to the New Tariff Cost minus the Bid Cost. The Net Tariff Increase shall be utilized to calculate the Tariff Rate Adjustment according to the following formula to determine the amount added to the BAFO Unit Price to account for such Net Tariff Increase:

$$\text{Net Tariff Increase} = \text{New Tariff Cost} - \text{Bid Cost}$$

$$\text{Tariff Rate Adjustment} = (\text{Net Tariff Increase} * (i / 12) / (1 - (1 + i / 12)^{-n})) / (\text{NEP} / 12)$$

where:

i: the annual interest rate of 8% (Weighted Average Cost of Capital (WACC))

*n: the total number of payment periods (e.g.,
n=360 months based on 30-year term)*

- (g) Tariff Rate Reduction. Seller acknowledges and agrees that (i) any tariffs or similar import or export duties (collectively, "Existing Tariffs") imposed on Project Equipment at the time that Seller submitted its RFP Proposal have been calculated into or otherwise accounted for in the Contract Pricing, and (ii) Seller has provided to Company, in its RFP Proposal and as separate line items, all assumed Existing Tariff rates. No later than thirty (30) Days after the Commercial Operations Date, Seller shall provide to Company written certification from Seller that (1) all Existing Tariff assumptions made in Seller's RFP Proposal with respect to Contract Pricing remain unchanged due to a lack of any changes to Existing Tariffs prior to the Commercial Operations Date, or (2) Existing Tariff assumptions made in Seller's RFP Proposal with respect to Contract Pricing are inconsistent with changes made to the Existing Tariffs prior to the Commercial Operations Date. If changes are made to any Existing Tariffs prior to the Commercial Operations Date that result in lower Project Equipment costs than those assumed in Seller's RFP Proposal, Company shall be entitled to a downward Existing Tariff price adjustment to the BAFO Unit Price ("Tariff Rate Reduction"). The Tariff Rate Reduction shall be calculated as follows:

$$\text{Net Tariff Decrease} = \text{Bid Cost} - \text{New Tariff Cost}$$

$$\text{Tariff Rate Reduction} = (\text{Net Tariff Decrease} * (i / 12) / (1 - (1 + i/12)^{-n})) / (\text{NEP} / 12)$$

where:

i: the annual interest rate of 8% (Weighted Average Cost of Capital (WACC))

n: the total number of payment periods (e.g., n=360 months based on 30-year term)

- (h) Calculation of Adjustments and Total Adjustment Cap.

- i. Calculation of Adjustments. If Seller has satisfied the requirements necessary under this Agreement to obtain the Tariff Rate Adjustment,

such adjustment will be added to the BAFO Unit Price, as adjusted pursuant to Section 2(d) (BAFO Unit Price Adjustment) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS). Provided the Total Adjustment Cap is not exceeded, the sum of the Tariff Rate Adjustment and the adjusted (if applicable) BAFO Unit Price will be the new Unit Price for the Agreement, and the Parties will execute an amendment to the Agreement reflecting that change.

- ii. Total Adjustment Cap. The sum of the Tariff Rate Adjustment and the BAFO Unit Price inflation adjustment (under Section 2(d) (BAFO Unit Price Adjustment) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS)) (the "Total Adjustment") shall not exceed fifteen percent (15%) of the BAFO Unit Price ("Total Adjustment Cap").

- 3. Calculation of Lump Sum Payment. The monthly Lump Sum Payment shall be calculated and adjusted as set forth below to reflect changes in the estimate of the Facility's Net Energy Potential as such estimate is revised from time to time as more fully set forth in Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement:

- (a) Lump Sum Payment During First Benchmark Period.
During the First Benchmark Period, the monthly Lump Sum Payment shall be equal to one-twelfth (1/12th) of the product (rounded to the nearest cent) obtained by multiplying the Unit Price by the First NEP Benchmark.
- (b) Lump Sum Payment During Second Benchmark Period.
 - (i) One purpose of the Second Benchmark Period is to provide the Seller, in the event that the Initial NEP OEPR Estimate is less than the NEP RFP Projection, with a limited period during which Seller will have an opportunity, by having a Subsequent OEPR prepared pursuant to Section 3(b) (Voluntary Subsequent OEPR) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement, to obtain an adjustment to the NEP OEPR Estimate used to

calculate the Lump Sum Payment, subject to (i) the cap on any upward adjustment imposed by the limitation that the estimate of Net Energy Potential that is used to calculate the Lump Sum Payment shall not exceed the NEP RFP Projection and (ii) the risk that any Subsequent OEPR might result in a downward adjustment to the NEP OEPR Estimate used to calculate the Lump Sum Payment. Accordingly, for each calendar month during the Second Benchmark Period, the monthly Lump Sum Payment shall be equal to one-twelfth ($1/12^{\text{th}}$) of the product (rounded to the nearest cent) obtained by multiplying the Unit Price by the lesser of the (w) the NEP RFP Projection or (x) the NEP OEPR Estimate of the OEPR that is most recent as of the first Day of such calendar month. For avoidance of doubt:

- (A) On the first Day of the Second Benchmark Period, the most recent OEPR will be the Initial OEPR;
- (B) If no Subsequent OEPR is issued under Section 3 (Subsequent OEPRs) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement for an OEPR Period of Record ending prior to the end of the [[PV]third (3^{rd}) or [Wind]fifth (5^{th})] Contract Year, the "most recent OEPR" during the entirety of the Second Benchmark Period will be the Initial OEPR;
- (C) If any Subsequent OEPR is prepared for an OEPR Period of Record ending prior to the commencement of the [[PV]fourth (4^{th}) or [Wind]sixth (6^{th})] Year, the monthly Lump Sum Payment shall, for the period commencing on the first Day of the calendar month following the month during which an OEPR Evaluator issues such Subsequent OEPR, be equal to one-twelfth ($1/12^{\text{th}}$) of the product (rounded to the nearest cent) obtained by multiplying the Unit Price by the lesser of (w) the NEP OEPR Estimate obtained from such Subsequent OEPR or (x) the NEP RFP Projection. The monthly Lump Sum Payment calculated as aforesaid shall remain in

effect through the first to occur of (y) the end of the Term or (z) the end of the calendar month during which an OEPR Evaluator issues the next Subsequent OEPR (if any) that is required or permitted under Section 4 (Preparation of OEPR) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement.

(c) Lump Sum Payment Following Second Benchmark Period.

- (i) As of the first Day of the [[PV]fourth (4th) or [Wind]sixth (6th)] Contract Year, the estimate of Net Energy Potential that was used to calculate the Lump Sum Payment for the last calendar month of the Second Benchmark Period shall continue in effect as the estimate of Net Energy Potential that is used to calculate the Lump Sum Payment until the end of the calendar month during which an OEPR Evaluator issues the first Subsequent OEPR for an OEPR Period of Record ending on or after the commencement of the [[PV]fourth (4th) or [Wind]sixth (6th)] Contract Year and, effective at the end of such calendar month, the Second NEP Benchmark that was in effect immediately prior to the issuance of such Subsequent OEPR shall constitute the "Most Recent Prior NEP Benchmark" under clause (i) of the definition of that term set forth in this Agreement. For avoidance of doubt, if no Subsequent OEPR is issued for an OEPR Period of Record ending on or after the commencement of the [[PV]fourth (4th) or [Wind]sixth (6th)] Contract Year, the Second NEP Benchmark that was used to calculate the Lump Sum Payment for the last calendar month of the Second Benchmark Period shall continue in effect for the balance of the Term as the estimate of Net Energy Potential that is used to calculate the Lump Sum Payment.
- (ii) In order to facilitate planning for the Company System, no increase in Net Energy Potential (and hence in the monthly Lump Sum Payment) shall be permitted under this Agreement as a consequence of any Subsequent OEPR that is prepared for an OEPR Period of Record ending on or after the expiration of the Second Benchmark Period.

Accordingly, if any such Subsequent OEPR is prepared, the monthly Lump Sum Payment shall, for the period commencing on the first Day of the calendar month following the month during which an OEPR Evaluator issues such Subsequent OEPR, be equal to one-twelfth ($1/12^{\text{th}}$) of the product (rounded to the nearest cent) obtained by multiplying the Unit Price by the lesser of (w) the NEP OEPR Estimate obtained from such Subsequent OEPR or (x) the Most Recent Prior NEP Benchmark. The monthly Lump Sum Payment calculated as aforesaid shall remain in effect through the first to occur of (y) the end of the Term or (z) the end of the calendar month during which an OEPR Evaluator issues the next following Subsequent OEPR (if any) that is required or permitted under Section 3 (Subsequent OEPRs) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement. If any such next following Subsequent OEPR is issued, the monthly Lump Sum Payment shall, for the period commencing on the first Day of the calendar month following the calendar month during which an OEPR Evaluator issues such Subsequent OEPR, be re-calculated and adjusted as provided in this Section 3(c)(ii) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) and shall continue in effect for the period provided in the preceding sentence.

- (d) Under the Company's previous forms of as-available power purchase agreements for renewable energy, the independent power producer was compensated for the production and delivery of electrical energy and assumed the risk of non-payment for events such as Force Majeure that prevented such production and delivery. Although under this Agreement most or all of Seller's compensation will be in the form of a Lump Sum Payment rather than for the production and delivery of electrical energy, it is not the intent of the Parties that Seller should be entitled to unrestricted compensation in circumstances in which an independent power producer would not have been able to earn compensation under the Company's prior form of power purchase agreements (i.e., if the Facility or any portion thereof is unable to produce and deliver

electric energy). Although the liquidated damages that are payable if the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor fails to satisfy the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor Performance Metric address this issue in certain of the circumstances when the [PV System or WTG(s)] or a portion thereof is unable to generate electric energy, the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor does not account for events of Force Majeure for purposes of calculating the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor under Section 1 (Calculation of the [PV System Equivalent or Modified Pooled OMC Equipment] Availability Factor) of Attachment Q (Calculation of Certain Metrics) of this Agreement. Furthermore, in the case of the [PV System or WTG(s)], although the liquidated damages that are payable if the [MPR or PI] fails to satisfy the [GPR or GPI] Performance Metric address this issue in certain of the circumstances when the [PV System or WTG(s)] or a portion thereof is unable to generate electric energy, the [MPR or PI] does not account for Force Majeure because periods containing such events are excluded from the intervals used in the calculation under Section 2 (Calculation of [Measured Performance Ratio or Performance Index]) of Attachment Q (Calculation of Certain Metrics) to this Agreement. Similarly, in the case of the BESS, although the liquidated damages that are payable if the BESS Annual Equivalent Availability Factor fails to satisfy the BESS EAF Performance Metric addresses this issue in certain of the circumstances when the BESS or a portion thereof is unable to respond to Company Dispatch, the BESS Annual Equivalent Availability Factor does not account for events of Force Majeure because Force Majeure hours are deemed to be removed from Outage Hours for purposes of calculating the BESS Annual Equivalent Availability Factor under Attachment X (BESS Annual Equivalent Availability Factor) to this Agreement. Accordingly, and without limitation to the generality of the foregoing provisions of this Section 3 (Calculation of Lump Sum Payment) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS), the monthly Lump Sum Payment shall be adjusted downward pro rata for each hour or portion thereof during the calendar month in question

that the Facility or a portion thereof was not available to generate energy or respond to Company Dispatch because of a Force Majeure condition affecting Seller (whether claimed by Seller or not) (i) affecting the Facility or any portion thereof or (ii) that otherwise delays or prevents the Seller from making the Facility or any portion thereof generate energy and make it available for Company Dispatch. In the case of a BESS Force Majeure, such downward adjustment in the Lump Sum Payment shall be limited to the BESS Allocated Portion of the Lump Sum Payment. Further, during any periods in which there is a Force Majeure affecting both the [PV System or WTG(s)] and the BESS, the Lump Sum Payment shall only be adjusted for the effect of the Force Majeure on the [PV System or WTG(s)]. The hours the Facility is affected by a Force Majeure are converted to equivalent full outage hours by multiplying the actual duration of the event (hours) by (i) the size of the reduction in MWs or number of individual units, divided by (ii) the Contract Capacity if the size of the reduction is in MWs or the total number of individual units in the affected system if the size of the reduction is an individual unit count. These equivalent hour(s) are then summed. The summation of equivalent full outage hours is then divided by the months total period hours (number of days in the month x 24hrs/day) to determine the pro-rated factor the Lump Sum Payment will be adjusted by.

- (e) Example (for illustrative purposes only): if the Facility has ten individual units and, during the month of May (which has 31 calendar days or 744 period hours), one unit is not available to respond to Company Dispatch for a period of 360 hours due to a Force Majeure condition as aforesaid, the monetary amount of the resulting downward adjustment to the monthly Lump Sum Payment for the month of May would be calculated as follows:

$$\begin{array}{lcl} \text{Monetary Amount} & & \\ \text{of Downward} & = & (\text{MLSP} \times 1/10) \\ \text{Adjustment} & & \times 360/744 \end{array}$$

where:

MLSP = The monthly Lump Sum Payment that would be payable for such month but for the downward adjustment.

Example 2: if a Facility BESS System has forty individual units and, during the month of June (which has 720 period hours), one BESS individual unit is not available to respond to Company Dispatch for a period of 240 hours due to a Force Majeure condition as aforesaid, the monetary amount of the resulting downward adjustment to the monthly Lump Sum Payment for the month of June would be calculated as follows:

$$\begin{array}{lcl} \text{Monetary Amount} & & \\ \text{of Downward} & = & (\text{BLSP} \times 1/40) \\ \text{Adjustment} & & \times 240/720 \end{array}$$

where:

BLSP = The BESS Allocated Portion of the Lump Sum Payment that would be payable for such month but for the downward adjustment.

For purposes of determining the monetary amount of the foregoing downward adjustment, the product obtained by multiplying a monetary value by a fraction shall be rounded to the nearest cent.

4. Test Energy. Company shall use reasonable efforts to accept test energy that is delivered as part of the normal testing for generators after completion of the Acceptance Test, such as energy delivered to Company during the Control System Acceptance Test and Seller commissioning but not energy delivered during the Acceptance Test (such delivered and accepted energy being referred to collectively as "Test Energy"); provided, that Seller shall use reasonable efforts to coordinate such normal testing with Company so as to minimize adverse impacts on the Company System and operations. In this regard, Company may determine when and how much Test Energy may be delivered, and Seller shall comply with such Company determination. Company shall not separately pay for Test Energy; provided however, that in the following circumstance only, for a limited time period as specified below, Company may pay for certain Test Energy in order for Seller to satisfy identified and confirmed tax credit qualification conditions necessary for Seller to obtain the benefit of such tax credit in the tax year requested by Seller. In

the event that Seller is ready to commence the CSAT but Company is unable to commence the CSAT due to Company resource constraints, e.g., due to casualty or multiple CSATs already being conducted, or if Seller requests CSAT to occur in whole, or in part during the final 21 days of a calendar year (such constraints being collectively referred to as "CSAT Constraints"), and if not for such CSAT Constraints, Seller would reasonably be expected to achieve Commercial Operations, or partial commissioning, prior to the end of the current calendar year (or Seller's then current tax year), then Company may, under the parameters specified above, accept delivery of Test Energy and Company shall compensate Seller, for a period no longer than thirty (30) Days, for Test Energy delivered during Seller commissioning (post-Acceptance Test and pre-CSAT) at a rate of fifty percent (50%) of the Unit Price/kWh. This limited circumstance upon which Company may compensate Seller for Test Energy shall not apply to any acceptance of Test Energy for subsequent partial commissionings after completion by Seller of the first Post-CSAT Partial Installation. The sum of all payments from Company to Seller for Test Energy pursuant to this Section 4 (Test Energy) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) (the "Total Test Energy Payment") shall be deducted to the maximum extent possible from the first monthly Lump Sum Payment (and, to the extent necessary, subsequent Lump Sum Payment(s)), until the Lump Sum Payments paid to Seller by Company have been reduced, in the aggregate, by the Total Test Energy Payment.

5. Tax Credit Pass Through. Company acknowledges and agrees that any Federal Refundable Tax Credit and Federal Non-Refundable Tax Credit for which the Project (or any portion of the Project) is eligible (collectively, the "Eligible Federal Tax Credits") shall inure to the benefit of the Claiming Entity; provided, however, that Seller acknowledges and expressly agrees that the Eligible Federal Tax Credits have been calculated into the Contract Pricing based on the maximization of such credits. Subject to the provisions of Section 2 (Lump Sum Payment) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS), in the event that Seller's Facility does not gain the benefit of any or all Eligible Federal Tax Credits, Seller expressly acknowledges and agrees that it shall not seek to amend the Contract Pricing.

Because certain Federal tax treatment and the Hawai'i tax treatment that will apply to renewable energy technologies on the Commercial Operations Date are uncertain, the Parties acknowledge that the Contract Pricing was set assuming Seller (a) will be eligible for and gain the benefit of the Eligible Federal Tax Credits, and (b) will not be eligible for any uncertain or unavailable Federal Refundable Tax Credit or Federal Non-Refundable Tax Credit, or for any Hawai'i Renewable Energy Tax Credit. The intent of this Section 5 (Tax Credit Pass Through) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) is to entitle Company, for the benefit of its customers, to a payment equal to 100% of the maximum Federal Refundable Tax Credit, Federal Non-Refundable Tax Credit, and/or Hawai'i Renewable Energy Tax Credit for which Seller is eligible with respect to the Facility and receives during the Term, as more fully set forth in this Section 5 (Tax Credit Pass Through) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS). The following provisions of this Section 5 (Tax Credit Pass Through) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) shall not apply to the Eligible Federal Tax Credits that have been calculated into Contract Pricing.

- (a) If, as of the Commercial Operations Date, or, if not available at the Commercial Operations Date, at any subsequent time during the Term, a Federal Refundable Tax Credit and/or Hawai'i Refundable Tax Credit is reasonably available to Seller or its Affiliates with respect to the Facility, the following shall apply:
 - (i) Seller or Seller's Affiliate will apply for such Federal Refundable Tax Credit and/or Hawai'i Refundable Tax Credit, it being understood and agreed that if Seller applies for a Federal Refundable Tax Credit and/or Hawai'i Refundable Tax Credit as of the Commercial Operations Date, it shall have fulfilled its obligations hereunder to apply for the Federal Refundable Tax Credit and/or Hawai'i Refundable Tax Credit; provided that Seller's fulfillment of its obligations hereunder for Federal Refundable Tax Credits shall not relieve Seller of its obligations hereunder for Hawai'i Refundable Tax

Credits, nor shall Seller's fulfillment of its obligations hereunder for Hawai'i Refundable Tax Credits relieve Seller of its obligations hereunder for Federal Refundable Tax Credits;

- (ii) Seller shall make a payment to Company in an amount equal to one hundred percent (100%) of the Net Amount of such Federal Refundable Tax Credit and/or Hawai'i Refundable Tax Credit within thirty (30) Days after funds are received from the Internal Revenue Service (or other applicable Federal entity) and/or the Hawai'i Department of Taxation (as applicable);
- (iii) Upon application for the Federal Refundable Tax Credit and/or Hawai'i Refundable Tax Credit, an officer of Seller will deliver to Company a notice (A) describing Seller's efforts to apply for and obtain the Federal Refundable Tax Credit and/or Hawai'i Refundable Tax Credit, (B) confirming that Seller has applied for the Federal Refundable Tax Credit and/or Hawai'i Refundable Tax Credit, and (C) certifying that Seller has used commercially reasonable efforts to apply for and obtain the maximum reasonably available Federal Refundable Tax Credit and/or Hawai'i Refundable Tax Credit as provided in this Section 5 (Tax Credit Pass Through) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS);
- (iv) Upon receipt of any funds from the Internal Revenue Service (or other applicable Federal entity) and/or the Hawai'i Department of Taxation for the Federal Refundable Tax Credit and/or Hawai'i Refundable Tax Credit (as applicable), an officer of Seller or an Affiliate of Seller, if applicable, will deliver a notice to Company certifying (A) the amount of funds received, (B) and the amount of payment that will be made to Company, net of any documented and reasonable financial, legal, administrative, and other costs required to claim and transfer such funds to Seller, as supported by the officer's certificate as to the amount of such costs and the reasonableness thereof.

- (b) If, as of the Commercial Operations Date, a Federal Refundable Tax Credit is unavailable but a Federal Non-Refundable Tax Credit is available to Seller or its Affiliates with respect to the Facility, and/or a Hawai'i Refundable Tax Credit is unavailable, but a Hawai'i Non-Refundable Tax Credit is available to Seller or its Affiliates with respect to the Facility, or at any subsequent time during the Term, a Federal Non-Refundable Tax Credit and/or Hawai'i Non-Refundable Tax Credit becomes available to Seller or its Affiliates with respect to the Facility, notwithstanding that Seller may have applied for a Federal Refundable Tax Credit and/or Hawai'i Refundable Tax Credit, and in either case Seller can claim, or enable its investors to claim, such Federal Non-Refundable Tax Credit and/or Hawai'i Non-Refundable Tax Credit, the following shall apply:
- (i) Seller or an Affiliate of Seller will apply for any available Federal Non-Refundable Tax Credit and/or Hawai'i Non-Refundable Tax Credit, it being understood and agreed that if Seller applies for a Federal Non-Refundable Tax Credit and/or Hawai'i Non-Refundable Tax Credit as of the Commercial Operations Date, it shall have fulfilled its obligations hereunder to apply for the Federal Non-Refundable Tax Credit and/or Hawai'i Non-Refundable Tax Credit; provided that Seller's fulfillment of its obligations hereunder for Federal Non-Refundable Tax Credits shall not relieve Seller of its obligations hereunder for Hawai'i Non-Refundable Tax Credits, nor shall Seller's fulfillment of its obligations hereunder for Hawai'i Non-Refundable Tax Credits relieve Seller of its obligations hereunder for Federal Non-Refundable Tax Credits;
- (ii) Seller shall make a payment to Company in an amount equal to one hundred percent (100%) of the Net Amount of such Federal Non-Refundable Tax Credit and/or Hawai'i Non-Refundable Tax Credit that Seller can claim in the tax year in question within sixty (60) Days after the filing date of the applicable tax return for the tax year in which such Federal Non-Refundable Tax

Credit and/or Hawai'i Non-Refundable Tax Credit is claimed;

- (iii) Upon the filing of the applicable tax return(s), an officer of Seller or an Affiliate of Seller, if applicable, will deliver a notice to Company (A) describing Seller's efforts to apply for and obtain the Federal Non-Refundable Tax Credit and/or Hawai'i Non-Refundable Tax Credit, (B) confirming that Seller has applied for the Federal Non-Refundable Tax Credit and/or Hawai'i Non-Refundable Tax Credit, and (C) certifying that Seller has used commercially reasonable efforts to apply for and obtain the maximum reasonably available Federal Non-Refundable Tax Credit and/or Hawai'i Non-Refundable Tax Credit as provided in this Section 5 (Tax Credit Pass Through) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS);
 - (iv) Upon receipt of any funds for the Federal Non-Refundable Tax Credit and/or Hawai'i Non-Refundable Tax Credit, an officer of Seller or an Affiliate of Seller, if applicable, will deliver a notice to Company certifying (A) the amount of funds received, (B) and the amount of payment that will be made to Company, net of any documented and reasonable financial, legal, administrative, and other costs required to claim, monetize and transfer such funds to Seller, as supported by the officer's certificate as to the amount of such costs and the reasonableness thereof.
- (c) Seller shall use commercially reasonable efforts to apply for and obtain the maximum reasonably available Federal Refundable Tax Credit, Federal Non-Refundable Tax Credit, Hawai'i Refundable Tax Credit, and/or Hawai'i Non-Refundable Tax Credit as provided in this Section 5 (Tax Credit Pass Through) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS). If Seller fails to apply for and to use commercially reasonable efforts to obtain such Federal and Hawai'i tax credits as described above, then Company shall be entitled to liquidated damages in the amount equal to the maximum Federal

and/or Hawai'i tax credits available for the Project at such time. Seller and Company agree and acknowledge that (i) the failure to use commercially reasonable efforts as provided in the preceding sentence would result in damages to Company in the form of reduction or loss of a benefit for Company's customers that would be difficult or impossible to calculate with certainty and (ii) the amount set forth in the preceding sentence is an appropriate approximation of such damages. Company's right to collect liquidated damages as described in this Section 5(c) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) shall constitute Company's exclusive remedy and fulfillment of all Seller's liability with respect to its obligations to maximize the amount of Federal and/or Hawai'i tax credits described above. Such liquidated damages shall be provided to Company in the form of a lump sum payment by Seller or as a credit against any amounts due by Company to Seller under this Agreement, as Company reasonably determines. Notwithstanding the foregoing, Seller shall not be required to apply for or obtain the Hawai'i Renewable Energy Technologies Income Tax Credit (codified in HRS Section 235-12.5) ("RETITC") under this Section 5 (Tax Credit Pass Through) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) if (a) Seller, in accordance with Act 191, executes a Step-In Agreement with the State, and (b) Act 191 prohibits Seller (as obligee) from both executing a Step-In Agreement and claiming the RETITC. In the event Seller's Step-In Agreement terminates for any reason or Act 191 is amended to allow an obligee to both execute a Step-In Agreement and claim the RETITC, Seller's obligation to apply for and obtain the RETITC shall resume under this Section 5 (Tax Credit Pass Through) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS), to the extent applicable to the Facility.

- (d) If, prior to the application in Section 5(a) or filing in Section 5(b) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS), as applicable, a change in tax law occurs to introduce a Hawai'i Production Tax Credit or an alternative renewable tax credit (whether Federal or Hawai'i), Seller will use commercially reasonable efforts to

determine which tax strategy is likely to result in the larger Net Amount (based on net present value for tax credits earned over time) of claimable tax credits. If, based on such efforts, Seller determines that either said Section 5(a) or Section 5(b) would result in a larger Net Amount of claimable tax credits, an officer of Seller will deliver a notice to Company certifying that Seller has reasonably determined that the selected form of Federal and/or Hawai'i tax credit is likely to result in the larger Net Amount (based on net present value for tax credits earned over time) of claimable tax credits and explaining the rationale for such determination. If, however, Seller reasonably determines that such Hawai'i Production Tax Credit and/or alternative renewable tax credit is likely to result in the larger Net Amount (based on net present value for tax credits earned over time) of claimable tax credits and that it reasonably can obtain such Hawai'i Production Tax Credit and/or alternative renewable tax credit, Seller shall promptly notify Company in writing and explain the rationale for such determination, and Seller and Company shall negotiate in good faith and use commercially reasonable efforts to agree upon lump sum payments and/or credits or adjustments to the Contract Pricing and other terms of this Agreement as may be required to best benefit Company's customers with 100% of the Net Amount of such tax benefits and preserve the intended economic benefits to the Parties arising from this Agreement.

- (e) Company reserves the right to have Seller's application for the Federal Refundable Tax Credit, Federal Non-Refundable Tax Credit, and/or Hawai'i Renewable Energy Tax Credit in Section 5(a) or Section 5(b), or the Hawai'i Production Tax Credit or alternative tax credit under Section 5(d) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) reviewed by an Independent Tax Expert to determine if such application is expected to maximize available tax credits to best benefit Company's customers, in which case, the provisions of this Section 5(e) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) shall apply. Company shall deliver to Seller a written notice (the "Nomination Notice") of: (i) the names of three

persons qualified and willing to accept appointment as an Independent Tax Expert; (ii) a description provided by each nominee of his or her qualifications to serve as an Independent Tax Expert; (iii) a written undertaking by each nominee to review Seller's tax credit strategy and application, and (iv) each nominee's fee proposal. Seller and Company shall agree on a mutually acceptable person to serve as the Independent Tax Expert within ten (10) Business Days of Seller's receipt of Company's written notice. If the Parties fail to agree upon a mutually acceptable Independent Tax Expert within the aforesaid ten Business Day period, such disagreement shall be resolved pursuant to Section 5(f) of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS). Company shall pay the fees and expenses of the Independent Tax Expert and Seller shall promptly reimburse Company for one-half of such fees and expenses.

- (f) Any dispute arising under this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) shall constitute a "Dispute" within the meaning of Article 28 (Dispute Resolution) of this Agreement and shall be resolved as provided in said Article 28 (Dispute Resolution).
- (g) For purposes of this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS), an Affiliate of Seller is a company that directly or indirectly controls, is controlled by, or is under common control with Seller, and Seller may perform its obligations under this Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) directly or through one or more Affiliates.

ATTACHMENT K
GUARANTEED PROJECT MILESTONES

Guaranteed Project Milestone Date	Description of Each Guaranteed Project Milestone
[SPECIFY DATE CERTAIN]	<u>Construction Financing Milestone</u> : Provide Company with documentation reasonably satisfactory to Company evidencing (i) the closing on financing for the Facility including ability to draw on funds by [insert same date certain as in left column] or (ii) the financial capability to construct the Facility (" <u>Construction Financing Closing Milestone</u> ").
[SPECIFY DATE CERTAIN]	<u>Permit Application Filing Milestone</u> : Provide Company with documentation reasonably satisfactory to Company evidencing the filing by or on behalf of Seller of the following applications for Governmental Approvals required for the ownership, construction, operation and maintenance of the Facility: [List All Discretionary Permits]
[SPECIFY DATE CERTAIN]	<u>Guaranteed Commercial Operations Date</u> .

ATTACHMENT K-1
SELLER'S CONDITIONS PRECEDENT AND COMPANY MILESTONES

SELLER'S CONDITIONS PRECEDENT

Seller's Conditions Precedent Date	Description of Each of Seller's Conditions Precedent
	Seller shall make payment to Company of the amount required under <u>Section 3(b)(ii)</u> (Company-Owned Interconnection Facilities Prepayment) of <u>Attachment G</u> (Company-Owned Interconnection Facilities)
	Seller shall provide Company a right of entry for the Company-Owned Interconnection Facilities site(s).
	Seller shall make payment to Company of the amount required under <u>Section 3(b)(iii)</u> (Balance of Company-Owned Interconnection Facilities Prepayment) of <u>Attachment G</u> (Company-Owned Interconnection Facilities)
	Seller shall provide evidence of the full execution of the engineering, procurement and construction contract.
	Seller's EPC Contractor shall obtain grading permit.
	Seller shall provide a list of long-lead time materials for the Company-Owned Interconnection Facilities, including but not limited to, control house (if applicable) and metering CTs and PTs.
	Seller's EPC Contractor shall obtain and provide Company all permits (other than any required occupancy permits, if applicable), licenses, easements and approvals to construct the Company-Owned Interconnection Facilities, including the building permit.
	Seller's EPC Contractor shall complete Seller's engineering work (Issued for Construction Set) related to the Company-Owned Interconnection Facilities as described in <u>Attachment G</u> (Company-Owned Interconnection Facilities).
No later than three (3) months prior to the commencement of	Seller shall provide backup station service power.

the Acceptance Test	
No later than three (3) months prior to the commencement of the Acceptance Test	Seller or Seller's EPC Contractor shall have Hawaiian Telcom Backup (or equivalent) installed for backup SCADA communications from Company's Substation at Seller's Facility to Company's EMS located at the Company's control center. Seller shall have installed primary and backup SCADA communications infrastructure to enable SCADA communications between the Company-Owned Interconnection Facilities and Seller's Facility.
[specify date] ("COIF Construction Completion Date")	Seller's EPC Contractor shall complete Seller's work related to the Company-Owned Interconnection Facilities as described in <u>Attachment G</u> (Company-Owned Interconnection Facilities).
[specify date] (" <u>Test Ready Deadline</u> ")	Seller's EPC Contractor shall complete construction of the Seller-Owned Interconnection Facilities, the Seller shall have satisfied the conditions precedent to the conduct of the Acceptance Test set forth in <u>Section 2(f)(ii)</u> of <u>Attachment G</u> (Company-Owned Interconnection Facilities) and Seller is otherwise ready to conduct the Acceptance Test.
	Seller shall close grading permit, unless Seller provides documentation establishing, to Company's reasonable satisfaction, that closing the grading permit is not required by the relevant Governmental Authority prior to energization, testing and use of the Facility.

COMPANY MILESTONES

If Seller satisfies the foregoing Seller's Conditions Precedent, the following Company Milestones shall apply:

Company Milestone Date	Description of Each Company Milestone
Two months after COIF Construction Completion Date and ten (10) Business Days after Test Ready Deadline	Company shall, subject to Seller's continued satisfaction of the requirements set forth in <u>Section 2(f)(ii)</u> and <u>Section 2(f)(iii)</u> of <u>Attachment G</u> (Company-Owned Interconnection Facilities), commence Acceptance Testing.
Fourteen (14) Days following successful completion of Acceptance Test, unless any portion of this period falls within the last twenty-one (21) days of December, in which case, on January 15th of the following year.	Energization of Company-Owned Interconnection Facilities, provision of back-feed power to support commissioning.

ATTACHMENT L
REPORTING MILESTONES

Reporting Milestone Date	Description of Each Reporting Milestone
[Date]	Seller shall provide Company with a redacted copy of the executed Facility equipment, engineering, procurement and construction agreement and other general contractor agreements, which shall each include a provision requiring the applicable contractors and their subcontractors to enter into a project labor agreement with the Covered Entities. Under no circumstances shall redactions conceal information that is necessary for Company to verify Company's rights or Seller's obligations under the Agreement.
[Date]	Seller shall provide Company with redacted copies of executed purchase orders/contracts for the delivery of Facility inverters.
[Date]	Seller shall provide Company with copies, as applicable of executed Facility operating agreements
[Date]	Building Permit: Seller or Seller's EPC Contractor shall obtain building permit.
[Date]	Construction Start Date (defined as the start of civil work on Site).
[Date]	Seller shall have laid the foundation for all Facility buildings, generating facilities and step-up transformer facilities.
[Date]	The BESS and all inverters for the Facility shall have been installed at the Site.
[Date]	The step-up transformer shall have been installed at the Site, tested and mechanically complete.

ATTACHMENT M
FORM OF LETTER OF CREDIT

**[DRAFTING NOTE: THIS FORM OF ATTACHMENT M IS SUITABLE FOR BOTH
PV+BESS AND WIND+BESS]**

[Bank Letterhead]

[Date]

Beneficiary: **[Hawaiian Electric Company, Inc.]**
 [Maui Electric Company, Limited]
 [Hawai'i Electric Light Company, Inc.]

[Address]

[Bank's Name]

[Bank's Address]

Re: **[Irrevocable Standby Letter of Credit Number]**

Ladies and Gentlemen:

We hereby establish, in your favor, our irrevocable standby Letter of Credit Number _____ (this "Letter of Credit") for the account of **[Applicant's Name]** and **[Applicant's Address]** in the initial amount of \$ _____ **[dollar value]** and authorize you, **[Hawaiian Electric Company, Inc.] [Maui Electric Company, Limited] [Hawai'i Electric Light Company, Inc.]** ("Beneficiary"), to draw at sight on **[Bank's Name]**.

Subject to the terms and conditions hereof, this Letter of Credit secures **[Project Entity Name]**'s certain obligations to Beneficiary under the Power Purchase Agreement dated as of _____ between **[Project Entity Name]** and Beneficiary (the "Power Purchase Agreement").

This Letter of Credit is issued with respect to the following obligations: to pay all amounts due to Beneficiary under Article 14 of the Power Purchase Agreement.

This Letter of Credit may be drawn upon under the terms and conditions set forth herein, including any documentation that must be delivered with any drawing request.

Partial draws of this Letter of Credit are permitted. This Letter of Credit is not transferable. Drafts on us at sight shall

be accompanied by one of the following statements signed by a representative of Beneficiary as follows:

The undersigned hereby certifies that: (i) I am duly authorized to execute this document on behalf of **[Hawaiian Electric Company, Inc.] [Hawai'i Electric Light Company, Inc.] [Maui Electric Company, Limited.]**; and (ii) the amount of the draft accompanying this certification is due and owing to **[Hawaiian Electric Company, Inc] [Hawai'i Electric Light Company, Inc.] [Maui Electric Company, Limited]** under the terms of the Power Purchase Agreement dated as of _____, between _____, and **[Hawaiian Electric Company, Inc] [Hawai'i Electric Light Company, Inc.] [Maui Electric Company, Limited]**.

or

The undersigned hereby certifies that: (i) I am duly authorized to execute this document on behalf of **[Hawaiian Electric Company, Inc.] [Hawai'i Electric Light Company, Inc.] [Maui Electric Company, Limited.]**; and (ii) the Letter of Credit will expire in less than thirty (30) days, it has not been replaced or extended and collateral is still required under Article 14 of the Power Purchase Agreement*.

Such drafts must bear the clause "Drawn under **[Bank's Name and Letter of Credit Number _____ and date of Letter of Credit.]**"

All demands for payment shall be made by presentation of originals or copies of documents, by facsimile transmission of documents to **[Bank Fax Number]** or other such number as specified from time to time by the bank, or by email transmission of documents in PDF format to **[Bank Email Address]** or other such email address as specified from time to time by the bank. If presentation is made by facsimile transmission or email transmission, you may contact us at **[Bank Phone Number]** to confirm our receipt of the transmission. Your failure to seek such a telephone confirmation does not affect our obligation to honor such a presentation. If presented by facsimile or email, original documents are not required.

* For draw relating to lapse of Letter of Credit while credit support is still required pursuant to the Power Purchase Agreement.

This letter of credit shall expire one year from the date hereof. Notwithstanding the foregoing, however, this letter of credit shall be automatically extended (without amendment of any other term and without the need for any action on the part of the undersigned or Beneficiary) for one year from the initial expiration date and each future expiration date unless we notify you and Applicant in writing at least thirty (30) days prior to any such expiration date that this letter of credit will not be so extended. Any such notice shall be delivered by registered or certified mail, or by FedEx, both to:

Beneficiary at:

and to

And a copy to Applicant at:

We hereby agree with drawers that drafts and documents as specified above will be duly honored upon presentation to **[Bank's Name]** and **[Bank's Address]** if presented on or before the then-current expiration date hereof.

Payment of any amount under this Letter of Credit by **[Bank]** shall be made as the Beneficiary shall instruct on the next Business Day after the date the **[Bank]** receives all documentation required hereunder, in immediately available funds on such date. As used in this Letter of Credit, the term "Business Day" shall mean any day other than a Saturday or Sunday or any other day on which banks in the State of **[Note - insert State of bank's location]** are authorized or required by law to be closed.

Unless otherwise expressly stated herein, this irrevocable standby letter of credit is issued subject to the rules of the International Standby Practices, International Chamber of Commerce publication no. 590 ("ISP98").

[Bank's Name]:

By: _____
[Authorized Signature]

ATTACHMENT N
ACCEPTANCE TEST GENERAL CRITERIA

**[THIS ATTACHMENT WILL NEED TO BE MODIFIED BASED ON THE TYPE AND
DESIGN OF THE FACILITY AND RESULTS OF THE IRS]**

Upon final completion of Company review of the Facility's drawings, final test criteria and procedures shall be agreed upon by Company and Seller no later than thirty (30) Days prior to conducting the Acceptance Test in accordance with the Agreement. The Acceptance Test shall include, but not be limited to, the following:

1. Interconnection.

- (a) Based on manufacturer's specification, test the local operation of the Facility's [REDACTED] kV breakers, [For Maui and Hawaii Island: generator breaker(s) and inter-tie breaker(s), and other breaker(s), as relevant] which connect the Facility to Company System - must open and close locally using the local controls remotely from Company's Emergency Management System (EMS) and SCADA. Test and ensure that the status shown on the EMS is the same as the actual physical status in the field.
- (b) Relay test engineers to connect equipment and simulate certain inputs to test and ensure that the protection schemes such as any under/over frequency and under/over voltage protection or the Direct Transfer Trip operate as designed. (For example, a fault condition may be simulated to confirm that the breaker opens to sufficiently clear the fault. Additional scenarios may be tested and would be outlined in the final test criteria and procedures.) Seller to also test the synchronizing mechanisms to which the Facility would be synchronizing and closing into the Company System to ensure correct operation. Other relaying also to be tested as specified in the protection review of the IRS and on the single line diagram, Attachment E (Single-Line Drawing and Interface Block Diagram) for the Facility.
- (c) All [REDACTED] kV breaker disconnects and other high voltage switches will be inspected to ensure they are properly aligned and operated manually or automatically (if designed).

- (d) Interconnection Facilities inspections - The Interconnection Facilities may be inspected to test and ensure that the equipment that Seller has installed is installed and operating correctly based upon agreed to design. Wiring may be field verified on a sample basis against the wiring diagrams to ensure that the installed equipment is wired properly. The grounding mat at the Interconnection Facilities may be tested to make sure there is adequate grounding of equipment.
- (e) Communication testing - Communication System testing to occur to ensure correct operation. Detailed scope of testing will be agreed by Company and Seller to reflect installed systems and communication paths that tie the Facility to Company's communications system.
- (f) Various contingency scenarios to be tested to ensure adequate operation, including testing contingencies such as loss of communications, and fault simulations to ensure that the Facility's [REDACTED] kV breakers, if any, open as they are designed to open. (Back up relay testing).
- (g) Metering section inspection; verification of metering PTs, CTs, and cabinet and the installation of Company meters.

2. Communication.

- (a) Confirm Company has a direct line to the Facility control room at all times and that it is programmed correctly.
- (b) Confirm that the Facility operators can sufficiently reach Company System Operator.

3. Drawings, Documentation and Equipment Warranties. The items below are required components of the Acceptance Test and must be satisfied for successful completion of this Test.

- (a) Electronic and three (3) hard copies of all Switchyard construction drawings, specifications, calibrations, and settings including as-built drawings.

- (b) Equipment operating and maintenance manuals, spare parts lists, commissioning notes, as-built equipment settings, and other information related to the switchyard equipment.
- (c) Contractor construction warranties and equipment warranties.

If agreed by the Parties in writing, some requirements may be postponed to the Control Systems Acceptance Test.

ATTACHMENT O
CONTROL SYSTEM ACCEPTANCE TEST CRITERIA

**[THIS ATTACHMENT WILL NEED TO BE MODIFIED BASED ON THE TYPE AND
DESIGN OF THE FACILITY AND RESULTS OF THE IRS]
[ALL ISLANDS]**

1. The Control System Acceptance Test ("CSAT") shall be conducted following installation of any Pre-CSAT Partial Installation, if applicable, and the Facility in its entirety. The CSAT shall be conducted in accordance with criteria set forth herein. The CSAT shall be performed in accordance with Good Engineering and Operating Practices and demonstrate to Company's satisfaction that the Facility and the interconnection portion of the Facility (or Pre-CSAT Partial Installation, as applicable), including Company-Owned Interconnection Facilities, comply with the provisions of Article 8 (Company Dispatch) and Section 3 (Technical and Operational Requirements) of Attachment B (Facility Owned by Seller). The CSAT is to be successfully completed prior to the Commercial Operations Date.
 - (a) Seller will provide an estimate of the earliest date for the Control System Acceptance Test at least ninety (90) Days before such earliest CSAT date. No Control System Acceptance Test will be scheduled during the final twenty-one (21) Days of a calendar year, and no new Control System Acceptance Test can commence until an in-progress Control System Acceptance Test is completed (or earlier terminated by mutual agreement).
 - (b) CSAT procedures will be developed by Company for the Seller's review at least sixty (60) Days in advance of performing the tests based on the date provided by Company. The Control System and Telemetry and Control List is necessary for the effective operation of the Company System and will be tested during the CSAT.
 - (c) When the Facility is ready for the CSAT, Seller shall notify Company at least seven (7) Days prior to the test and shall coordinate with Company. Seller shall perform and Company shall monitor such test no earlier than seven (7) Days from Company's receipt of such notice.

- (d) The Control System Acceptance Test will be conducted on Business Days during normal working hours on a mutually agreed upon schedule.
- (e) The CSAT procedures for the Facility will be mutually agreed upon between Seller and Company prior to conducting the test.
- (f) The procedures will include, but not be limited to, demonstration of the functional requirements of the Facility defined in Article 8 (Company Dispatch) and Section 3 (Technical and Operational Requirements) of Attachment B (Facility Owned by Seller) such as, but not limited to:
 - (i) Interconnection equipment and communications to support remote monitoring of the Facility and control of Facility.
 - (ii) Loss-of-Communications responses
 - (iii) Retention of data for controller power cycles Droop characteristic and change of frequency control / response modes (if applicable).
 - (A) Real power delivery under remote Company Dispatch, Active Power Dispatch.
 - (B) Accurate provision of limits for Minimum and Maximum Dispatch.
 - (C) Ramp Rates.
 - (D) Voltage regulation.
 - (E) Grid forming and blackstart (if applicable).
 - (F) BESS Capacity Test and demonstration of the round trip efficiency of the BESS, each as described in Attachment W (Capacity Tests).
- (g) Testing of primary and redundant communications between Company System Operator and Facility Operator.
- (h) The actual dynamic response of the Facility equipment will be confirmed to allow Company transient stability model to reflect the as-left conditions of the Facility equipment and controls. During the commissioning the following will be required:

- (i) A final review by Company engineers of the equipment installed to control the operation and protect the plant will be needed upon installation and prior to the start of commercial operation.
 - (ii) The review will include off-line tuning and testing results of the excitation and governor control and/or control system and the IEEE block diagram utilized for the PSS/E dynamics program and PSCAD program.
 - (iii) During the commissioning of the actual Facility, equipment system testing will be conducted to ensure that similar, well damped, expected responses will be produced by the facility. The as-left parameters obtained from real and reactive local response tuning will be determined for use in the Company planning model.
- (i) Examples of the type of tests conducted to meet the aforementioned objectives may include, but are not limited to the following:
- (i) Functional Tests:
 - (A) SCADA Test to verify the status and analog telemetry, and if the remote controls between the Company's EMS and the Facility are working properly end-to-end.
 - (B) Dispatch Test to verify if the Facility's active power limit and setpoint controls and the Active Power Control Interface with the Company's EMS are working properly. The Test is generally conducted by setting different active power setpoints and limits and observing the proper dispatch at the appropriate Ramp Rate and appropriate limiting of the Facility's real power output.

- (C) Control Test for Voltage Regulation to verify the Facility can properly perform automatic voltage regulation as defined in this Agreement. Test is generally conducted by making small adjustments of the voltage setpoint and verifying by observation that the Facility regulates the voltage at the point of regulation to the setpoint by delivering/receiving reactive power to/from the Company System to maintain the applicable setpoint according to the reactive power control and the reactive amount requirements of Section 3(a)(i) (Reactive Amount) and Section 3(b) (Active Power Control and Capacity Available for Dispatch Performance) of Attachment B (Facility Owned by Seller) to this Agreement.
- (D) Frequency Response Test to verify the Facility provides a frequency droop response as defined in this Agreement. Test is generally conducted by making adjustments of the frequency reference setting and verifying by observation that the Facility responds per droop and deadband settings, and appropriately modifies the Company issued Dispatch Setpoint. If different modes of frequency response are provided, each mode is tested (i.e., isochronous, fast frequency response, active power droop response).
- (E) Loss-of-Communication Test to verify the Facility will properly respond to the various singular and combined disconnection and reconnection of the communication systems relied upon to properly protect and control the Facility. Test is generally conducted by simulating a communications failure and observing the proper response of the Facility. [If DTT required for the Project.]

- (F) Round trip efficiency test, as described in Attachment W (BESS Tests) to verify that the round trip efficiency of the BESS is not less than the percentage stated as the RTE Performance Metric.
- (G) BESS Capacity Test to verify the BESS Capacity Ratio.
- (H) Self-Energization Test to verify the Facility will properly self-energize and synchronize to the Company System.
- (I) Blackstart Test (as applicable).
- (J) Demonstration of the Facility functions either by direct control of the Facility or manipulation of other system conditions to prove functionality.

(ii) Monitoring Test:

- (A) The monitoring test requires the Facility to operate as it would in normal operations and in accordance with the provisions of this Agreement.
- (B) To ensure useful and valid test data is collected for variable facilities, the monitoring test shall end when one of the following criteria is met:
 - (a) For variable energy resources, Facility's gross power production is greater than 85% of its Net Nameplate Capacity, for at least four (4) hours in any continuous 24-hour CSAT period.
 - (b) For solar or wind facilities, the recorded renewable energy resource at the Facility is above [400 W/m², solar] [9

m/s, wind] for at least eight (8) hours in any continuous 48-hour CSAT period.

(c) 14 continuous Days from the start or restart of the monitoring tests.

(iii) At the end of the test, an evaluation period is selected based on the criteria that triggered the end of the test. Within fifteen (15) Business Days of completion of the Control System Acceptance Test, Company shall notify Seller in writing whether the Control System Acceptance Test(s) has been passed and, if so, the date upon which such Control System Acceptance Test(s) was passed.

(j) The performance of the Facility during the period of the successfully completed monitoring test is evaluated for, e.g., voltage regulation, frequency response, dispatch control, operating limits and Ramp Rate performance, to verify the performance meets the requirements of this Agreement according to the criteria set forth in the testing procedures. Certain requirements, such as disturbance ride-through requirements, cannot be adequately tested without actual grid disturbances. These requirements will be confirmed following a grid event based on operational data, which may be after the completion of the Control System Acceptance Test. The Parties understand and agree that a successful completion of the test does not constitute a waiver of any of the technical and operational requirements of Seller, all of which are hereby reserved, and shall not alleviate Seller from any of its obligations under the Agreement, in particular, as required in Article 8 (Company Dispatch) and the Technical and Operational Requirements in Section 3 (Technical and Operational Requirements) of Attachment B (Facility Owned by Seller).

ATTACHMENT P
SALE OF FACILITY BY SELLER

[DRAFTING NOTE: THIS FORM OF ATTACHMENT P IS SUITABLE FOR BOTH PV+BESS AND WIND+BESS]

1. Company's Right of First Negotiation Prior to End of the Term.
 - (a) Right of First Negotiation. Commencing as of the Commercial Operations Date, should Seller desire to sell, transfer or dispose of its right, title, or interest in the Facility, in whole or in part, including a Change in Control (as defined below), then, other than through an "Exempt Sale" (as defined below):
 - (i) Seller shall first offer to sell such interest to Company by providing Company with written notice of the same (the "Offer Notice"), which notice shall identify the proposed purchase price for such interest (including a description of any consideration other than cash that will be accepted) (the "Offer Price") and any other material terms of the intended transaction, and Company may, but shall not be obligated to, purchase such interest at the Offer Price and upon the other material terms and conditions specified in the Offer Notice, and in accordance with the terms and conditions of this Attachment P (Sale of Facility by Seller). Seller shall provide to Company as part of the Offer Notice, information in its possession regarding the Facility to allow Company to conduct due diligence on the potential purchase, including, but not limited to information on the operational status of the Facility and its components, and the amount of debt or other material Seller obligations remaining with respect to the Facility (the Offer Notice and due diligence information on the Facility are collectively referred to as, the "Offer Materials"). Within five (5) Days of Company's receipt of the Offer Materials, if Company believes the due diligence information is incomplete, Company shall specify in writing the additional information Company

requires to conduct its due diligence. The date on which Company receives the Offer Materials from Seller is referred to hereinafter as the "Offer Date."

- (ii) If Company desires to purchase such interest, Company shall indicate so by delivering to Seller a binding, written offer to purchase such interest at the Offer Price and on the terms and conditions specified in the Offer Notice within thirty (30) Days of the Offer Date (an "Acceptance Notice"). In the event Company timely delivers an Acceptance Notice, Seller shall sell and transfer to Company the interest substantially on the terms and conditions contained in the Offer Notice consistent with this Attachment P (Sale of Facility by Seller) and in accordance with definitive documentation to be entered into between Seller and Company. The Parties shall have sixty (60) Days from the Company's Acceptance Notice, or such other extended timeframe as agreed to by the Parties in writing, to negotiate in good faith, the terms and conditions of a purchase and sale agreement. The period beginning with the Offer Date and ending with such sixty (60) Day period (as may be extended as aforesaid) is referred to as the "Right of First Negotiation Period".
- (iii) Seller shall not solicit any offers for the sale of such interest to any other party during the Right of First Negotiation Period unless, during that period, Company provides Seller with written notice that Company no longer desires to purchase such interest, whereupon negotiations shall terminate.
- (iv) In the event that (A) Company fails to timely deliver an Acceptance Notice, (B) Company delivers a notice to Seller that it no longer desires to purchase the interest, or (C) the Parties are not able to execute a purchase and sale agreement within the 60-Day period set forth in Section 1(a)(ii) of this Attachment P (Sale of Facility by Seller), Seller may for a period of two hundred seventy (270) Days following the event specified in subsection (A), (B) or (C)

above, commence solicitation of offers and negotiations from and with other parties for the sale of such interest. If the interest is not transferred to a purchaser or purchasers for any reason within the two hundred seventy (270) Day period, the interest may only be transferred by again complying with the procedures set forth in this Section 1(a) (Right of First Negotiation) of Attachment P (Sale of Facility by Seller); provided, however, if Seller and the prospective purchaser have entered into definitive agreement(s) for the sale of the interest that was reasonably expected to close within such two hundred seventy (270) Day period and such agreement(s) remain in full force and effect between Seller and such prospective purchaser and are subject to conditions precedent that are expected to be satisfied within a reasonable period, the two hundred seventy (270) Day period shall be extended as to such agreement(s) and such prospective purchaser for up to one hundred eighty (180) additional Days or, if sooner, until such date that such agreement(s) have been terminated, cancelled or otherwise become no longer in full force and effect.

- (v) After expiration of the Right of First Negotiation Period, Company will not be precluded from providing offers or proposals to Seller along with other prospective purchasers in accordance with any offer or bid procedures established by Seller in its discretion.

- (b) Change in Ownership Interests and Control of Seller. Commencing as of the Commercial Operations Date, the Right of First Negotiation shall also be triggered by a transfer or sale of an ownership interest in Seller (whether in a single transaction or a series of related or unrelated transactions) following which the Parent Entity or an entity controlled by the Parent Entity is no longer a direct or indirect owner of at least fifty-one percent (51%) of the equity interest or voting control of Seller (excluding any equity interest or voting control of Seller held by a tax equity investor or for Financing Purposes (as defined below)) (such transfer of ownership interest and change in control collectively referred to as a

"Change in Control"); provided, however that a transfer or sale whereby the Parent Entity retains the possession, directly or indirectly, or the power to direct or cause the direction of the management and policies of Seller, whether through ownership, by contract, or otherwise, shall not be deemed a Change in Control.

- (c) Exempt Sales. Exempt Sales shall not trigger a Right of First Negotiation and shall not require the consent of Company. As used herein, "Exempt Sales" means:
- (i) a change in ownership of the Facility or equity interests in Seller resulting from the direct or indirect transfer or assignment by or of Seller in connection with financing or refinancing of the Facility ("Financing Purposes"), including, without limitation, any exercise of rights or remedies (including foreclosure) with respect to Seller's right, title, or interest in the Facility or equity interests in Seller undertaken by any financing party in accordance with applicable financing documents, and including, without limitation, (x) a sale and leaseback of the Facility, (y) an inverted lease, (z) a sale or transfer of equity in Seller to facilitate a tax credit financing (including any partnership "flip" transaction), (ii) a disposition of equipment in the ordinary course of operating and maintaining the Facility, (iii) a sale that does not result in a Change in Control, and (iv) a sale or transfer of any interest in Seller or the Facility to one or more companies directly or indirectly controlling, controlled by or under common control with Seller.
- (d) Seller's Right to Transfer. The provisions of this Section 1(d) (Seller's Right to Transfer) of Attachment P (Sale of Facility by Seller) shall apply (i) from the Execution Date through the Commercial Operations Date and (ii) from the Commercial Operations Date in the event that Company does not consummate a purchase pursuant to its exercise of the Right of First Negotiation in accordance with the terms and conditions of this Attachment P (Sale of Facility by Seller). In such circumstances, Seller shall, subject to the prior written consent of Company, which consent shall not be unreasonably withheld, conditioned or delayed, have the right to transfer or sell the Facility to any person or entity

which proposes to acquire the Facility with the intent to continue the operation of the Facility in accordance with the provisions of this Agreement pursuant to an assignment of this Agreement. Company shall consent to the assignment of this Agreement to such prospective purchaser upon receiving documentation from Seller establishing, to Company's reasonable satisfaction, that the assignee (i) has a tangible net worth of \$100,000,000 or a credit rating of "BBB-" or better and has the ability to perform its financial obligations hereunder (or provides a guaranty from an entity that meets this description) in a manner consistent with the terms and conditions of this Agreement; and (ii) has experience in the ownership and at least five (5) years of experience in the operation (or contracts with an entity that has at least five (5) years of experience in the operation) of power generation and BESS facilities; provided, however, that Company shall be deemed to have consented to the assignment if, within ten (10) Business Days of receiving from Seller the documentation establishing that the assignee meets all the foregoing criteria, Company does not either (y) deliver the required consent to Seller, or (z) notify Seller which of the foregoing criteria is not established by such documentation. Notwithstanding the foregoing, Company consent shall not be required for any Exempt Sale.

- (e) Purchase and Sale Agreement and PUC Approval. In the event that Company exercises its Right of First Negotiation under Section 1(a) (Right of First Negotiation) of this Attachment P (Sale of Facility by Seller) and the Parties conclude a purchase and sale agreement, such agreement shall contain, at a minimum, the terms set forth in Section 4 (Purchase and Sale Agreement) of this Attachment P (Sale of Facility by Seller), and such agreement shall be subject to PUC Approval as provided in Section 5 (PUC Approval) of this Attachment P (Sale of Facility by Seller).
- (f) Right of First Refusal. In the event the Parties fail to agree upon a sale of the Facility or an interest in the Facility to Company prior to the expiration of the Right of First Negotiation Period, the provisions of this Section 1(f) (Right of First Refusal) of this Attachment P (Sale of Facility by Seller) shall apply

if (i) Seller thereafter offers to sell the Facility to a third party for less than (as applicable) the final amount Company had offered to purchase the Facility or (ii) an ownership interest in the Facility that would result in a Change in Control is offered for sale to a third party that is less than the proportionate share of (as applicable) the final amount Company had offered to purchase the Facility. (By way of example, if the final amount offered by Company to purchase the Facility was \$100, and the ownership interest being offered for sale is 75%, the "proportionate share" is \$75, such that an offer to sell such ownership interest for less than \$75 would trigger this Section 1(f) (Right of First Refusal) of this Attachment P (Sale of Facility by Seller).) Seller shall notify Company in writing of an offer that triggers this Section 1(f) (Right of First Refusal) of this Attachment P (Sale of Facility by Seller) and Company shall have the right to purchase the Facility for the amount of such offer on similar terms and conditions consistent with this Attachment P (Sale of Facility by Seller) and subject to PUC Approval; provided, that Company shall have one (1) month in which to notify Seller of its intent to exercise this right. If the offer of which Seller notifies Company as aforesaid is an offer to sell the Facility, Company shall have the right to purchase the Facility for the amount of such offer on similar terms and conditions. If the offer of which Seller notifies Company as aforesaid is an offer to sell an ownership interest that could result in a Change in Control, Company shall have the right to purchase the Facility by a price that is proportionate to the amount at which such ownership interest was offered on the terms and conditions to be negotiated by the Parties on the basis of Section 4 (Purchase and Sale Agreement) of this Attachment P (Sale of Facility by Seller), and otherwise consistent with this Attachment P (Sale of Facility by Seller). (By way of example, if a 75% ownership Interest is being offered for sale at \$75, the proportionate amount at which Company shall have the right to purchase the Facility would be \$100.)

2. Company's Right of First Negotiation to Purchase at End of Term.

- (a) Option of Exclusive Negotiation Period. Company shall have the option of an exclusive negotiation period to negotiate a purchase of the Facility on the last Day of the Term, and all rights of Seller therein or relating thereto. Company shall indicate its preliminary interest in exercising the option for exclusive negotiation by delivering to Seller a notice of its preliminary interest not less than two (2) years prior to the last Day of the Term. If Company fails to deliver such notice by such date, Company's option shall terminate.
- (b) Negotiations. Once Company has given such notice of preliminary interest to Seller, for a period not to exceed three (3) months, Company shall have the exclusive right to negotiate in good faith with Seller, the terms of a purchase and sale agreement pursuant to which Company may purchase the Facility, which purchase and sale agreement shall include, without limitation, the terms set forth in Section 4 (Purchase and Sale Agreement) of this Attachment P (Sale of Facility by Seller) and a price equal to the Offer Price as presented by Seller in accordance with the procedures identified in Section 1(a)(i) through (v) of this Attachment P (Sale of Facility by Seller). The Parties may agree in writing to extend this period for negotiations. (Such period, as extended as aforesaid, is referred to herein as the "Exclusive Negotiation Period.") Seller shall not solicit any offers or negotiate the terms for the sale of the Facility with any other entity during the Exclusive Negotiation Period, unless, during the Exclusive Negotiation Period, Company gives written notice that such negotiations are terminated.
- (c) Purchase and Sale Agreement and PUC Approval. In the event that Company exercises its right of exclusive negotiation under Section 2(a) (Option of Exclusive Negotiation Period) of this Attachment P (Sale of Facility by Seller) and the Parties conclude a purchase and sale agreement pursuant to Section 2(b) (Negotiations) of this Attachment P (Sale of Facility by Seller), such agreement shall contain, at a minimum, the terms set forth in Section 4 (Purchase

and Sale Agreement) of this Attachment P (Sale of Facility by Seller), and such agreement shall be subject to PUC Approval as provided in Section 5 (PUC Approval) of this Attachment P (Sale of Facility by Seller).

- (d) Right of First Refusal. In the event the Parties fail to agree upon a sale of the Facility to Company prior to the expiration of the Exclusive Negotiation Period provided in Section 2(b) (Negotiations) of this Attachment P (Sale of Facility by Seller), and Seller thereafter offers to sell the Facility to a third party for less than the final amount Company had offered to purchase the Facility, Seller shall notify Company in writing of such offer and Company shall have the right to purchase the Facility for the amount of such offer and on no less favorable terms and conditions consistent with this Attachment P (Sale of Facility by Seller) and subject to PUC Approval; provided, however, that Company shall have one (1) month in which to notify Seller of its intent to exercise this right. The Right of First Refusal shall not apply to any offer to purchase the Facility received from a third party more than twelve (12) months after the end of the Term.

3. Procedure to Determine Fair Market Value of the Facility.

- (a) If the Parties have agreed to effectuate a sale of the Facility pursuant to Section 24.5 (Consolidation) and are unable to agree on the fair market value of the Facility, each of Company and Seller shall engage the services of an independent appraiser experienced in appraising power generation assets similar to the Facility to determine separately the fair market value of the Facility. Subject to the appraisers' execution and delivery to Seller of a suitable confidentiality agreement in form reasonably acceptable to Seller, Seller shall provide both appraisers full access to the books, records and other information related to the Facility required to conduct such appraisal. Company shall pay all reasonable fees and costs of both appraisers, subject to Section 3(c) of this Attachment P (Sale of Facility by Seller). Each of

Company and Seller shall use reasonable efforts to cause its appraisal to be completed within two (2) months following the engagement of the independent appraisers. If for any reason (other than failure by Seller to provide full access to Company's appraiser) one of the appraisals is not completed within such two (2) month period, the results of the other, completed appraisal shall be deemed to be the Appraised Fair Market Value of the Facility. Each Party may provide to both appraisers (with copies to each other) a list of factors which the Parties suggest be taken into consideration when the appraisers generate their appraisals.

- (b) Company and Seller shall exchange the results of their respective appraisals when completed and, in connection therewith, the Parties and their appraisers shall confer in an attempt to agree upon the fair market value of the Facility.
- (c) If, within thirty (30) Days after completion of both appraisals, the Parties cannot agree on a fair market value for the Facility, within ten (10) Days thereafter, the first two appraisers shall by mutual consent choose a third independent appraiser. If the first two appraisers fail to agree upon a third appraiser, such appointment shall be made by AAA upon application of either Party. The Parties shall direct the third appraiser (i) to select one of the appraisals generated by the first two appraisers as the Appraised Fair Market Value of the Facility (without compromise, aka "baseball" arbitration), and (ii) to complete his or her work within one month following his or her retention. If the third appraiser selects the appraisal originally generated by Seller's appraiser, Company shall pay the fees and costs of the third appraiser. If the third appraiser selects the appraisal originally generated by Company's appraiser, Seller shall pay the fees and costs of the third appraiser and shall pay or reimburse Company for the costs of Seller's original appraiser.

(d) The "Appraised Fair Market Value of the Facility" means the fair market value determined by appraisal pursuant to Section 3(a) or Section 3(c) of this Attachment P (Sale of Facility by Seller) as applicable. In no event shall the Appraised Fair Market Value of the Facility or the fair market value of the Facility (in the event appraisers are not required) be determined to be less than Facility Debt. In the event such value is less than the Facility Debt, the Company agrees and understands that the liens on the Facility associated with such Facility Debt will remain until the Company has paid such debt in full.

4. Purchase and Sale Agreement. The purchase and sale agreement ("PSA") concluded by the Parties pursuant to this Attachment P (Sale of Facility by Seller) (as applicable) shall contain, among other provisions, the following:

- (a) Seller shall, as of the closing of the sale, convey title to the Facility consistent with the state of title in existence as of the date of execution of the PSA, including all rights of Seller in the Facility or relating thereto, free and clear of all liens, claims, encumbrances, or rights of others, except any Permitted Lien;
- (b) To the extent assignable or transferrable, Seller shall assign or transfer to Company all of Seller's interest in all Project Documents and Governmental Approvals that are then in effect and that are utilized for the operation or maintenance of the Facility;
- (c) Seller shall execute and deliver to Company such deeds, bills of sale, assignments and other documentation as Company may reasonably request to convey title to the Facility consistent with the state of title in existence as of the date of execution of the PSA, free from all liens, claims, encumbrances, or rights of others, except any Permitted Lien;
- (d) Seller shall cause all liens on the Facility for monies owed (including liens arising from Financing Documents), and any liens in favor of Seller's affiliates, to be released prior to closing on the sale of the Facility to Company;

- (e) Seller shall warrant, as of the date of the closing of the sale of the Facility to Company, title to the Facility consistent with the state of title in existence as of the date of execution of the PSA, is free and clear of all other liens, claims, encumbrances and rights of others, except any Permitted Lien;
- (f) Company shall have no liability for damages (including without limitation, any development and/or investment losses, liabilities or damages, and other liabilities to third parties) incurred by Seller on account of Company's purchase of the Facility, nor any other obligation to Seller except for the purchase price, and Seller shall indemnify Company against any such losses, liabilities or damages;
- (g) Company shall assume all of Seller's obligations with respect to the Facility accruing from and after the date of closing on the sale of the Facility to Company, including (i) to the extent assignable, all Permits held by, for, or related to the Facility, and (ii) all of Seller's agreements with respect to the Facility provided to and approved by Company at least thirty (30) Days prior to the date of closing on the sale of the Facility to Company, except for such agreements Company has elected to terminate, in which case any related termination expenses shall be, at Company's option, paid directly by Company and deducted from the purchase price;
- (h) Seller shall indemnify Company against all of Seller's obligations with respect to the Facility accruing through the date of closing the sale of the Facility to Company, and Company shall indemnify Seller against all of Company's obligations with respect to the Facility accruing from and after the date of closing on the sale of the Facility to Company;
- (i) Unless otherwise agreed to by the Parties, Seller makes no representations or warranties with respect to the condition of the Facility, and Company shall purchase the Facility on an as-is basis;
- (j) Seller shall warrant that, except as disclosed to and approved by Company in writing at least thirty (30) Days prior to the date of closing on the sale of the

Facility to Company, the Facility has been operated by Seller in conformity with all Laws;

- (k) Seller shall warrant that Seller provided full access to Company and each appraiser in connection with the procedure to determine fair market value provided in Section 3 (Procedure to Determine Fair Market Value of the Facility) of this Attachment P (Sale of Facility by Seller);
- (l) If applicable, Seller's lease of the Site from Company will terminate and Seller will relinquish all rights, privileges and obligations relating to such lease; and
- (m) Seller shall maintain the Facility in accordance with Good Engineering and Operating Practices between appraisal and the closing date.

As used in this Attachment P (Sale of Facility by Seller), "Permitted Lien" shall mean (i) any lien for taxes not yet due or delinquent or being contested in good faith by appropriate proceedings, (ii) any lien arising in the ordinary course of business by operation of applicable Laws with respect to a liability not yet due or delinquent or that is being contested in good faith, (iii) all matters that are disclosed (whether or not subsequently deleted or endorsed over) on any survey, in the title policies insuring any Land Rights or in any title commitments, title reports or other title materials, (iv) any matters that would be disclosed by a complete and correct survey of the Property, (v) zoning, planning, and other similar limitations and restrictions, and all rights of any Governmental Authority to regulate the Site and/or the Facility, (vi) all matters of record, (vii) any lien that is released on or prior to closing of the sale of the Facility to Company, (viii) statutory or common law liens in favor of carriers, warehousemen, mechanics and materialmen, and statutory or common law liens to secure claims for labor, materials or supplies arising in the ordinary course of business which are not delinquent, and (ix) the matters agreed by the Parties, to the extent that such Permitted Liens are taken into account at arriving at the appraised value.

- 5. PUC Approval. Any purchase and sale agreement related to the Facility entered into by the Parties is subject to approval by the PUC and the Parties' respective obligations

thereunder are conditioned upon receipt of such approval, except as specifically provided otherwise therein.

- (a) Company shall submit the purchase and sale agreement to the PUC for approval within thirty (30) Days after execution by both Parties, but Company does not extend any assurances that PUC approval will be obtained. Seller will provide reasonable cooperation to expedite obtaining an approval order from the PUC, including providing information requested by the PUC and parties to the PUC proceeding in which approval is being sought. Seller understands that lack of cooperation may result in Company's inability to file an application with the PUC and/or failure to receive PUC approval. Unless otherwise agreed to in writing by the Parties, neither Company nor Seller shall seek reconsideration, appeal, or other administrative or judicial review of any unfavorable PUC order. The Parties agree that neither Party has control over whether or not a PUC approval order will be issued and each Party hereby assumes any and all risk arising from, or relating in any way to, the inability to obtain a satisfactory PUC order and hereby releases the other Party from any and all claims relating thereto.
- (b) Seller shall seek participation without intervention in the PUC docket for approval of the purchase and sale agreement pursuant to applicable rules and orders of the PUC. The scope of Seller's participation shall be determined by the PUC. However, Seller expressly agrees to seek participation for the limited purpose and only to the extent necessary to assist the PUC in making an informed decision regarding the approval of the purchase and sale agreement. If the Seller chooses not to seek participation in the docket, then Seller expressly agrees and knowingly waives the right to claim, before the PUC, in any court, arbitration or other proceeding, that the information submitted and the application requesting the PUC approval are insufficient to meet Company's burden of justifying that the terms of the purchase and sale agreement are just and reasonable and in the public interest, or otherwise deficient in any manner for purposes of supporting the PUC's approval of the purchase and sale agreement. Seller shall not seek in the docket and Company shall not disclose any confidential information

to Seller that would provide Seller with an unfair business advantage or would otherwise harm the position of others with respect to their ability to compete on equal and fair terms.

- (c) In order to constitute an approval order from the PUC under this Section 5 (PUC Approval) of this Attachment P (Sale of Facility by Seller), the order must approve the purchase and sale agreement, Company's funding arrangements and Company's acquisition of the Facility, shall not contain any terms and conditions deemed to be unacceptable by Company, and be in a form deemed reasonable by Company in its sole, but non-arbitrary, discretion.
- (d) The Final Non-Appealable Order from the PUC must be obtained within six (6) months of the submission of the purchase and sale agreement to the PUC, or any extension of such period as agreed by the Parties in writing within ten (10) Days of the expiration of the six (6) month period; provided, however, that if the purchase and sale agreement governs a sale of the Facility executed pursuant to Section 24.5 (Consolidation) of this Agreement, the Final Non-Appealable Order must be obtained within twelve (12) months of the submission of the purchase and agreement to the PUC, or any extension of such period as agreed by the Parties in writing within ten (10) Days of the expiration of the twelve (12) month period. The term "Final Non-appealable Order from the PUC" means an Approval Order from the PUC (i) that is not subject to appeal to any Circuit Court of the State of Hawai'i, Intermediate Court of Appeals of the State of Hawai'i, or the Supreme Court of the State of Hawai'i, because the period permitted for such an appeal has passed without the filing of notice of such an appeal, or (ii) that was affirmed on appeal to any Circuit Court of the State of Hawai'i, Intermediate Court of Appeals of the State of Hawai'i, or the Supreme Court of the State of Hawai'i, or was affirmed upon further appeal or appellate process, and that is not subject to further appeal, because the jurisdictional time permitted for such an appeal and/or further appellate process such as a motion for reconsideration or an application for writ of certiorari has passed without the filing of notice of such an appeal or the filing for further appellate process. Such Final Non-

Appealable Order from the PUC shall constitute and be referred to as "PUC Approval" for purposes of this Attachment P (Sale of Facility by Seller).

- (e) If a Final Non-Appealable Order from the PUC has not been obtained prior to the deadline provided in Section 5(b) of this Attachment P (Sale of Facility by Seller), either Party may give written notice to the other Party that it does not wish to proceed further with a sale of the Facility to Company.
 - (f) If the Final Non-appealable Order from the PUC does not satisfy the conditions set forth in Section 5(a) of this Attachment P (Sale of Facility by Seller), either
 - (i) the Parties may agree to renegotiate and submit a revised purchase and sale agreement to the PUC, or
 - (ii) either Party may give written notice to the other Party that it does not wish to proceed further with a sale of the Facility to Company.
6. Make Whole Amount. For purposes of Section 24.5 (Consolidation), the "Make Whole Amount" shall be equal to the sum of the following: (a) Seller's book value (including depreciation on a twenty (20) year straight line basis) of all actual verifiable costs of studies, designs, engineering, and construction of the Facility and all Interconnection Facilities (including any Company-Owned Interconnection Facilities paid for by Seller), including cancellation charges and other costs of unwinding construction and demobilization if the determination is made prior to the Commercial Operation Date, (b) Seller's book value of all actual verifiable costs and expenses acquiring real estate rights for the Facility and Interconnection Facilities, (c) Seller's book value of all actual verifiable costs and expenses incurred in obtaining Governmental Approvals, (d) Seller's book value of all actual verifiable costs of financing the Facility and the Interconnection Facilities, including fees and expenses of bankers, consultants and counsel, and any discounts or premiums paid in connection with any financing, (e) any actual verifiable costs of repaying any financing in connection with a sale, including prepayment penalties or premiums, make whole payments, minimum interest payments, breakage fees, payments on account of taxes, duties and other costs, and other costs of unwinding swaps or other hedges, (f) other breakage, make whole or indemnity payments arising as the result of Company's purchase of the

Facility, (g) tax costs, including recapture of federal or state tax credits and payment of transfer taxes, and (h) interest on the foregoing amounts at annual rate equal to the Prime Rate plus two percent (2%) as in effect from time to time from the date incurred through the date of payment, with all such costs being demonstrated by Seller with support and verified by Company. The items described in clauses (e), (f) and (g) (and clause (h) to the extent applicable to clauses (e), (f) and/or (g)) are referred to as the "Financial Termination Costs".

ATTACHMENT Q
[PV]CALCULATION OF CERTAIN METRICS

[DRAFTING NOTE: THIS FORM OF ATTACHMENT Q IS SUITABLE FOR PV+BESS]

1. Calculation of the PV System Equivalent Availability Factor.

A PV System Equivalent Availability Factor shall be calculated for each PV System EAF Assessment Period using the equation set forth below and the data set compiled from the twelve (12) then-most-recent calendar months:

$$\begin{array}{l} \text{PV System Equivalent} \\ \text{Availability} \\ \text{Factor} \end{array} = 100\% \times \frac{AH-EDH}{PH}$$

where, for the 12 calendar months used to calculate the PV System Equivalent Availability Factor for the PV System EAF Assessment Period in question:

Period Hours (PH) is the total number of hours in the 12 calendar months used to calculate the PV System Equivalent Availability Factor for the PV System EAF Assessment Period in question, counting twenty-four (24) hours per Day. If, for example, the 12 calendar months in question include 365 Days, PH = 8,760.

Available Hours (AH) is the number of hours that the PV System is not on Outage. It is the sum of all Service Hours (SH) + Reserve Shutdown Hours (RSH).

An "Outage" exists whenever the entire PV System is not online producing electric energy and is not in a Reserve Shutdown state.

Service Hours (SH) is the number of hours the PV System is online and producing electric energy to meet Company Dispatch and/or to maintain the BESS State of Charge. For avoidance of doubt, SH includes all periods of PV System Deratings.

Reserve Shutdown Hours (RSH) is the number of hours the PV System was available to the Company System but not providing

electric energy or is offline at the Company's request for reasons other than Seller-Attributable Non-Generation, or is offline due to insufficient irradiance levels based on the inverter manufacturer's minimum irradiance level for production. All hours between 7:00 pm and 6:00 am will be considered RSH. The PV System will be considered RSH in these hours, even if the system would otherwise be in an outage or derated state. For purposes of calculating the PV System Equivalent Availability Factor, any hours during which the PV System or any portion thereof is unavailable due to Force Majeure shall be deemed to be RSH for the calendar month in question.

A "PV System Derating" exists if the Facility is available for Company Dispatch, but at less than full potential output for the given irradiance conditions, including derations due to Seller-Attributable Non-Generation or deratings by Company pursuant to Section 8.3 (Company Rights of Dispatch). For avoidance of doubt, (i) if there is a PV System Outage occurring, there cannot also be a PV System Derating, (ii) when the PV is in RSH, the PV cannot be considered derated and (iii) a derating shall fall into only one of the three categories of derated hours (ESADH, EPDH, and EUDH).

Equivalent Derated Hours (EDH) is the sum of ESADH, EPDH, and EUDH. For the avoidance of doubt, if there is a PV System Derating, it can only exist exclusively in one of the deration categories. For deratings due to PV System inverter unavailability, the equivalent full outage hour(s) are calculated by multiplying the actual duration of the derating (hours) by the number of inverters in the PV System unavailable and dividing by the total number of inverters in the PV System. For deratings that do not impact the availability of an entire inverter or set of entire inverters, the equivalent full outage hour(s) are calculated by multiplying the actual duration of the derating (hours) by the size of the derating (in MW) divided by the Contract Capacity.

Equivalent Seller-Attributable Derated Hours (ESADH): A Seller-Attributable Derating occurs when a derating exists due to Seller-Attributable Non-Generation or deratings by Company pursuant to Section 8.3 (Company Rights of Dispatch). Each individual derating is transformed into equivalent full outage hour(s). These equivalent hour(s) are then summed.

Equivalent Planned Derated Hours (EPDH) includes Planned Deratings (PD) and Maintenance Deratings (D4). A Planned

Derating is when the PV System experiences a derating scheduled well in advance and for a predetermined duration. A Maintenance Derating is a derating that can be deferred beyond the end of the next weekend (Sunday at midnight or before Sunday turns into Monday) but requires a reduction in capacity before the next Planned Derating (PD). Each individual Derating is transformed into equivalent full outage hour(s). These equivalent hour(s) are then summed.

Equivalent Unplanned Derated Hours (EUDH): An Unplanned Derating (Forced Derating) occurs when the PV System experiences a derating that requires a reduction in availability before the end of the nearest following weekend. Each individual Unplanned Derating is transformed into equivalent full outage hour(s). These equivalent hour(s) are then summed.

EXAMPLE: The following is an example of a PV System Equivalent Availability Factor calculation and is included for illustrative purposes only. Assume the following:

1. PV System has 10 inverters and the Facility has a Contract Capacity of 30 MWs.
2. The 12 calendar months used to calculate the PV System Equivalent Availability Factor for the PV System EAF Assessment Period in question include exactly 365 Days.
3. PV System was online and producing electric energy for 4,000 hours and was available but not producing electric energy due to lack of sufficient irradiance for production (i.e., not Seller-Attributable Non-Generation) for 500 hours.
4. 3 Inverters were offline for 100 hours due to a Planned Derating while not otherwise in RSH.
5. 2 Inverters were offline for 50 hours due to an Unplanned Derating while not in RSH.
6. The PV System had a 3 MW derating for 100 hours due to Seller-Attributable Non-Generation while not otherwise in RSH.

The PV System Equivalent Availability Factor would be calculated as follows:

$$PH = 8,760 \text{ hours in 12 calendar months} = 8,760 \text{ hours}$$

$$SH = 4,000 \text{ hours}$$

$$RSH = 500 \text{ hours} + (11 \text{ hours/day} \times 365 \text{ days}) = 4,515 \text{ hours}$$

$$AH = SH + RSH = 4,000 \text{ hours} + 4,515 \text{ hours} = 8,515 \text{ hours}$$

$$ESADH = 100 \text{ hours} \times \left(\frac{3 \text{ MW}}{30 \text{ MW}} \right) = 10 \text{ hours}$$

$$EPDH = 100 \text{ hours} \times \left(\frac{3 \text{ inverters}}{10 \text{ inverters}} \right) = 30 \text{ hours}$$

$$EUDH = 50 \text{ hours} \times \left(\frac{2 \text{ inverters}}{10 \text{ inverters}} \right) = 10 \text{ hours}$$

$$EDH = ESADH + EPDH + EUDH = 10 \text{ hours} + 30 \text{ hours} + 10 \text{ hours} = 50 \text{ hours}$$

$$EAF = 100\% \times \frac{8,515 - 50}{8,760} = 96.6\%$$

2. Calculation of Measured Performance Ratio.

- (a) The Measured Performance Ratio ("MPR") represents the PV System's measured AC power output compared to its theoretical DC power output as adjusted for the plane of array irradiance and weather conditions measured at the Site. The net PV System output in MW will be measured at such points mutually agreed to by the Parties on the Facility's single-line diagram to be attached to this Agreement as Attachment E (Single-Line Drawing and Interface Block Diagram).
- (b) Following the close of each MPR Assessment Period, the MPR shall be calculated for such MPR Assessment Period (using the previous 12 months of data) as follows:

$$MPR_{corr} = \frac{\sum_i P_{AC,i}}{\sum_i \left[P_{DCSTC} \left(\frac{G_{POAi}}{G_{STC}} \right) \left(1 - \frac{8}{100} (T_{cell_typ_avg} - T_{cell,i}) \right) \right]}$$

Where:

i = each 15-minute interval during the MPR Assessment Period where the conditions set forth in Section 2(c) of this Attachment Q (Calculation of Certain Metrics) are met.

P_{AC_i} is the measured AC power output of the PV System measured at the Point of Interconnection and BESS AC input averaged over time period i in MW.

G_{STC} = plane of array irradiance at the standard condition of 1,000 W/m^2 .

$P_{DC_{STC}}$ is the DC rated capacity of the PV System at the standard test conditions of 1,000 W/m^2 and 25°C (MW), (i.e., the DC power rating of the PV panels at standard test conditions multiplied by the number of PV panels in the Facility).

G_{POA_i} is the measured plane of array irradiance averaged over time period i (W/m^2).

T_{cell_i} = cell temperature computed from measured meteorological data averaged over time period i using the equation provided below. (°C)

$T_{cell_type_avg}$ = annual average irradiance-weighted cell temperature computed from one year of weather data using the GPR Performance Metric weather file and the equation below. (°C) Calculated once for each GPR Performance Metric.

δ = temperature coefficient for power (%/°C, negative in sign) that corresponds to the installed photovoltaic modules.

$$T_{cell_typ_avg} = \frac{\sum_j [G_{POA_typ_j} \times T_{cell_typ_j}]}{\sum_j G_{POA_typ_j}}$$

Where:

j = each hour of the year in the GPR Performance Metric weather file (hours 1-8760).

$G_{POA_typ_j}$ = Plane of array irradiance for each hour of the year determined from the GPR Performance Metric weather file and tracker orientation. This irradiance is zero (0) when the sun is not up. (W/m^2).

$T_{cell_typ_j}$ = calculated cell operating temperature for each hour of the year computed using the GPR Performance Metric weather file for the weather variables in the equation for T_{cell_i} below.

$$T_{cell_i} = G_{POA_i} \times e^{(a+b \times WS_i)} + T_{a_i} + \left(\frac{G_{POA_i}}{G_{STC}} \times dT_{cond} \right)$$

Where:

T_{a_i} = the measured ambient temperature averaged over time period i [°C]

WS_i = the measured wind speed corrected to a measurement height of 10 meters (using the anemometer height and proper Hellmann coefficient) averaged over time period i [m/s]

a = empirical constant reflecting the increase of module temperature with sunlight as presented in Table 2 below.

b = empirical constant reflecting the effect of wind speed on the module temperature as presented in Table 2 below [s/m]

e = Euler's constant and the base for the natural logarithm.

dT_{cond} = conduction temperature coefficient from module to cell as presented in Table 2 below.

Table 2. Empirical Convective Heat Transfer Coefficients Module Type	Mount	a	b	dT_{cond}
Glass/cell/glass	Open rack	-3.47	-0.0594	3
Glass/cell/glass	Close-roof mount	-2.98	-0.0471	1
Glass/cell/polymer sheet	Open rack	-3.56	-0.0750	3
Glass/cell/polymer sheet	Insulated	-2.81	-0.0455	0

	back			
Polymer/thin-film/steel	Open rack	-3.58	-0.1130	3

- (c) The time periods used in the foregoing calculation shall be only periods during which, for the entire 15-minute interval, the PV System output is allowed to convert all irradiance to AC power (whether directed to the BESS or Point of Interconnection) and the plane of array irradiance is not less than 400 W/m². Data points that will be excluded are limited to data points where: (A) the G_{POA} is below 400 W/m²; (B) G_{POA} is above the maximum threshold; (C) the PV System is in Reserve Shutdown; (D) when the PV System has a Planned or Unplanned Derating; (E) the PV System was not allowed to convert the full DC output to AC energy to deliver to the BESS and Point of Interconnection due to Company Dispatch being less than the PV System potential at the measured irradiance and the BESS reaching its maximum State of Charge; (F) there is a PV System Outage; (G) the BESS is discharging or; (H) there is a Force Majeure affecting the PV System. The aforementioned 15-minute intervals are fixed intervals that commence, in sequence, at the top of each hour and at 15, 30 and 45 minutes past the hour. At the end of each month, Seller shall provide Company a report that lists all hours when such excluded data points occur (from the Facility's SCADA system as necessary) to validate the exclusion of any data points from the calculation set forth in Section 2(b) above. This information shall be validated on a monthly basis.
- (d) MPR Test. In the event that the set of operational data points under Section 2(c) of Attachment Q (Calculation of Certain Metrics) that is available for any month to calculate the MPR cannot be validated to Company's reasonable satisfaction or in the event there were not at least 16 such data points during such month that could be used to calculate the MPR, the Company shall have the right to perform a test ("MPR Test") to collect the data points for such month to be used to calculate the MPR in lieu of the use of operational data for such month. The Company shall retain sole discretion as to when to conduct the MPR Test and the MPR Test may be conducted at any point during the month following the month for which Company

was either unable to validate the set of operational data points for such month or there were not at least 16 data points available during such month, provided that Company will provide Seller three (3) Business Days' notice prior to conducting the MPR Test. The MPR Test shall have a minimum duration of four (4) hours and shall run until at least 16 data points are collected that meet the criteria set forth in Section 2(c) of Attachment Q (Calculation of Certain Metrics), subject to the limitation set forth in the last sentence of this Section 2(d) (MPR Test) of Attachment Q (Calculation of Certain Metrics). To the extent possible, the Company shall schedule the MPR Test for a period where all inverters in the PV System and BESS are fully available and weather conditions are expected to be optimum allowing the PV System to generate at full capacity for the duration of the MPR Test (if possible). However, if Company chooses a period where some of the Facility inverter(s) are unavailable, P_{DCSTC} shall be adjusted to account for any reduction in capability to accept energy from the PV System due to the unavailable inverter(s).

- (e) For each MPR Assessment Period that includes one or more months for which a MPR Test was performed, the data points collected during said MPR Test for such month(s) shall be used together with the data points for months for which an MPR Test was not conducted to calculate the MPR for the MPR Assessment Period in question using the formula set forth in Section 2(b) above. The result of the calculation based on the MPR Test shall be the MPR for the MPR Assessment Period in question.
- (f) EXAMPLE: The following is an example of a Measured Performance Ratio calculation and is included for illustrative purposes only. Assume the following:
 - 1. Facility with 120,000 panels with a standard test condition rating of 300 W
 - 2. $P_{DCSTC} = 120,000 \times 300 \text{ W} = 36 \text{ MW}$
 - 3. For illustrative purposes only, 4 hours of data which met the criteria specified in Section 2(c) of Attachment Q (Calculation of Certain

Metrics) have been recorded over the MPR Assessment Period. It should be noted that all available operational data that meets the criteria specified in Section 2(c) of Attachment Q (Calculation of Certain Metrics) shall be included in the actual calculation:

Time Period	Average Measured Plane of Array Irradiance (W/m ²)	Average Measured Net AC Power at POI and BESS AC Input (MW)	Average Measured Ambient Temperature (°C)	10 Meter Elevation Average Measured Wind Speed (m/s)
1	690	16	27	3
2	850	11	26	8
...	...	...	...	...
i	750	19	29	7

$$MPR_{corr} = \frac{\sum_i P_{AC,i}}{\sum_i \left[P_{DCSTC} \left(\frac{G_{POA_i}}{G_{STC}} \right) \left(1 - \frac{\delta}{100} (T_{cell_type_avg} - T_{cell_i}) \right) \right]}$$

where:

$$T_{cell_i} = G_{POA_i} \times e^{(a+b \times WS_i)} + T_{a_i} + \left(\frac{G_{POA_i}}{G_{STC}} \times dT_{cond} \right)$$

Assuming:

The temperature coefficient (δ) of the installed modules is $-0.4\%/^{\circ}\text{C}$

The average irradiance-weighted cell temperature ($T_{cell_typ_avg}$) has been calculated as 28°C

The installed modules are a glass/cell/polymer sheet module type using an open rack mount. ($a = -3.56$; $b = -0.0750$; $dT_{cond} = 3$)

$$\sum_i P_{AC,i} = 16 \text{ MW} + 11 \text{ MW} + \dots + 19 \text{ MW} = \mathbf{305\text{MW}}$$

$$\sum_i \left[P_{DCSTC} \left(\frac{G_{POA_i}}{G_{STC}} \right) \left(1 - \frac{\delta}{100} (T_{cell_type_avg} - T_{cell_i}) \right) \right] = 36 \text{ MW} \times [(690/1000) \times (1 - (-0.4/100) \times (28 -$$

$$\begin{aligned}
& ((690 \times e^{(-3.56-0.075 \times 3)} + 27) + ((690/1000) \times 3)) + \\
& (850/1000) \times (1 - (-0.4/100) \times (28 - \\
& ((850 \times e^{(-3.56-0.075 \times 8)} + 26) + ((850/1000) \times 3)) + \\
& \dots + \\
& (750/1000) \times (1 - (-0.4/100) \times (28 - \\
& ((750 \times e^{(-3.56-0.075 \times 7)} + 29) + ((750/1000) \times 3)))] \\
& = \mathbf{374.76 \text{ MW}}
\end{aligned}$$

$$\text{MPR} = 305 \text{ MW} / 374.76 \text{ MW} = \mathbf{0.814}$$

3. Determination of GPR Performance Metric.

- (a) Benchmark Performance Ratio. The "Benchmark Performance Ratio" is the representation, in connection with the IE Energy Assessment Report, the Initial OEPR and each Subsequent OEPR, of the PV System's power output compared to its theoretical DC power output, as adjusted for plane of array irradiance and weather conditions at the Site.
- (b) Upon Commencement of Commercial Operations. If a copy of the IE Energy Assessment Report is not provided to the Company in accordance with Section 1(c) (NEP IE Estimate and Company-Designated NEP Estimate) of Attachment U (Calculation and Adjustment of Net Energy Potential), the GPR Performance Metric for the period commencing on the Commercial Operations Date through the end of the calendar month during which the Initial OEPR is issued shall be **0.85**. If a copy of the IE Energy Assessment Report together with the supporting data (plane of array irradiance, ambient temperature, windspeed and corresponding power output) is provided to Company in accordance with Section 1(c) (NEP IE Estimate and Company-Designated NEP Estimate) of Attachment U (Calculation and Adjustment of Net Energy Potential), the GPR Performance Metric shall be the Benchmark Performance Ratio set forth in the IE Energy Assessment provided that such Benchmark Performance Ratio is justified by such supporting data. In the event that the IE Assessment Report includes the supporting data (plane of array irradiance, ambient temperature, windspeed and corresponding power output) relied upon in arriving at the NEP IE Estimate, but does not set forth a Benchmark Performance Ratio, the Benchmark Performance Ratio shall be calculated using such supporting data and the Measured Performance

Ratio formula in Section 2.6(a) of this Agreement. Within 30 Days of Company's receipt of the IE Energy Assessment Report together with the aforementioned supporting data, Company shall provide written notice to Seller of either (aa) the Benchmark Performance Ratio derived from such supporting data, in which case the GPR Performance Metric shall be such Benchmark Performance Ratio, or (bb) Company's inability to reasonably derive a Benchmark Performance Ratio from such supporting data, in which case the GPR Performance Metric shall be **0.85**.

(c) Commencing With Initial OEPR. For the period commencing with the first Day of the calendar month following the establishment of the NEP OEPR Estimate for the Initial OEPR (as provided in Section 2 (Initial OEPR), Section 4(g) (Review of the First OEPR Evaluator Report) and Section 4(h) (Review of the Second OEPR Evaluator Report) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement) through the end of the calendar month during which the NEP OEPR Estimate for the first Subsequent OEPR is established as provided in Section 3 (Subsequent OEPRs), and Section 4(g) (Review of the First OEPR Evaluator Report) and Section 4(h) (Review of the Second OEPR Evaluator Report) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement, the GPR Performance Metric shall be the Benchmark Performance Ratio as established through the Initial OEPR process as aforementioned. If no Benchmark Performance Ratio has been established through the Initial OEPR process, the GPR Performance Metric shall be **0.85**.

(d) Commencing With the First Subsequent OEPR and Thereafter. Commencing with the establishment of the NEP OEPR Estimate for the first Subsequent OEPR as provided in Section 3 (Subsequent OEPRs), Section 4(g) (Review of the First OEPR Evaluator Report) and Section 4(h) (Review of the Second OEPR Evaluator Report) of Attachment U (Calculation and Adjustment of Net Energy Potential) to this Agreement, for each period commencing with the first Day of the calendar month following the establishment of the NEP OEPR Estimate for a Subsequent OEPR (including but not limited to the first Subsequent OEPR) through the end

of the calendar month during which the NEP OEPR Estimate is established for the next Subsequent OEPR, the GPR Performance Metric shall be the Benchmark Performance Ratio established for the applicable Subsequent OEPR. If no Benchmark Performance Ratio has been established through the then applicable Subsequent OEPR process, the GPR Performance Metric shall be **0.85**.

ATTACHMENT Q
[WIND] CALCULATION OF CERTAIN METRICS

[DRAFTING NOTE: THIS FORM OF ATTACHMENT Q IS SUITABLE FOR WIND+BESS]

1. Calculation of the Modified Pooled OMC Equipment Availability Factor.

A Modified Pooled OMC Equivalent Availability Factor ("MPXEEAF") shall be calculated for each MPXEEAF Assessment Period using the equation set forth below and the data set compiled from the twelve (12) then-most-recent calendar months subsequent to the Commercial Operations Date.

NERC formula

$OutageHrs = (FTH + MTH + PTH)$
 $DeratedHrs = (EFDTH + EMDTH + EPDTH)$
 $OMCHrs = (oFTH + oMTH + oPTH)$
 $DeratedOMCHrs = (oEFDTH + oEMDTH + oEPDTH)$

$$PXEEAF = \frac{\sum [ACTH - (OutageHrs + DerateHrs) + (OMCHrs + DeratedOMCHrs)]}{\sum ACTH} * 100$$

Modified Pooled OMC Equipment Equivalent Availability Factor

$$MPXEEAF = \frac{[(ACTH) - (OutageHrs) + (OMCHrs)]}{ACTH} * 100$$

Modifications made to the NERC formula are:

- a. Deleted impact due to Derated Hrs. Derations will be assessed using the Performance Index Metric.
- b. Modified Outside Management Control definition to exclude events of Seller-Attributable Non-Generation.

Where:

Active Turbine Hours (ACTH) is the sum of all turbine-hours that the turbines are in an active state.

Contact Turbine Hours (CTH) is the sum of all turbine-hours that the turbines are synchronized to the Company System. It is the turbine-hours that the main contactors are closed and generation is connected to the Company System. The term is similar to service hours used in conventional generation.

Forced Turbine Hours (FTH) is the sum of all turbine-hours that the turbine is off-line due to forced events, including due to Seller-Attributable Non-Generation. FTH are all forced events where the WTG must be removed from service for repairs before the next Sunday at 23:59 (just before Sunday becomes Monday). FTH includes OMC Forced Turbine Hours (oFTH).

OMC Forced Turbine Hours (oFTH) is a subset of FTH that equals any forced turbine-hours that were due to causes deemed to be OMC. For purposes of calculating the Modified Pooled OMC Equivalent Availability Factor, any hours during which a turbine is unavailable due to Force Majeure affecting such turbine or the BOP shall be deemed to be a oFTH for such turbine.

Maintenance Turbine Hours (MTH) is the sum of all turbine-hours that the turbine is off-line due to a Maintenance Event. The turbine must be capable of running until the following week unless the outage occurs on the weekend the turbine must be capable of running through the following week. MTH includes OMC Maintenance Turbine Hours (oMTH).

OMC Maintenance Turbine Hours (oMTH) is a subset of MTH that equals any maintenance turbine-hours that were due to causes deemed to be OMC.

Planned Turbine Hours (PTH) is the sum of all turbine-hours that the turbine is off-line due to a planned event. A Planned Event is scheduled well in advance and is of predetermined duration and can occur several times a year. PTH includes OMC Planned Turbine Hours (oPTH).

OMC Planned Turbine Hours (oPTH) is a subset of PTH that equals any planned turbine-hours that were due to causes deemed to be OMC.

Equivalent Forced Derated Turbine Hours (EFDTH) is the equivalent forced turbine hours when turbine output is reduced for forced issues.

OMC Equivalent Forced Derated Turbine Hours (oEFDTH) is a subset of EFDTH that equals any turbine-hours when turbine output is reduced for forced issues deemed to be OMC.

Equivalent Maintenance Derated Turbine Hours (EMDTH) are the equivalent maintenance turbine hours when the turbine output is reduced for maintenance turbine hours. EMDTH must meet the requirements for a maintenance outage. The turbine must be capable of running until the following week unless the outage occurs on the weekend the turbine must be capable of running through the following week.

OMC Equivalent Maintenance Derated Turbine Hours (oEMDTH) are OMC equivalent maintenance hours when turbine output is reduced for OMC maintenance issues. This is a subset of EMDTH.

Equivalent Planned Derated Turbine Hours (EPDTH) is the equivalent planned turbine hours when turbine output is reduced for a planned issue.

OMC Equivalent Planned Derated Turbine Hours (oEPDTH) are OMC equivalent planned hours when turbine output is reduced for OMC planned issues. This is a subset of EPDTH.

Outside Management Control (OMC): are events (other than Seller-Attributable Non-Generation events) that occur beyond the Facility boundaries or are caused by abnormal weather. OMC events can be Planned, Maintenance, Forced Outage, or Derating Events. OMC events can be due to Company dispatching the Facility resulting in a deration of the Facility's output or to Company System constraints, such as transmission/distribution maintenance or switching. OMC events do not include Seller-Attributable Non-Generation events.

See also Section 8.3 (Company Rights of Dispatch) of this Agreement.

Example: The following is an example of a MPXEEAF calculation and is included for illustrative purposes only:

A	B	C	D	E	F	G	H
TID	ACTH	FTH	MTH	PTH	OFTH	OMTH	OPTH
Turbine1	100.00	5.05	6.20	3.75	4.00	4.25	3.05
Turbine2	100.00	5.05	6.15	3.75	4.00	4.25	3.05

Turbine3	100.00	5.05	6.20	3.75	4.00	4.25	3.05
SUM	300.00	15.15	18.55	11.25	12.00	12.75	9.15

$$\text{MPXEEAF} = \{ [B - (C + D + E) + (F + G + H)] / B \} * 100$$

$$\text{MPXEEAF} = 96.3$$

2. Calculation of Performance Index.

- (a) The Performance Index represents the efficiency of the WTG's conversion of the wind resource to electricity by comparing the calculated Expected Generation at the WTGs to the measured Actual Generation at the WTGs during Contact Turbine Hours excluding periods where the operational state is categorized as oEFDTH, oEMPTH or oEPDTH.
- (b) Following the close of each PI Assessment Period, the Performance Index shall be calculated for such PI Assessment Period (using the previous 12 months of data) as set forth in Section 2(c) (Performance Index Calculation) of this Attachment Q (Calculation of Certain Metrics) of this Agreement.
- (c) Performance Index Calculation.
 - (i) Performance Index will not be calculated or assessed for the first eleven months of the first Contract Year. The first time the Performance Index will be calculated or assessed will be as of the close of the concluding calendar month of the initial Contract Year based upon the twelve (12) calendar months of the initial Contract Year. The twelve (12) calendar months of the initial Contract Year shall constitute the initial PI Assessment Period.
 - (ii) For each calendar month, Seller shall calculate the Actual Generation at each WTG and estimate the Expected Generation at each WTG for all periods where the WTG's operational state is categorized as CTH and the Density-Adjusted Wind Speed is greater than the manufacturer's specified cut-in wind speed, excluding periods where the WTG's operational state is categorized

as oEFDTH, oEMDTH or oEPDTH. Data sets shall be based on 10-minute increments derived from contiguous measured data.

- (iii) Seller shall use the equation set forth below to calculate the Performance Index for each PI Assessment Period.

$$PI_{Facility} = \sum_{i=1}^N \frac{Actual\ Generation_{WTG_i} [MWh]}{Expected\ Generation_{WTG_i} * (1 - 0.001 * (Applicable\ Contract\ Year - 1)) [MWh]}$$

- (iv) Seller shall also provide the Company the Measured Power Curve that was used for each WTG and data from periods where Actual Generation and Expected Generation were calculated for such WTG.
- (v) PI Test. In the event that the set of operational data points under Attachment Q (Calculation of Certain Metrics) that is available for any month to calculate the PI cannot be validated to Company's reasonable satisfaction or in the event there were not at least 24 such data points during such month that could be used to calculate the PI, the Company shall have the right to perform a test ("PI Test") to collect the data points for such month to be used to calculate the PI in lieu of the use of operational data for such month. The Company shall retain sole discretion as to when to conduct the PI Test, and the PI Test may be conducted at any point during the month following the month for which Company was either unable to validate the set of operational data points for such month or there were not at least 24 data points available during such month. The PI Test shall have a minimum duration of four (4) hours and shall run until at least 16 data points are collected that meet the criteria set forth in Attachment Q (Calculation of Certain Metrics). During an PI Test, the PI shall be calculated from the data points collected during said PI Test using the formula set forth in Attachment Q (Calculation of Certain Metrics). To the extent possible, the Company shall schedule the PI Test for a period where all WTGs are available and

weather conditions are expected to be optimum allowing the WTG System to generate at near full capacity for the duration of the PI Test (if possible). The result of the calculation based on the PI Test shall be the PI for the PI Assessment Period in question.

- (vi) For each PI Assessment Period that includes one or more months for which a PI Test was performed, the data points collected during said PI Test for such month(s) shall be used together with the data points for months for which a PI Test was not conducted to calculate the PI for the PI Assessment Period in question using the equation set forth in Section 2 (Calculation of Performance Index) of Attachment Q (Calculation of Certain Metrics) to this Agreement. The result of the calculation based on the PI Test shall be the PI for the PI Assessment period in question.

See also Section 8.3 (Company Rights of Dispatch) of this Agreement.

Example: The following is an example of a Performance Index Calculation and is included for illustrative purposes only:

	A	B	C	D	E	F
1	ACTUAL GENERATION [MWH]					B-(C+D+E)
2	TID	CTH	OEFDTH	OEMPTH	OEPDTH	
3	Turbine1	900.00	10.00	15.00	5.00	870.00
4	Turbine2	1,000.00	10.00	15.00	5.00	970.00
5	Turbine3	1,200.00	10.00	15.00	5.00	1,170.00
6	Sum	3,100.00	30.00	45.00	15.00	3,010.00
7						
8	EXPECTED GENERATION [MWH]					B-(C+D+E)
9	TID	CTH	OEFDTH	OEMPTH	OEPDTH	
10	Turbine1	945.00	15.00	20.00	10.00	900.00
11	Turbine2	1,115.00	15.00	25.00	10.00	1,065.00
12	Turbine3	1,300.00	18.00	21.00	10.00	1,251.00
13	Sum	3,360.00	48.00	66.00	30.00	3,216.00
	F6/F13*100					
	Performance Index					
	93.6					

3. Calculation of Density-Adjusted Wind Speed. For purposes of calculating Density-Adjusted Wind Speed for each WTG for each PI Assessment Period, the 10-minute averaged wind speed measurement from the nacelle anemometer for such turbine shall be adjusted for the 10-minute averaged ambient air temperature and the 10-minute averaged ambient air pressure (both as measured by the field measurement devices located at approximately "hub height" on the Facility's MMTs) by calculating the Density-Adjusted Wind Speed for such turbine for each 10-minute increment as follows:

$$V_n = V_{obs} \left(\frac{\rho_{calc}}{\rho_0} \right)^{1/3}$$

where:

V_n = Density-Adjusted Wind Speed [m/s]

V_{obs} = Measured Wind Speed (10-minute averaged) [m/s]

ρ_0 = 1.225 kg/m³

ρ_{calc} = Calculated Air Density (10-minute averaged) [kg/m³]

$$= \frac{B_{obs}}{R_0 * T_{K_{obs}}}$$

where:

B_{obs} = Measured Ambient Air Pressure (10-minute averaged) [Pa]

R_0 = specific gas constant for dry air (287.057 J/kg*K)

$T_{K_{obs}}$ = Measured Ambient Air Temperature (10-minute averaged) [K]

For unit conversion purposes:

$$1 \text{ Pa} = 0.01 \text{ mbar}$$

$$T_{Kelvin} = T_{Celsius} + 273.15$$

The foregoing formulae are based on the formulae found at Section 8.1 of IEC 61400-12-1.

4. Determination of Measured Power Curve. During the first Contract Year, the Seller shall collect data to create a Measured Power Curve for each WTG that will be used for the remainder of the Initial Term to calculate the Expected Generation. The Measured Power Curve for each WTG will not be updated.

To develop the Measured Power Curve for each WTG, Seller shall use data for such WTG during periods when such WTG is in the operational state categorized as CTH excluding periods where the WTG's operational state is categorized as EFDTH, EMDTH, EPDTH, oEFDTH, oEMDTH, or oEPDTH.

Following the end of the first Contract Year, the Measured Power Curve for each WTG shall be calculated by Seller using the following data from the first Contract Year: (aa) the Density-Adjusted Wind Speed (for avoidance of doubt, the only referenced air density shall be the ISO standard atmosphere for sea level air density of 1.225 kg/m³ as set forth in Section 3 (Calculation of Density-Adjusted Wind Speed) of this Attachment Q (Calculation of Certain Metrics)), (bb) the 10-minute averaged Measured Wind Speed and (cc) the 10-minute averaged power output of such WTG. The data set used for calculating the Measured Power Curve shall include only Measured Wind Speed and power output measurements during the periods specified in the second bullet point above. The Measured Power Curve shall be calculated using (i) 0.5 m/s wind bins ranging from 1 m/s below the manufacturer's specified cut-in-wind speed to, at least, 1.5 times the wind speed specified by the manufacturer as associated with 85% of the rated power of the WTG and (ii) the 10-minute averaged power output for each wind speed bin. The data set used to calculate the Measured Power Curve should include a minimum of 180 hours of sampled data from periods during the preceding Contract Year, where each wind bin includes the minimum of 30 minutes of sampled data, i.e. a minimum of 3 data points. If the aforementioned required minimums of sampled data are not available, Seller and Company may agree in writing upon a smaller data set to calculate the Measured Power Curve. Except as necessary to satisfy the foregoing requirements of this Section 4 (Determination of Measured Power Curve) of this Attachment Q (Calculation of Certain Metrics), the Measured Power Curve shall be calculated in a manner consistent with Clause 8.1 and Clause 8.2 of IEC 61400-12-1. Upon Seller's calculation of the Measured Power Curve

for each WTG as provided in this Section 4 (Determination of Measured Power Curve), Seller shall provide written notice to Company of such Measured Power Curve(s).

5. Calculation of Expected Generation for Each WTG. For each calendar month, the Expected Generation for each WTG for all periods where WTG's operational state is categorized as CTH and the Density-Adjusted Wind Speed is greater than the manufacturer's specified cut-in wind speed, excluding periods where the WTG's operational state is categorized as oEFDTH, oEMDTH or oEPDTH, shall be based on (i) the Density-Adjusted Wind Speed for such turbine for each 10-minute increment or portion thereof and (ii) the Measured Power Curve for the WTG as determined as set forth in Section 4 (Determination of Measured Power Curve) of this Attachment Q (Calculation of Certain Metrics).
6. Resolution of Disagreements. Disagreements between Seller and Company concerning the calculations to be provided under this Attachment Q (Calculation of Certain Metrics) shall be resolved as set forth in Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator).

ATTACHMENT R
REQUIRED INSURANCE

**[DRAFTING NOTE: THIS FORM OF ATTACHMENT R IS SUITABLE FOR BOTH
PV+BESS AND WIND+BESS]**

(See also Article 18 (Insurance))

1. Worker's Compensation and Employers' Liability. This coverage shall include Worker's Compensation, Temporary Disability and other similar insurance required by applicable Hawai'i State or U.S. federal laws. If exposure exists, coverage required by the Longshore and Harbor Worker's Compensation Act (33 U.S.C. §688) shall be included. Employers' Liability coverage limits shall be no less than:

Bodily Injury by Accident -	\$1,000,000 each Accident
Bodily Injury by Disease -	\$1,000,000 each Employee
Bodily Injury by Disease -	\$1,000,000 policy limit

2. General Liability Insurance.

- (a) This coverage shall include Commercial General Liability Insurance or the reasonable equivalent thereof, covering all operations by or on behalf of Seller. Such coverage shall provide insurance for bodily injury and property damage liability for the minimum limits of liability indicated below and shall include coverage for:

- (i) Premises, operations, and mobile equipment,
- (ii) Products and completed operations,
- (iii) Claims resulting from alleged sudden and accidental damage to the environment and damage or injury caused by hazardous conditions or hazardous materials to the extent such coverage is appropriate and available at a commercially reasonable cost,
- (iv) Blanket contractual liability,
- (v) Broad form property damage (including completed operations),

- (vi) No exclusion for (XCU) explosion, collapse and underground hazard,
 - (vii) Personal injury liability, and
 - (viii) Failure to supply liability, which may be provided as a sublimit of \$1,000,000 per occurrence under the general liability policy, on ISO endorsement CG 22 50 or equivalent, so long as such coverage is available on a commercially reasonable basis.
- (b) Limits of liability for Bodily Injury & Property Damage shall be:
- \$10,000,000 combined single limit per occurrence; and
\$20,000,000 aggregate annually
- (c) Coverage limits may be satisfied using Umbrella and/or Excess Liability insurance policies.
3. Automobile Liability Insurance. This insurance shall include coverage for owned (if any), leased and non-owned automobiles. The minimum limits of liability shall be a combined single limit for bodily injury and property damage of Two Million Dollars (\$2,000,000) for each occurrence and in the aggregate annually. If exposure exists, the policy shall be endorsed to include Transportation Pollution Liability insurance, covering hazardous materials to be transported by Seller, as appropriate.
4. Builders All Risk Insurance. This insurance shall include but not be limited to coverage for wind including named windstorm, earthquake, flood, perils, property in transit (excluding ocean transit), off-site storage - property in temporary storage or assembly away from the project site, testing, covering all materials, equipment, machinery and supplies of any nature whatsoever, the property of the Seller or of others for which the Seller may have assumed responsibility, used or to be used in or incidental to the site preparation, demolition of existing structures, erection and/or fabrication and/or reconstruction and/or repair of the project insured, including temporary works (all scaffolding, formworks, fences, shoring, hoarding, false work and temporary buildings and all incidental to the project) from the start of construction through the earlier of the Commercial Operations Date or the effective date of the policy coverage set forth in Section 5 (All

Risk Property/Comprehensive Mechanical and Electrical Breakdown Insurance (Upon Completion of Construction)) of this Attachment R (Required Insurance). The amount of coverage shall be purchased on a full replacement cost basis, except for earthquake, named windstorm and flood perils which shall be provided as sublimits and aggregate limits supported by a Probable Maximum Loss (PML) study and/or Catastrophe (CAT) Modeling report, if such insurance amounts are appropriate and available on commercially reasonable terms. The coverage shall be written on an "All Risks" completed value form and may allow for reasonable other sublimits for transit and for incidental offsite storage. Coverage shall be extended to include testing. Such policies shall be endorsed to require that the coverage afforded shall not be canceled (except for nonpayment of premiums) or reduced without at least thirty (30) Days' prior written notice to Seller and Company; provided, however, that such endorsement shall provide (i) that the insurer may not cancel the coverage for non-payment of premium without giving Seller and Company ten (10) Days' notice that Seller has failed to make timely payment thereof, and (ii) that, subject to the consent of the Facility Lender, Seller or Company shall thereupon have the right to pay such premium directly to the insurer.

5. All Risk Property/Comprehensive Mechanical and Electrical Breakdown Insurance (Upon Completion of Construction). This insurance shall provide All Risk Property Coverage (including the perils of wind including named windstorm, earthquake, and flood) and Comprehensive Mechanical and Electrical Breakdown Coverage against damage to the Facility. The amount of coverage shall be purchased on a full replacement cost basis (no coinsurance shall apply) except for earthquake, named windstorm and flood perils which shall be provided as sublimits and aggregate limits supported by a Probable Maximum Loss (PML) study and/or Catastrophe (CAT) Modeling reports, if such insurance amounts are appropriate and available on commercially reasonable terms. Such coverage may allow for other reasonable sublimits. Such policies shall be endorsed to require that the coverage afforded shall not be canceled (except for nonpayment of premiums) or reduced without at least thirty (30) Days' prior written notice to Seller and Company; provided, however, that such endorsement shall provide (i) that the insurer may not cancel the coverage for non-payment of premium without giving Seller and Company ten (10) Days' notice that Seller has failed to

make timely payment thereof, and (ii) that, subject to the consent of the Facility Lender, Seller or Company shall thereupon have the right to pay such premium directly to the insurer.

6. Business Interruption Insurance (Upon Completion of Construction). This insurance shall provide coverage for all of Seller's costs to the extent that they would not be eliminated or reduced by the failure of the Facility to operate for a period of at least twelve (12) months following a covered physical damage loss deductible period or reasonable dollar deductible or waiting period.
7. Project Liability Errors and Omissions. Seller shall obtain adequate protection against project liability errors and omissions on account of negligent actions or inactions of architects, engineers, contractors, and subcontractors involved in the design and/or construction of the Facility.
8. Ocean Transit. Seller shall take reasonable action to ensure that the risk of loss or damage to any material items of equipment which are subject to ocean transit is adequately protected against by the terms of delivery from contractors or suppliers of such equipment or Seller's own insurance coverage.
9. Pollution Liability Insurance. This insurance shall provide coverage for losses involving hazardous material(s) and caused by pollution incidents or conditions that arise from the Facility, including but not limited to, coverage for bodily injury, sickness, disease, mental anguish or shock sustained by any person, including death, property damage including the resulting loss of use thereof, clean-up costs, and the loss of use of tangible property that has not been physically damaged or destroyed, and defense costs. The coverage must be maintained for a period of not less than three (3) years after this Agreement terminates, or the policy must provide for a supplemental extended reporting period of not less than three (3) years after this Agreement terminates. Such policy shall have minimum limits of \$5,000,000 each occurrence; and \$5,000,000 annual aggregate.

ATTACHMENT S
FORM OF MONTHLY PROGRESS REPORT

[DRAFTING NOTE: THIS FORM OF ATTACHMENT S IS SUITABLE FOR BOTH PV+BESS AND WIND+BESS]

Instructions

Any capitalized terms used in this report which are not defined herein shall have the meaning ascribed to them in the Power Purchase Agreement for Renewable Dispatchable Generation by and between [_____] ("Seller"), and [Hawaiian Electric Company, Inc.] [Maui Electric Company, Limited] [Hawai'i Electric Light Company, Inc.], a Hawai'i corporation, dated _____, (the "Agreement").

In addition to the remedial action plan requirement set forth in Article 13 (Guaranteed Project Milestones Including Commercial Operations) of the Agreement, Seller shall review the status of each Construction Milestone of the construction schedule (the "Schedule") for the Facility and identify such matters referenced in clauses (i)-(v) below as known to Seller and which in Seller's reasonable judgment are expected to adversely affect the Schedule, and with respect to any such matters, shall state the actions which Seller intends to take to ensure that the Construction Milestones will be attained by their required dates. Such matters may include, but shall not be limited to:

(a) Any material matter or issue arising in connection with a Governmental Approval, or compliance therewith, with respect to which there is an actual or threatened dispute over the interpretation of a law, actual or threatened opposition to the granting of a necessary Governmental Approvals, any organized public opposition, any action or expenditure required for compliance or obtaining approval that Seller is unwilling to take or make, or in each case which could reasonably be expected to materially threaten or prevent financing of the Facility, attaining any Construction Milestone, or obtaining any contemplated agreements with other parties which are necessary for attaining any Construction Milestone or which otherwise reasonably could be expected to materially threaten Seller's ability to attain any Construction Milestone.

(b) Any development or event in the financial markets or the independent power industry, any change in taxation or accounting standards or practices or in Seller's business or prospects which reasonably could be expected to materially

threaten financing of the Facility, attainment of any Construction Milestone or materially threaten any contemplated agreements with other parties which are necessary for attaining any Construction Milestone or could otherwise reasonably be expected to materially threaten Seller's ability to attain any Construction Milestone;

(c) A change in, or discovery by Seller of, any legal or regulatory requirement which would reasonably be expected to materially threaten Seller's ability to attain any Construction Milestone;

(d) Any material change in the Seller's schedule for initiating or completing any material aspect of the Facility;

(e) The status of any matter or issue identified as outstanding in any prior Monthly Progress Report and any material change in the Seller's proposed actions to remedy or overcome such matter or issue.

For the purpose of this report, "EPC Contractor" means the contractor responsible for engineering, procurement and construction of the Facility, including Seller if acting as contractor, and including all subcontractors.

Please provide a copy of the current version of the overall Facility schedule in MS Project in a format acceptable to Company. Include all major activities and milestones for Governmental Approvals for development, design and engineering, procurement, construction, interconnection and testing.

Please provide a cumulative summary of the major activities completed for each of the following aspects of the Project and Facility (provide details in subsequent sections of this report):

Project Name:

Guaranteed
Commercial
Operations Date

Size:

Technology:

RFP: Stage 3

PPA	PPA Approval	Approved - D&O No. XXXXX issued on XXXXX XX, XXXX
Status	Overhead Line Approval	Approved - D&O No. XXXXX issued on XXXXX XX, XXXX

PPA
Amendment

Filed on XXXXX XX, XXXX

**System
Impact
Study
Facilit
y Study
Enginee
ring/De
sign**

Responsible Party	Facility	Status
Seller	Generation facility	
Seller	Step up Substation	
Seller	COIF ³	
Company	COIF - Transmission line	
Company	COIF - Telecom	
Company	Remote Work	
Company	Inter-dependent system	
General Comments	•	

Permits	Agency / Jurisdiction	Approval / Permit	Date of Approval	Status Summary
	LUC	Amendment/Restate ment of State Land Use Boundary Amendment		
	County	Conditional Use Permit		
	County	Waiver Permit		
	County	Grading/NPDES Permit (Solar/Battery)		
	County	Grading/NPDES Permit (Substation)		
	County	Building Permit (Solar/Battery)		
	County	Building Permit (Substation)		
	County	Building Permit (Switchyard)		

³ Capitalized terms used but not defined in this update have the meaning given to them in the PPA.

Land Rights	General Comments			
	Type	Status	(Estimated) Receipt Date	
	COIF/SOIF: Right of Entry COIF/SOIF: Easement General Comments			
Procurement	Responsible Party	Type of equipment	Order date	(Estimated) Arrival date
	Seller	PV Modules		
	Seller	Inverters		
	Seller	Energy Storage		
	Seller	Racking		
	Seller	GSU transformer		
	Seller	Circuit Breakers		
	Seller	Instrument transformers		
	Seller	Control Building		
	Company	Revenue meter		
	Company	T&D Poles, Conductors		
Construction	General Comments			
	Responsible Party	Facility	Status	
	Seller	Generation facility		
	Seller	SOIF		
	Seller	COIF		
	Company	COIF - Transmission line		
	Company	COIF - Telecom		
	Company	Remote Work		
	Company	Inter-dependent system		
Testing	General Comments			
	Acceptance Test			

CSAT

APPENDIX A
GUARANTEED PROJECT MILESTONES AND SELLER'S CONDITIONS PRECEDENT

Please list all Guaranteed Project Milestones and Seller's Conditions Precedent specified in Attachment K and K-1 and state the current status of each.

Construction Guaranteed Project Milestone	Milestone Date Specified in the Agreement	Date Completed	Status (e.g., on schedule, delayed due to [specify reason]; current expected completion date)
Construction Financing Milestone: Provide Company with documentation reasonably satisfactory to Company evidencing (i) the closing on financing for the Facility including ability to draw on funds by [insert same date certain as in right column] or (ii) the financial capability to construct the Facility ("Construction Financing Closing Milestone")			
Permit Application Filing Milestone: Provide Company with documentation reasonably satisfactory to Company evidencing the filing by or on behalf of Seller of the following applications for Governmental Approvals required for the ownership, construction, operation and maintenance of the Facility: [List All Discretionary Permits]			
Guaranteed Commercial Operations Date.			

Seller's Conditions Precedent	Date Specified in the Agreement	Date Completed	Status (e.g., on schedule, delayed due to [specify reason]; current expected completion date)
--------------------------------------	--	-----------------------	--

Seller shall make payment to Company of the amount required under <u>Section 3(b)(ii)</u> (Company-Owned Interconnection Facilities Prepayment) of <u>Attachment G</u> (Company-Owned Interconnection Facilities)			
Permit Application Filing Milestone: Provide Company with documentation reasonably satisfactory to Company evidencing the filing by or on behalf of Seller of the following applications for Governmental Approvals required for the ownership, construction, operation and maintenance of the Facility: [List All Discretionary Permits]			
Seller shall provide Company a right of entry for the Company-Owned Interconnection Facilities site(s).			
Seller shall make payment to Company of the amount required under <u>Section 3(b)(iii)</u> (Balance of Company-Owned Interconnection Facilities Prepayment) of <u>Attachment G</u> (Company-Owned Interconnection Facilities)			
Seller shall provide evidence of the full execution of the engineering, procurement and construction contract.			
Seller's EPC Contractor shall obtain grading permit.			
Seller shall provide a list of long-lead time materials for the Company-Owned Interconnection Facilities, including but not limited to, control house (if applicable) and metering CTs and PTs.			

Seller's EPC Contractor shall obtain and provide Company all permits (other than any required occupancy permits, if applicable), licenses, easements and approvals to construct the Company-Owned Interconnection Facilities, including the building permit.			
Seller's EPC Contractor shall complete Seller's engineering work (Issued for Construction Set) related to the Company-Owned Interconnection Facilities as described in <u>Attachment G</u> (Company-Owned Interconnection Facilities).			
Seller shall provide backup station service power.	No later than three (3) months prior to the commencement of the Acceptance Test		
Seller or Seller's EPC Contractor shall have Hawaiian Telcom Backup (or equivalent) installed for backup SCADA communications from Company's Substation at Seller's Facility to Company's EMS located at the Company's control center. Seller shall have installed primary and backup SCADA communications infrastructure to enable SCADA communications between the Company-Owned Interconnection Facilities and Seller's Facility.	No later than three (3) months prior to the commencement of the Acceptance Test		
Seller's EPC Contractor shall complete Seller's work related to the Company-Owned Interconnection Facilities as described in <u>Attachment G</u> (Company-Owned Interconnection Facilities).			

Seller's EPC Contractor shall complete construction of the Seller-Owned Interconnection Facilities, the Seller shall have satisfied the conditions precedent to the conduct of the Acceptance Test set forth in <u>Section 2(f)(ii) of Attachment G</u> (Company-Owned Interconnection Facilities) and Seller is otherwise ready to conduct the Acceptance Test.			
Seller shall close grading permit, unless Seller provides documentation establishing, to Company's reasonable satisfaction, that closing the grading permit is not required by the relevant Governmental Authority prior to energization, testing and use of the Facility.			

APPENDIX B
REPORTING MILESTONES

Please list all Reporting Milestones specified in Attachment L and state the current status of each.

Reporting Milestone Date	Milestone Specified in the Agreement	Date Completed	Status (e.g., on schedule, delayed due to [specify reason]; current expected completion date)
[Date]	Seller shall provide Company with a redacted copy of the executed Facility equipment, engineering, procurement and construction agreement and other general contractor agreements, which each shall include a provision requiring the applicable contractors and their subcontractors to enter into a project labor agreement with the Covered Entities. Under no circumstances shall redactions conceal information that is necessary for Company to verify Company's rights or Seller's obligations under the Agreement.		
[Date]	Seller shall provide Company with redacted copies of executed purchase orders/contracts for the delivery of Facility inverters.		
[Date]	Seller shall provide Company with copies, as applicable, of executed Facility operating agreements		
[Date]	Building Permit: Seller or Seller's EPC Contractor shall obtain building permit		
[Date]	Construction Start Date (defined as the start of civil work on Site).		
[Date]	Seller shall have laid the foundation for all Facility buildings, generation facilities and step-up transformer facilities.		

[Date]	The BESS and all inverters for the Facility shall have been installed at the Site.		
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APPENDIX C
SITE CONTROL SCHEDULE

If not obtained prior to execution of the Agreement, please provide the schedule Seller intends to follow to obtain control of the Site (e.g., purchase, lease).

Activity	Expected Completion Date	Actual Completion Date
Negotiate Leases - Site		
Execute all land agreements		

APPENDIX D
LAND RIGHTS SCHEDULE FOR COIF

If not obtained prior to execution of the Agreement, please provide the schedule Seller intends to follow to obtain control of the Land for the COIF (e.g., purchase, lease).

Activity	Expected Completion Date	Actual Completion Date
ROE to HECO		
HECO executes Lease for COIF		

APPENDIX E
MAJOR EQUIPMENT TO BE PROCURED

Please list all major equipment to be procured by Seller or the EPC Contractor:

Equipment Description	Manufacturer	Quantity Ordered	Quantity Made	Quantity On site	Quantity Installed	Quantity Tested	Expected Installation Date	Actual Installation Date
Modules								
Racking								
PV Inverters								
BESS								

APPENDIX F
INTERCONNECTION ACTIVITIES

Please list all major interconnection activities, both planned and completed, to be performed by Seller or the EPC Contractor.

Activity	EPC Contractor / Subcontractor / Seller	Expected Completion Date	Actual Completion Date
IRS Prelim Facility Study	Company		
IRS Sys Impact Study	Company		
IRS Report - Final Facility Study	Company		
IRS amendment to PUC	Company, Seller		

APPENDIX G
FINANCING

Please provide the schedule Seller intends to follow to obtain financing for the Facility. Include information about each stage of financing.

Activity (e.g., obtain \$xx for yy stage from zz)	Expected Completion Date	Actual Completion Date
Confidential information memorandum (CIM)		
Independent engineering study		
Financial closing		

APPENDIX H
STARTUP TESTING AND COMMISSIONING ACTIVITIES

Please list all major startup testing and commissioning activities, both planned and completed, to be performed by Seller or the EPC Contractor.

Activity	EPC Contractor / Subcontractor / Seller	Expected Completion Date	Actual Completion Date

APPENDIX I
CERTIFICATION

I, [Representative] , on behalf of and as an authorized representative of [Company] , do hereby certify that any and all information contained in this Seller's Monthly Progress Report is true and accurate, and reflects, to the best of my knowledge, the current status of the construction of the Facility as of the date specified below.	
By:	
Name:	
Title:	
Date:	

ATTACHMENT T
[PV]MONTHLY REPORTING AND DISPUTE
RESOLUTION BY INDEPENDENT AF EVALUATOR

[DRAFTING NOTE: THIS FORM OF ATTACHMENT T IS FOR PV+BESS ONLY]

1. Monthly Report. Commencing with the month during which the Commercial Operations Date is achieved, and for each calendar month thereafter during the Term, Seller shall provide to Company a Monthly Report in Excel, or such other format as Company may require, which Monthly Report shall include (i) the data for the calendar month in question populated into the form of the "PV System Monthly Report" below, (ii) the data for the BESS Measurement Period ending with the calendar month in question populated into the form of "BESS Measurement Period Report" below, and (iii) Seller's calculations of the Performance Metrics and any liquidated damages assessments for each Performance Metric LD Period ending with such calendar month as set forth below. Seller shall deliver such Monthly Report to Company by the tenth (10th) Business Day following the close of the calendar month in question. Seller shall deliver the Monthly Report electronically to the address provided by the Company. Company shall have the right to verify all data set forth in the Monthly Report by inspecting measurement instruments and reviewing Facility operating records. Upon Company's request, Seller shall promptly provide to Company any additional data and supporting documentation necessary for Company to audit and verify any matters in the Monthly Report.

PV System Monthly Report

NAME OF IPP FACILITY: [Facility Name]

MONTHLY REPORT PERIOD: [Month Day, Year] to [Month Day, Year]

Enter the information for each Force Majeure event effecting the PV System during the reporting period. Dates and times should be entered to the nearest minute. Duration and equivalent hours should be rounded to 2 decimal places. When using MWs for item (D) below, Contract Capacity is to be provided for (E); and when using number of devices for item (D), total number of devices is to be provided for (E).

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (C) = (B-A)	Size of effect (MW) or Number of devices that are offline (D)	Contract Capacity or Total number of devices in the affected system (E)	Equivalent Hours (hrs) (C x D)/E

...					

Calendar hours in the reporting period: _____

Total equivalent hours for the reporting period (from above): _____

Omit any periods where Force Majeure was the sole cause of the Outage or Deration in the reporting areas below as those periods will be counted in their entirety as RSH pursuant to Section 1 (PV System Annual Equivalent Availability Factor) of Attachment Q (Calculation of Certain Metrics) this Agreement.

Enter the information for each Outage during the reporting period. Dates and times should be entered to the nearest minute. Duration should be rounded to 2 decimal places.

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (B-A)
...		

Calendar hours in the reporting period: _____

Total Outage hours for the reporting period (from above): _____

Available Hours (AH) in the reporting period: _____

AH from the last eleven (11) reporting periods: _____

AH for the last twelve (12) reporting periods: _____

Enter the information for each Seller Attributable Derating event during the reporting period. Dates and times should be entered to the nearest minute. Duration, size of reduction, Contract Capacity (MW) and equivalent hours should be rounded to 2 decimal places. When using MWs for item (D) below, Contract Capacity is to be provided for (E).

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (C) = (B-A)	Size of derating (MW) or Number of Inverters (D)	Contract Capacity (MW) or Total number of PV System Inverters (E)	Equivalent Hours (hrs) (C x D)/E
...					

Total Equivalent Seller Attributable Derated hours (ESADH) for the reporting period: _____

ESADH from the last eleven (11) reporting periods: _____

ESADH for the last twelve (12) reporting periods: _____

Enter the information for each Planned Derating event during the reporting period. Dates and times should be entered to the nearest minute. Duration, size of reduction, Contract Capacity (MW), and equivalent hours should be rounded to 2 decimal places. When using MWs for item (D) below, Contract Capacity is to be provided for (E).

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (C) = (B-A)	Size of derating (MW)(D)	Contract Capacity (E)	Equivalent Hours (hrs) (C x D)/E
...					

Total equivalent planned derated hours (EPDH) for the reporting period: _____

EPDH from the last eleven (11) reporting periods: _____

EPDH for the last twelve (12) reporting periods: _____

Enter the information for each Unplanned Derating event during the reporting period. Dates and times should be entered to the nearest minute. Duration, size of reduction, Contract Capacity (MW) and equivalent hours should be rounded to 2 decimal places. When using MWs for item (D) below, Contract Capacity is to be provided for (E).

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (C) = (B-A)	Size of derating (MW) or Number of Inverters Unavailable (D)	Contract Capacity or Total number of PV System Inverters (E)	Equivalent Hours (hrs) (C x D)/E
...					

Total equivalent unplanned derated hours (EUDH) for the reporting period: _____

EUDH for the last eleven (11) reporting periods: _____

EUDH for the last twelve (12) reporting periods: _____

Period Hours (PH) is: _____ (8760 hours if no 29th day in February in that last twelve months otherwise 8784 hours).

Enter the Available Hours, ESADH, EPDH, and EUDH for the last twelve (12) reporting periods as calculated above.

AH (A)	ESADH (B)	EPDH (C)	EUDH (D)	PV System Annual Equivalent Availability Factor 100% x (A – B – C – D)/PH

Enter the following properties for the facility's PV panels that are used in the calculation of the Measured Performance Ratio. Refer to Article 2.6 for the definitions of terms.

DC rated capacity of the system at standard test conditions (P_{DCSTC}): _____

Temperature coefficient of power in % / °C (δ): _____

Temperature empirical constant (a): _____

Wind speed empirical constant (b): _____

Conduction temperature coefficient (dT_{cond}): _____

Annual average irradiance-weighted cell temperature ($T_{cell_typ_avg}$) _____

For the reporting period, provide the 15-minute interval averaged site data for the following measurements in .csv format (refer to Article 2.6 for the definitions of terms). The data set should include an indication of whether each interval is included or excluded in the calculation of the Measured Performance Ratio and the reason for exclusion (refer to article 2.6 for data requirements).

Measured data:

- P_{AC_i} is the active power output of the PV System measured at the POI and BESS AC Input averaged over time period i (MW)
- G_{POA_i} is the measured plane of array irradiance averaged over time period i (W/m^2)
- T_{a_i} = the measured ambient temperature averaged over time period i [°C]
- WS_i = the measured wind speed corrected to a measurement height of 10 meters (using the anemometer height and proper Hellmann coefficient) averaged over time period i [m/s]

Calculated data:

- Computed cell temperature (T_{cell_i})

Using the data provided above, enter the calculated values for Measured Performance Ratio rounded to the third decimal place (0.001).

Measured Performance Ratio for the reporting period: _____

Measured Performance Ratio for this reporting period and the previous eleven (11)
reporting periods: _____

Enter the Applicable Contract Year and calculated Degradation Factor for the reporting period. Refer to Article 2.6(c) for how these should be calculated.

Applicable Contract Year: _____

Degradation Factor: _____

BESS Measurement Period Report

NAME OF IPP FACILITY: [Facility Name]

BESS MEASUREMENT PERIOD: [Month Day, Year] to [Month Day, Year]

Enter the applicable information to demonstrate satisfaction of the BESS Capacity Performance Metric during the reporting period. This can either be from the most recent BESS Capacity Test performed during the period or taken from operating data reflecting the net output of the BESS.

Date/Time Start	Date/Time End	Total MWh delivered to the POI (A)	BESS Contract Capacity (MWh) (B)	BESS Capacity Ratio 100% x (A/B)

Enter the applicable information to demonstrate satisfaction of the BESS Round Trip Efficiency Performance Metric during the reporting period. This can either be from the most recent BESS RTE Test performed during the period or taken from operational data reflecting the charging/discharging of the BESS.

Date/Time Start	Date/Time End	Total MWh delivered to the POI (A)	Charging Energy (MWh) (B)	BESS RTE Ratio 100% x (A ÷ B)

Enter the information for each Force Majeure event affecting the BESS during the reporting period. Dates and times should be entered to the nearest minute. Duration, size of reduction, BESS Contract Capacity (MW), and equivalent hours should be rounded to 1 decimal place. When using MWs for item (D) below, BESS Contract Capacity (MW) is to be provided for (E).

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (C) = (B-A)	Size of Reduction (MW) (D)	BESS Contract Capacity (MW) (E)	Equivalent Hours (hrs) (C x D)/E
...					

Calendar hours in the reporting period: _____

Total equivalent hours for the reporting period (from above): _____

Omit any periods where Force Majeure was the sole cause of the Outage or Deration in the reporting areas below pursuant to Attachment X (BESS Annual Equivalent Availability Factor) of this Agreement.

Enter the information for each BESS Outage during the reporting period. Dates and times should be entered to the nearest minute. Duration should be rounded to 1 decimal place.

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (B-A)
...		

Calendar hours in the reporting period: _____

Total Outage hours for the reporting period (from above): _____

Available Hours (AH) in the reporting period: _____

AH from the last three (3) reporting periods: _____

AH for the last four (4) reporting periods: _____

Enter the information for each BESS Seller Attributable Derating event during the reporting period. Dates and times should be entered to the nearest minute. Duration, size of reduction, BESS Contract Capacity (MW), and equivalent hours should be rounded to 1 decimal place. When using MWs for item (D) below, BESS Contract Capacity (MW) is to be provided for (E).

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (C) = (B-A)	Size of reduction (MW) (D)	BESS Contract Capacity (MW) (E)	Equivalent Hours (hrs) (C x D)/E
...					

Total Equivalent Seller Attributable Derated hours (ESADH) for the reporting period: _____

ESADH from the last three (3) reporting periods: _____

ESADH for the last four (4) reporting periods: _____

Enter the information for each BESS Planned Derating event during the reporting period. Dates and times should be entered to the nearest minute. Duration, size of reduction, BESS Contract Capacity (MW), and equivalent hours should be rounded to 1 decimal place. When using MWs for item (D) below, BESS Contract Capacity (MW) is to be provided for (E).

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (C) = (B-A)	Size of Reduction (MW) (D)	BESS Contract Capacity (MW) (E)	Equivalent Hours (hrs) (C x D)/E
...					

Total equivalent planned derated hours (EPDH) for the reporting period: _____

EPDH from the last three (3) reporting periods: _____

EPDH for the last four (4) reporting periods: _____

Enter the information for each BESS Unplanned Derating event during the reporting period. Dates and times should be entered to the nearest minute. Duration, size of reduction, BESS Contract Capacity (MW), and equivalent hours should be rounded to 1 decimal place. When using MWs for item (D) below, BESS Contract Capacity (MW) is to be provided for (E);.

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (C) = (B-A)	Size of Reduction (MW) (D)	BESS Contract Capacity (MW) (E)	Equivalent Hours (hrs) (C x D)/E
...					

Total equivalent unplanned derated hours (EUDH) for the reporting period: _____

EUDH for the last three (3) reporting periods: _____

EUDH for the last four (4) reporting periods: _____

Period Hours (PH) is : _____ (8760 hours if no 29th day in February in that last twelve months; otherwise, 8784 hours).

Enter the Available Hours, ESADH, EPDH and EUDH for the last four (4) reporting periods as calculated above.

AH (A)	ESADH (B)	EDDH (C)	EUDH (D)	BESS Annual Equivalent Availability Factor $100\% \times (A - B - C - D)/PH$

Enter the information for each Unplanned (Forced) Outage during the reporting period. Dates and times should be entered to the nearest minute. Duration should be rounded to 1 decimal place.

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (B-A)
...		

Total Forced Outage Hours (FOH) for the reporting period (from above): _____

FOH from the last three (3) reporting periods: _____

FOH for the last four (4) reporting periods: _____

Enter the FOH, ESADH, and EUDH for the last four (4) reporting periods as calculated above.

FOH (A)	EUDH (B)	ESADH (C)	BESS Annual Equivalent Forced Outage Factor $100\% \times (A + B + C)/8760$

2. Monthly Report Disagreements.

- (a) Notice of Disagreement With Monthly Report. Within ten (10) Business Days following the close of each calendar month, Seller shall provide to Company the Monthly Report for such calendar month and for the rolling 12-month period ending with such calendar month. Within ten (10) Business Days after Company's receipt of a Monthly Report, Company shall provide written notice to Seller of any Monthly Report Disagreement, including with respect to the data for the calendar month covered by such Monthly Report and Seller's calculation of, as applicable, (i) the PV System Equivalent Availability Factor for the PV System EAF Assessment Period ending with such calendar month, (ii) the MPR for the MPR Assessment Period ending with such calendar month, or (iii) any of the BESS Capacity Ratio, the RTE Ratio, the BESS Annual Equivalent Availability Factor or the BESS Annual Equivalent Forced Outage Factor for the BESS Measurement Period (if any) ending with such calendar month ("Notice of Monthly Report Disagreement").

Together with any such Notice of Monthly Report Disagreement, the Company shall include its own calculations and other support for its position. If Company fails to provide a Notice of Monthly Report Disagreement within said 10-Business Day period, the Monthly Report provided by Seller shall be deemed to be accepted by Company and shall no longer be subject to dispute by Company or Seller.

- (b) Submission of Monthly Report Disagreement to Independent AF Evaluator. Upon issuance of a Notice of Monthly Report Disagreement, the Parties shall review the contents of the Monthly Report(s) together with such Notice of Monthly Report Disagreement and attempt to resolve such Monthly Report Disagreement. If the Parties are able to agree on a resolution of any Monthly Report Disagreement, the resulting corrected Monthly Report(s) in question shall be set forth in a writing executed by both Parties, following which (i) such corrected Monthly Reports shall no longer be subject to dispute by either Party and (ii) to the extent such resolution of such Monthly Report Disagreement affects future Monthly Reports, such future Monthly Reports shall be prepared, and the PV System Equivalent Availability Factor, the MPR, the BESS Capacity Ratio, the RTE Ratio, the BESS Annual Equivalent Factor and the BESS Annual Equivalent Forced Outage Factor in such future Monthly Reports shall be calculated, in a manner consistent with such resolution. If the Parties are unable to resolve such Monthly Report Disagreement within ten (10) Business Days after Company's issuance of such Notice of Monthly Report Disagreement, either Party may, within five (5) Business Days after the end of such 10-Business Day period, submit the unresolved Monthly Report Disagreement to an Independent AF Evaluator for resolution. If, within five (5) Business Days following the expiration of said 10-Business Day period, neither Party has submitted such Monthly Report Disagreement to an Independent AF Evaluator, the data and calculations set forth in the Notice of Disagreement in question shall be deemed to be accepted by Seller and shall no longer be subject to dispute by Company or Seller.

3. [RESERVED]

4. Independent AF Evaluator Process.

- (a) Appointment of Independent AF Evaluator. If either Party decides to submit an unresolved Monthly Report Disagreement to an Independent AF Evaluator, it shall provide written notice to that effect (the "Submission Notice") to the other Party, which notice shall designate which of the engineering firms on the OEPR Consultants List is to act as the Independent AF Evaluator for purposes of resolving such dispute; provided, however, for purposes of facilitating consistency in the resolution of Monthly Report Disagreements, all Monthly Report Disagreements concerning the same Performance Metric arising out of any one or more of the twelve (12) Monthly Reports issued for a given Contract Year shall be submitted to the same Independent AF Evaluator unless such Independent AF Evaluator declines to accept any such submission(s). A Submission Notice must be provided within the 5-Business Day period provided in Section 2(b) (Submission of Monthly Report Disagreement to Independent AF Evaluator) of this Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator). The Parties shall each pay fifty percent (50%) of the fees and expenses charged by the Independent AF Evaluator.
- (b) Eligibility for Appointment as Independent AF Evaluator. Both Parties agree that the engineering firms listed in Section 4(j) (Acceptable Persons and Entities) of Attachment U (Calculation and Adjustment of Net Energy Potential) are fully qualified to serve as Independent AF Evaluator. By mutual agreement between the Parties in writing, a name or names may be added to or removed from the OEPR Consultants List at any time. In no event shall there be less than three (3) names on the OEPR Consultants List.
- (c) Participation of Parties. Promptly following the issuance of a Submission Notice as provided in Section 4(a) (Appointment of Independent AF Evaluator) of this Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator), Seller and Company shall provide the Independent AF Evaluator which such data as they consider to be material to the resolution of the disputed issue(s). Seller and Company shall also provide such additional data and

information as the Independent AF Evaluator may reasonably request. The Parties shall assist the Independent AF Evaluator throughout the process of resolving such dispute, including making key personnel and records available to the Independent AF Evaluator, but neither Party shall be entitled to participate in any meetings with personnel of the other Party or review of the other Party's records. However, the Independent AF Evaluator will have the right to conduct meetings, hearing or oral arguments in which both Parties are represented.

- (d) Written Decision of Independent AF Evaluator. The terms of engagement with the Independent AF Evaluator shall require the Independent AF Evaluator to issue its written decision resolving the disputed issues submitted to it within the applicable time period set forth below, which time periods are subject to any tolling that may be applicable pursuant to Section 4(e) (Sequence for Resolving Interrelated Disagreements) of this Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator):
- (a) 30 Days as measured from the issuance of the Submission Notice; or (b) such other time period as the Parties may agree in writing. Unless otherwise agreed to by the Parties in writing:
- (i) for a Monthly Report Disagreement concerning the PV System Equivalent Availability Factor, the written decision of the Independent AF Evaluator shall set forth (aa) for the calendar month in question, the correct values for AH, ESADH, EPDH, EUDH and PH to be used in calculations under Section 1 (PV System Equivalent Availability Factor; Liquidated Damages; Termination Rights) of this Agreement as determined by such Independent AF Evaluator if any such values were in dispute and (bb) for the PV System EAF Assessment Period ending with the calendar month in question, the PV System Equivalent Availability Factor for such PV System EAF Assessment Period as determined by such Independent AF Evaluator if such PV System Equivalent Availability Factor was in dispute;
- (ii) for a Monthly Report Disagreement concerning the MPR, the written decision of the Independent AF

Evaluator shall set forth (aa) the correct data points from the operational data set for the calendar month in question to be used in the calculation of MPR under Section 2 (Calculation of Measured Performance Ratio) of Attachment Q (Calculation of Certain Metrics) for the MPR Assessment Periods that include such calendar month if any such data points were in dispute, (bb) if a MPR Test was conducted during the month in question, the correct data points from such MPR Test to be used in the calculation of MPR under Section 2 (Calculation of Measured Performance Ratio) of Attachment Q (Calculation of Certain Metrics) of this Agreement for the MPR Assessment Periods that include the month preceding the month covered by the Monthly Report in question if any such data points were in dispute and (cc) for the MPR Assessment Period ending with the calendar month in question, the Measured Performance Ratio if such Measured Performance Ratio was in dispute;

- (iii) for a Monthly Report Disagreement concerning the BESS Capacity Ratio or the RTE Ratio, the written decision of the Independent AF Evaluator shall set forth the BESS Capacity Ratio and/or the RTE Ratio (as applicable) for the BESS Measurement Period ending with the calendar month in question;
- (iv) for a Monthly Report Disagreement concerning the BESS Annual Equivalent Availability Factor, the written decision of the Independent AF Evaluator shall set forth (aa) the correct values to be used for AH, ESADH, EPDH, EUDH and PH under Attachment X (BESS Annual Equivalent Availability Factor) for the calendar month in question if any such values were in dispute and (bb) the BESS Annual Equivalent Availability Factor for the BESS Measurement Period ending with the calendar month in question if such BESS Annual Equivalent Availability Factor was in dispute; and
- (v) for a Monthly Report Disagreement concerning the BESS Annual Equivalent Forced Outage Factor, the written decision of the Independent AF Evaluator shall set forth (aa) the correct values for FOH

and EUDH under Attachment Y (BESS Annual Equivalent Forced Outage Factor) for the calendar month in question if any such values were in dispute and (bb) the BESS Annual Equivalent Forced Outage Factor for the BESS Measurement Period ending with the calendar month in question if such BESS Annual Equivalent Forced Outage Factor was in dispute.

- (e) Sequence for Resolving Interrelated Disagreements. If at the time a Monthly Report Disagreement is submitted to an Independent AF Evaluator pursuant to Section 4(a) (Appointment of Independent AF Evaluator) of this Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) there are one or more other unresolved Monthly Report Disagreements concerning the same Performance Metric and the same Performance Metric LD Period that are pending before a different Independent AF Evaluator, and the resolution of such other Monthly Report Disagreement(s) is necessary to the resolution of the Monthly Report Disagreement that has been newly submitted to a new Independent AF Evaluator as aforesaid, the time period for such new Independent AF Evaluator to issue its written decision resolving such newly submitted Monthly Report Disagreement shall be tolled until such pending Monthly Report Disagreement(s) have been resolved. For avoidance of doubt, it is the intent of the Parties that disagreements over performance data and calculations for a given calendar month or a given BESS Measurement Period shall (i) not be subject to resolution twice and (ii) once resolved, shall not be reopened.
- (f) Final, Conclusive and Binding. The Parties acknowledge the inherent uncertainty in calculating the Performance Metrics, and hereby assume the risk of such uncertainty and waive any right to dispute the qualification of the person or entity appointed as the Independent AF Evaluator pursuant to Section 4(a) (Appointment of Independent AF Evaluator) of this Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) and/or the appropriateness of the methodology used by Independent AF Evaluator in resolving such Monthly Report Disagreements. Without limitation to the generality of the preceding sentence, the decision of the

Independent AF Evaluator as to each Monthly Report Disagreement submitted to an Independent AF Evaluator shall be final, conclusive and binding upon Company and Seller and shall not be subject to further dispute under Article 28 (Dispute Resolution) of the Agreement.

5. Periodic Review of Method of Calculating and Reporting Performance Metrics. At least once per Contract Year, Company shall review the method of calculating and reporting Performance Metrics under this Agreement to determine if other variables should be incorporated into such calculations. Any revisions to the Performance Metrics calculations in this Agreement shall be mutually agreed to by both Seller and Company.
6. Future Changes in Reporting Requirements. Seller shall reasonably cooperate with any Company requested revisions to the Monthly Report to include additional data that may be necessary from time to time to enable Company to comply with any new reporting requirements directed by the PUC or otherwise imposed under applicable Laws.

ATTACHMENT T
[WIND]MONTHLY REPORTING AND DISPUTE
RESOLUTION BY INDEPENDENT AF EVALUATOR

[DRAFTING NOTE: THIS FORM OF ATTACHMENT T IS FOR WIND+BESS ONLY]

1. Monthly Report. Commencing with the month during which the Commercial Operations Date is achieved, and for each calendar month thereafter during the Term, Seller shall provide to Company a Monthly Report in Excel, or such other format as Company may require, which Monthly Report shall include (i) the data for the calendar month in question populated into the form of "WTG Monthly Report" below, (ii) the data for the BESS Measurement Period ending with the calendar month in question populated into the form of "BESS Measurement Period Report" below, and (iii) Seller's calculations of the Performance Metrics and any liquidated damages assessments for each Performance Metric LD Period ending with such calendar month as set forth below. Seller shall deliver such Monthly Report to Company by the tenth (10th) Business Day following the close of the calendar month in question. Seller shall deliver the Monthly Report electronically to the address provided by the Company. Company shall have the right to verify all data set forth in the Monthly Report by inspecting measurement instruments and reviewing Facility operating records. Upon Company's request, Seller shall promptly provide to Company any additional data and supporting documentation necessary for Company to audit and verify any matters in the Monthly Report.

WTG Monthly Report

NAME OF IPP FACILITY: [Facility Name]

MONTHLY REPORT PERIOD: [Month Day, Year] to [Month Day, Year]

Enter the information for each Force Majeure event effecting the WTGs during the reporting period. Dates and times should be entered to the nearest minute. Duration and equivalent hours should be rounded to 2 decimal places. When using MWs for item (D) below, Contract Capacity is to be provided for (E); and when using number of devices for item (D), total number of devices is to be provided for (E).

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (C) = (B-A)	Size of effect (MW) or Number of devices that are offline (D)	Contract Capacity or Total number of devices in the affected system (E)	Equivalent Hours (hrs) (C x D)/E
---------------------------	-------------------------	----------------------------------	--	---	---

...					

Calendar hours in the reporting period: _____

Total equivalent hours for the reporting period (from above): _____

Enter the total number of hours for each WTG and state during the reporting period (to 2 decimal places).

TID	ACTH	FTH	MTH	PTH	OFTH	OMTH	OPTH
Turbine1							
Turbine2							
Turbine3							
...							

Enter the Actual Generation (MWh) for each WTG and state during the reporting period (to 2 decimal places).

TID	CTH	OEFDTH	OEMPTH	OEPDTH
Turbine1				
Turbine2				
Turbine3				
...				

Enter the Expected Generation (MWh) for each WTG and state during the reporting period (to 2 decimal places).

TID	CTH	OEFDTH	OEMPTH	OEPDTH
Turbine1				
Turbine2				
Turbine3				
...				

Calculated Pooled OMC Equipment Equivalent Availability Factor
for the reporting period: _____

Calculated Performance Index for the reporting period: _____

BESS Measurement Period Report

NAME OF IPP FACILITY: [Facility Name]

BESS MEASUREMENT PERIOD: [Month Day, Year] to [Month Day, Year]

Enter the applicable information to demonstrate satisfaction of the BESS Capacity Performance Metric during the reporting period. This can either be from the most recent BESS Capacity Test performed during the period or taken from operating data reflecting the net output of the BESS.

Date/Time Start	Date/Time End	Total MWh delivered to the POI (A)	BESS Contract Capacity (MWh) (B)	BESS Capacity Ratio 100% x (A/B)

Enter the applicable information to demonstrate satisfaction of the BESS Round Trip Efficiency Performance Metric during the reporting period. This can either be from the most recent BESS RTE Test performed during the period or taken from operational data reflecting the charging/discharging of the BESS.

Date/Time Start	Date/Time End	Total MWh delivered to the POI (A)	Charging Energy (MWh) (B)	BESS RTE Ratio 100% x (A ÷ B)

Enter the information for each Force Majeure event affecting the BESS during the reporting period. Dates and times should be entered to the nearest minute. Duration, size of reduction, BESS Contract Capacity (MW), and equivalent hours should be rounded to 1 decimal place. When using MWs for item (D) below, BESS Contract Capacity (MW) is to be provided for (E).

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (C)=(B-A)	Size of Reduction (MW) (D)	BESS Contract Capacity (MW) (E)	Equivalent Hours (hrs) (C x D)/E
...					

Calendar hours in the reporting period: _____

Total equivalent hours for the reporting period (from above): _____

Omit any periods where Force Majeure was the sole cause of the Outage or Deration in the reporting areas below pursuant to Attachment X (BESS Annual Equivalent Availability Factor) of this Agreement.

Enter the information for each BESS Outage during the reporting period. Dates and times should be entered to the nearest minute. Duration should be rounded to 1 decimal place.

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (B-A)
...		

Calendar hours in the reporting period: _____

Total Outage hours for the reporting period (from above): _____

Available Hours (AH) in the reporting period: _____

AH from the last three (3) reporting periods: _____

AH for the last four (4) reporting periods: _____

Enter the information for each BESS Seller Attributable Derating event during the reporting period. Dates and times should be entered to the nearest minute. Duration, size of reduction, BESS Contract Capacity (MW), and equivalent hours should be rounded to 1 decimal place. When using MWs for item (D) below, BESS Contract Capacity (MW) is to be provided for (E).

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (C)=(B-A)	Size of reduction (MW) (D)	BESS Contract Capacity (MW) (E)	Equivalent Hours (hrs) (C x D)/E
...					

Total Equivalent Seller Attributable Derated hours (ESADH) for the reporting period: _____

ESADH from the last three (3) reporting periods: _____

ESADH for the last four (4) reporting periods: _____

Enter the information for each BESS Planned Derating event during the reporting period. Dates and times should be entered to the nearest minute. Duration, size of reduction, BESS Contract Capacity

(MW), and equivalent hours should be rounded to 1 decimal place. When using MWs for item (D) below, BESS Contract Capacity (MW) is to be provided for (E).

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (C)=(B-A)	Size of Reduction (MW) (D)	BESS Contract Capacity (MW) (E)	Equivalent Hours (hrs) (C x D)/E
...					

Total equivalent planned derated hours (EPDH) for the reporting period: _____

EPDH from the last three (3) reporting periods: _____

EPDH for the last four (4) reporting periods: _____

Enter the information for each BESS Unplanned Derating event during the reporting period. Dates and times should be entered to the nearest minute. Duration, size of reduction, BESS Contract Capacity (MW), and equivalent hours should be rounded to 1 decimal place. When using MWs for item (D) below, BESS Contract Capacity (MW) is to be provided for (E).

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (C)=(B-A)	Size of Reduction (MW) (D)	BESS Contract Capacity (MW) (E)	Equivalent Hours (hrs) (C x D)/E
...					

Total equivalent unplanned derated hours (EUDH) for the reporting period: _____

EUDH for the last three (3) reporting periods: _____

EUDH for the last four (4) reporting periods: _____

Period Hours (PH) ____ (8760 hours if no 29th day in February in that last twelve months; otherwise, 8784 hours).

Enter the Available Hours, ESADH, EPDH and EUDH for the last four (4) reporting periods as calculated above.

AH (A)	ESADH (B)	EPDH (C)	EUDH (D)	BESS Annual Equivalent Availability Factor $100\% \times (A - B - C - D)/PH$

Enter the information for each Unplanned (Forced) Outage during the reporting period. Dates and times should be entered to the nearest minute. Duration should be rounded to 1 decimal place.

Date/Time Start (A)	Date/Time End (B)	Duration (hrs) (B-A)
...		

Total Forced Outage Hours (FOH) for the reporting period (from above): _____

FOH from the last three (3) reporting periods: _____

FOH for the last four (4) reporting periods: _____

Enter the FOH, ESADH, and EUDH for the last four (4) reporting periods as calculated above.

FOH (A)	EUDH (B)	ESADH (C)	BESS Annual Equivalent Forced Outage Factor $100\% \times (A + B + C)/8760$

2. Monthly Report Disagreements.

- (a) Notice of Disagreement With Monthly Report. Within ten (10) Business Days following the close of each calendar month, Seller shall provide to Company the Monthly Report for such calendar month and for the rolling 12-month period ending with such calendar month. Within ten (10) Business Days after Company's receipt of a Monthly Report, Company shall provide written notice to Seller of any Monthly Report Disagreement, including with respect to the data for the calendar month covered by such Monthly Report and Seller's calculation of, as applicable, (i) the Modified Pooled OMC Equipment Availability Factor for the MPXEEAF Assessment Period ending with such calendar month, (ii) the PI for the PI Assessment Period ending with such calendar month, or (iii) any of the BESS Capacity Ratio, the RTE Ratio, the BESS Annual Equivalent Availability Factor or the BESS Annual Equivalent Forced Outage Factor for the BESS Measurement Period (if any) ending with such calendar

month ("Notice of Monthly Report Disagreement"). Together with any such Notice of Monthly Report Disagreement, the Company shall include its own calculations and other support for its position. If Company fails to provide a Notice of Monthly Report Disagreement within said 10-Business Day period, the Monthly Report provided by Seller shall be deemed to be accepted by Company and shall no longer be subject to dispute by Company or Seller.

- (b) Submission of Monthly Report Disagreement to Independent AF Evaluator. Upon issuance of a Notice of Monthly Report Disagreement, the Parties shall review the contents of the Monthly Report(s) together with such Notice of Monthly Report Disagreement and attempt to resolve such Monthly Report Disagreement. If the Parties are able to agree on a resolution of any Monthly Report Disagreement, the resulting corrected Monthly Report(s) in question shall be set forth in a writing executed by both Parties, following which (i) such corrected Monthly Reports shall no longer be subject to dispute by either Party and (ii) to the extent such resolution of such Monthly Report Disagreement affects future Monthly Reports, such future Monthly Reports shall be prepared, and the Modified Pooled OMC Equipment Availability Factor, the Performance Index, the BESS Capacity Ratio, the RTE Ratio, the BESS Annual Equivalent Factor and the BESS Annual Equivalent Forced Outage Factor in such future Monthly Reports shall be calculated, in a manner consistent with such resolution. If the Parties are unable to resolve such Monthly Report Disagreement within ten (10) Business Days after Company's issuance of such Notice of Monthly Report Disagreement, either Party may, within five (5) Business Days after the end of such 10-Business Day period, submit the unresolved Monthly Report Disagreement to an Independent AF Evaluator for resolution. If, within five (5) Business Days following the expiration of said 10-Business Day period, neither Party has submitted such Monthly Report Disagreement to an Independent AF Evaluator, the data and calculations set forth in the Notice of Disagreement in question shall be deemed to be accepted by Seller and shall no longer be subject to dispute by Company or Seller. Notwithstanding anything to the contrary in this Section 2(b) (Submission of Monthly Report Disagreement to

Independent AF Evaluator), once the Measured Power Curve has been (i) deemed to be accepted by Company pursuant to Section 3 (Other Disagreements) of this Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator), (ii) resolved pursuant to Section 3(b) (Submission of MPC Disagreement to Independent AF Evaluator), or (iii) resolved pursuant to Section 4(d) (Written Decision of Independent AF Evaluator) of this Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator), the issue of the Measured Power Curve may not be reopened by either Party in the guise of a Monthly Report Disagreement.

3. Other Disagreements.

- (a) Notice of Disagreement With Determination of Measured Power Curve. Within ten (10) Business Days after the first day of the second Contract Year, Seller shall provide written notice to Company of the Measured Power Curve for each WTG as provided in Section 4 (Determination of Measured Power Curve) of Attachment Q (Calculation of Certain Metrics) together with supporting data and calculations. Within thirty (30) Days after Company's receipt of Seller's written notice of the Measured Power Curve for each WTG, Company shall provide written notice to Seller of any disagreement with any such determination ("MPC Disagreement"). Together with any such notice of disagreement ("Notice of MPC Disagreement"), the Company shall include its own calculations and other support of its position. If Company fails to provide a Notice of MPC Disagreement within said 30-Day period, the Measured Power Curve for each WTG as calculated by the Seller pursuant to the aforesaid Section 4 (Determination of Measured Power Curve) of Attachment Q (Calculation of Certain Metrics) shall be deemed to be accepted by Company and shall no longer be subject to dispute by Company or Seller.
- (b) Submission of MPC Disagreement to Independent AF Evaluator. Upon issuance of a Notice of MPC Disagreement, the Parties shall review the Measured Power Curve(s) in question together with such Notice of MPC Disagreement and attempt to resolve such MPC Disagreement. If the Parties are able to agree on a resolution of such MPC Disagreement, the resulting

Measured Power Curve for each WTG shall be set forth in a writing executed by both Parties, following which such Measured Power Curve for such WTG shall be deemed to be the Measured Power Curve for such WTG under this Agreement and shall no longer be subject to dispute by either Party. If the Parties are unable to agree on a written resolution of such MPC Disagreement within thirty (30) Days after Company's issuance of such notice of disagreement, either Party may submit the unresolved MPC Disagreement to an Independent AF Evaluator for resolution. If, within five (5) Business Days following the expiration of said 30-Day period, neither Party has submitted such MPC Disagreement to an Independent AF Evaluator, the Measured Power Curve for each WTG as calculated by Seller pursuant to Section 4 (Determination of Measured Power Curve) of Attachment Q (Calculation of Certain Metrics) shall be deemed to be accepted by Company and shall no longer be subject to dispute by Company or Seller.

4. Independent AF Evaluator Process.

- (a) Appointment of Independent AF Evaluator. If either Party decides to submit an unresolved Monthly Report Disagreement or an unresolved MPC Disagreement to an Independent AF Evaluator, it shall provide written notice to that effect (the "Submission Notice") to the other Party, which notice shall designate which of the engineering firms on the OEPR Consultants List is to act as the Independent AF Evaluator for purposes of resolving such dispute; provided, however, for purposes of facilitating consistency in the resolution of Monthly Report Disagreements, all Monthly Report Disagreements concerning the same Performance Metric arising out of any one or more of the twelve (12) Monthly Reports issued for a given Contract Year shall be submitted to the same Independent AF Evaluator unless such Independent AF Evaluator declines to accept any such submission(s). A Submission Notice must be provided within whichever of the following time periods is applicable:
 - (i) for any Monthly Report Disagreement, within the 5-Business Day period provided in Section 2(b) (Submission of Monthly Report Disagreement to Independent AF Evaluator) of this Attachment T

(Monthly Reporting and Dispute Resolution by Independent AF Evaluator); and

- (ii) for any MPC Disagreement, within the 5-Business Day period provided in Section 3(b) (Submission of MPC Disagreement to Independent AF Evaluator) of this Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator).

The Parties shall each pay fifty percent (50%) of the fees and expenses charged by the Independent AF Evaluator.

- (b) Eligibility for Appointment as Independent AF Evaluator. Both Parties agree that the engineering firms listed in Section 4(j) (Acceptable Persons and Entities) of Attachment U (Calculation and Adjustment of Net Energy Potential) are fully qualified to serve as Independent AF Evaluator. By mutual agreement between the Parties in writing, a name or names may be added to or removed from the OEPR Consultants List at any time. In no event shall there be less than three (3) names on the OEPR Consultants List.
- (c) Participation of Parties. Promptly following the issuance of a Submission Notice as provided in Section 4(a) (Appointment of Independent AF Evaluator) of this Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator), Seller and Company shall provide the Independent AF Evaluator which such data as they consider to be material to the resolution of the disputed issue(s). Seller and Company shall also provide such additional data and information as the Independent AF Evaluator may reasonably request. The Parties shall assist the Independent AF Evaluator throughout the process of resolving such dispute, including making key personnel and records available to the Independent AF Evaluator, but neither Party shall be entitled to participate in any meetings with personnel of the other Party or review of the other Party's records. However, the Independent AF Evaluator will have the right to conduct meetings, hearing or oral arguments in which both Parties are represented.
- (d) Written Decision of Independent AF Evaluator. The terms of engagement with the Independent AF Evaluator

shall require the Independent AF Evaluator to issue its written decision resolving the disputed issues submitted to it within the applicable time period set forth below, which time periods are subject to any tolling that may be applicable pursuant to Section 4(e) (Sequence for Resolving Interrelated Disagreements) of this Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator):

(a) 30 Days as measured from the issuance of the Submission Notice; or (b) such other time period as the Parties may agree in writing. Unless otherwise agreed by the Parties in writing:

- (i) for a Monthly Report Disagreement concerning the Modified Pooled OMC Equipment Availability Factor, the written decision of the Independent AF Evaluator shall set forth (aa) for the calendar month in question, the correct values for equation used in calculations under Section 1 (Calculation of the Modified Pooled OMC Equipment Availability Factor)) of Attachment Q (Calculation of Certain Metrics) of this Agreement as determined by such Independent AF Evaluator if any such values were in dispute and (bb) for the MPXEEAF Assessment Period ending with the calendar month in question, the Modified Pooled OMC Equipment Availability Factor for such MPXEEAF Assessment Period as determined by such Independent AF Evaluator if such Modified Pooled OMC Equipment Availability Factor was in dispute;
- (ii) for a Monthly Report Disagreement concerning the Performance Index, the written decision of the Independent AF Evaluator shall set forth (aa) the correct values of the equation to be used in the calculation under Section 2 (Calculation of Performance Index) of Attachment Q (Calculation of Certain Metrics) that include such calendar month if any such values were in dispute, (bb) if a PI Test was conducted during the month in question, the correct data points from such PI Test to be used in the calculation of PI under Section 2.6(a) ([GPR or GPI] Performance Metric and Liquidated Damages) of this Agreement for the PI Assessment Periods that include the month preceding the month covered by the Monthly Report in question if any such data points were in

dispute, and (cc) for the PI Assessment Period ending with the calendar month in question, the Performance Index if such Performance Index was in dispute;

- (iii) for a Monthly Report Disagreement concerning the BESS Capacity Ratio or the RTE Ratio, the written decision of the Independent AF Evaluator shall set forth the BESS Capacity Ratio and/or the RTE Ratio (as applicable) for the BESS Measurement Period ending with the calendar month in question;
- (iv) for a Monthly Report Disagreement concerning the BESS Annual Equivalent Availability Factor, the written decision of the Independent AF Evaluator shall set forth (aa) the correct values to be used for AH, ESADH, EPDH, EUDH and PH under Attachment X (BESS Annual Equivalent Availability Factor) for the calendar month in question if any such values were in dispute and (bb) the BESS Annual Equivalent Availability Factor for the BESS Measurement Period ending with the calendar month in question if such BESS Annual Equivalent Availability Factor was in dispute;
- (v) for a Monthly Report Disagreement concerning the BESS Annual Equivalent Forced Outage Factor, the written decision of the Independent AF Evaluator shall set forth (aa) the correct values for FOH and EUDH under Attachment Y (BESS Annual Equivalent Forced Outage Factor) for the calendar month in question if any such values were in dispute and (bb) the BESS Annual Equivalent Forced Outage Factor for the BESS Measurement Period ending with the calendar month in question if such BESS Annual Equivalent Forced Outage Factor was in dispute; and
- (vi) for a MPC Disagreement, the written decision of the Independent AF Evaluator shall set forth the Measured Power Curve for the WTG in question.

(e) Sequence for Resolving Interrelated Disagreements.

- (i) If an MPC Disagreement is unresolved at the time a Monthly Report Disagreement is submitted to an

Independent AF Evaluator pursuant to Section 4(a) (Appointment of Independent AF Evaluator) of this Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator), and the resolution of such MPC Disagreement is necessary to the resolution of such Monthly Report Disagreement, the time period for an Independent AF Evaluator to issue its written decision resolving such Monthly Report Disagreement shall be tolled until the resolution of such MPC Disagreement pursuant to either Section 3(b) (Submission of MPC Disagreement to Independent AF Evaluator) or Section 4(d) (Written Decision of Independent AF Evaluator) of this Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator).

- (ii) If at the time a Monthly Report Disagreement is submitted to an Independent AF Evaluator pursuant to Section 4(a) (Appointment of Independent AF Evaluator) of this Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) there are one or more other unresolved Monthly Report Disagreements concerning the same Performance Metric and the same Performance Metric LD Period that are pending before a different Independent AF Evaluator, and the resolution of such other Monthly Report Disagreement(s) is necessary to the resolution of the Monthly Report Disagreement that has been newly submitted to a new Independent AF Evaluator as aforesaid, the time period for such new Independent AF Evaluator to issue its written decision resolving such newly submitted Monthly Report Disagreement shall be tolled until such pending Monthly Report Disagreement(s) have been resolved. For avoidance of doubt, it is the intent of the Parties that disagreements over performance data and calculations for a given calendar month or a given BESS Measurement Period shall (i) not be subject to resolution twice and (ii) once resolved, shall not be reopened.

- (f) Final, Conclusive and Binding. The Parties acknowledge the inherent uncertainty in calculating the Performance Metrics and the Measured Power Curve,

and hereby assume the risk of such uncertainty and waive any right to dispute the qualification of the person or entity appointed as the Independent AF Evaluator pursuant to Section 4(a) (Appointment of Independent AF Evaluator) of this Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) and/or the appropriateness of the methodology used by Independent AF Evaluator in resolving such Monthly Report Disagreements and/or Measured Power Curve Disagreements. Without limitation to the generality of the preceding sentence, the decision of the Independent AF Evaluator as to each Monthly Report Disagreement and each Measured Power Curve Disagreement submitted to an Independent AF Evaluator shall be final, conclusive and binding upon Company and Seller and shall not be subject to further dispute under Article 28 (Dispute Resolution) of the Agreement.

5. Periodic Review of Method of Calculating and Reporting Performance Metrics. At least once per Contract Year, Company shall review the method of calculating and reporting Performance Metrics under this Agreement to determine if other variables should be incorporated into such calculations. Any revisions to the Performance Metrics calculations in this Agreement shall be mutually agreed to by both Seller and Company.
6. Future Changes in Reporting Requirements. Seller shall reasonably cooperate with any Company requested revisions to the Monthly Report to include additional data that may be necessary from time to time to enable Company to comply with any new reporting requirements directed by the PUC or otherwise imposed under applicable Laws.

ATTACHMENT U
[PV] CALCULATION AND ADJUSTMENT OF NET ENERGY POTENTIAL

[DRAFTING NOTE: THIS FORM OF ATTACHMENT U IS FOR PV+BESS]

1. Net Energy Potential.

(a) Net Energy Potential and the Intent of the Parties.

The essence of this Agreement is that Company is paying to Seller a Lump Sum Payment in exchange for Company's right to dispatch the Facility's Net Energy Potential. Under this Agreement, "Net Energy Potential": (i) constitutes an estimated single number with a 95% probability of exceedance ("P95") for annual Net Energy that could be produced by the Facility based on a Renewable Resource Baseline and estimated losses and uncertainties over a period of ten years, excluding losses due to Company Dispatch; (ii) is subject to adjustment from time to time as provided in this Attachment U (Calculation and Adjustment of Net Energy Potential); and (iii) as so adjusted, provides a basis for calculating and adjusting the Lump Sum Payment, as provided in Section 3 (Calculation of Lump Sum Payment) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement.

(i) The Net Energy Potential shall be calculated using the Renewable Resource Baseline for the site, the most current construction design and equipment specifications (see loss factors below), and industry-accepted energy simulation models (i.e. PVSyst); this will be expected to result in a P50 value at the point of interconnection ("POI P50"). The P50 should then have an uncertainty analysis applied -as follows:.

(A) Uncertainty Analysis. The uncertainty analysis should consider the following sources of uncertainty:

i. solar resource uncertainty
(measurement accuracy, irradiance model, period of record, spatial, albedo),

ii. modeling uncertainty,

- iii. combined design uncertainty, and
- iv. interannual variability in a 10 year period.

The total combined uncertainty should be determined using the root sum squares method for combining the individual uncertainty factors. The P95 when the total combined uncertainty is applied to the POI P50 will constitute the Net Energy Potential as defined and subject to the adjustments mentioned above. The uncertainty factors should be determined using industry best practices and standard assumptions.

- (B) Loss factors shall include, and shall be limited to:
 - (1) Shading (far and near),
 - (2) electrical losses:
 - (aa) DC wiring,
 - (bb) AC wiring,
 - (cc) medium-voltage transformer efficiency
 - (dd) high voltage transformer efficiency
 - (ee) transmission line to POI efficiency,
 - (3) Station Service,
 - (4) Generation System Aux Loads,
 - (5) a PV System Equivalent Availability Factor of 98%
 - (6) PV conversion (non-STC irradiance and temperature performance),
 - (7) incident angle,

- (8) soiling,
 - (9) initial light induced degradation,
 - (10) module quality and mismatch,
 - (11) inverter limitation,
 - (12) inverter efficiency,
 - (13) degradation.
 - (14) Bifacial factors as applicable
- (D) Loss factors will exclude losses due to Company Dispatch.
- (ii) In the case of the Initial OEPR and any Subsequent OEPR evaluation, the Net Energy Potential shall also consider historical operational and meteorological data further described in Section 4(e) (Terms of Engagement) of this Attachment U (Calculation and Adjustment of Net Energy Potential).
- (iii) It is the intent of the Parties that the estimate of Net Energy Potential, as calculated and adjusted as foresaid, should reflect the following risk allocation between the Parties under this Agreement:
- (A) Seller has assumed the risk of downward adjustment to the Net Energy Potential (and hence the Lump Sum Payment) to account for any of the following circumstances:
- (1) if the Renewable Resource Baseline (as estimated on the basis of the typical meteorological year as derived from the Site's measured meteorological data) is lower than Seller had assumed when it submitted its RFP Proposal;
 - (2) if the as-built design and construction of the Facility is not as efficient in generating electrical energy and

delivering such electric energy to the Point of Interconnection as Seller had assumed when it submitted its RFP Proposal; and

(3) if the Facility's level of operational efficiency is below the standard of comparable facilities;

(B) Company has assumed the risk of the following (i.e., the following are to be disregarded for purposes of estimating Net Energy Potential (and hence the Lump Sum Payment)): the possibility that, at any given moment, Company does not need to dispatch any or all of the electric energy that the Facility is then capable of generating and delivering to the Point of Interconnection.

The foregoing is not intended as an exhaustive list of the risks assumed by either Party under this Agreement or as a limitation on the circumstances that an OEPR Evaluator, in its professional judgment, may decide to take into account in preparing its OEPR under Section 4(e) (Terms of Engagement) of this Attachment U (Calculation and Adjustment of Net Energy Potential).

(b) NEP RFP Projection. Company relied on Seller's NEP RFP Projection in deciding to contract with Seller in lieu of other developers. Seller shall be permitted a one-time option to raise the NEP RFP Projection no more than five percent (5%) of the NEP RFP Projection submitted with Seller's RFP Proposal ("Revised NEP RFP Projection"). Seller's Revised NEP RFP Projection must be provided to Company prior to completion of the NEP IE Estimate. The Lump Sum Payment shall be calculated in accordance with the Revised NEP RFP Projection, but in no event shall the Unit Price change. Among the fundamentals of the bargain evidenced in this Agreement is that there will be consequences to Seller if (i) the IE Energy Assessment Report does not support the NEP RFP Projection and/or (ii) the operational performance of the Facility indicates a Net Energy Potential that is below the

applicable thresholds set forth in this Attachment U (Calculation and Adjustment of Net Energy Potential).

- (c) NEP IE Estimate and Company-Designated NEP Estimate. Prior to the closing of the construction financing for the Facility but in no event later than the Commercial Operations Date, the Seller shall provide Company with a copy of the IE Energy Assessment Report and the Renewable Resource Baseline data including global horizontal and plane of array irradiance, ambient air temperature, and wind speed, loss factors, and corresponding power output used in arriving at the POI P50, and the Benchmark Performance Ratio and the uncertainty analysis applied to the POI P50 to arrive at the NEP IE Estimate ("IE Estimate Supporting Data"). The Benchmark Performance Ratio is established from the Renewable Resource Baseline, POI P50 data set, and adjusted for the considerations of the MPR calculation provided for in Sections 2(i), (ii), and (iii) of Attachment Q (Calculation of Certain Metrics) of this Agreement. In addition, Seller shall obtain from the administrative agent of the Facility Lender and provide to Company, at financial close of the construction debt financing, a confirmation letter confirming to Company that the IE Energy Assessment Report including the IE Estimate Supporting Data used in arriving at the NEP IE Estimate and the Benchmark Performance Ratio provided by Seller to Company is the final energy assessment prepared for the Facility Lender as part of the Facility Lender's due diligence leading up to the Facility Lender's legally binding commitment (subject only to ministerial conditions precedent) to provide a specific amount of financing for the Project as evidenced by the Facility Lender's execution of the Financing Documents. If the IE Energy Assessment Report fails to provide a NEP IE Estimate and the Benchmark Performance Ratio that is consistent with the requirements of this Agreement in all material respects, or if the IE Estimate Supporting Data used in arriving at the NEP IE Estimate and the Benchmark Performance Ratio is not provided, or if the aforementioned confirmation letter is not provided, Company shall have the option, exercisable by written notice to Seller issued no later than 30 Days, or such longer period as the Parties may agree in writing, following the first to occur of Company's receipt of (i) the IE Energy

Assessment Report or (ii) notice that Company will not be provided with a copy of the IE Energy Assessment Report and the IE Estimate Supporting Data used in arriving at the NEP IE Estimate, to designate such Company-Designated NEP Estimate as Company, in its sole discretion, determines to be reasonable in light of the information then available to Company. In connection with Company's decision as to whether to designate a Company-Designated NEP Estimate, Company shall have the right to require Seller to pay for an energy assessment to be performed by an independent engineer selected by Company. In such case, the aforesaid 30-Day period for Company's decision to designate a Company-Designated NEP Estimate shall be tolled for the time necessary to prepare such assessment. If Company fails, within the aforesaid 30-Day period as such period may be tolled as provided in the preceding sentence, to designate a Company-Designated NEP Estimate, the NEP RFP Projection shall constitute the First NEP Benchmark, unless the Parties agree in writing on a lower First NEP Benchmark.

(d) NEP IE Estimate, Liquidated Damages and Seller's Null and Void Right. If the NEP IE Estimate is higher than or equal to the NEP RFP Projection, the NEP RFP Projection shall constitute the First NEP Benchmark. In any other case, Seller shall have the option to declare this Agreement null and void by written notice to Company as follows:

(i) if (aa) the NEP IE Estimate is lower than the NEP RFP Projection and (bb) Seller issues its null and void notice to Company not later than 30 Days after issuance of the IE Energy Assessment Report; or

(ii) if (aa) Company exercises its right to designate a Company-Designated NEP Estimate under Section 1(c) (NEP IE Estimate and Company-Designated NEP Estimate) of this Attachment U (Calculation and Adjustment of Net Energy Potential), (bb) such Company-Designated NEP Estimate is lower than the NEP RFP Projection, and (cc) Seller issues its null and void notice to Company not later than 30 Days after Company's notice of the Company-Designated NEP Estimate.

If Seller fails to declare this Agreement null and void under the conditions set forth in either clause (i) or clause (ii) above, then: (x) the NEP IE Estimate or the Company-Designated NEP Estimate, as applicable, shall thereafter constitute the First NEP Benchmark and (y) Seller shall, within five (5) Business Days following the expiration of the applicable 30-Day period for the issuance of Seller's null and void notice, pay liquidated damages equal to \$10 for every MWh by which the NEP RFP Projection exceeds the First NEP Benchmark for the initial Contract Year.

2. Initial OEPR. Following the Initial NEP Verification Date, the Initial OEPR shall be prepared pursuant to the process set forth in Section 4 (Preparation of OEPR) of this Attachment U (Calculation and Adjustment of Net Energy Potential) and the Initial NEP OEPR Estimate shall be as set forth in or derived from the Initial OEPR, as more fully set forth in Section 4(e) (Terms of Engagement) of this Attachment U (Calculation and Adjustment of Net Energy Potential). If the Initial NEP OEPR Estimate differs from the First NEP Benchmark, the Lump Sum Payment shall be recalculated and adjusted as provided in Section 3(b) (Lump Sum Payment During Second Benchmark Period) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement.
3. Subsequent OEPRs.
 - (a) Required Subsequent OEPR. If Seller makes any changes to the Facility that involve (i) replacing any step-up transformer(s) or (ii) making any other changes (e.g., changing the characteristics of the Facility equipment or the specifications used in the Initial OEPR or Subsequent OEPR that Company reasonably determines require an updated OEPR, then Seller shall be required to have a Subsequent OEPR prepared as of the first Day of the calendar month following the second anniversary of the date such change to the Facility was completed.
 - (b) Voluntary Subsequent OEPR. Without limitation to the generality of Section 3(a) (Required Subsequent OEPR) of this Attachment U (Calculation and Adjustment of Net Energy Potential), if the Seller makes any changes to the Facility (e.g., replacing original equipment) that does not trigger a required Subsequent OEPR but which changes Seller has reasonable grounds to believe

will improve the Facility's Net Energy Potential, Seller shall have a one-time option, exercisable by written notice to Company issued not less than 120 Days prior to the Applicable NEP Verification Date, of having a subsequent OEPR prepared as of a date no sooner than 12 months following completion of the then most recent OEPR.

- (c) Subsequent OEPR and Adjustment to Lump Sum Payment. If the Subsequent NEP OEPR Estimate differs from the Most Recent Prior NEP Benchmark, the Lump Sum Payment shall be recalculated and adjusted as provided in Section 3(c) (Lump Sum Payment Following Second Benchmark Period) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement.

4. Preparation of OEPR. The following provisions apply to the Initial OEPR and any Subsequent OEPR:

- (a) Selection of OEPR Evaluator. No later than 90 Days prior to the Applicable NEP Verification Date, Company and Seller shall select, in accordance with the terms of this Section 4(a) (Selection of OEPR Evaluator) of Attachment U (Calculation and Adjustment of Net Energy Potential), an independent engineering firm from the firms listed on the OEPR Consultants List (the "OEPR Evaluator") to prepare an operational energy production report ("OEPR"). In no event shall the OEPR Evaluator be the same consultant or firm that prepared the initial NEP IE Estimate or the NEP RFP Projection. Each party shall select the names of two (2) firms from the OEPR Consultants List. If there is mutual agreement on one or both of the named firms, then the Seller shall select one of the firms named by both Parties to serve as the OEPR Evaluator. If there is no agreement on any of the named firms, then Seller shall select one of the firms named by the Company.
- (b) Eligibility for Appointment as OEPR Evaluator. Both Parties agree that the engineering firms as identified in Section 4(j) (Acceptable Persons and Entities) of this Attachment U (Calculation and Adjustment of Net Energy Potential) are fully qualified to prepare the OEPR. By mutual agreement between the Parties in writing, a name or names may be added to or removed from the OEPR Consultants List at any time. In no

event shall there be less than three (3) names on the OEPR Consultants List.

- (c) OEPR Period of Record. It is the intent of the Parties that the OEPR shall be prepared using measured meteorological and operational production data from the OEPR Period of Record. However, although the OEPR Period of Record is a twelve-month period, the Parties acknowledge that, in certain circumstances (e.g., Force Majeure), there may not be twelve months of data available for the OEPR Period of Record. In such case, (i) it is the intent of the Parties that the OEPR be prepared using such measured meteorological and operational production data that is available from the OEPR Period of Record and (ii) Parties may, by written agreement, direct the OEPR Evaluator to use such additional data outside of the OEPR Period of Record as the Parties may agree. The preceding sentence does not constitute a limitation on the professional judgment of the OEPR Evaluator as to the appropriateness of using measured meteorological and/or production from outside of the OEPR Period of Record.
- (d) Participation of Parties. No later than five (5) Days following the Applicable NEP Verification Date, Seller and Company shall provide the OEPR Evaluator with such data from the OEPR Period of Record as they consider to be material to the preparation of the OEPR. Seller and Company shall also provide such additional data and information as the OEPR Evaluator may reasonably request. The Parties shall assist the OEPR Evaluator throughout the process of preparing the OEPR, including making key personnel and records available to the OEPR Evaluator. The OEPR Evaluator will have the right to conduct meetings, hearings or oral arguments in which both Parties are represented. Seller and Company shall have forty-five (45) Days from issuance of the draft OEPR Report to review and provide feedback to the OEPR Evaluator on such report.
- (e) Terms of Engagement. Upon selection of the OEPR Evaluator, as set forth in this Attachment U (Calculation and Adjustment of Net Energy Potential), the Seller shall retain and contract with the OEPR Evaluator in accordance with the terms of this Attachment U (Calculation and Adjustment of Net Energy

Potential). The OEPR Evaluator's scope of work and expected deliverables for all OEPRs must be acceptable to Company and shall, among other things, require the OEPR Evaluator to provide (i) an estimated single number with a 95% probability of exceedance for annual Net Energy that could be produced by the Facility; (ii) the Renewable Resource Baseline file including data on global horizontal and plane of array irradiance, ambient air temperature, and wind speed, loss factors, and corresponding power output used in arriving at the POI P50, and the Benchmark Performance Ratio; (iii) the uncertainty analysis applied to the POI P50 to arrive at the aforementioned single P95 NEP OEPR Estimate; and (iv) any additional information that may be reasonably required by a Party with respect to the methodology used by the OEPR Evaluator to reach its conclusion. The provisions of this Attachment U (Calculation and Adjustment of Net Energy Potential) do not impose a limit on the OEPR Evaluator's professional judgment as to what other estimates (if any) to include in the OEPR. Without limiting the professional judgment of the OEPR Evaluator in estimating the Net Energy Potential and Benchmark Performance Ratio, the following is a general description of how the Parties anticipate that the OEPR Evaluator will proceed:

The purpose of an OEPR is to primarily utilize observed operational data and performance to calculate a NEP OEPR Estimate and Benchmark Performance Ratio. The results of the OEPR will then be appropriately used to calculate the monthly Lump Sum Payment pursuant to Section 3 (Calculation of Lump Sum Payment) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement.

At a high level, the analysis relies on reported Actual Output (i.e., energy produced by the Facility and delivered to the Point of Interconnection) during the OEPR Period of Record and gross generation during the OEPR Period of Record to estimate Facility performance over a future evaluation period of ten years. The data

from the OEPR Period of Record are first quality screened and evaluated. One-time events that may not be representative of future energy generation are assessed and removed from the record where appropriate. Values for resource potential energy are then calculated from the reported gross energy production by adjusting for 100% availability and undispached energy. Suitable long-term reference data sets are then identified by analyzing the reference for renewable resource and the normalized values for potential gross energy production over the OEPR Period of Record. Relationships between selected long-term reference renewable resource sets and normalized values for potential energy production of the conversion equipment are used to calculate long-term values for such on a monthly and annual basis to determine appropriate adjustments to the Renewable Resource Baseline, loss factors, and uncertainty factors. The OEPR Period of Record adjusted Renewable Resource Baseline and loss factors are used to determine an OEPR POI P50 and Benchmark Performance Ratio; OEPR Period of Record adjusted uncertainty factors are applied to the OEPR POI P50 in order to calculate the P95 OEPR NEP Estimate in accordance with the process described in Section 1 (Net energy Potential) of this Attachment U (Calculation and Adjustment of Net Energy Potential). If a copy of the IE Energy Assessment Report and/or any previous OEPR is available to the OEPR Evaluator, the OEPR Evaluator should review such Report(s) before commencing preparation of the OEPR and evaluate whether it is appropriate for the OEPR Evaluator to take into account any of the work reflected in the IE Energy Assessment Report and/or any previous OEPR.

OEPR analysis shall include at minimum the following operational data from the OEPR Period of Record:

SCADA Telemetered, minimum 15-minute resolution:

- PV inverters available (Quantity)
- Plane of Array (POA) Irradiance (W/m^2)
- Wind Speed (m/s)
- Global Horizontal Irradiance (W/m^2)
- Back of panel temperature (Degrees C)
- Ambient temperature (Degrees C)
- Wind speed (m/s)
- Energy delivered by each inverter (kWh)
- Energy delivered to BESS (kWh)
- Energy delivered to the POI (kWh)
- Energy delivered from the BESS (kWh)
- Power Reference Setpoint (MW)

Revenue Meter at POI:

- Actual Output

- (f) Timeline and Fees. The terms of engagement with the OEPR Evaluator shall require the OEPR Evaluator to provide, for Party review, a draft OEPR that shall include a NEP OEPR Estimate and a Benchmark Performance Ratio within 30 Days following the Applicable NEP Verification Date ("First OEPR"). The OEPR Evaluator shall be required to provide its completed OEPR within thirty (30) Days following the end of the Parties' 45-Day review period under Section 4(d) (Participation of Parties) of this Attachment U (Calculation and Adjustment of Net Energy Potential). For avoidance of doubt, the OEPR Evaluator shall designate as "FINAL" its completed OEPR. An OEPR may only be acknowledged and accepted by an officer of Company. The Parties shall each pay fifty percent (50%) of the fees and expenses charged by the OEPR Evaluator in connection with the Initial OEPR. For the Initial OEPR, the OEPR Evaluator's fees and costs must be acceptable to Company. Seller shall pay all of the fees and expenses charged by the OEPR Evaluator in connection with any Subsequent OEPR. Seller shall also pay for any reasonable internal fees and costs incurred by the Company as a result of its participation in the process set forth in Section 4(d) (Participation of Parties) of this Attachment U (Calculation and Adjustment of Net Energy Potential).

- (g) Review of the First OEPR Evaluator Report. In the event Company or Seller does not agree with the NEP OEPR Estimate or Benchmark Performance determined by the First OEPR Evaluator, Seller or Company may, within 30 Days of issuance of the First OEPR, engage, at its own cost, a different expert evaluator from the OEPR Consultants List (the "Second OEPR Evaluator") to prepare a second OEPR that shall include a NEP OEPR Estimate or Benchmark Performance Ratio, as applicable ("Second OEPR"). The terms of engagement with the Second OEPR Evaluator shall require the Second OEPR Evaluator to issue the Second OEPR within 60 Days following the date of its appointment. In the event the NEP OEPR Estimates or Benchmark Performance Ratio, as applicable, provided by the First OEPR Evaluator and the Second OEPR Evaluator are different then, within ten (10) Days of the issuance of the Second OEPR, the Parties shall, with the two evaluators, confer in an attempt to mutually agree upon a NEP OEPR Estimate or Benchmark Performance Ratio, as applicable ("OEPR Conference").
- (h) Review of the Second OEPR Evaluator Report. If the Parties are unable to agree upon an NEP OEPR Estimate or Benchmark Performance Ratio, as applicable, within 30 Days of the OEPR Conference, then within ten (10) Days thereafter the First OEPR Evaluator and Second OEPR Evaluator shall, by mutual agreement, select a third firm from the OEPR Consultants List to act as an independent OEPR Evaluator ("Third OEPR Evaluator"). The Third OEPR Evaluator shall not be a person from the same entity as the First OEPR Evaluator or the Second OEPR Evaluator. The Parties shall direct the Third OEPR Evaluator to review the First OEPR and Second OEPR and select one as the final and binding NEP OEPR Estimate and/or Benchmark Performance Ratio, as applicable ("Third OEPR"). The Third OEPR Evaluator shall complete its review and selection of the NEP OEPR Estimate within thirty (30) Days following his or her retention. If the Third OEPR Evaluator selects the First OEPR, then the Party requesting the Second OEPR shall pay for the cost of the Third OEPR. If the Third OEPR Evaluator selects the Second OEPR, then the Parties shall each pay fifty percent (50%) of the fees and expenses charged by the Third OEPR Evaluator in connection with the Third OEPR.

- (i) Final, Binding and Conclusive. The Parties acknowledge the inherent uncertainty in estimating the Net Energy Potential and Benchmark Performance Ratio or and hereby assume the risk of such uncertainty and waive any right to dispute any of the qualification of the person or entity appointed as the OEPR Evaluator pursuant to Section 4(a) (Selection of OEPR Evaluator) and Section 4(b) (Eligibility for Appointment as OEPR Evaluator) of this Attachment U (Calculation and Adjustment of Net Energy Potential) of this Agreement, the appropriateness of the methodology used by OEPR Evaluator in preparing the OEPRs, the NEP OEPR Estimate and/or the Benchmark Performance Ratio. Without limitation to the generality of the preceding sentence, the determination of the NEP OEPR Estimate and/or the Benchmark Performance Ratio in the First OEPR, Second OEPR (if applicable), or final decision of the Third OEPR Evaluator (if applicable) shall be final, conclusive and binding upon Company, provided that Company's acknowledgment and acceptance of a completed OEPR is made by a Company officer and delivered to Seller. Company and Seller shall not be subject to further dispute under Article 28 (Dispute Resolution) of the Agreement; provided that, nothing in this Section 4(i) (Final, Binding and Conclusive) of this Attachment U (Calculation and Adjustment of Net Energy Potential) shall preclude Seller from engaging an OEPR Evaluator to issue a Subsequent OEPR as allowed pursuant to Section 3 (Subsequent OEPRs) of this Attachment U (Calculation and Adjustment of Net Energy Potential).
- (j) Acceptable Persons and Entities. The OEPR Evaluator and Second OEPR Evaluator shall be selected from the engineering firms listed below, subject to such additions or deletions effectuated by the Parties as provided in Section 4(b) (Eligibility for Appointment as Independent AF Evaluator) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) to this Agreement and Section 4(b) (Eligibility for Appointment as OEPR Evaluator) of this Attachment U (Calculation and Adjustment of Net Energy Potential):

DNV GL
UL
Black & Veatch

Leidos Engineering

ATTACHMENT U
[WIND]CALCULATION AND ADJUSTMENT OF NET ENERGY POTENTIAL

[DRAFTING NOTE: THIS FORM OF ATTACHMENT U IS FOR WIND+BESS]

1. Net Energy Potential.

(A) Net Energy Potential and the Intent of the Parties. The essence of this Agreement is that Company is paying to Seller a Lump Sum Payment in exchange for Company's right to dispatch the Facility's Net Energy Potential. Under this Agreement, "Net Energy Potential": (i) constitutes an estimated single number with a 95% probability of exceedance ("P95") for annual Net Energy that could be produced by the Facility based on a Renewable Resource Baseline and estimated losses and uncertainties over a period of ten years, excluding losses due to Company Dispatch; (ii) is subject to adjustment from time to time as provided in this Attachment U (Calculation and Adjustment of Net Energy Potential); and (iii) as so adjusted, provides a basis for calculating and adjusting the Lump Sum Payment, as provided in Section 3 (Calculation of Lump Sum Payment) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement.

(i) The Net Energy Potential shall be calculated Renewable Resource Baseline for the site, the most current construction design and equipment specifications (see loss factors below), and industry-accepted energy simulation models (i.e. WindSyst); this will be expected to result in a P50 value at the point of interconnection ("POI 50"). The P50 should then have an uncertainty analysis applied. (A) Uncertainty Analysis. The uncertainty analysis should consider the following resources of uncertainty:

- i. wind resource uncertainty
(measurement accuracy, wind model,
period of record, spatial),
- ii. modeling uncertainty, combined
design uncertainty, and

**iii. iii. interannual variability in a
10 year period**

The total combined uncertainty should be determined using the root sum squares method for combining the individual uncertainty factors. The P95 when the total combined uncertainty is applied to the POI P50 will constitute the Net Energy Potential as defined and subject to the adjustments mentioned above. The uncertainties should be determined using industry best practices and standard assumptions.

(B) Loss factors shall include, and shall be limited to:

(1) Wake Effects (internal and external),

a. electrical losses:

(aa) DC Wiring,

(bb) AC wiring,

(cc) medium-voltage transformer
efficiency

(dd) high voltage transformer
efficiency

(ee) transmission line to POI
efficiency,

(15) Station Service,

(16) Generation System Aux Loads,

(17) Modified Pooled OMC Equipment
Availability Factor of 97%

(18) Turbine Performance:

- (aa) Sub-optimal operation,
 - (bb) Power curve adjustment,
 - (cc) High wind control hysteresis,
 - (dd) Blade degradation,
 - (E) Loss factors will exclude losses due to Company Dispatch.
- (a) Loss factors shall include, but not be limited to, electrical losses, Station Service, Generation System Aux Loads, wind power conversion losses, Modified Pooled OMC Equipment Availability Factor of 97%. Loss factors will exclude losses due to Company Dispatch. In the case of the Initial OEPR and any Subsequent OEPR evaluation, the Net Energy Potential shall also consider historical operational data further described in Section 4(e) (Terms of Engagement) of this Attachment U (Calculation and Adjustment of Net Energy Potential). It is the intent of the Parties that the estimate of Net Energy Potential, as calculated and adjusted as foresaid, should reflect the following risk allocation between the Parties under this Agreement:
- (i) Seller has assumed the risk of downward adjustment to the Net Energy Potential (and hence the Lump Sum Payment) to account for any of the following circumstances:
 - (aa) if the Renewable Resource Baseline (as estimated on the basis of the typical meteorological year as derived from the Site's measured meteorological data) is lower than Seller had assumed when it submitted its RFP Proposal;
 - (bb) if the as-built design and construction of the Facility is not as efficient in generating electrical energy and delivering such electric energy to the Point of Interconnection as Seller had assumed when it submitted its RFP Proposal; and

- (cc) if the Facility's level of operational efficiency is below the standard of comparable facilities;
- (ii) Company has assumed the risk of the following (i.e., the following are to be disregarded for purposes of estimating Net Energy Potential (and hence the Lump Sum Payment)): the possibility that, at any given moment, Company does not need to dispatch any or all of the electric energy that the Facility is then capable of generating and delivering to the Point of Interconnection.

The foregoing is not intended as an exhaustive list of the risks assumed by either Party under this Agreement or as a limitation on the circumstances that an OEPR Evaluator, in its professional judgment, may decide to take into account in preparing its OEPR under Section 4(e) (Terms of Engagement) of this Attachment U (Calculation and Adjustment of Net Energy Potential).

- (b) NEP RFP Projection. Company relied on Seller's NEP RFP Projection in deciding to contract with Seller in lieu of other developers. Seller shall be permitted a one-time option to raise the NEP RFP Projection no more than five percent (5%) of the NEP RFP Projection submitted with Seller's RFP Proposal ("Revised NEP RFP Projection"). Seller's Revised NEP RFP Projection must be provided to Company prior to completion of the NEP IE Estimate. The Lump Sum Payment shall be calculated in accordance with the Revised NEP RFP Projection, but in no event shall the Unit Price change. Among the fundamentals of the bargain evidenced in this Agreement is that there will be consequences to Seller if (i) the IE Energy Assessment Report does not support the NEP RFP Projection and/or (ii) the operational performance of the Facility indicates a Net Energy Potential that is below the applicable thresholds set forth in this Attachment U (Calculation and Adjustment of Net Energy Potential).
- (c) NEP IE Estimate and Company-Designated NEP Estimate. Prior to the closing of the construction financing for the Facility but in no event later than the Commercial Operations Date, the Seller shall provide Company with a copy of the IE Energy Assessment Report and the

Renewable Resource Baseline data including hub height density and temperature adjusted wind speed and corresponding power output used in arriving at the POI P50, and the Benchmark Performance Ratio and the uncertainty analysis applied to the POI P50 to arrive at the NEP IE Estimate ("IE Estimate Supporting Data"). The Benchmark Performance Ratio is established from the Renewable Resource Baseline, POI P50 data set, and adjusted for the considerations of the MPR calculations provided for in Section 2(i), (ii), and (iii) of Attachment Q (Calculation of Certain Metrics) of this Agreement. In addition, Seller shall obtain from the administrative agent of the Facility Lender and provide to Company, at financial close of the construction debt financing, a confirmation letter confirming to Company that the IE Energy Assessment Report including the IE Estimate Supporting Data used in arriving at the NEP IE Estimate and the BOP IE Benchmark Estimate provided by Seller to Company is the final energy assessment prepared for the Facility Lender as part of the Facility Lender's due diligence leading up to the Facility Lender's legally binding commitment (subject only to ministerial conditions precedent) to provide a specific amount of financing for the Project as evidenced by the Facility Lender's execution of the Financing Documents. If the IE Energy Assessment Report fails to provide a NEP IE Estimate and the BOP IE Benchmark Estimate that is consistent with the requirements of this Agreement in all material respects, or if the IE Estimate Supporting Data used in arriving at the NEP IE Estimate and the Benchmark Performance Ratio is not provided, or if the aforementioned confirmation letter is not provided, Company shall have the option, exercisable by written notice to Seller issued no later than 30 Days, or such longer period as the Parties may agree in writing, following the first to occur of Company's receipt of (i) the IE Energy Assessment Report or (ii) notice that Company will not be provided with a copy of the IE Energy Assessment Report and the IE Estimate Supporting Data used in arriving at the NEP IE Estimate and the BOP IE Benchmark Estimate, to designate such Company-Designated NEP Estimate and Company-Designated BOP Benchmark as Company, in its sole discretion, determines to be reasonable in light of the information then available to Company. In connection

with Company's decision as to whether to designate a Company-Designated NEP Estimate and Company-Designated BOP Benchmark, Company shall have the right to require Seller to pay for an energy assessment to be performed by an independent engineer selected by Company. In such case, the aforesaid 30-Day period for Company's decision to designate a Company-Designated NEP Estimate and Company-Designated BOP Benchmark shall be tolled for the time necessary to prepare such assessment. If Company fails, within the aforesaid 30-Day period as such period may be tolled as provided in the preceding sentence, to designate a Company-Designated NEP Estimate and Company-Designated BOP Benchmark, the NEP RFP Projection shall constitute the First NEP Benchmark and 0.97 shall be the BOP Benchmark, unless the Parties agree in writing on a lower First NEP Benchmark and/or an alternative BOP Benchmark.

- (d) NEP IE Estimate, Liquidated Damages and Seller's Null and Void Right. If the NEP IE Estimate is higher than or equal to the NEP RFP Projection, the NEP RFP Projection shall constitute the First NEP Benchmark. In any other case, Seller shall have the option to declare this Agreement null and void by written notice to Company as follows:
- (i) if (aa) the NEP IE Estimate is lower than the NEP RFP Projection and (bb) Seller issues its null and void notice to Company not later than 30 Days after issuance of the IE Energy Assessment Report; or
 - (ii) if (aa) Company exercises its right to designate a Company-Designated NEP Estimate under Section 1(c) (NEP IE Estimate and Company-Designated NEP Estimate) of this Attachment U (Calculation and Adjustment of Net Energy Potential), (bb) such Company-Designated NEP Estimate is lower than the NEP RFP Projection, and (cc) Seller issues its null and void notice to Company not later than 30 Days after Company's notice of the Company-Designated NEP Estimate.

If Seller fails to declare this Agreement null and void under the conditions set forth in either clause (i) or clause (ii) above, then: (x) the NEP IE Estimate or the Company-Designated NEP Estimate, as

applicable, shall thereafter constitute the First NEP Benchmark and (y) Seller shall, within five (5) Business Days following the expiration of the applicable 30-Day period for the issuance of Seller's null and void notice, pay liquidated damages equal to \$10 for every MWh by which the NEP RFP Projection exceeds the First NEP Benchmark for the initial Contract Year.

2. Initial OEPR. Following the Initial NEP Verification Date, the Initial OEPR shall be prepared pursuant to the process set forth in Section 4 (Preparation of OEPR) of this Attachment U (Calculation and Adjustment of Net Energy Potential) and the Initial NEP OEPR Estimate shall be as set forth in or derived from the Initial OEPR, as more fully set forth in Section 4(e) (Terms of Engagement) of this Attachment U (Calculation and Adjustment of Net Energy Potential). If the Initial NEP OEPR Estimate differs from the First NEP Benchmark, the Lump Sum Payment shall be recalculated and adjusted as provided in Section 3(b) (Lump Sum Payment During Second Benchmark Period) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement.
3. Subsequent OEPRs.
 - (a) Required Subsequent OEPR. If Seller makes any changes to the Facility that involve (i) replacing any step-up transformer(s) or (ii) making any other changes (e.g., changing the characteristics of the Facility equipment or the specifications used in the Initial OEPR or Subsequent OEPR) that Company reasonably determines require an updated OEPR, then Seller shall be required to have a Subsequent OEPR prepared as of the first Day of the calendar month following the second anniversary of the date such change to the Facility was completed.
 - (b) Voluntary Subsequent OEPR. Without limitation to the generality of Section 3(a) (Required Subsequent OEPR) of this Attachment U (Calculation and Adjustment of Net Energy Potential), if the Seller makes any changes to the Facility (e.g., replacing original equipment) that does not trigger a required Subsequent OEPR but which changes Seller has reasonable grounds to believe will improve the Facility's Net Energy Potential, Seller shall have a one-time option, exercisable by written notice to Company issued not less than 120 Days prior to the Applicable NEP Verification Date, of

having a subsequent OEPR prepared as of a date no sooner than 24 months following completion of the then most recent OEPR.

- (c) Subsequent OEPR and Adjustment to Lump Sum Payment. If the Subsequent NEP OEPR Estimate differs from the Most Recent Prior NEP Benchmark, the Lump Sum Payment shall be recalculated and adjusted as provided in Section 3(c) (Lump Sum Payment Following Second Benchmark Period) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement.

4. Preparation of OEPR. The following provisions apply to the Initial OEPR and any Subsequent OEPR:

- (a) Selection of OEPR Evaluator. No later than 90 Days prior to the Applicable NEP Verification Date, Company and Seller shall select, in accordance with the terms of this Section 4(a) (Selection of OEPR Evaluator) of Attachment U (Calculation and Adjustment of Net Energy Potential), an independent engineering firm from the firms listed on the OEPR Consultants List (the "OEPR Evaluator") to prepare an operational energy production report ("OEPR"). In no event shall the OEPR Evaluator be the same consultant or firm that prepared the initial NEP IE Estimate or the NEP RFP Projection. Each party shall select the names of two (2) firms from the OEPR Consultants List. If there is mutual agreement on one or both of the named firms, then the Seller shall select one of the firms named by both Parties to serve as the OEPR Evaluator. If there is no agreement on any of the named firms, then Seller shall select one of the firms named by the Company.
- (b) Eligibility for Appointment as OEPR Evaluator. Both Parties agree that the engineering firms as identified in Section 4(j) (Acceptable Persons and Entities) of this Attachment U (Calculation and Adjustment of Net Energy Potential) are fully qualified to prepare the OEPR. By mutual agreement between the Parties in writing, a name or names may be added to or removed from the OEPR Consultants List at any time. In no event shall there be less than three (3) names on the OEPR Consultants List.
- (c) OEPR Period of Record. It is the intent of the Parties that the OEPR shall be prepared using measured

meteorological and operational production data from the OEPR Period of Record. However, although the OEPR Period of Record is a twelve-month period, the Parties acknowledge that, in certain circumstances (e.g., Force Majeure), there may not be twelve months of data available for the OEPR Period of Record. In such case, (i) it is the intent of the Parties that the OEPR be prepared using such measured meteorological and operational production data that is available from the OEPR Period of Record and (ii) Parties may, by written agreement, direct the OEPR Evaluator to use such additional data outside of the OEPR Period of Record as the Parties may agree. The preceding sentence does not constitute a limitation on the professional judgment of the OEPR Evaluator as to the appropriateness of using measured meteorological and/or production from outside of the OEPR Period of Record.

- (d) Participation of Parties. No later than five (5) Days following the Applicable NEP Verification Date, Seller and Company shall provide the OEPR Evaluator with such data from the OEPR Period of Record as they consider to be material to the preparation of the OEPR. Seller and Company shall also provide such additional data and information as the OEPR Evaluator may reasonably request. The Parties shall assist the OEPR Evaluator throughout the process of preparing the OEPR, including making key personnel and records available to the OEPR Evaluator. The OEPR Evaluator will have the right to conduct meetings, hearings or oral arguments in which both Parties are represented. Seller and Company shall have forty-five (45) Days from issuance of the draft OEPR Report to review and provide feedback to the OEPR Evaluator on such report.
- (e) Terms of Engagement. Upon selection of the OEPR Evaluator, as set forth in this Attachment U (Calculation and Adjustment of Net Energy Potential), the Seller shall retain and contract with the OEPR Evaluator in accordance with the terms of this Attachment U (Calculation and Adjustment of Net Energy Potential). The OEPR Evaluator's scope of work and expected deliverables for all OEPRs must be acceptable to Company and shall, among other things, require the OEPR Evaluator to provide (i) an estimated single number with a 95% probability of exceedance for

annual Net Energy that could be produced by the Facility; (ii) the Renewable Resource Baseline file including data on hub height density and temperature adjusted wind speed and corresponding power output used in arriving at the POI P50, and the Benchmark Performance Ratio; (iii) the uncertainty analysis applied to the POI P50 to arrive at the aforementioned single P95 NEP OEPR Estimate; and (iv) any additional information that may be reasonably required by a Party with respect to the methodology used by the OEPR Evaluator to reach its conclusion. The provisions of this Attachment U (Calculation and Adjustment of Net Energy Potential) do not impose a limit on the OEPR Evaluator's professional judgment as to what other estimates (if any) to include in the OEPR. Without limiting the professional judgment of the OEPR Evaluator in estimating the Net Energy Potential and the BOP Benchmark, the following is a general description of how the Parties anticipate that the OEPR Evaluator will proceed:

The purpose of an OEPR is to primarily utilize observed operational data and performance to calculate a NEP OEPR Estimate and Benchmark Performance Ratio. The results of the OEPR will then be appropriately used to calculate the monthly Lump Sum Payment pursuant to Section 3 (Calculation of Lump Sum Payment) of Attachment J (Company Payments for Energy, Dispatchability and Availability of BESS) to this Agreement.

At a high level, the analysis relies on reported Actual Output (i.e., energy produced by the Facility and delivered to the Point of Interconnection) during the OEPR Period of Record and gross generation during the OEPR Period of Record to estimate Facility performance over a future evaluation period of ten years. The data from the OEPR Period of Record are first quality screened and evaluated. One-time events that may not be representative of future energy generation are assessed and removed from the record where appropriate. Values for resource potential energy are

then calculated from the reported gross energy production by adjusting for 100% availability and undispached energy. Suitable long-term reference data sets are then identified by analyzing the reference for renewable resource and the normalized values for potential gross energy production over the OEPR Period of Record. Relationships between selected long-term reference renewable resource sets and normalized values for potential energy production of the conversion equipment are used to calculate long-term values for such on a monthly and annual basis to determine appropriate adjustments to the Renewable Resource Baseline, loss factors, and uncertainty factors. The OEPR Period of Record adjusted Renewable Resource Baseline and loss factors are used to determine an OEPR Period of Record adjusted certainty factors are applied to the OEPR POI P50 in order to calculate the P95 OEPR NEP Estimate in accordance with the process described in Section 1 (Net energy Potential) of this Attachment U (Calculation and Adjustment of Net Energy Potential). If a copy of the IE Energy Assessment Report and/or any previous OEPR is available to the OEPR Evaluator, the OEPR Evaluator should review such Report(s) before commencing preparation of the OEPR and evaluate whether it is appropriate for the OEPR Evaluator to take into account any of the work reflected in the IE Energy Assessment Report and/or any previous OEPR.

OEPR analysis shall include at minimum the following operational data from the OEPR Period of Record:

SCADA Telemetered, minimum 15-minute resolution:

- WTGs available (Quantity)
- Wind speed at each nacelle and MMT(m/s)
- Wind direction at each nacelle and MMT (Degrees)
- Ambient air temperature at hub height for each WTG and MMT (Degrees C)

- Ambient air pressure at hub height for each WTG and MMT (mbar)
- Energy delivered by each WTG (kWh)
- Energy delivered to BESS (kWh)
- Energy delivered to the POI (kWh)
- Energy delivered from the BESS (kWh)
- Power Reference Setpoint (MW)

Revenue Meter at POI:

- Actual Output

- (f) Timeline and Fees. The terms of engagement with the OEPR Evaluator shall require the OEPR Evaluator to provide, for Party review, a draft OEPR that shall include a NEP OEPR Estimate and a BOP Benchmark within 30 Days following the Applicable NEP Verification Date ("First OEPR"). The OEPR Evaluator shall be required to provide its completed OEPR within thirty (30) Days following the end of the Parties' 45-Day review period under Section 4(d) (Participation of Parties) of this Attachment U (Calculation and Adjustment of Net Energy Potential). For avoidance of doubt, the OEPR Evaluator shall designate as "FINAL" its completed OEPR. An OEPR may only be acknowledged and accepted by an officer of Company. The Parties shall each pay fifty percent (50%) of the fees and expenses charged by the OEPR Evaluator in connection with the Initial OEPR. For the Initial OEPR, the OEPR Evaluator's fees and costs must be acceptable to Company. Seller shall pay all of the fees and expenses charged by the OEPR Evaluator in connection with any Subsequent OEPR. Seller shall also pay for any reasonable internal fees and costs incurred by the Company as a result of its participation in the process set forth in Section 4(d) (Participation of Parties) of this Attachment U (Calculation and Adjustment of Net Energy Potential).
- (g) Review of the First OEPR Evaluator Report. In the event Company or Seller does not agree with the NEP OEPR Estimate or BOP Benchmark determined by the First OEPR Evaluator, Seller or Company may, within 30 Days of issuance of the First OEPR, engage, at its own cost, a different expert evaluator from the OEPR Consultants List (the "Second OEPR Evaluator") to prepare a second OEPR that shall include a NEP OEPR Estimate or BOP Benchmark, as applicable ("Second

OEPR"). The terms of engagement with the Second OEPR Evaluator shall require the Second OEPR Evaluator to issue the Second OEPR within 60 Days following the date of its appointment. In the event the NEP OEPR Estimates or BOP Benchmark, as applicable, provided by the First OEPR Evaluator and the Second OEPR Evaluator are different then, within ten (10) Days of the issuance of the Second OEPR, the Parties shall, with the two evaluators, confer in an attempt to mutually agree upon a NEP OEPR Estimate or BOP Benchmark, as applicable ("OEPR Conference").

- (h) Review of the Second OEPR Evaluator Report. If the Parties are unable to agree upon an NEP OEPR Estimate or BOP Benchmark, as applicable, within 30 Days of the OEPR Conference, then within ten (10) Days thereafter the First OEPR Evaluator and Second OEPR Evaluator shall, by mutual agreement, select a third firm from the OEPR Consultants List to act as an independent OEPR Evaluator ("Third OEPR Evaluator"). The Third OEPR Evaluator shall not be a person from the same entity as the First OEPR Evaluator or the Second OEPR Evaluator. The Parties shall direct the Third OEPR Evaluator to review the First OEPR and Second OEPR and select one as the final and binding NEP OEPR Estimate and/or BOP Benchmark, as applicable ("Third OEPR"). The Third OEPR Evaluator shall complete its review and selection of the NEP OEPR Estimate within thirty (30) Days following his or her retention. If the Third OEPR Evaluator selects the First OEPR, then the Party requesting the Second OEPR shall pay for the cost of the Third OEPR. If the Third OEPR Evaluator selects the Second OEPR, then the Parties shall each pay fifty percent (50%) of the fees and expenses charged by the Third OEPR Evaluator in connection with the Third OEPR.
- (i) Final, Binding and Conclusive. The Parties acknowledge the inherent uncertainty in estimating the Net Energy Potential and BOP Benchmark and hereby assume the risk of such uncertainty and waive any right to dispute any of the qualification of the person or entity appointed as the OEPR Evaluator pursuant to Section 4(a) (Selection of OEPR Evaluator) and Section 4(b) (Eligibility for Appointment as OEPR Evaluator) of this Attachment U (Calculation and Adjustment of Net Energy Potential) of this Agreement,

the appropriateness of the methodology used by OEPR Evaluator in preparing the OEPRs, the NEP OEPR Estimate and/or the BOP Benchmark. Without limitation to the generality of the preceding sentence, the determination of the NEP OEPR Estimate and/or the BOP Benchmark in the First OEPR, Second OEPR (if applicable), or final decision of the Third OEPR Evaluator (if applicable) shall be final, conclusive and binding upon Company, provided that Company's acknowledgment and acceptance of a completed OEPR is made by a Company officer and delivered to Seller. Company and Seller shall not be subject to further dispute under Article 28 (Dispute Resolution) of the Agreement; provided that, nothing in this Section 4(i) (Final, Binding and Conclusive) of this Attachment U (Calculation and Adjustment of Net Energy Potential) shall preclude Seller from engaging an OEPR Evaluator to issue a Subsequent OEPR as allowed pursuant to Section 3 (Subsequent OEPRs) of this Attachment U (Calculation and Adjustment of Net Energy Potential).

- (j) Acceptable Persons and Entities. The OEPR Evaluator and Second OEPR Evaluator shall be selected from the engineering firms listed below, subject to such additions or deletions effectuated by the Parties as provided in Section 4(b) (Eligibility for Appointment as Independent AF Evaluator) of Attachment T (Monthly Reporting and Dispute Resolution by Independent AF Evaluator) to this Agreement and Section 4(b) (Eligibility for Appointment as OEPR Evaluator) of this Attachment U (Calculation and Adjustment of Net Energy Potential):

DNV GL
UL
Black & Veatch
Leidos Engineering

ATTACHMENT V
SUMMARY OF MAINTENANCE AND INSPECTION PERFORMED
IN PRIOR CALENDAR YEAR

**[DRAFTING NOTE: THIS FORM OF ATTACHMENT V IS SUITABLE FOR BOTH
PV+BESS AND WIND+BESS]**

(See Article 5)

DATE WORK ORDER SUBMITTED: 06/28/96

WO#: 11451

EQUIPMENT #: 1CCF-TNK-1

EQUIPMENT DESCRIPTION: AMMONIA STORAGE TANK 1

PROBLEM DESCRIPTION: PURCHASE EMERGENCY ADAPTER FITTINGS FOR
UNLOADING GASPRO TANKS TO STORAGE TANK

WORK PERFORMED: PURCHASED THE NEW ADAPTERS AND VERIFIED THEIR
OPERATION.

COMPLETION DATE: 06/28/96

WORK ORDER COMPLETED BY: AA

-----END OF CURRENT WORK ORDER-----

DATE WORK ORDER SUBMITTED: 05/19/96

WO#: 11136

EQUIPMENT #: 1WSA-BV-12

EQUIPMENT DESCRIPTION: MAKE-UP PI ISOLATION

PROGRAM DESCRIPTION: 'D' MAKE-UP PUMP PI ISOLATION FITTING
LEAKING ON SPOOL SIDE

WORK PERFORMED: REMOVED AND REPLACED FITTINGS AND FLANGES WITH
STAINLESS STEEL. THIS WORK WAS DONE DURING PUMP OVERHAUL ON WO
1374. JH

COMPLETION DATE: 06/28/96

WORK ORDER COMPLETED BY: BB

-----END OF CURRENT WORK ORDER-----

ATTACHMENT W
BESS TESTS

[DRAFTING NOTE: THIS FORM OF ATTACHMENT W IS SUITABLE FOR BOTH PV+BESS AND WIND+BESS]

Prior to achieving Commercial Operations, and in each BESS Measurement Period, unless waived by Company, Seller shall demonstrate that the BESS satisfies the (1) BESS Capacity Performance Metric, and (2) RTE Performance Metric, each as defined and further described below.

BESS Capacity Performance Metric

The BESS Capacity Performance Metric reflects the net energy output of the BESS as delivered to the Point of Interconnection, which considers electrical losses including, but not limited to, Station Service and BESS Aux Loads. The BESS Capacity Performance Metric can be demonstrated with data recorded over any period of time, within the applicable BESS Measurement Period, that meets the requirements of a BESS Capacity Performance Demonstration, described below.

The "BESS Capacity Performance Metric" shall be deemed to be satisfied where the BESS Capacity Ratio is not less than **100%** for an applicable BESS Measurement Period. The "BESS Capacity Ratio" shall be the number, expressed as a percentage, equal to the total energy stored and subsequently delivered to the Point of Interconnection during a time period which meets the requirements of a BESS Capacity Performance Demonstration, divided by the BESS Available Capacity (MWh). The "BESS Available Capacity" shall be defined as the total energy storage capacity in MWh of BESS components online and available to charge or discharge energy. The best or highest BESS Capacity Ratio achieved at the highest BESS Available Capacity in the applicable BESS Measurement Period shall be used to determine satisfaction of the BESS Capacity Performance Metric, or assessment of liquidated damages, for that BESS Measurement Period, in accordance with Section 2.8 (BESS Capacity; Liquidated Damages; Termination Rights).

BESS Capacity Performance Demonstration

A "BESS Capacity Performance Demonstration" shall be defined as a continuous time period, not longer than twelve (12) hours in duration, wholly contained within the applicable BESS

Measurement Period, during which the BESS dispatch meets the following additional requirements:

- (a) BESS Available Capacity (1) must be the same at the beginning and end of the demonstration time period and (2) must not increase above the BESS Available Capacity at the beginning of the demonstration time period. For this requirement, BESS Available Capacity shall not be considered to be reduced for portions of the BESS that are no longer "available" solely due to being fully discharged.
- (b) At the beginning of the demonstration time period, the available portions of the BESS shall be fully charged, as demonstrated by no longer accepting additional energy.
- (c) The Company, or Seller under direction of the Company, may vary the output of the BESS; provided, however, the BESS shall be dispatched in such a way that the active power reference setpoint is at or above 1 MW during the demonstration time period (i.e., only discharging).
- (d) The demonstration time period shall end when the level of charge available to be discharged from the BESS to the Point of Interconnection is no longer capable of maintaining the 1 MW output being commanded by the active power reference setpoint.

BESS Available Capacity must not be manipulated or reduced solely for the purpose of increasing the BESS Capacity Ratio.

RTE Performance Metric

The RTE Performance Metric reflecting the efficiency of the charging/discharging of the BESS can be demonstrated with data recorded over any period of time, within the applicable BESS Measurement Period, that meets the requirements of a BESS RTE Performance Demonstration, described below.

For the purposes of evaluating satisfaction of the RTE Performance Metric, the "RTE Ratio" shall be the number, expressed as a percentage, equal to the total Discharge Energy delivered to the Point of Interconnection, divided by the Charging Energy measured at the BESS AC input.

The formula for the RTE Ratio is as follows:

$$\text{RTE Ratio} = 100\% \times (\text{MWh discharge}) / (\text{MWh charge})$$

The RTE Performance Metric will be deemed to have been "passed" or "satisfied" to the extent the RTE Ratio is not less than the RTE Performance Metric set forth in Section 2.11(a) (RTE and Liquidated Damages). The best or highest RTE Ratio achieved at the highest BESS Available Capacity in the applicable BESS Measurement Period shall be used to determine satisfaction of the RTE Performance Metric and assessment of liquidated damages for that BESS Measurement Period.

BESS RTE Performance Demonstration

Demonstration of the RTE Performance Metric requires measurement of Charging Energy (MWh charge) at the BESS AC input, followed by measurement of the Discharge Energy (MWh discharge) delivered to the Point of Interconnection from the BESS. The exact point of measurement for Charging Energy shall be as set forth on the Facility's single-line diagram attached hereto as Attachment E (Single-Line Drawing and Interface Block Diagram). In order to be used for demonstration of the RTE Performance Metric, Charging Energy and Discharge Energy must be calculated using data recorded during a single time period which meets the requirements of a BESS RTE Performance Demonstration.

A BESS RTE Performance Demonstration shall be defined as a continuous time period, not longer than twenty-four (24) hours, wholly contained within the applicable BESS Measurement Period, comprised of a Charging Period followed by a Discharging Period, during which the BESS dispatch meets the following additional requirements:

- (a) BESS Available Capacity must be the same at the beginning and end of the charging period. During the charging period, the BESS Available Capacity must not decrease below the BESS Available Capacity at the beginning of the charging period.
- (b) BESS Available Capacity must be the same at the beginning and end of the discharging period. During the discharging period, the BESS Available Capacity must not increase above the BESS Available Capacity at the beginning of the discharging period. For this requirement, BESS Available Capacity shall not be considered to be reduced for portions of the BESS that

are no longer "available" solely due to being fully discharged during the discharging period.

- (c) At the beginning of the demonstration time period, the available portions of the BESS shall be charged no more than 10%. The energy stored in the available portions of the BESS at the beginning of the charging period, expressed in MWh, shall be defined as the "Initial Energy" (MWh).
- (d) During the charging period, the Company, or Seller under direction of the Company, may vary the active power setpoint; provided, however, the Facility shall be dispatched in such a way that the active power measured at the BESS AC input is only flowing in the charging direction.
- (e) The charging period shall end when the available portions of the BESS are at least 90% charged. The total amount of energy delivered to the BESS, measured in MWh at the BESS AC input, between the beginning and end of the charging period shall be defined as the "Charging Energy" (MWh).
- (f) The start of the discharge period may be delayed after the end of the charging period, as long as the discharge period has concluded within the 24-hour continuous time period. During the discharge period, the Company, or Seller under direction of the Company, may vary the output of the BESS; provided, however, the BESS shall be dispatched in such a way that the active power setpoint is at or above 1 MW for the entire discharge period (i.e., only discharging).
- (g) The discharge period shall last no longer than 12 hours.
- (h) The "Discharge Energy" shall be calculated as the energy delivered to the POI from the BESS, between the beginning of the discharge period and the time at which the charge remaining in the available portions of the BESS, expressed in MWh, is closest to the Initial Energy.

BESS Available Capacity must not be manipulated or reduced solely for the purpose of increasing the RTE Ratio.

BESS Test Procedures

During each BESS Measurement Period, Seller shall be responsible for selecting data from a valid time period (or time periods) meeting the requirements of a BESS Capacity Performance Demonstration and a BESS RTE Performance Demonstration (each, a "BESS Performance Demonstration" and collectively, the "BESS Performance Demonstrations"), and for providing such data that was used to assess the satisfaction of the BESS Capacity Performance Metric and the BESS RTE Performance Metric to Company for comparison and verification purposes ("Valid Data"). The Valid Data used to calculate such Performance Metrics are expected to be of normal SCADA quality and sample rate, and historical Company EMS data may be used to verify calculations.

In the event the dispatch of the BESS produces Valid Data with respect to either, or both, of the BESS Performance Demonstrations by end of the second month of the applicable BESS Measurement Period, Seller shall notify Company in writing of the existence of Valid Data for such BESS Performance Demonstration(s), in which case, no BESS Capacity Test and/or RTE Test (each a "BESS Test" and collectively, the "BESS Tests"), as applicable, will be required of Company. In the event the dispatch of the BESS has not produced Valid Data with respect to either, or both, of the BESS Performance Demonstrations by end of the second month of the applicable BESS Measurement Period, Seller shall notify Company in writing of the lack of Valid Data and request a BESS Test for the applicable Performance Metric(s) lacking Valid Data. Notwithstanding the foregoing, Seller shall not be entitled to a BESS Test when Valid Data exists for such Performance Metric(s).

A BESS Test occurs when Company intentionally attempts to dispatch the BESS in a manner which meets the requirements of one or both BESS Performance Demonstrations for the purposes of collecting Valid Data to determine the BESS Capacity Ratio and/or RTE Ratio, as applicable. When either BESS Test is requested by Seller, Company shall schedule and make reasonable efforts to perform the requested BESS Test before the end of the BESS Measurement Period and shall notify Seller in writing of the time period meeting the associated BESS Performance Demonstration requirements once the BESS Test has been performed. When both BESS Tests are validly requested, for convenience, Company shall attempt to adjust dispatch such that charging and subsequent discharging time periods will meet requirements for both BESS Performance Demonstrations to be calculated. If the Company is unable to perform the requested BESS Test(s) or the dispatch of the BESS does not otherwise meet

the requirements of the necessary BESS Performance Demonstration(s) by the end of the BESS Measurement Period, the associated BESS Performance Metric shall be deemed to have "passed" for that BESS Measurement Period. However, if after the end of the second month of the applicable BESS Measurement Period, Seller fails to timely notify Company in writing of the lack of Valid Data for either, or both, of the associated BESS Performance Demonstration(s), and Valid Data is not obtained by the end of the BESS Measurement Period, data from the next BESS Measurement Period will be used to determine the BESS's satisfaction of the applicable Performance Metric(s), or assessment of liquidated damages, for both BESS Measurement Periods.

If, during a BESS Measurement Period, one demonstration time period exists which satisfies the requirements for either, or both, BESS Performance Demonstrations (i.e., a single instance of Valid Data), the satisfaction of the associated Performance Metric(s), or assessment of liquidated damages, shall be evaluated with the data recorded during such single demonstration time period. If multiple time periods exist which satisfy the requirements for either, or both, BESS Performance Demonstrations, the satisfaction of the associated Performance Metric(s), or assessment of liquidated damages, will be based on the best or highest Performance Metric(s) achieved at the highest BESS Available Capacity calculated using the multiple instances of Valid Data collected during the BESS Measurement Period.

ATTACHMENT X
BESS ANNUAL EQUIVALENT AVAILABILITY FACTOR

[DRAFTING NOTE: THIS FORM OF ATTACHMENT X IS SUITABLE FOR BOTH PV+BESS, WIND+BESS, OR STANDALONE BESS]

For each BESS Measurement Period following the Commercial Operations Date, a BESS Annual Equivalent Availability Factor shall be calculated using the equation, data set and interim assumptions as provided in this Attachment X (BESS Annual Equivalent Availability Factor).

"BESS Annual Equivalent Availability Factor" shall be calculated as follows:

$$\begin{array}{l} \text{BESS Annual} \\ \text{Equivalent} \\ \text{Availability} \\ \text{Factor} \end{array} = 100\% \times \frac{AH-EDH}{PH}$$

Where, for the 12 calendar months used to calculate the BESS Annual Equivalent Availability Factor for the BESS Measurement Period in question:

Period Hours (PH) is the total number of hours in the 12 calendar months used to calculate the BESS Annual Equivalent Availability Factor for the BESS Measurement Period in question, counting twenty-four (24) hours per Day. If, for example, the 12 calendar months in question include exactly 365 Days, PH = 8,760.

Available Hours (AH) is the number of hours that the BESS is not on Outage. AH = PH-OH, as defined in this Attachment X (BESS Annual Equivalent Availability Factor).

A "BESS Outage" measured in Outage Hours (OH), exists whenever the entire BESS is offline and unable to charge or discharge electric energy and not due to Force Majeure or OMC. These outage hour(s) are then summed for the applicable BESS Measurement Period and the immediately preceding three (3) full BESS Measurement Periods.

BESS Outside Management Control (bOMC): are events (other than Seller-Attributable Non-Generation events) that occur beyond the Facility boundaries or are caused by abnormal weather exceeding ambient conditions required for operation. bOMC events can be

Planned, Maintenance, Forced Outage, or Derating Events. bOMC events can be due to Company System constraints, such as transmission or substation maintenance or switching. bOMC events do not include Seller-Attributable Non-Generation events.

A "BESS Derating" exists when the BESS is available but at less than BESS Contract Capacity (MW/MWh), including deratings due to Seller-Attributable Non-Generation or those by Company pursuant to Section 8.3 (Company Rights of Dispatch). For the avoidance of doubt, (1) if there is a BESS Outage occurring, there cannot also be a BESS Derating, (2) BESS outages and deratings required for testing the Performance Metrics as defined and required by this Agreement shall not be deemed BESS Outages or BESS Deratings for purposes of calculating the BESS Annual Equivalent Availability Factor, and (3) BESS outages and deratings that do not reduce the availability of the BESS below the BESS Contract Capacity shall not be deemed BESS Outages or BESS Deratings for purposes of calculating the BESS Annual Equivalent Availability Factor.

Equivalent Derated Hours (EDH) is the sum of ESADH, EPDH, and EUDH. For the avoidance of doubt, if there is a BESS Derating, it can only exist exclusively in one of the deration categories. The equivalent outage hour(s) (ESADH, EPDH, and EUDH) are calculated by multiplying the actual duration of the derating (hours) by the size of the derating (in MW/MWh) and dividing by the BESS Contract Capacity (MW/MWh). An EDH is to be calculated using MW and MWh for each time period, and the larger calculated EDH is to be used in the calculation of the BESS EAF pursuant to this Attachment X (BESS Annual Equivalent Availability Factor). These equivalent hour(s) are then summed for the applicable BESS Measurement Period and the immediately preceding three (3) full BESS Measurement Periods. Deratings due to Force Majeure or OMC are excluded from the Equivalent Derated Hours, which is the sum of ESADH, EPDH and EUDH.

Equivalent Seller-Attributable Derated Hours (ESADH): A Seller-Attributable Derating occurs when a derating exists due to Seller-Attributable Non-Generation or deratings by Company pursuant to Section 8.3 (Company Rights of Dispatch). Each individual derating is transformed into equivalent full outage hour(s).

EPDH is the equivalent planned derated hours, including Planned Deratings (PD) and Maintenance Deratings (D4). A Planned Derating is when the BESS experiences a derating scheduled well in advance and for a predetermined duration. A Maintenance

Derating is a derating that can be deferred beyond the end of the next weekend (Sunday at midnight or before Sunday turns into Monday) but requires a reduction in capacity before the next Planned Derating (PD).

EUDH is the equivalent unplanned derated hours. An Unplanned Derating (Forced Derating) occurs when the BESS experiences a derating that requires a reduction in availability before the end of the nearest following weekend.

The following examples are provided as illustrative examples only:

Example A: The BESS was continuously available, with no BESS Outages or BESS Deratings during the 12 months used to calculate the BESS Annual Equivalent Availability Factor for the BESS Measurement Period in question. In this case AH = 8760 hours, EDH = 0 hours as ESADH, EPDH, and EUDH each = 0 hours

$$\text{BESS EAF} = 100\% \times \frac{8,760-0}{8,760} = 100\%$$

Example B: During the 12 months used to calculate the BESS Annual Equivalent Availability Factor for the BESS Measurement Period in question: (a) The BESS was online and charging from the [PV System or WTG(s)] or discharging electric energy to the Company System for 8,534 hours and was available but not discharging electric energy due to lack of stored energy (i.e., not Seller-Attributable Non-Generation) for 226 hours; (b) The BESS experienced a Planned Derating of 7.2 MWs relative to the BESS Contract Capacity for 100 hours for maintenance that was scheduled a month in advance; (c) The BESS also experienced an Unplanned Derating of 6.2 MW relative to the BESS Contract Capacity for 100 hours as the derating could not be deferred to beyond the nearest following weekend. (d) The BESS did not experience any outage or derating due to Seller-Attributable Non-Generation during this period.

The BESS Contract Capacity (MW) is 10 MW.

$$\begin{aligned} \text{PH} &= 8,760 \text{ hours in 12 calendar months} \\ \text{AH} &= \text{PH} - \text{OH} = 8,760 - 226 = 8,534 \text{ hours} \end{aligned}$$

$$\text{ESADH} = 0$$

$$\begin{aligned} \text{EPDH} &= 100 \text{ hours} \times 7.2 \text{ MW}/10 \text{ MW} = 72 \text{ hours} \\ &\text{(Planned Maintenance)} \end{aligned}$$

$$\text{EUDH} = 100 \text{ hours} \times 6.2 \text{ MW} / 10 \text{ MW} = 62 \text{ hours}$$

(Unplanned Deration (Forced Derating))

$$\text{EDH} = \text{ESADH} + \text{EPDH} + \text{EUDH} = 0 + 72 \text{ hours} + 62 \text{ hours} = 134 \text{ hours}$$

$$\text{BESS EAF} = 100\% \times \frac{8,760 - 134}{8,760} = 98.5\%$$

Requisite Data Set. Using the equation set forth on page X-1, the BESS Annual Equivalent Availability Factor shall be calculated as of the close of each BESS Measurement Period based on the data set compiled from the twelve (12) then-most-recent calendar months subsequent to the Commercial Operations Date. A consequence of requiring a 12-month data set subsequent to the Commercial Operations Date is that, during the initial Contract Year such data set will not be available. During that period, the BESS Annual Equivalent Availability Factor shall be calculated as provided in the paragraph immediately below captioned "Interim Assumptions."

Interim Assumptions. Until such time as there are twelve (12) calendar months subsequent to the Commercial Operations Date, the calculation of the BESS Annual Equivalent Availability Factor using the equation set forth at page X-1 shall be made on the basis of the data available as of the close of each BESS Measurement Period as supplemented and limited by the following assumptions and limitations:

- (a) Assumed Availability During Initial Contract Year. For the first three BESS Measurement Periods of the initial Contract Year (i.e., through the ninth (9th) full calendar month of the initial Contract Year), the calculation of the BESS Annual Equivalent Availability Factor as of the end of each of these three BESS Measurement Periods shall assume that the BESS is one hundred percent (100%) available during the calendar months remaining between the close of such BESS Measurement Period and the end of the initial Contract Year; and
- (b) Disregarding Data For Period Prior to First Calendar Month of Initial Contract Year. If the Commercial Operation Date occurs on a day that is not the first day of a calendar month, the period between the

Commercial Operations Date and the first day of the first calendar month following the Commercial Operations Date is not included in the first BESS Measurement Period and the data from this excluded period shall not be used in the calculation of the BESS Annual Equivalent Availability Factor.

ATTACHMENT Y
BESS ANNUAL EQUIVALENT FORCED OUTAGE FACTOR

[DRAFTING NOTE: THIS FORM OF ATTACHMENT Y IS SUITABLE FOR BOTH PV+BESS AND WIND+BESS]

$$EFOF = 100\% \times \frac{(FOH + EUDH + ESADH)}{8760}$$

Where:

Equivalent Unplanned (Forced) Derated Hours (EUDH) is calculated in accordance with Attachment X (BESS Annual Equivalent Availability Factor) of this Agreement.

Equivalent Seller Attributable Derated Hours (ESADH) is calculated in accordance with Attachment X (BESS Annual Equivalent Availability Factor) of this Agreement.

Forced Outage Hours (FOH) = Sum of all hours the BESS experienced an Unplanned (Forced) Outage during the applicable BESS Measurement Period and the immediately preceding three (3) full BESS Measurement Periods.

Unplanned (Forced) Outage: An outage that requires removal of the entire BESS from service before the end of the nearest following weekend that is not planned, including those caused by Seller-Attributable Non-Generation or those imposed by Company pursuant to Section 8.3 (Company Rights of Dispatch).

EXAMPLE CALCULATION:

Assume a 50 MW BESS that for the BESS Measurement Period in question was completely out of service for 50 hours. For the BESS Measurement Period in question, it also had the following deratings:

Duration of Derating	MW Size Reduction
100 Hours	25 MW
20 Hours	20 MW
50 Hours	5 MW

During the three preceding BESS Measurement Periods, the BESS had a total of 150 Forced Outage Hours and a total of 100 Equivalent Forced Derated Hours.

FOH = 50 hours + 150 hours = 200 hours

EUDH = ((100 x 25) ÷ 50) + ((20 x 20) ÷ 50)) + ((50 x 5) ÷ 50))
+ 100 = 163 hours

$$EFOF = 100\% \times \frac{(200 + 163)}{8760} = 4.1\%$$